

N.J.A.C. 5:23-6.1

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*NJ - New Jersey Administrative Code > TITLE 5. COMMUNITY AFFAIRS > CHAPTER 23. UNIFORM
CONSTRUCTION CODE > SUBCHAPTER 6. REHABILITATION SUBCODE*

§ 5:23-6.1 Introduction; using this subcode

(a) This section is a guide to the use of the rehabilitation subcode. It should not be interpreted as containing substantive requirements and it is not intended to be cited for enforcement purposes.

1. The provisions of the other subcodes of the Uniform Construction Code do not apply to work in existing buildings, changing the use of an existing building or work in an existing building related to an addition unless the provisions of this subcode specifically reference them and make them applicable.
2. Traditionally, the New Jersey Uniform Construction Code has made the requirements that are applicable to new buildings also apply to buildings whose use is changed; applicable to buildings undergoing rehabilitation with the extent of the requirements depending on the amount of money being spent on the building; and to some extent applicable to existing buildings that have an addition constructed. Buildings whose use was changed and buildings receiving rehabilitation costing more than 50 percent of the replacement cost of the building were required to comply with all the provisions of the Uniform Construction Code for new buildings.
3. This subcode takes a new approach. The requirements that apply to a project are based upon the type of work being done rather than on the extent of the work. There is only one exception to this rule. In the case of reconstruction work, as the term reconstruction is defined in this subcode, there are some requirements which must be met when the project is a large one in floor area.

4. In this subcode, work is classified into six categories. Each category has a separate section which describes the requirements for that category of work. The categories are repair, renovation, alteration, reconstruction, change of use and additions. These terms are defined in N.J.A.C. 5:23-6.3 . The definitions are critical to understand the distinctions between these six categories of work. Where a project contains more than one category of work, each applicable category must be consulted for the requirements for that category of work.

(b) Repair Work: The requirements that apply to repair work are in N.J.A.C. 5:23-6.4 . The requirements for repairs are brief due to the limited nature of the work. There is a short list of materials that may not be used for repair work due to their inherently hazardous nature and another list of materials that must be used in connection with repair work where applicable. These lists should be used when planning the repair components of any project.

1. This subcode does not establish when a permit is required for a project. Those requirements are in

N.J.A.C. 5:23-2 . Although it is generally true that repair work undertaken by itself does not require a construction permit, it is important to understand that any repair work undertaken in connection with a project that involves other categories of work is required to meet only the provisions for the repair category established by this subcode. There is no limit to the amount of repair work which may be undertaken. The decision to renovate rather than repair is made only by the owner.

2. The installation of smoke alarms is required in any building of Groups R-3, R-4, R-5, and in dwelling units of Group R-2 that undergo a repair.

3. The installation of carbon monoxide detection equipment is required in buildings containing a fuel burning appliance or having an attached garage.

(c) Renovation Work: The requirements that apply to renovation work are in

N.J.A.C. 5:23-6.5 . Renovation is defined in

N.J.A.C. 5:23-6.3 .

1. There are short lists of materials that may not be used and materials or practices which must be used, where applicable, when renovation work is undertaken. These lists should be used when planning a project which involves renovation work.

2. The installation of smoke alarms is required in any building of Groups R-3, R-4, R-5, and in dwelling units of Group R-2, which undergoes a renovation.

3. The installation of carbon monoxide detection equipment is required in buildings containing a fuel burning appliance or having an attached garage.

4. Renovation work must comply with

N.J.A.C. 5:23-6.8 , Materials and methods. All materials used for the renovation work must meet the standards for those materials established by

N.J.A.C. 5:23-6.8 and methods of installation must comply with that section.

N.J.A.C. 5:23-6.8 , Materials and methods, references and makes applicable to renovation work certain specified subsections of the other subcodes of the Uniform Construction Code. Only those subsections specifically referenced in

N.J.A.C. 5:23-6.8 apply to renovation work. All materials and methods used in renovation work must comply with the requirements of that section.

5. This subcode never requires renovation. Any existing work may be repaired. The requirements for renovation apply only where the owner decides to renovate.

(d) Alteration Work: The requirements that apply to alteration work are in

N.J.A.C. 5:23-6.6 . Alteration is defined in

N.J.A.C. 5:23-6.3 .

1. N.J.A.C. 5:23-6.6 , Alteration work, contains short lists of materials that may not be used and materials or practices which must be used, where applicable, when alteration

work is undertaken. These lists should be used when planning a project which includes alteration work.

2. The installation of smoke alarms is required in any building of Groups R-3, R-4, R-5, and in dwelling units of Group R-2, which undergoes an alteration.

3. The installation of carbon monoxide detection equipment is required in buildings containing a fuel burning appliance or having an attached garage.

4. Alteration work must also comply with materials and methods that are set forth in N.J.A.C. 5:23-6.8 .

5. In alteration work, the configuration of the building is changed in some manner. The definition of "alteration" in

N.J.A.C. 5:23-6.3 provides the information needed to fully understand this term.

Because improper alteration work could create a safety hazard in the building, this subcode contains specific requirements which define these hazards. These are the basic requirements of the subcode which can be found in

N.J.A.C. 5:23-6.10 through

6.30 .

6. The subcode includes basic requirements, listed by group, with the exception of egress capacity, interior finish requirements, commercial cooking operations, and windowless stories which apply to all groups. Reference should be made to the list of basic requirements applicable to the particular group in which the building being altered falls. Care should be taken to ensure that the alteration will not create a non-conformity with any of the basic requirements which did not exist before the alteration was undertaken.

7. Certain alterations create what are defined to be new building elements. There is a specific listing of those items which are to be treated as newly-created building elements which can be found in

N.J.A.C. 5:23-6.9 . The elements on that list are required to conform to certain specific sections of the other subcodes of the Uniform Construction Code. The sections with

which each newly-constructed element must comply are listed in

N.J.A.C. 5:23-6.9 . Any alteration which creates one of the elements listed in that section must comply with the specific requirements listed in

N.J.A.C. 5:23-6.9 .

8. Improvements to the accessibility of buildings may be required when alteration work is undertaken. Those requirements are specified in

N.J.A.C. 5:23-6.6(e) and (k).

(e) Reconstruction Work: The requirements that apply to reconstruction work are in

N.J.A.C. 5:23-6.7 . Reconstruction is defined in

N.J.A.C. 5:23-6.3 . Unlike repair, renovation, and alteration, reconstruction is not a kind of work. A reconstruction may, as the definition of the term makes clear, include a combination of repair, renovation, and alteration work. It is the extent and nature of the work which makes a project a reconstruction. There are no quantitative criteria which determine whether a project is a reconstruction. A project becomes a reconstruction when the area where the project is taking place cannot be occupied while the work is in progress and when a new certificate of occupancy is required before the area can be re-occupied. Both criteria must be met.

1. This subcode requires that a reconstruction project have a delineated work area. This area is established by the permit applicant. The term "work area" is defined in

N.J.A.C. 5:23-6.3 . A reconstruction project must always involve an entire use, primary function space, or tenancy as those three terms are defined in

N.J.A.C. 5:23-6.3 . Projects which do not involve an entire use, primary function space, or tenancy are not reconstruction projects.

2. Although a reconstruction project is comprised of repair, renovation and alteration work, all of the requirements that apply are found in

N.J.A.C. 5:23-6.7 . For ease of use, this section has been written to include all of the requirements applicable to reconstruction. The entire work area must conform to the basic requirements in

N.J.A.C. 5:23-6.10 through

6.30 . These sections must be carefully reviewed when a reconstruction project is being planned.

3. The basic requirements are organized by individual groups in

N.J.A.C. 5:23-6.12 through

6.28 . Only the sections relevant to the building's group must be consulted.

Where a project involves mixed uses, then the special provisions of

N.J.A.C. 5:23-6.29 should also be consulted. Basic requirements that apply to all groups are in

N.J.A.C. 5:23-6.11 and

6.30 . Therefore,

N.J.A.C. 5:23-6.11 ,

6.30 , and the specific group section between 6.12 and 6.28 must be consulted for the basic requirements which apply to a project.

4. In addition to meeting the basic requirements, certain reconstruction projects must meet the supplemental requirements found in

N.J.A.C. 5:23-6.10 through

6.30 . There is a specific section for each group as is the case with the basic requirements. Supplemental requirements that apply to all groups are in

N.J.A.C. 5:23-6.11A and

6.30 . The supplemental requirements apply only when the work area for a reconstruction project exceeds a certain size. Each supplemental requirement has its own threshold of applicability.

5. The owner of a building in which a reconstruction project is planned must review the supplemental requirements applicable to the use of the project to determine if any of those requirements applies to the project. In addition to the specific group section between

N.J.A.C. 5:23-6.12A and

6.28A ,

N.J.A.C. 5:23-6.11A and

6.30 should be consulted for the supplemental requirements that apply to a project.

(f) Applying the Subcode to a Project: The requirements of this subcode applicable to a project can be found as follows:

1. Separate the project into its component parts of repair, renovation, and alteration;
2. Where a portion of the work is repair, consult the repair section of this subcode (N.J.A.C. 5:23-6.4) to ensure that prohibited materials are not being used and that any applicable required materials or practices are being used;
3. Where a portion of the work is renovation:
 - i. Consult the renovation sections of this subcode (N.J.A.C. 5:23-6.5);
 - ii. Ensure that the renovation work does not use any prohibited materials and that any applicable required materials or practices are being used; and
 - iii. Ensure that renovation materials and the methods of their installation conform to the Materials and Methods section of this subcode (N.J.A.C. 5:23-6.8).
4. Where a portion of the work is alteration work:
 - i. Consult the alteration section of this subcode (N.J.A.C. 5:23-6.6);
 - ii. Ensure that the alteration work does not use any prohibited materials and that any applicable required materials or practices are being used;
 - iii. Ensure that any materials and methods used for the alterations conform to the requirements of the materials and methods section of this subcode (N.J.A.C. 5:23-6.8);

iv. Ensure that alteration which creates a new building element listed in

N.J.A.C. 5:23-6.9 conforms to the requirements for new building elements that are specified in

N.J.A.C. 5:23-6.9 ; and

v. Ensure that none of the alteration work creates a new condition which would create a violation of any of the basic requirements applicable to the groups that are specified in

N.J.A.C. 5:23-6.10 through

6.30 .

5. Determine whether the project is a reconstruction project according to the definitions in

N.J.A.C. 5:23-6.3 . When the project is a reconstruction project:

i. Establish the work area of the project and show it on the plans and/or permit application;

ii. Ensure that the requirements applicable to the repair, renovation, and alteration portions of the project are followed;

iii. Ensure that the basic requirements for the particular uses that are specified in the relevant section of this subcode between

N.J.A.C. 5:23-6.11 and

6.28 are followed. Where the project work area includes more than one group, then

N.J.A.C. 5:23-6.29 should be consulted; and

iv. Review the size of the work area against the relevant provisions of the supplemental requirements in

N.J.A.C. 5:23-6.11A through

6.28A . Where compliance with a supplemental requirement is necessary, then ensure that the plans and/or the permit application reflect compliance with the required section. Some supplemental requirements will require work outside the work area.

(g) Changes of Use: The Uniform Construction Code divides all buildings into categories called uses. The Rehabilitation Subcode uses these same classifications.

1. The different uses represent different hazards and different needs. Specific requirements apply to each use. Each of the other technical subcodes of the Uniform Construction Code: Building, Fire, Plumbing, Electrical, Mechanical, Fuel Gas, Energy, and One- and Two-Family Dwelling, defines these uses, each for its own purpose. Traditionally, the Uniform Construction Code required any building or portion of a building where the use was changed to conform to the requirements of the code for a new building of that use. This subcode takes a different approach.
2. A change of use in a building often, but not always, involves some construction work. Changes of use, in which the owner does not need any construction work to effect the new use, do happen. The different uses defined by the code reflect different levels of hazard and different safety requirements. Depending upon the specific change, a new use may not affect the hazard; it could pose a lesser hazard; or it might pose a greater hazard or necessitate additional safety measures.
3. This subcode allows changes of use where the new use is similar to or less demanding in terms of hazard or safety requirements than the present use. No modifications to the building are required by this subcode where such a change of use is planned.
4. This subcode uses the concept of hazard indexes in order to specify the requirements for a change of use. Separate hazard indexes are established for different aspects of building, health, and safety:

i. Basic Requirements: Changes of use specified in

N.J.A.C. 5:23-6.31(b) must comply with the basic requirements set forth in

N.J.A.C. 5:23-6.10 through

6.30 before the building can be occupied for the new use.

ii. Means of Egress: Certain changes of use specified in

N.J.A.C. 5:23-6.31(c) must comply with additional requirements for

egress which are set forth in

N.J.A.C. 5:23-6.31(c) before the building can be occupied for the new use.

iii. Vertical Openings: Stairways and other vertical openings located in a building or portion of a building where there is a change of use are required to meet certain enclosure requirements for the new use which are specified in

N.J.A.C. 5:23-6.12 through

6.28 . These requirements must be met before the building may be occupied for the new use.

iv. Height and Area Limits: Changes of use are not allowed if the building will exceed the height and area limits specified in

N.J.A.C. 5:23-6.31(e) for its type of construction. The types of construction are defined in

N.J.A.C. 5:23-3.14 , the Building Subcode.

v. Exterior Walls: Changes of use as specified in

N.J.A.C. 5:23-6.31(f) of this subcode must have the fire resistance of exterior walls and any openings therein improved as specified in

N.J.A.C. 5:23-6.31(f) before the building can be occupied for the new use.

vi. Automatic Sprinkler System: Changes of use as specified in

N.J.A.C. 5:23-6.31(g) must have an automatic sprinkler system installed in accordance with the requirements of

N.J.A.C. 5:23-6.31(g) before the building can be occupied for the new use.

vii. Fire Alarms and Fire Detection Systems: Changes of use as specified in

N.J.A.C. 5:23-6.31(h) and (i) must have fire alarms or fire detection installed in accordance with the requirements of

N.J.A.C. 5:23-6.31(h) and (i) before the building can be occupied for the new use.

viii. Structural, Plumbing, Electrical, and Mechanical: Some changes of use may necessitate changes to the structural, plumbing, electrical, or mechanical systems of a building. These requirements are set forth in

N.J.A.C. 5:23-6.31(k) , (l), (m) and (n) of this subcode. Only those requirements necessitated by the change and needed for health or safety in the new use as specified must be met.

ix. Accessibility Requirements: Changes of use must conform to the accessibility requirements specified in

N.J.A.C. 5:23-6.31 (o) before the building can be occupied for the new use.

5. Where the owner of a building undergoing a change of use decides to undertake work not required by

N.J.A.C. 5:23-6.31 , then that work must comply with the requirements for repair, renovation, alteration, and reconstruction, as the case may be, which are established by N.J.A.C. 5:23-6.4 ,

6.5 ,

6.6 and

6.7 .

6. Where the use of a building or portion of a building is changed, a new certificate of occupancy is required for the new use by the provisions of

N.J.A.C. 5:23-2 . This does not mean that all changes of use are required to meet the requirements for reconstruction. Only a project which meets the definition of reconstruction set forth in

N.J.A.C. 5:23-6.3 need comply with the provisions of

N.J.A.C. 5:23-6.7 , Reconstruction.

(h) Additions: Additions are required to comply with the provision of the other technical subcodes of the Uniform Construction Code. Work in the existing building which is related to the addition

must conform with the requirements of

N.J.A.C. 5:23-6.32 . Additionally, such work undertaken in the existing building must comply with the requirements for repair, renovation, alteration, and reconstruction as set forth in

N.J.A.C. 5:23-6.4 ,

6.5 ,

6.6 and

6.7 .

(i) Historical Buildings:

N.J.A.C. 5:23-6.33 defines those buildings which are to be treated as historic and sets forth certain special requirements applicable to historic buildings which modify the provisions of this subcode when a building is historic.

N.J.A.C. 5:23-6.33 should be reviewed to determine if a building is to be treated as historic under this subcode and for the special provisions applicable to the various types of historical buildings.

History

HISTORY:

Amended by R.2000 d.492, effective December 18, 2000.

See:

32 N.J.R. 3219(a) ,

32 N.J.R. 4437(b) .

In (a)3, deleted the last sentence; and in (d)7, updated N.J.A.C. reference.

Amended by R.2003 d.218, effective May 19, 2003.

See:

35 N.J.R. 29(a) ,

35 N.J.R. 2209(a) .

In (c)2 and (d)2, substituted "R-3 and R-5" for "R-3/R-4"; in (f)5iii, (g)4ii, and (g)4vii, updated N.J.A.C. references.

Amended by R.2004 d.145, effective April 5, 2004.

See:

35 N.J.R. 5190(a) ,

36 N.J.R. 1758(a) .

Deleted references to use preceding references to group throughout; in (g)4vi, substituted references to automatic sprinkler system for fire suppression throughout.

Amended by R.2009 d.117, effective April 20, 2009.

See:

41 N.J.R. 18(a) ,

41 N.J.R. 1726(a) .

In (c)2 and (d)2, substituted "alarms" for "detectors".

Amended by R.2011 d.270, effective November 7, 2011.

See:

43 N.J.R. 1297(a) ,

43 N.J.R. 2999(a) .

In (d)7, substituted "(k)" for "(j)"; and in (g)1, deleted "and" preceding "Mechanical" and inserted ", Fuel Gas, Energy, and One- and Two-Family Dwelling".

Amended by R.2017 d.077, effective May 1, 2017.

See:

48 N.J.R. 1854(a) ,

49 N.J.R. 1020(a) .

Rewrote (b) through (d).

Amended by R.2017 d.107, effective June 5, 2017.

See:

48 N.J.R. 1851(a) ,

49 N.J.R. 1381(b) .

In (b)3, (c)3, and (d)3, by substituting "detection equipment" for "alarms", and delete "of Groups I-1, R-1, R-2, R-3, R-4, or R-5" following "buildings".

Annotations

Notes

Chapter Notes

NEW JERSEY ADMINISTRATIVE CODE

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§ 5:23-6.2 Applicability and compliance

(a) This subchapter, adopted pursuant to authority of the State Uniform Construction Code Act (P.L. 1975, c.217), and entitled "Rehabilitation Subcode," shall be known and may be cited throughout the regulations as N.J.A.C. 5:23-6, and when referred to in subchapter 6 of this chapter, may be cited as "this subchapter" or "this subcode." Unless otherwise specifically provided, all references to article or section numbers, or to provisions not specifically identified by number, shall be construed to refer to such article, section or provision of this subchapter.

(b) Scope: Except as otherwise specified, this subchapter shall control all matters concerning the repair, renovation, alteration, reconstruction, change of use, and addition to all buildings and structures and their service equipment as defined herein and shall apply to all existing buildings and structures in the State of New Jersey.

1. This subchapter shall not be applied to any building or portion thereof that has never been occupied. In such buildings or spaces, the requirements of the other subcodes of the Uniform Construction Code for new construction shall apply.
2. All work shall be classified by the construction official, in consultation with the appropriate subcode official(s), as one or more of six categories: repair, renovation, alteration, reconstruction, change of use, and additions. Specific requirements are established for each work category.

- i.** If a structure is demolished except for a de minimis amount, the construction official shall designate the replacement structure as a new structure and apply the requirements of the Uniform Construction Code applicable to new construction.
- 3.** Work of more than one category may be part of a single work project.
 - i.** Where a project includes repair, renovation or alteration work, then the work in each such category shall comply with the requirements for that category of work.
 - ii.** Where a project is a reconstruction project which includes repair, renovation or alteration work, then the work in each such category shall comply with the requirements for that category of work.
 - iii.** Where an alteration project results in a new building element, then each such new element shall comply with the requirements for new building elements.
 - iv.** Where a project is a reconstruction project, then the entire work area shall comply with the basic requirements of this subcode. Where a reconstruction project in a building involves more than one work area, then each work area shall comply with the requirements of this subcode. Additionally, reconstruction projects shall comply with the supplemental requirements of this subcode where they exceed the size requirements specified by this subcode in the sections governing supplemental requirements.
 - v.** Where the use of a building or portion thereof is changed, then the building or portion thereof shall be made to conform to the requirements of this subcode for a change of use. Where work is required by N.J.A.C. 5:23-6.31 for a change of use to be approved, then that work shall comply with the requirements of this subcode for changes of use. Where a project undertaken in connection with a change of use involves repairs, renovations or alterations which are not required by this subcode for the change of use, then the work in each such category shall comply with the requirements of this subcode for that category.
 - vi.** Where the work project involves an addition to a building, then the addition shall comply with the requirements of the other subcodes of the Uniform Construction Code for new buildings. Any repair, renovation or alteration undertaken in an existing building in

connection with an addition shall comply with the requirements of this subcode for such category of work.

(c) Compliance: The only requirements of the other subcodes of the UCC that apply are specifically set forth in this subchapter. Compliance with the requirements of the other subcodes of the UCC is not required for work in existing buildings. However, building components already in compliance with the requirements of the other subcodes of the UCC shall be replaced with components that comply. Where no year or edition is given for a standard referenced in this subchapter, the year or edition shall be the one referenced in the other subcode(s) of the UCC as of August 17, 2026.

1. Buildings in compliance with the current edition of the applicable subcode shall not be required to comply with any more restrictive requirement of this subcode.
2. The repairs, renovations, alterations, reconstruction, and changes of use and/or additions, of any building or structure currently existing shall conform to the requirements of this subchapter. Where compliance with the provisions of this subchapter would result in practical difficulty, the owner may apply for a variation in accordance with N.J.A.C. 5:23-2.10.
3. Any variation previously issued in writing pursuant to the UCC shall remain in force and effect unless the work to be performed during the course of the rehabilitation project causes one of the conditions of the variation to be violated or would otherwise create a hazardous condition.
4. As an alternative to compliance with the building and fire protection requirements of this subchapter, a permit applicant shall be allowed to evaluate the building in accordance with Sections 1305.1 through 1307.1 of the International Existing Building Code, as referenced by the building subcode, incorporated herein by reference, and to bring the building into compliance with the standards set forth therein.
5. When a project is undertaken in an existing building having a group designation that no longer represents the use due to subsequent adoptions of each subcode, the current group

designation that most closely resembles the approved use shall be used as the basis for applying the requirements of this subchapter.

(d) Permits: The requirements of this subchapter shall apply to all rehabilitation work without regard to whether a permit is required for such work. It should not be assumed that a permit is required simply because a requirement is established by this subchapter. Determinations as to whether a permit is required shall be made in accordance with the administrative provisions of the UCC contained at N.J.A.C. 5:23-2.

(e) Enforcement Responsibilities: Responsibility for the enforcement of the provisions of this subchapter shall be as indicated in parentheses at the end of each section, subsection, paragraph or subparagraph, as appropriate (for example, in a subsection of several paragraphs, the enforcement responsibility shall be in parentheses after the subsection's last paragraph). For provisions of other subcodes of the Uniform Construction Code referenced herein, enforcement responsibility shall be as indicated in N.J.A.C. 5:23-3.4.

1. Assignment of enforcement responsibility for a requirement does not imply that work undertaken that would not otherwise require a permit under the provisions of N.J.A.C. 5:23-2 of the Uniform Construction Code would now require a permit. Assignment of enforcement responsibility means that when there is a permit required or a complaint lodged, the designated subcode official is responsible. The parenthetical notes shall have the following meanings:

- i. "Building" means that responsibility is assigned to the building subcode official.
- ii. "Fire" means that responsibility is assigned to the fire protection subcode official.
- iii. "Electrical" means that responsibility is assigned to the electrical subcode official.
- iv. "Plumbing" means that responsibility is assigned to the plumbing subcode official.
- v. "Elevator" means that responsibility is assigned to the elevator subcode official.

2. Responsibility for the enforcement of mechanical requirements in buildings of Group R-3 or R-5 may be assigned as delineated in N.J.A.C. 5:23-3.4 at the discretion of the construction official.

(f) Pre-Existing Buildings: Buildings or structures legally in existence at the time of the adoption or subsequent amendment of this subchapter may continue in use and nothing herein shall be interpreted as requiring the repair, renovation, alteration or reconstruction of such building, except as provided at N.J.A.C. 5:23-2.32, Unsafe Structures.

(g) Relationship of this subcode to other codes, rules, and ordinances, shall be as follows:

1. It is the intent of this subcode to provide a uniform, Statewide, harmonious system of rehabilitation regulations applicable to all existing buildings and structures in the State. No code, ordinance, rule, regulation of any municipality, county, board, department, commission or agency thereof, shall establish any requirement for any matter covered by this subcode.

i. Exterior light fixtures that replace existing light fixtures shall comply with a municipal ordinance adopted to control light pollution.

2. It is the intent of this subcode to establish requirements for reconstruction projects which are at least as stringent as the requirements applicable to that area under the Uniform Fire Code, N.J.A.C. 5:70, the Regulations for Maintenance of Hotels and Multiple Dwellings (N.J.A.C. 5:10) and the New Jersey State Housing Code (N.J.A.C. 5:28). This subcode shall not be interpreted as establishing requirements less stringent than these codes.

3. Certificates of occupancy issued for projects in compliance with the requirements of this subcode are specific to the work undertaken and shall not obviate the need for the building to be brought into compliance with the requirements of N.J.A.C. 5:70-4.

i. Notwithstanding the above, a variation issued in writing pursuant to the UCC in connection with a rehabilitation project shall remain in force and effect provided that all of the conditions of the variation continue to be met and shall be accepted for purposes of establishing compliance with N.J.A.C. 5:70-4 for the portion of the building to which the variation applies.

4. This subcode is not intended to establish minimum standards of habitability for housing. No provision of any State or municipal housing code or the equivalent which establishes minimum

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standards for natural light, natural ventilation, minimum habitable floor area per occupant, or requirements for heat shall be deemed to be affected or superseded by this subchapter.

5. Where work is proposed to an existing commercial farm building or where the use of a building is changed to a commercial farm building, the building shall be permitted to comply with the requirements of N.J.A.C. 5:23-3.2(d). For items not specifically covered by N.J.A.C. 5:23-3.2(d), the project shall comply with the requirements of this subchapter applicable to Group S-2.

6. Any work performed in a licensed health care facility shall be in accordance with the "Guidelines for Design and Construction of Health Care Facilities," Facilities Guidelines Institute, current edition. All health care facilities shall comply with National Fire Protection Association (NFPA) 101, the Life Safety Code, as referenced in the rules promulgated by the Centers for Medicare and Medicaid Services. In the event of any conflict with this subcode, the more restrictive code provision shall govern.

(h) Correction of Violations of Other Codes: Alterations or renovations mandated by any property, housing, or fire safety maintenance code or mandated by any licensing rule or ordinance, adopted pursuant to law, shall conform only to the requirements of that code, rule, or ordinance and shall not be required to conform to this subchapter unless the code requiring such alterations so provides.

(i) Variations: Building owners wishing to use an alternative to compliance with specific provisions of this subcode shall submit request(s) for variations in writing in accordance with N.J.A.C. 5:23-2.10. For variation requests involving fire safety, the construction official shall consult with the fire official. If the fire official is also licensed as a fire subcode official under the Uniform Construction Code, then the approval of the fire official shall be required on such variation requests.

(j) Asbestos hazard abatement projects and lead hazard abatement projects shall not be categorized as reconstruction projects in and of themselves despite the fact that occupancy of the work area is not permitted. However, all related construction work undertaken in connection with

such projects and all replacement materials used shall comply with the applicable provisions of this subcode.

History

HISTORY:

Amended by R.1999 d.424, effective December 6, 1999.

See: 31 N.J.R. 2428(a), 31 N.J.R. 4001(c).

Inserted (b)2i.

Amended by R.2000 d.492, effective December 18, 2000.

See: 32 N.J.R. 3219(a), 32 N.J.R. 4437(b).

In (g)2 and 3, updated N.J.A.C. references.

Amended by R.2003 d.218, effective May 19, 2003.

See: 35 N.J.R. 29(a), 35 N.J.R. 2209(a).

In (c)4, substituted "Section 3409.6 of the International Building Code, 2000 edition" for "Section 3408.6 of the BOCA National Building Code, 1996 edition"; in (e)2, substituted "R-5" for "R-4".

Amended by R.2004 d.145, effective April 5, 2004.

See: 35 N.J.R. 5190(a), 36 N.J.R. 1758(a).

Deleted references to use preceding references to group throughout and added (g)1i.

Amended by R.2007 d.122, effective May 7, 2007.

See: 38 N.J.R. 4951(a), 39 N.J.R. 1673(a).

In (c)4, substituted "3410.6" for "3409.6" and "2006" for "2000"; and in (g)6, substituted "2006" for "1992-93".

Amended by R.2011 d.270, effective November 7, 2011.

See: 43 N.J.R. 1297(a), 43 N.J.R. 2999(a).

In (c)4, substituted "Sections 3412.5 through 3412.9 of the building subcode" for "Section 3410.6 of the International Building Code, 2006 edition"; and in (g)6, substituted " 'Guidelines for Design and Construction of Health Care Facilities,' " for " 'Guidelines for Construction and Equipment of Hospital and Medical Facilities,' 2006 edition or" and "Facilities Guidelines Institute" for "American Institute of Architects Committee on Architecture for Health".

Amended by R.2017 d.077, effective May 1, 2017.

See: 48 N.J.R. 1854(a), 49 N.J.R. 1020(a).

In the introductory paragraph of (c), substituted the first occurrence of "that" for "which"; in (c)4, substituted "1401.5" for "3412.5" and "1401.9" for "3412.9", and inserted "International Existing Building Code, as referenced by the"; added (c)5; and deleted (e)3.

Amended by R.2018 d.153, effective August 20, 2018.

See: 49 N.J.R. 2332(a), 50 N.J.R. 1888(a).

Rewrote (g)6.

Amended by R.2020 d.130, effective December 7, 2020.

See: 52 N.J.R. 835(a), 52 N.J.R. 2097(a).

Rewrote (g)6.

Amended by R.2021 d.015, effective February 16, 2021.

See: 52 N.J.R. 561(a), 53 N.J.R. 245(a).

In (c)4, substituted "1301.5 through 1301.9" for "1401.5 through 1401.9".

Amended by R.2023 d.030, effective March 6, 2023.

See: 54 N.J.R. 1661(a), 55 N.J.R. 349(a).

In (c), substituted "UCC" for "Uniform Construction Code" twice, and inserted "as of (insert adoption date of the national model codes update)".

Administrative correction, effective July 25, 2023.

See: 55 N.J.R. 1825(a).

Amended by R.2026 d.087, effective August 17, 2026.

See: 57 N.J.R. 2333(a), 58 N.J.R. 1882(a).

In the introductory paragraph of (c), substituted "August 17, 2026" for "September 19, 2022"; and in (c)4, substituted "1305.1 through 1307.1" for "1301.5 through 1301.9" and "set forth" for "contained".

Annotations

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Case Notes

In a dispute involving property insurance coverage, a trial court properly granted summary judgment to the insured for repair work to other parts of a damaged building since there was a clear causal connection between the collapse of the seventh floor and the code official's mandate to bring the remaining floors into compliance to prevent them from collapsing. But for wind damage to the seventh floor of the insured's building (a covered claim), the insured would not have been required to bring the wall-to floor connections in the rest of the building up to current code standards, therefore, those additional repairs were covered under the policy. *Deb Assocs. v. Greater N.y. Mut. Ins. Co.*, 407 N.J. Super. 287, 970 A.2d 1074, 2009 N.J. Super. LEXIS 124 (App.Div. 2009).

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N.J.A.C. 5:23-6.3

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*NJ - New Jersey Administrative Code > TITLE 5. COMMUNITY AFFAIRS > CHAPTER 23. UNIFORM
CONSTRUCTION CODE > SUBCHAPTER 6. REHABILITATION SUBCODE*

§ 5:23-6.3 Definitions

The words and terms used in this subcode shall have the following meanings unless the context clearly indicates otherwise. Any term not defined herein which is defined in any of the other subcodes of the Uniform Construction Code shall have the meaning as defined in that subcode. Where a term is defined in this subcode and is also defined in another subcode, then the term shall have the meaning as defined herein wherever it is used in this subcode.

"Addition" means an increase in the footprint area of a building or an increase in the average height of the highest roof surface or the number of stories of a building.

"Alteration" means the rearrangement of any space by the construction of walls or partitions or by a change in ceiling height, the addition or elimination of any door or window, the extension or rearrangement of any system, the installation of any additional equipment or fixtures and any work which reduces the loadbearing capacity of or which imposes additional loads on a primary structural component.

"Change of use" means a change from one use to another use in a building or tenancy or portion thereof.

"Commercial energy code" means the American Society of Heating, Refrigeration and Air Conditioning Engineers (ASHRAE) standard 90.1 adopted at N.J.A.C. 5:23-3.18 and applicable to all buildings other than residential buildings as defined at "residential energy code."

"Dormitory" means a building, or portion thereof, containing rooms which are provided as residences or for overnight sleeping for individuals or groups, and includes those residences utilized by fraternities or sororities which are recognized by or owned by a school or institution of higher education, but does not

§ 5:23-6.3 Definitions

include those residences or multiple dwellings utilized by students which are not recognized by or owned by a school or institution of higher education. "Dormitory" is not to include a building used primarily to house faculty or a multiple dwelling in which occupancy of each dwelling unit is limited to persons who are members of a single family group.

"Equipment" or "fixture" means plumbing, heating, electrical, ventilating, air conditioning, refrigerating and fire protection equipment, elevators devices, boilers, pressure vessels and other mechanical facilities or installations, which are related to building services and shall not include manufacturing, production or process equipment, but which shall include any connections from building services to process equipment.

"Group" means the group classification of the building subcode.

"Load bearing element" means any column, beam, joist, girder, wall, floor or roof sheathing which supports any load in addition to its own weight.

"New building element" means any one of the elements listed in N.J.A.C. 5:23-6.9 that did not exist previously.

"Nursing home" means a building used for nursing or custodial care on a 24-hour basis for more than five persons where evacuation is impractical (a group that, even with staff assistance, cannot reliably move to a point of safety in a timely manner) as defined in Section 22-1.3 of NFPA 101-97. This shall include intermediate care facilities, skilled nursing facilities and long term care facilities.

"Primary function space" means a room or space housing a major activity for which the building or tenancy is intended including, but not limited to, office area, auditorium, assembly space, dining room, bar or lounge, warehouse, factory, dwelling, care, confinement, retail, and educational spaces, but not including kitchens, bathrooms, storage rooms or other spaces supporting a primary function space; a building or tenancy may contain more than one primary function space.

"Primary structural component" means any component of the primary load bearing structure of a building including footings, piles, foundations, columns, girders, beams, joists, wind or seismic bracing but not including, for the purposes of this subcode, sheathing or subflooring.

§ 5:23-6.3 Definitions

"Reconstruction" means any project where the extent and nature of the work is such that the work area cannot be occupied while the work is in progress and where a new certificate of occupancy is required before the work area can be reoccupied. Reconstruction may include repair, renovation, alteration or any combination thereof. Reconstruction shall not include projects comprised only of floor finish replacement, painting or wallpapering, or the replacement of equipment or furnishings. Asbestos hazard abatement and lead hazard abatement projects shall not be classified as reconstruction solely because occupancy of the work area is not permitted.

"Rehabilitation" means the repair, renovation, alteration or reconstruction of any building or structure.

"Renovation" means the removal and replacement or covering of existing interior or exterior finish, trim, doors, windows, or other materials with new materials that serve the same purpose and do not change the configuration of space. Renovation shall include the replacement of equipment or fixtures.

"Repair" means the restoration to a good or sound condition of materials, systems and/or components that are worn, deteriorated or broken using materials or components identical to or closely similar to the existing.

"Residential energy code" means the International Energy Conservation Code adopted at N.J.A.C. 5:23-3.18 and applicable to residential buildings as defined as Group R-3 and R-5 buildings, as well as Group R-2 and Group R-4 buildings three stories or less in height above grade. Group R-5 buildings requirements are denoted in parentheses for the equivalent requirement in the one- and two-family dwelling subcode.

"System" means the primary structural, mechanical, plumbing, electrical, fire protection, or occupant service components of a building including any equipment, fixtures, connections, conduits, wires, pipes, ducts, as well as any associated sensors, controls, distribution or safety elements.

"Technically infeasible" means, in connection with accessibility requirements, a change that has little likelihood of being accomplished because the existing structural conditions require the removal or alteration of a loadbearing member that is an essential part of the structural frame, or because other existing physical or site constraints prohibit modification or addition of elements, spaces or features which

are in full and strict compliance with the minimum requirements for new construction and which are necessary to provide accessibility.

"Tenancy" means an entire building or that portion of a building or story which is or is intended to be under the control of a single owner or tenant.

"UFC fire barrier" means a continuous membrane, either vertical or horizontal, such as a wall or floor assembly, that is designed and constructed with a specified fire resistance rating and located to limit the spread of fire and restrict the movement of smoke. Such barriers may have protected openings when a specific fire resistive rating is indicated by this subcode.

"Use" means that portion of a building or tenancy which is devoted to a single group or special use or occupancy as defined in the building subcode or as established by the provisions of any other subcode for the purpose of specifying special requirements applicable to that portion of a building or tenancy.

"Work area" means any entire use, primary function space, or tenancy comprising all or part of a reconstruction project as delineated on the approved permit application and/or plans.

History

HISTORY:

Amended by R.2000 d.492, effective December 18, 2000.

See: 32 N.J.R. 3219(a), 32 N.J.R. 4437(b).

Amended "Addition".

Amended by R.2004 d.145, effective April 5, 2004.

See: 35 N.J.R. 5190(a), 36 N.J.R. 1758(a).

Added "Dormitory", "Group" and "UFC fire barrier"; in "Use", deleted "use" preceding "group"; deleted "Use Group".

Administrative correction.

§ 5:23-6.3 Definitions

See: 36 N.J.R. 2490(b).

Amended by R.2007 d.2, effective January 2, 2007.

See: 38 N.J.R. 3377(a), 39 N.J.R. 28(b).

Added definition "Nursing home".

Amended by R.2011 d.270, effective November 7, 2011.

See: 43 N.J.R. 1297(a), 43 N.J.R. 2999(a).

Added definitions "Commercial energy code" and "Residential energy code".

Amended by R.2017 d.077, effective May 1, 2017.

See: 48 N.J.R. 1854(a), 49 N.J.R. 1020(a).

Rewrote definition "Residential energy code".

Annotations

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N.J.A.C. 5:23-6.3A

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*NJ - New Jersey Administrative Code > TITLE 5. COMMUNITY AFFAIRS > CHAPTER 23. UNIFORM
CONSTRUCTION CODE > SUBCHAPTER 6. REHABILITATION SUBCODE*

§ 5:23-6.3A Flood-resistant construction

(a) For buildings in designated flood hazard areas, any work that constitutes a substantial improvement or repair of substantial damage of the existing building, as determined by the local floodplain administrator, shall comply with the applicable flood-resistant construction requirements below. As defined in the National Flood Insurance Program rules, 44 CFR 59.1, "'substantial improvement' means any reconstruction, rehabilitation, addition, or other improvement of a structure, the cost of which equals or exceeds 50 percent of the market value of the structure before the 'start of construction' of the improvement. This term includes structures which have incurred 'substantial damage,' regardless of the actual repair work performed." As defined in these Federal rules, "'substantial damage' means damage of any origin sustained by a structure whereby the cost of restoring the structure to its before damaged condition would equal or exceed 50 percent of the market value of the structure before the damage occurred."

1. Group R-5 buildings: Sections R301.2.4, R306, R317.3, R401.1, R404.1.9.5, R408.7, M1301.1.1, M1401.5, M1601.4.10, M1701.2, M2001.4, M2101.29.1, M2105.22.1, M2201.6, and G2404.7 of the one-and two-family dwelling subcode.
2. All other buildings:
 - i. Building subcode: Sections 802.4, 913.2, 1108.7.5, 1202.4.4, 1402.9, 1402.10, 1403.6, 1403.7, 1605.2, 1612, 1804.5, 1805.1.2.1, 2702.1.8, 3001.3, and 3102.7.
 - ii. Mechanical subcode: Sections 301.16, 401.4, 501.3.1, 602.4, 603.13, 1206.9.1, 1210.8.6, and 1305.2.1.

iii. Fuel gas subcode: Section 301.11.

History

HISTORY:

New Rule, R.2014 d.117, effective July 21, 2014.

See: 46 N.J.R. 160(a), 46 N.J.R. 1685(a).

Amended by R.2017 d.077, effective May 1, 2017.

See: 48 N.J.R. 1854(a), 49 N.J.R. 1020(a).

In (a)1, substituted "M1601.4.10 for "M1601.4.9"; rewrote (a)2i; and in (a)2ii, substituted "301.16" for "301.13" and "501.3.1" for "501.2".

Amended by R.2021 d.015, effective February 16, 2021.

See: 52 N.J.R. 561(a), 53 N.J.R. 245(a).

In (a)2i, substituted "802.4, 1202.4.4" for "801.5, 1203.4.2, Exception 5".

Amended by R.2023 d.030, effective March 6, 2023.

See: 54 N.J.R. 1661(a), 55 N.J.R. 349(a).

In (a)1, (a)2i, and (a)2ii, updated Section numbers.

Administrative correction, effective July 16, 2024.

See: 56 N.J.R. 1711(a).

Amended by R.2026 d.087, effective August 17, 2026.

See: 57 N.J.R. 2333(a), 58 N.J.R. 1882(a).

Rewrote (a)1 and (a)2i.

Annotations

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N.J.A.C. 5:23-6.4

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CONSTRUCTION CODE > SUBCHAPTER 6. REHABILITATION SUBCODE*

§ 5:23-6.4 Repairs

(a) Repairs, as defined in N.J.A.C. 5:23-6.3, shall comply with the requirements of this section.

There is no limit to the amount of repair work which may be undertaken.

1. The following work shall be considered renovation, alteration, or reconstruction, as appropriate, and not repair work:

- i.** The cutting away of any wall, partition, or portion thereof;
- ii.** The permanent, partial or complete removal of any primary structural component;
- iii.** The removal or rearrangement of any part of a required means of egress; and
- iv.** Addition to, alteration or relocation of:
 - (1)** Any fire protection system piping;
 - (2)** Water supply, sewer, drainage, gas, oil, waste, vent, or similar piping;
 - (3)** Electrical wiring, other than wiring for a low voltage communication system in a one or two family dwelling;
 - (4)** Mechanical system components such as ductwork; or
 - (5)** Elevator devices.

(b) All work shall be done in a workmanlike manner.

(c) The work shall not cause any diminution of existing structural strength, system capacity or mechanical ventilation below that which exists at the time of application for a permit or that which is required by the applicable subcodes of the Uniform Construction Code, whichever is lower.

1. Newly introduced fixed loads shall not exceed the uniformly distributed live loads or concentrated live load criteria of Table 1607.1 of the building subcode or Table R301.5 of the one- and two-family dwelling subcode, as applicable, and shall not create deflection that exceeds the standards set forth below. As used in this section, fixed loads shall mean uniform or concentrated loads and shall include, but not be limited to, equipment, files, library stacks, or similar loading conditions. (Building)

i. For wood frame construction, deflection shall not exceed $L/180$ for roofs with a slope of 3 in 12 or less or $L/120$ for roofs with a slope of greater than 3 in 12 and for floors.

ii. For steel frame construction, deflection shall not exceed $L/240$ for roofs with a slope of 3 in 12 or less or $L/180$ for roofs with a slope of greater than 3 in 12 and for floors.

iii. For concrete construction, deflection shall not exceed $L/180$ for roofs or $L/240$ for floors.

2. Fire protection systems may be removed if the requirements of N.J.A.C. 5:23-6.6(c)2 or 6.7(c)2 are met, as applicable. (Fire)

3. No work shall be undertaken that diminishes accessibility below that which is required by Chapter 11 of the building subcode. (Building)

(d) The following products and practices shall not be used:

1. Wood paneling being used as an interior finish not in conformance with Table 2 of N.J.A.C. 5:23-6.11 of this subcode; (Building)

2. Carpet used for floor covering that fails to meet the DOC FF-1 "Pill Test" (Consumer Product Safety Commission 16 CFR 1630); (Plan review - Building/Fire. Inspection - Building)

3. Electrical materials/supplies: Unlisted or unapproved electrical products. As stated in the National Electrical Code (sections 90.7, 110.2, 110.3, and article 100), only electrical products listed, labeled, approved, and identified are acceptable. Approval is to be based on tests and listings of testing laboratories such as Underwriters Laboratories Inc. (UL), Factory Mutual (FM) or Canadian Standards Association/Nationally Recognized Testing Laboratory (CSA/NRTL), etc.; and (Electrical)
4. Plumbing materials and supplies:
 - i. All purpose solvent cement;
 - ii. Clear PB (polybutylene) piping;
 - iii. Flexible traps and tailpieces; and
 - iv. Solder having more than 0.2 percent lead shall not be used in the repair of potable water systems. (Plumbing)
5. The following practices shall not be used on painted surfaces in all buildings of Group R that were constructed before 1978, Group E and Group I-4 buildings used as child-care facilities unless the painted surface has been tested and found to be free of lead-based paint:
 - i. Open flame burning or the use of high temperature (in excess of 1100 degrees Fahrenheit) heat guns;
 - ii. Power sanding or sandblasting, unless a special HEPA (high efficiency particulate air) filter equipped vacuum attachment is used to contain dust;
 - iii. Uncontained water blasting or power washing; or
 - iv. Dry scraping or sanding more than two square feet per room (interior) or 10 square feet or more per building (exterior). (Building)
6. A mirror shall not be placed in or adjacent to any means of egress so as to confuse the direction of egress or give the appearance of a doorway, exit, or passageway. Draperies or similar hangings shall not obscure an exit.

i. Exception: Within dwelling units of Groups R-2, R-3, R-4, and R-5. (Plan review - Building/Fire. Inspection - Building)

(e) The following products and practices shall be required, when applicable:

1. Replacement glass shall comply with the "Safety Glazing" requirements of the building subcode and shall be installed in the "Hazardous Locations" as specified by Sections 2406.4 and 2406.5 of the building subcode or by Section R324.4 of the one-and two-family dwelling subcode, as applicable. (Building)
2. Plug fuses of the Edison-base type shall be used only for replacements where there is no evidence of over fusing or tampering per Section 240.51(B) of the electrical subcode. (Electrical)
3. Non-"hospital grade" receptacles in patient bed locations of health care facilities, Group I-2, shall be replaced with "hospital grade" receptacles. (Electrical)
4. When door hardware is replaced in buildings required by Chapter 11 of the building subcode to be accessible, replacement hardware shall comply with ICC A117.1, Section 404.2.6. (Building)
5. Newly installed and replacement handrails and guardrails shall comply with Sections 1011.11, 1012.8, 1014, and 1015 of the building subcode, respectively, or Sections R318.7.8, R318.8.3, R320, and R321.1 of the one-and two-family dwelling subcode, respectively, as applicable. Where 50 percent or more of a handrail or guardrail on a flight or on a level is replaced, then this shall be considered a complete replacement and shall comply with the above referenced sections. The repair or replacement of less than 50 percent of a handrail or guardrail shall be permitted to match the existing handrail or guardrail. (Building)
6. When the refrigerant in existing equipment is replaced with a different refrigerant, the requirements of the mechanical subcode applicable to the new refrigerant, if any, shall be met. (Plumbing)

7. Existing roof covering shall be removed before installing new roof covering when any of the following conditions occur:

- i. The existing roof or roof covering is water soaked or has deteriorated to the point that the existing roof or roof covering is not adequate as a base for additional roofing;
- ii. The existing roof covering is wood shake, slate, clay, cement or asbestos-cement tile; or
- iii. The existing roof has two or more applications of any type of roof covering. (Building)

8. When the work being performed exposes wood framing of any wall, floor, ceiling, or roof, fireblocking shall be provided as required by section 718.2 of the building subcode or section R302.11 of the one- and two-family dwelling subcode, as applicable. The fireblocking material shall comply with section 718.2.1 of the building subcode or section R302.11.1 of the one- and two-family dwelling subcode, as applicable.

(f) In buildings of Groups R-3, R-4, and R-5 and in dwelling units of Group R-2, smoke alarms shall be installed and maintained on each level of the structure, outside each separate sleeping area in the immediate vicinity of the bedrooms, and located on or near the ceiling. Battery-operated units shall be permitted, but shall not replace any AC-powered smoke alarms or a household fire alarm system. (Fire)

(g) In buildings containing a fuel burning appliance or having an attached garage, carbon monoxide detection equipment shall be installed in accordance with Section 915 of the building subcode or Section R311 of the one-and two-family dwelling subcode, as applicable. (Fire)

- 1. Exception: Battery-powered or plug-in devices shall be accepted for purposes of meeting the requirements of this section.

History

HISTORY:

Amended by R.1999 d.424, effective December 6, 1999.

See: 31 N.J.R. 2428(a), 31 N.J.R. 4001(c).

Inserted (e)5; and rewrote (f).

Amended by R.2000 d.492, effective December 18, 2000.

See: 32 N.J.R. 3219(a), 32 N.J.R. 4437(b).

In (c), rewrote 2; in (d), added 5; in (e)2, rewrote iii and substituted "Section 250-140" for "Section 250-60" in v; and inserted (e)6.

Amended by R.2002 d.5, effective January 7, 2002.

See: 33 N.J.R. 3392(a), 34 N.J.R. 267(a).

In (d), added new 6; in (e), added new 7.

Amended by R.2003 d.137, effective April 7, 2003.

See: 34 N.J.R. 4277(a), 35 N.J.R. 1558(c).

Added (g).

Amended by R.2003 d.218, effective May 19, 2003.

See: 35 N.J.R. 29(a), 35 N.J.R. 2209(a).

Rewrote the section.

Amended by R.2004 d.145, effective April 5, 2004.

See: 35 N.J.R. 5190(a), 36 N.J.R. 1758(a).

In (c)2, substituted "automatic sprinkler" for "fire suppression"; deleted references to use preceding references to group throughout.

Amended by R.2007 d.122, effective May 7, 2007.

See: 38 N.J.R. 4951(a), 39 N.J.R. 1673(a).

In (e)1, substituted "2406.3" for 2406.2"; in (e)3, substituted "2003" for "1998" and "404.2.6" for "404.2.7"; rewrote (e)4 and (e)7; added (e)8 and (e)9; and in (f), deleted "outside each separate sleeping area in the immediate vicinity of the bedrooms," following "bedrooms,".

Administrative correction.

§ 5:23-6.4 Repairs

See: 39 N.J.R. 3296(a).

Amended by R.2009 d.117, effective April 20, 2009.

See: 41 N.J.R. 18(a), 41 N.J.R. 1726(a).

In (e)1, inserted "or by section R308.4 of the one- and two-family dwelling subcode, as applicable"; and in (f), substituted "alarms" for "detectors".

Amended by R.2011 d.270, effective November 7, 2011.

See: 43 N.J.R. 1297(a), 43 N.J.R. 2999(a).

In the introductory paragraph of (c)1, inserted "or Table R301.5 of the one- and two-family dwelling subcode, as applicable,"; rewrote (c)2 and (e)4; in (e)1, substituted "2406.4" for "2406.3"; in (e)7, substituted "R302.11" for "R602.8" and "R302.11.1" for "R602.8.1", and deleted "or 717.2.1.1" following "717.2.1"; deleted (e)8 and (e)9; and in (g), inserted "N.J.A.C. 5:23-3.20(c) of" and "or Section R315 of the one- and two-family dwelling subcode, as applicable".

Amended by R.2017 d.077, effective May 1, 2017.

See: 48 N.J.R. 1854(a), 49 N.J.R. 1020(a).

Rewrote (c)3 and (d) through (g).

Amended by R.2017 d.107, effective June 5, 2017.

See: 48 N.J.R. 1851(a), 49 N.J.R. 1381(b).

Rewrote (g).

Administrative correction.

See: 49 N.J.R. 3423(a).

Administrative correction, effective August 9, 2023.

See: 55 N.J.R. 1875(a).

Amended by R.2025 d.093, effective August 18, 2025.

See: 56 N.J.R. 1837(a), 57 N.J.R. 1817(a).

In (d)4iii, inserted the second occurrence of "and"; deleted former (d)4iv; and recodified former (d)4v as (d)4iv.

Amended by R.2026 d.087, effective August 17, 2026.

See: 57 N.J.R. 2333(a), 58 N.J.R. 1882(a).

In (e)1, substituted "R324.4" for "R308.4"; in (e)5, substituted "R318.7.8, R318.8.3, R320, and R321.1" for "R311.7.8, R311.8.3, and R312.1"; and in (g), substituted "R311" for "R315".

Annotations

Notes

Chapter Notes

NEW JERSEY ADMINISTRATIVE CODE

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N.J.A.C. 5:23-6.5

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*NJ - New Jersey Administrative Code > TITLE 5. COMMUNITY AFFAIRS > CHAPTER 23. UNIFORM
CONSTRUCTION CODE > SUBCHAPTER 6. REHABILITATION SUBCODE*

§ 5:23-6.5 Renovations

(a) Renovations, as defined at N.J.A.C. 5:23-6.3, shall comply with the requirements of this section.

(b) All work shall be done in a workmanlike manner.

(c) The work shall not cause any diminution of existing structural strength, system capacity or mechanical ventilation below that which exists at the time of application for a permit or that which is required by the applicable subcodes of the Uniform Construction Code, whichever is lower. The replacement of fixtures, equipment or appliances shall not increase loads on these systems unless the system is upgraded in accordance with the applicable subcode of the UCC to accommodate the increased load.

1. Newly introduced fixed loads shall not exceed the uniformly distributed live loads or concentrated live load criteria of Table 1607.1 of the building subcode or Table R301.5 of the one- and two-family dwelling subcode, as applicable, and shall not create deflection that exceeds the standards set forth below. As used in this section, fixed loads shall mean uniform or concentrated loads and shall include, but not be limited to, equipment, files, library stacks, or similar loading conditions. (Building)

i. For wood frame construction, deflection shall not exceed $L/180$ for roofs with a slope of 3 in 12 or less or $L/120$ for roofs with a slope of greater than 3 in 12 and for floors.

ii. For steel frame construction, deflection shall not exceed $L/240$ for roofs with a slope of 3 in 12 or less or $L/180$ for roofs with a slope of greater than 3 in 12 and for floors.

iii. For concrete construction, deflection shall not exceed L/180 for roofs or L/240 for floors.

2. Fire protection systems may be removed if the requirements of N.J.A.C. 5:23-6.6(c)2 or 6.7(c)2 are met, as applicable. (Fire)

3. No work shall be undertaken that diminishes accessibility below that which is required by Chapter 11 of the building subcode. (Building)

(d) The following products and practices shall not be used:

1. Wood paneling being used as an interior finish not in conformance with Table 2 of N.J.A.C. 5:23-6.11 of this subcode; (Building)

2. Carpet used for floor covering that fails to meet the DOC FF-1 "Pill Test" (Consumer Product Safety Commission 16 CFR 1630); (Building)

3. Electrical materials/supplies: Unlisted or unapproved electrical products. As stated in the National Electrical Code (sections 90.7, 110.2, 110.3, and article 100), only electrical products listed, labeled, approved, and identified are acceptable. Approval is to be based on tests and listings of testing laboratories such as Underwriters Laboratories, Inc. (UL), Factory Mutual (FM) or Canadian Standards Association/Nationally Recognized Testing Laboratory (CSA/NRTL), etc.; and (Electrical)

4. Plumbing materials and supplies:

i. All purpose solvent cement;

ii. Clear PB (polybutylene) piping;

iii. Flexible traps and tailpieces; and

iv. Solder having more than 0.2 percent lead shall not be used in the repair of potable water systems. (Plumbing)

5. Bars, grilles and screens shall not be placed over emergency escape windows or doors in Groups R or I-1 unless they are releasable or removable from the inside without the use of a

key, tool or force greater than that which is required for the normal operation of the window or door. (Building)

6. The following practices shall not be used on painted surfaces in all buildings of Group R that were constructed before 1978, Group E and Group I-4 buildings used as child-care facilities unless the painted surface has been tested and found to be free of lead-based paint:

- i.** Open flame burning or the use of high temperature (in excess of 1100 degrees Fahrenheit) heat guns;
- ii.** Power sanding or sandblasting, unless a special HEPA (high efficiency particulate air) filter equipped vacuum attachment is used to contain dust;
- iii.** Uncontained water blasting or power washing; or
- iv.** Dry scraping or sanding more than two square feet per room (interior) or 10 square feet or more per building (exterior). (Building)

7. A mirror shall not be placed in or adjacent to any means of egress so as to confuse the direction of egress or give the appearance of a doorway exit, or passageway. Draperies or similar hangings shall not obscure an exit.

- i.** Exception: Within dwelling units of Groups R-2, R-3, R-4, and R-5. (Plan review - Building, Fire. Inspection - Building)

(e) The following products and practices shall be required, when applicable:

- 1.** When any water closet is replaced, the replacement water closet shall require not more than 1.6 gallons of water per flush as required by the plumbing subcode or as required pursuant to N.J.S.A. 52:27D-141.21, whichever is more restrictive. (Plumbing)
- 2.** In buildings required by Chapter 11 of the building subcode to be accessible, when bathrooms or toilet rooms are renovated, the following requirements for providing accessibility shall apply unless the requirements of Chapter 11 of the building subcode have been met:

- i.** When toilet partitions are moved or installed, but existing fixtures are not being moved, an accessible stall complying with ICC A117.1, Section 604.9 shall be created provided that this can be accomplished without moving fixtures. (Building)
 - ii.** When bathroom fixtures or hardware are replaced, the replacement fixtures or hardware shall comply with ICC A117.1, Sections 603 through 608, as applicable, for nonresidential buildings or ICC A117.1, Chapter 11, for residential buildings required by Chapter 11 of the building subcode to be accessible. (Plumbing)
 - iii.** Where full compliance is technically infeasible, compliance shall be achieved to the maximum extent feasible. (Building)
- 3.** Replacement doors shall comply with the following: (Building)
 - i.** When replacement doors are installed in buildings required by Chapter 11 of the building subcode to be accessible, replacement hardware shall comply with ICC A117.1, Section 404.2.6.
 - ii.** Replacement dwelling unit, guest room or rooming unit corridor doors in Groups I-1, R-1 or R-2 shall be 13/4 inch solid core wood or approved equal with approved door closers and shall not have any glass panels, other than approved wire glass in metal frames.
 - (1)** 13/8 inch solid core replacement doors shall be accepted if the existing frame is not being replaced and will accommodate only a 13/8 inch door.
- 4.** Replacement glass shall comply with the "Safety Glazing" requirements of the building subcode and shall be installed in the "Hazardous Locations" as specified by Sections 2406.4 and 2406.5 of the building subcode or by Section R324.4 of the one-and two-family dwelling subcode, as applicable. (Building)
- 5.** Where a fireproofing material is removed that is integral to the rating of an existing fire-rated assembly, the material shall be replaced so that the rating is preserved. (Building)

6. Plug fuses of the Edison-base type shall be used only for replacements where there is no evidence of over fusing or tampering per Section 240.51(B) of the electrical subcode.

(Electrical)

7. Any replacement to the electrical service equipment shall require that the grounding electrode system be updated to the requirements of Article 250 Part III of the electrical subcode. (Electrical)

8. Non-"hospital grade" receptacles in patient bed locations of health care facilities, Group I-2, shall be replaced with "hospital grade" receptacles. (Electrical)

9. When a new refrigerant is introduced, the requirements of the mechanical subcode applicable to that refrigerant, if any, shall be met. This shall apply to the replacement of existing equipment with equipment using a different refrigerant or the replacement of the refrigerant in existing equipment with a different refrigerant. (Plumbing)

10. When the work being performed exposes wood framing of any wall, floor, ceiling, or roof, fireblocking shall be provided as required by section 718.2 of the building subcode or section R302.11 of the one- and two-family dwelling subcode, as applicable. The fireblocking material shall comply with section 718.2.1 of the building subcode or section R302.11.1 of the one- and two-family dwelling subcode, as applicable.

11. When the work being performed creates or exposes the roof decking/sheathing or the framing of any wall, floor, ceiling, or roof assembly that is part of the building thermal envelope (encloses conditioned space), any accessible voids in insulation shall be filled using insulation meeting the R-values at Section R402.1.3 (N1102.1.3) of the residential energy code for wood framing and at Section R402.2.7 (N1102.2.7) of the residential energy code for metal framing equivalents or of Table 5.5-4 or 5.5-5 of the commercial energy code, as applicable.

i. In the event that insulation meeting the R-values above cannot be installed due to space constraints, and the equivalency exceptions of Sections R402.2.1 and R402.2.2 (N1102.2.1 and N1102.2.2) cannot be applied for residential buildings, insulation that fills the cavities of the framed assembly shall be installed.

12. When fenestration (windows, skylights, or doors) is newly installed or replaced, the U-factor (thermal transmittance) shall not exceed the U-factor of Table R402.1.2 (N1102.1.2) of the residential energy code or of Table 5.5-4 or 5.5-5 of the commercial energy code, as applicable.

i. Exception: In residential buildings, fenestration that meets Sections R402.4.3 (N1102.4.3), R402.4.4 (N1102.4.4), and R402.4.5 (N1102.4.5), as applicable.

13. Ducts that are newly installed or replaced shall be installed with insulation meeting the R-values of Section R403.3.3 (N1103.3.3) of the residential energy code or of Section 6.4.4.1.2 of the commercial energy code, as applicable.

14. The total replacement of a building lighting system or a newly installed building lighting system shall meet Section R404 (N1104) of the residential energy code or Section 9.1.1.3 of the commercial energy code, as applicable. (A "lighting system" is defined by the commercial energy code as "a group of luminaires circuited or controlled to perform a specific function.")

i. Exception: The total replacement of a lighting system within a room, space, or tenancy shall be required to meet Section 9.1.1.3 for the room, space, or tenancy only.

15. Where work, other than ordinary maintenance or minor work, is being performed on an elevator, the elevator shall be equipped to operate with a standardized fire service key. (Fire)

(f) In buildings of Groups R-3, R-4, and R-5 and in dwelling units of Group R-2, smoke alarms shall be installed and maintained on each level of the structure, outside each separate sleeping area in the immediate vicinity of the bedrooms, and located on or near the ceiling. Battery-operated units shall be permitted, but shall not replace any AC-powered smoke alarms or a household fire alarm system. (Fire)

(g) In buildings containing a fuel burning appliance or having an attached garage, carbon monoxide detection equipment shall be installed in accordance with Section 915 of the building subcode or Section R311 of the one-and two-family dwelling subcode, as applicable. (Fire)

1. Exception: Battery-powered or plug-in devices shall be accepted for purposes of meeting the requirements of this section.

(h) All materials and methods used shall comply with the requirements specified at N.J.A.C. 5:23-6.8, Materials and methods.

1. Exception: Windows may be replaced with windows like those existing without meeting the size requirements of the building subcode.

i. In sleeping rooms below the fourth story in occupancies of Groups R or I-1, where the size of window openings is being changed, at least one window shall:

(1) Be operable;

(2) Have a sill height of not more than 44 inches;

(3) Have a width of at least 20 inches, a height of at least 24 inches and a minimum of total area of 5.7 square feet measured from head to sill and from side to side.

(4) New window openings in sleeping rooms shall not be required to meet these requirements in buildings where the sleeping room is provided with a door to a corridor having access to two remote exits or in buildings equipped throughout with an automatic sprinkler system.

ii. Basement windows in buildings of Group R-2 shall comply with the requirements of N.J.A.C. 5:23-6.26(b)3 where the window serves as the second means of egress from the dwelling unit. (Plan review - Building, Fire. Inspection - Building)

2. Newly installed and replacement handrails and guardrails shall comply with Sections 1011.11, 1012.8, 1014, and 1015 of the building subcode, respectively, or Sections R318.7.8, R318.8.3, R320, and R321.1 of the one-and two-family dwelling subcode, respectively, as applicable. Where 50 percent or more of a handrail or guardrail on a flight or on a level is replaced, then this shall be considered a complete replacement and shall comply with the above referenced sections. The repair or replacement of less than 50 percent of a handrail or guardrail shall be permitted to match the existing handrail or guardrail. (Building)

History

HISTORY:

Amended by R.1999 d.424, effective December 6, 1999.

See: 31 N.J.R. 2428(a), 31 N.J.R. 4001(c).

Inserted (d)5; in (e), changed N.J.A.C. reference in 1, deleted "In all use groups other than H," at the beginning of 3ii(1), and added 7; and rewrote (f).

Amended by R.2000 d.492, effective December 18, 2000.

See: 32 N.J.R. 3219(a), 32 N.J.R. 4437(b).

In (c), rewrote 2; in (d), added 6; in (e)6, deleted "listed," preceding "like material", rewrote 6iii and substituted "Section 250-140" for "Section 250-60" in 6v.

Amended by R.2002 d.5, effective January 7, 2002.

See: 33 N.J.R. 3392(a), 34 N.J.R. 267(a).

In (d), added new 7; in (e) added new 8 and 9.

Amended by R.2003 d.137, effective April 7, 2003.

See: 34 N.J.R. 4277(a), 35 N.J.R. 1558(c).

Deleted (e)9; added a new (g); recodified former (g) as (h).

Amended by R.2003 d.218, effective May 19, 2003.

See: 35 N.J.R. 29(a), 35 N.J.R. 2209(a).

Rewrote the section.

Amended by R.2004 d.145, effective April 5, 2004.

See: 35 N.J.R. 5190(a), 36 N.J.R. 1758(a).

Deleted references to use preceding references to group throughout and substituted "automatic sprinkler" for "fire suppression" throughout; in (h)1ii, amended the N.J.A.C. reference.

Amended by R.2005 d.4, effective January 3, 2005.

See: 36 N.J.R. 4049(a), 37 N.J.R. 47(a).

Added (e)9.

Amended by R.2006 d.120, effective April 3, 2006.

See: 37 N.J.R. 3753(a), 38 N.J.R. 1567(a).

In (e)1, deleted the N.J.A.C. reference and added "by the plumbing subcode"; in (e)8, added "or section R602.8 of the one- and two-family dwelling subcode, as applicable" and "or section R602.8.1 of the one- and two-family dwelling subcode, as applicable".

Amended by R.2007 d.122, effective May 7, 2007.

See: 38 N.J.R. 4951(a), 39 N.J.R. 1673(a).

In (e)2i, (e)2ii and (e)3i, substituted "2003" for "1998" throughout; in (e)3i, substituted "404.2.6" for "404.2.7"; in (e)4, substituted "2406.3" for "2406.2"; rewrote (e)8; added new (e)9 and (e)10; recodified former (e)9 as (e)11; in (h)2, substituted "1009.10, 1010.8, 1012," for "1003.3.3.11, 1003.3.4.7" and "1013.1" for "1003.2.12".

Amended by R.2009 d.117, effective April 20, 2009.

See: 41 N.J.R. 18(a), 41 N.J.R. 1726(a).

In (e)4, inserted "or by section R308.4 of the one- and two-family dwelling subcode, as applicable"; and in (f), substituted "alarms" for "detectors".

Amended by R.2011 d.270, effective November 7, 2011.

See: 43 N.J.R. 1297(a), 43 N.J.R. 2999(a).

In the introductory paragraph of (c)1, inserted "or Table R301.5 of the one- and two-family dwelling subcode, as applicable,"; rewrote (c)2, (e)9, (e)10, (g), the introductory paragraph of (h) and (h)2; in (e)4, substituted "2406.4" for "2406.3"; in (e)8, substituted "R302.11" for "R602.8", and "R302.11.1" for "R602.8.1", and deleted "or 717.2.1.1" following "717.2.1"; added new (e)11 and (e)12; and recodified former (e)11 as (e)13.

Amended by R.2017 d.077, effective May 1, 2017.

See: 48 N.J.R. 1854(a), 49 N.J.R. 1020(a).

Rewrote (c)3 and (d) through (h).

Amended by R.2017 d.107, effective June 5, 2017.

See: 48 N.J.R. 1851(a), 49 N.J.R. 1381(b).

Rewrote (g).

Administrative correction.

See: 49 N.J.R. 3423(a).

Amended by R.2021 d.015, effective February 16, 2021.

See: 52 N.J.R. 561(a), 53 N.J.R. 245(a).

In the introductory paragraph of (e)13, substituted "R404" for "404".

Amended by R.2022 d.022, effective February 7, 2022.

See: 53 N.J.R. 1133(a), 54 N.J.R. 263(a).

Added (e)7; and recodified former (e)7 through (e)14 as (e)8 through (e)15.

Administrative correction, effective August 9, 2023.

See: 55 N.J.R. 1875(a).

Administrative correction, effective December 6, 2023.

See: 56 N.J.R. 35(c).

Amended by R.2025 d.093, effective August 18, 2025.

See: 56 N.J.R. 1837(a), 57 N.J.R. 1817(a).

In (d)4iii, inserted the second occurrence of "and"; deleted former (d)4iv; and recodified former (d)4v as (d)4iv.

Annotations

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End of Document

N.J.A.C. 5:23-6.6

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*NJ - New Jersey Administrative Code > TITLE 5. COMMUNITY AFFAIRS > CHAPTER 23. UNIFORM
CONSTRUCTION CODE > SUBCHAPTER 6. REHABILITATION SUBCODE*

§ 5:23-6.6 Alterations

(a) Alterations, as defined at N.J.A.C. 5:23-6.3, shall comply with the requirements of this section.

(b) All work shall be done in a workmanlike manner.

(c) The work shall not cause any diminution of existing structural strength, system capacity or mechanical ventilation below that which exists at the time of application for a permit or that which is required by the applicable subcodes of the Uniform Construction Code, whichever is lower. The replacement or addition of fixtures, equipment or appliances shall not increase loads on these systems unless the system is upgraded in accordance with the applicable subcode of the UCC to accommodate the increased load.

1. Newly introduced fixed loads shall not exceed the uniformly distributed live loads or concentrated live load criteria of Table 1607.1 of the building subcode or Table R301.5 of the one- and two-family dwelling subcode, as applicable, and shall not create deflection that exceeds the standards set forth below. As used in this section, fixed loads shall mean uniform or concentrated loads and shall include, but not be limited to, equipment, files, library stacks, or similar loading conditions. (Building)

i. For wood frame construction, deflection shall not exceed $L/180$ for roofs with a slope of 3 in 12 or less or $L/120$ for roofs with a slope of greater than 3 in 12 and for floors.

ii. For steel frame construction, deflection shall not exceed $L/240$ for roofs with a slope of 3 in 12 or less or $L/180$ for roofs with a slope of greater than 3 in 12 and for floors.

iii. For concrete construction, deflection shall not exceed L/180 for roofs or L/240 for floors.

2. Fire protection system removal: Any fire protection system providing partial or redundant protection originally installed to protect a special hazard that no longer exists and that is not required in accordance with the current Uniform Construction Code, is allowed to be removed with the written approval of the fire subcode official and fire official. All disconnected equipment and devices, such as pull stations, nozzles, detectors, sprinklers, sensors, panels and hose connections, shall be removed so as not to give a false indication that the structure, area or space is protected. (Fire)

3. No work shall be undertaken that diminishes accessibility below that which is required by Chapter 11 of the building subcode. (Building)

4. Construction materials used as part of an alteration project shall be consistent with the existing construction type or the allowable construction type, whichever is less restrictive. (Plan review - Building, Fire. Inspection - Building)

(d) The following products and practices shall not be used:

1. Wood paneling being used as an interior finish not in conformance with Table 2 of N.J.A.C. 5:23-6.11 of this subcode; (Building)

2. Carpet used for floor covering that fails to meet the DOC FF-1 "Pill Test" (Consumer Product Safety Commission 16 CFR 1630); (Plan review - Building, Fire. Inspection - Building)

3. Electrical materials/supplies: Unlisted or unapproved electrical products. As stated in the National Electrical Code (sections 90.7, 110.2, 110.3, and article 100), only electrical products listed, labeled, approved, and identified are acceptable. Approval is to be based on tests and listings of testing laboratories such as Underwriters Laboratories, Inc. (UL), Factory Mutual (FM) or Canadian Standards Association/Nationally Recognized Testing Laboratory (CSA/NRTL), etc.; and (Electrical)

4. Plumbing materials and supplies:

- i.** All purpose solvent cement;
- ii.** Clear PB (polybutylene) piping;
- iii.** Flexible traps and tailpieces; and
- iv.** Solder having more than 0.2 percent lead shall not be used in the repair of potable water systems. (Plumbing)

5. Bars, grilles and screens shall not be placed over emergency escape windows or doors in Groups R or I-1 unless they are releasable or removable from the inside without the use of a key, tool or force greater than that which is required for the normal operation of the window or door. (Building)

6. The following practices shall not be used on painted surfaces in all buildings of Group R that were constructed before 1978, Group E and Group I-4 buildings used as child-care facilities unless the painted surface has been tested and found to be free of lead-based paint:

- i.** Open flame burning or the use of high temperature (in excess of 1100 degrees Fahrenheit) heat guns;
- ii.** Power sanding or sandblasting, unless a special HEPA (high efficiency particulate air) filter equipped vacuum attachment is used to contain dust;
- iii.** Uncontained water blasting or power washing; or
- iv.** Dry scraping or sanding more than two square feet per room (interior) or 10 square feet or more per building (exterior). (Building)

7. A mirror shall not be placed in or adjacent to any means of egress so as to confuse the direction of egress or give the appearance of a doorway, exit, or passageway. Draperies or similar hangings shall not obscure an exit. (Plan review - Building, Fire. Inspection - Building)

- i.** Exception: Within dwelling units of Groups R-2, R-3, R-4 and R-5.

(e) The following products and practices shall be required, when applicable:

§ 5:23-6.6 Alterations

1. When any water closet is replaced, the replacement water closet shall require not more than 1.6 gallons of water per flush as required by the plumbing subcode or as required pursuant to N.J.S.A. 52:27D-141.21, whichever is more restrictive. (Plumbing)
2. In buildings required by Chapter 11 of the building subcode to be accessible, when bathrooms or toilet rooms are altered, the following requirements for providing accessibility shall apply unless the requirements of Chapter 11 of the building subcode have been met:
 - i. When toilet partitions are moved or installed, but existing fixtures are not being moved, an accessible stall complying with ICC A117.1, Section 604.9, shall be created provided that this can be accomplished without moving fixtures. (Building)
 - ii. When bathroom fixtures or hardware are replaced, the replacement fixtures or hardware shall comply with ICC A117.1, Sections 603 through 608, as applicable, for nonresidential buildings or ICC A117.1, Chapter 11, for residential buildings required by Chapter 11 of the building subcode to be accessible. (Plumbing)
 - iii. Where full compliance is technically infeasible, a single fixture unisex accessible bathroom shall be permitted. This may be accomplished by providing two unisex bathrooms, one of which is accessible. (Building)
 - iv. Where it is technically infeasible to gain compliance with the altered bathroom, signage to the closest accessible bathroom (if any) shall be provided at the altered bathroom. (Building)
3. In buildings required by Chapter 11 of the building subcode to be accessible, when space is reconfigured, the altered space shall comply with Chapter 11 of the building subcode. Where full compliance is technically infeasible, compliance shall be achieved to the maximum extent feasible. (Building)
4. Replacement doors shall comply with the following: (Building)
 - i. In buildings required by Chapter 11 of the building subcode to be accessible, when new door openings are created, existing door openings are enlarged or door assemblies are

replaced and the required door width can be achieved within the existing opening, the new door shall comply with ICC A117.1, Section 404.

(1) If the door being added, enlarged, or replaced is a building entrance and at least 60 percent of the entrance doors are accessible, then the door being added, enlarged, or replaced is not required to comply with ICC A117.1, Section 404.

ii. Replacement dwelling unit, guest room or rooming unit corridor doors in Groups I-1, R-1 or R-2 shall be 13/4 inch solid core wood or approved equal with approved door closers and shall not have any glass panels, other than approved wire glass in metal frames.

(1) 13/8 inch solid core replacement doors shall be accepted if the existing frame is not being replaced and will accommodate only a 13/8 inch door.

5. In buildings required by Chapter 11 of the building subcode to be accessible, when entrance steps are being replaced, an accessible entrance shall be provided if this does not add more than 20 percent to the cost of replacing the steps. (Building)

i. If at least 60 percent of the other building entrances are accessible, then the installation of a ramp shall not be required.

6. When providing vertical access is part of the scope of work, a limited use limited application elevator or platform lift may be installed as permitted by Chapter 11 of the building subcode. (Building)

7. Replacement glass shall comply with the "Safety Glazing" requirements of the building subcode and shall be installed in the "Hazardous Locations" as specified by Sections 2406.4 and 2406.5 of the building subcode or by Section R324.4 of the one-and two-family dwelling subcode, as applicable. (Building)

8. Where a fireproofing material is removed that is integral to the rating of an existing fire-rated assembly, the material shall be replaced so that the rating is preserved. (Building)

9. Plug fuses of the Edison-base type shall be used only for replacements where there is no evidence of over fusing or tampering per Section 240.51(B) of the electrical subcode.

(Electrical)

10. Any replacement to the electrical service equipment shall require that the grounding electrode system be updated to the requirements of Article 250 Part III of the electrical subcode. (Electrical)

11. Non-"hospital grade" receptacles in patient bed locations of health care facilities, Group I-2, shall be replaced with "hospital grade" receptacles. (Electrical)

12. In buildings of Group R or I-1, when the work being performed creates a bedroom, the following shall be provided:

i. A hard-wired smoke alarm shall be installed within each new bedroom and a second, hard-wired smoke alarm shall be installed within the immediate vicinity of the bedroom in accordance with NFPA 72. (Fire)

ii. A bedroom window or exterior door that meets the requirements at N.J.A.C. 5:23-6.9(b)16 shall be provided when the bedroom created is below the fourth floor. (Building)

(1) This requirement shall not apply in buildings where the sleeping room is provided with a door to a corridor having access to two remote exits or in buildings equipped throughout with an automatic sprinkler system.

13. In buildings of Groups R-3, R-4, and R-5:

i. When the work being performed creates living space over a private garage, the private garage shall comply with Section 406.3.2 of the building subcode or R302.6 of the one- and two-family dwelling subcode, as applicable, for fire resistance rating.

ii. When the work being performed creates an additional dwelling unit within the building, the new unit shall be separated from the existing unit(s) with fire partitions or horizontal assemblies having a fire resistance rating of not less than one hour constructed in

accordance with Sections 708 and 711 of the building subcode or R302 of the one-and two-family dwelling subcode, as applicable.

iii. When finished space is created in previously unfinished space, receptacle and lighting outlets shall comply with Section 210.52 and 210.70, respectively, of the electrical subcode.

14. In buildings of Group R-1, in at least one sleeping room or suite of every 25 or fewer that are part of the scope of work, the work being performed shall comply with the applicable provisions of ICC A117.1, unless the facility already provides the number of accessible sleeping rooms required by Chapter 11 of the building subcode. In addition, at least one sleeping room or suite of every 25 or fewer that are part of the scope of work shall be equipped with a visual alarm and notification device for the hearing impaired unless the facility already provides the number required by Chapter 11 of the building subcode. (Building)

15. In buildings of Groups R-1 and R-2:

i. When habitable space is created in previously unoccupied space, the minimum clear ceiling height shall be seven feet. For rooms with a sloped ceiling, the minimum clear ceiling height shall be seven feet for at least 35 square feet of the floor area of the room. Any portion of the room measuring less than five feet from the finished floor to the finished ceiling shall not be considered usable floor area. (Plan review - Building, Fire. Inspection - Building)

ii. When the work being performed creates an additional dwelling or sleeping unit within the building, the new unit shall be separated from the existing unit(s) with fire partitions or horizontal assemblies having a fire resistance rating of not less than one hour constructed in accordance with Sections 708 and 711 of the building subcode.

iii. Group R-2 only: When finished space is created in previously unfinished space, receptacle and lighting outlets shall comply with Section 210.52 and 210.70, respectively, of the electrical subcode.

16. When a new refrigerant is introduced, the requirements of the mechanical subcode applicable to that refrigerant, if any, shall be met. This shall apply to the installation of new equipment, the replacement of existing equipment with equipment using a different refrigerant, or the replacement of the refrigerant in existing equipment with a different refrigerant.

(Plumbing)

17. When the work being performed creates or exposes wood framing of any wall, floor, ceiling, or roof, fireblocking shall be provided as required by section 718.2 of the building subcode or section R302.11 of the one- and two-family dwelling subcode, as applicable. The fireblocking material shall comply with section 718.2.1 of the building subcode or section R302.11.1 of the one- and two-family dwelling subcode, as applicable.

18. When the work being performed creates or exposes the roof decking/sheathing or the framing of any wall, floor, ceiling, or roof assembly that is part of the building thermal envelope (encloses conditioned space), any accessible voids in insulation shall be filled using insulation meeting the R-values of Section R402.1.3 (N1102.1.3) of the residential energy code for wood framing and of Section R402.2.7 (N1102.2.7) of the residential energy code for metal framing equivalents or of Table 5.5-4 or 5.5-5 of the commercial energy code, as applicable.

i. In the event that insulation meeting the R-values above cannot be installed due to space constraints, and the equivalency exceptions of Sections R402.2.1 and R402.2.2 (N1102.2.1 and N1102.2.2) cannot be applied for residential buildings, insulation that fills the cavities of the framed assembly shall be installed.

19. When fenestration (windows, skylights, or doors) is newly installed or replaced, the U-factor (thermal transmittance) shall not exceed the U-factor of Table R402.1.2 (N1102.1.2) of the residential energy code or of Table 5.5-4 or 5.5-5 of the commercial energy code, as applicable.

i. Exception: In residential buildings, fenestration that meets Sections R402.4.3 (N1102.4.3), R402.4.4 (N1102.4.4), and R402.4.5 (N1102.4.5), as applicable.

20. Ducts that are newly installed or replaced shall be installed with insulation meeting the R-values of Section R403.3.3 (N1103.3.3) of the residential energy code or of Section 6.4.4.1.2 of the commercial energy code, as applicable.

21. The total replacement of a building lighting system or a newly installed building lighting system shall meet Section R404 (N1104) of the residential energy code or Section 9.1.1.3 of the commercial energy code, as applicable. (A "lighting system" is defined by the commercial energy code as "a group of luminaires circuited or controlled to perform a specific function.")

i. Exception: The total replacement of a lighting system within a room, space, or tenancy shall be required to meet Section 9.1.1.3 for the room, space, or tenancy only.

22. When the work being performed results in an indoor or outdoor gas meter, related regulator or piping becoming subject to vehicle impact, which work includes, but is not limited to, new installation, relocation or other construction, the gas meter, related regulator or piping shall be protected by barriers meeting the requirements of Section 312 of the International Fire Code. For the purpose of applying this provision, "subject to vehicle impact" shall mean located within three feet of any garage door opening, driveway or designated parking area and not separated by a building wall from the space where a vehicle may be operated. (Plumbing)

i. Exception: If verification of the installation of an excess flow valve is provided by the gas utility, vehicle impact barriers shall not be required.

23. Where work, other than ordinary maintenance or minor work, is being performed on an elevator, the elevator shall be equipped to operate with a standardized fire service key. (Fire)

24. The work shall not cause an exit enclosure to be used for any purpose other than means of egress, except those penetrations permitted by Section 1023.5 of the building subcode.

25. Existing openings that become part of an exit or exit access and newly created openings to be used as an exit or exit access shall meet Section 1008.2.4 and Section 1013 of the building subcode when more than one exit or exit access is required. This shall apply only to the portion of the building served by the new exit or exit access.

(f) In buildings of Groups R-3, R-4, and R-5 and in dwelling units of Group R-2, smoke alarms shall be installed and maintained on each level of the structure, outside each separate sleeping area in the immediate vicinity of the bedrooms, and located on or near the ceiling. Battery-operated units shall be permitted, but shall not replace any AC-powered smoke alarms or a household fire alarm system. (Fire)

(g) In buildings containing a fuel burning appliance or having an attached garage, carbon monoxide detection equipment shall be installed in accordance with Section 915 of the building subcode or Section R315 of the one- and two-family dwelling subcode, as applicable. (Fire)

1. Exception: Battery-powered or plug-in devices shall be accepted for purposes of meeting the requirements of this section.

(h) The work shall not make the building less conforming with the basic requirements of this subchapter than it was when the alteration was undertaken.

1. Where the building currently exceeds the basic requirements, the extent to which it exceeds shall not be reduced unless the building also exceeds the requirements of the corresponding subcode of the UCC. In this case, the extent of compliance with the basic requirements may be reduced, but not below the requirements of the corresponding subcode of the UCC.

2. Where the scope of work consists of an item for which requirements are established in the basic requirements of this subcode, the work shall comply with the basic requirements.

(i) All materials and methods used shall comply with the requirements specified at N.J.A.C. 5:23-6.8, Materials and methods.

1. Exception: Windows may be replaced with windows like those existing without meeting the size requirements of the building subcode.

i. In sleeping rooms below the fourth story in occupancies of Groups R or I-1, where new window openings are being created or the size of window openings is being changed, at least one window shall:

(1) Be operable;

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- (2) Have a sill height of not more than 44 inches;
- (3) Have a width of at least 20 inches, a height of at least 24 inches and a minimum total area of 5.7 square feet measured from head to sill and from side to side.
- (4) New window openings in sleeping rooms shall not be required to meet these requirements in buildings where the sleeping room is provided with a door to a corridor having access to two remote exits or in buildings equipped throughout with an automatic sprinkler system.

ii. Basement windows in buildings of Group R-2 shall comply with the requirements of N.J.A.C. 5:23-6.26(b)3 where the window serves as the second means of egress from the dwelling unit (Plan review - Building, Fire. Inspection - Building).

2. Newly installed and replacement handrails and guardrails shall comply with Sections 1011.11, 1012.8, 1014, and 1015 of the building subcode, respectively, or Sections R318.7.8, R318.8.3, R320, and R321.1 of the one-and two-family dwelling subcode, respectively, as applicable. Where 50 percent or more of a handrail or guardrail on a flight or on a level is replaced, then this shall be considered a complete replacement and shall comply with the above referenced sections. The repair or replacement of less than 50 percent of a handrail or guardrail shall be permitted to match the existing handrail or guardrail. (Building)

(j) All new building elements, as listed in N.J.A.C. 5:23-6.9, shall comply with the requirements of that section.

(k) In a building required by Chapter 11 of the building subcode to be accessible, where the space altered is a primary function space, an accessible path of travel to the altered space shall be provided up to the point at which the cost of providing accessibility is disproportionate to the cost of the overall alteration project; a cost is disproportionate if it exceeds 20 percent of the cost of the alteration work. (Building)

1. The accessible path of travel shall include, but not be limited to, an accessible parking space, an accessible exterior route, an accessible building entrance, an accessible interior route to the altered area, accessible restrooms, accessible drinking fountains, and accessible

telephones serving the altered primary function space. Priority shall be given to providing an accessible entrance or accessible restrooms where possible.

2. In determining disproportionate cost, the following materials may be deducted from the overall cost of the project:

- i. Windows, hardware, operating controls, electrical outlets and signage;
- ii. Mechanical systems, electrical systems, installations or alterations of fire protection systems or abatement of hazardous materials; or
- iii. The repair or installation of roofing, siding, or other exterior wall facade.

3. Where the work consists solely of the alteration of materials or systems listed in (k)2 above, the path of travel requirements shall not apply.

4. Where the alteration work is for the primary purpose of increasing the accessibility of the building or tenancy, the requirement to further improve the path of travel shall not apply.

5. Where it is technically infeasible to comply with the technical standards in Chapter 11 of the building subcode, the work must comply to the maximum extent feasible.

(l) When work is performed in a Class 1 structure or when work is performed on a smoke control system, a list of all materials and work requiring special inspections, and a list of agencies, qualified licensed professionals or firms intended to be retained for conducting those inspections in accordance with the requirements of the building subcode shall be submitted as part of the permit application. (Building, except smoke control systems - Fire)

History

HISTORY:

Amended by R.1999 d.424, effective December 6, 1999.

See: 31 N.J.R. 2428(a), 31 N.J.R. 4001(c).

Inserted (d)5; in (e), changed N.J.A.C. reference in 1, inserted a second sentence in 2iii(2), deleted "In all use groups other than H," at the beginning of 3ii(1), rewrote 9, inserted a new 10, recodified former 10 and 11 as 11 and 12, and added 13; and rewrote (f).

Amended by R.2000 d.492, effective December 18, 2000.

See: 32 N.J.R. 3219(a), 32 N.J.R. 4437(b).

In (c), rewrote 2 and added 4; in (d), added 6; in (e), rewrote 8iii and substituted "Section 250-140" for "Section 250-60" in 8v; in (j)3, amended internal reference.

Amended by R.2002 d.5, effective January 7, 2002.

See: 33 N.J.R. 3392(a), 34 N.J.R. 267(a).

In (d), added new 7; in (e) added new 14 and 15.

Amended by R.2003 d.137, effective April 7, 2003.

See: 34 N.J.R. 4277(a), 35 N.J.R. 1558(c).

Deleted (e)15; added a new (g); recodified former (g) through (j) as (h) through (k).

Amended by R.2003 d.218, effective May 19, 2003.

See: 35 N.J.R. 29(a), 35 N.J.R. 2209(a).

Rewrote the section.

Administrative correction.

See: 35 N.J.R. 4861(a).

Amended by R.2004 d.145, effective April 5, 2004.

See: 35 N.J.R. 5190(a), 36 N.J.R. 1758(a).

Deleted references to use preceding references to group throughout and substituted references to automatic sprinkler for references to fire suppression throughout; rewrote (e)10; added (h)2; in (i)1ii, amended the N.J.A.C. reference.

Amended by R.2004 d.468, effective December 20, 2004.

See: 36 N.J.R. 1858(b), 36 N.J.R. 5711(a).

In (e), added 15.

Amended by R.2005 d.4, effective January 3, 2005.

See: 36 N.J.R. 4049(a), 37 N.J.R. 47(a).

Added (e)16.

Amended by R.2006 d.120, effective April 3, 2006.

See: 37 N.J.R. 3753(a), 38 N.J.R. 1567(a).

In (e)1, deleted the N.J.A.C. reference and added "by the plumbing subcode"; added (e)10iii and (e)12ii; in (e)14, added "or section R602.8 of the one- and two-family dwelling subcode, as applicable" and "or section R602.8.1 of the one- and two-family dwelling subcode, as applicable".

Amended by R.2007 d.122, effective May 7, 2007.

See: 38 N.J.R. 4951(a), 39 N.J.R. 1673(a).

Rewrote (e); and in (i)2, substituted "1009.10, 1010.8, 1012," for "1003.3.3.11, 1003.3.4.7" and "1013.1" for "1003.2.12".

Amended by R.2009 d.117, effective April 20, 2009.

See: 41 N.J.R. 18(a), 41 N.J.R. 1726(a).

In (e)6, inserted "or by section R308.4 of the one- and two-family dwelling subcode, as applicable"; in (e)9i, substituted "alarm" for "detector" twice; in (e)14 and in the introductory paragraph of (e)15, inserted "creates or"; in (e)16, inserted "newly installed or"; added (e)19; and in (f), substituted "alarms" for "detectors".

Amended by R.2011 d.270, effective November 7, 2011.

See: 43 N.J.R. 1297(a), 43 N.J.R. 2999(a).

In the introductory paragraph of (c)1, inserted "or Table R301.5 of the one- and two-family dwelling subcode, as applicable,"; rewrote (c)2, (e)14, (e)15, (e)16, (g) and (i)2; in (e)6, substituted "2406.4" for

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"2406.3"; in (e)10i, substituted "R302.6" for "R309.2"; in (e)10ii, substituted "709 and 712" for "708 and 711" and "R302" for "R317.1"; in (e)14, substituted "R302.11" for "R602.8", and "R302.11.1" for "R602.8.1", and deleted "or 717.2.1.1" following "717.2.1"; added new (e)17, (e)18 and (l); recodified former (e)17 through (e)19 as (e)19 through (e)21; and in (e)21, substituted "1022.4" for "1020.1.2".

Amended by R.2013 d.081, effective June 3, 2013.

See: 44 N.J.R. 1303(a), 45 N.J.R. 1393(a).

Added new (e)2iii and (e)2iv; recodified former (e)2iii as (e)3; rewrote (e)3; and recodified former (e)3 through (e)21 as (e)4 through (e)22.

Amended by R.2017 d.077, effective May 1, 2017.

See: 48 N.J.R. 1854(a), 49 N.J.R. 1020(a).

Rewrote the section.

Amended by R.2017 d.107, effective June 5, 2017.

See: 48 N.J.R. 1851(a), 49 N.J.R. 1381(b).

Rewrote (g).

Administrative correction.

See: 49 N.J.R. 3423(a).

Amended by R.2021 d.015, effective February 16, 2021.

See: 52 N.J.R. 561(a), 53 N.J.R. 245(a).

In (e)12i, substituted "406.3.2" for "406.3.4"; and in the introductory paragraph of (e)20, substituted "R404" for "404".

Amended by R.2022 d.022, effective February 7, 2022.

See: 53 N.J.R. 1133(a), 54 N.J.R. 263(a).

Added (e)10; and recodified former (e)10 through (e)24 as (e)11 through (e)25.

Amended by R.2022 d.158, effective December 19, 2022.

See: 54 N.J.R. 476(a), 54 N.J.R. 2371(c).

In (e)12ii, substituted "at" for "of", and updated the N.J.A.C. reference.

Amended by R.2023 d.030, effective March 6, 2023.

See: 54 N.J.R. 1661(a), 55 N.J.R. 349(a).

In (e)4i(1), inserted a comma following "enlarged" twice; and in (e)4i(1) and (e)5i, substituted "60" for "50".

Administrative correction, effective August 9, 2023.

See: 55 N.J.R. 1875(a).

Administrative correction, effective December 6, 2023.

See: 56 N.J.R. 35(c).

Administrative correction, effective July 23, 2024.

See: 56 N.J.R. 1708(a).

Amended by R.2025 d.093, effective August 18, 2025.

See: 56 N.J.R. 1837(a), 57 N.J.R. 1817(a).

Deleted former (d)4iv; and recodified former (d)4v as (d)4iv.

Amended by R.2026 d.087, effective August 17, 2026.

See: 57 N.J.R. 2333(a), 58 N.J.R. 1882(a).

In (a), substituted "at" for "in"; and rewrote (e) and (i).

Annotations

Notes

Chapter Notes

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End of Document

N.J.A.C. 5:23-6.7

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*NJ - New Jersey Administrative Code > TITLE 5. COMMUNITY AFFAIRS > CHAPTER 23. UNIFORM
CONSTRUCTION CODE > SUBCHAPTER 6. REHABILITATION SUBCODE*

§ 5:23-6.7 Reconstruction

(a) Reconstruction, as defined in N.J.A.C. 5:23-6.3 , shall comply with the requirements of this section.

1. If a project is less than the entire use, primary function space or tenancy by a de minimis amount, the construction official may designate the project a reconstruction project and require that the requirements of this section be met.
2. If work performed or to be performed in phases is so extensive that the project would require a new certificate of occupancy if the work were performed at one time, the construction official may designate the project a reconstruction project and require that the requirements of this section be met.

(b) All work shall be done in a workmanlike manner.

(c) The work shall not cause any diminution of existing structural strength, system capacity or mechanical ventilation below that which exists at the time of application for a permit or that which is required by the applicable subcodes of the Uniform Construction Code, whichever is lower. The replacement or addition of fixtures, equipment or appliances shall not increase loads on these systems unless the system is upgraded in accordance with the applicable subcode of the UCC to accommodate the increased load.

1. Newly introduced fixed loads shall not exceed the uniformly distributed live loads or concentrated live load criteria of Table 1607.1 of the building subcode or Table R301.5 of the one- and two-family dwelling subcode, as applicable, and shall not create deflection that

exceeds the standards set forth below. As used in this section, fixed loads shall mean uniform or concentrated loads and shall include, but not be limited to, equipment, files, library stacks, or similar loading conditions. (Building)

- i. For wood frame construction, deflection shall not exceed $L/180$ for roofs with a slope of 3 in 12 or less or $L/120$ for roofs with a slope of greater than 3 in 12 and for floors.
- ii. For steel frame construction, deflection shall not exceed $L/240$ for roofs with a slope of 3 in 12 or less or $L/180$ for roofs with a slope of greater than 3 in 12 and for floors.
- iii. For concrete construction, deflection shall not exceed $L/180$ for roofs or $L/240$ for floors.

2. Fire protection system removal: Any fire protection system providing partial or redundant protection originally installed to protect a special hazard that no longer exists and that is not required in accordance with the current Uniform Construction Code, is allowed to be removed with the written approval of the fire subcode official and fire official. All disconnected equipment and devices, such as pull stations, nozzles, detectors, sprinklers, sensors, panels and hose connections, shall be removed so as not to give a false indication that the structure, area or space is protected. (Fire)

3. No work shall be undertaken that diminishes accessibility below that which is required by Chapter 11 of the building subcode. (Building)

4. Construction materials used as part of a reconstruction project shall be consistent with the existing construction type or the allowable construction type, whichever is less restrictive. (Plan review - Building, Fire. Inspection - Building)

(d) The following products and practices shall not be used:

1. Carpet used for floor covering that fails to meet the DOC FF-1 "Pill Test" (Consumer Product Safety Commission 16 CFR 1630); (Plan review - Building, Fire. Inspection - Building)

2. Electrical materials/supplies: Unlisted or unapproved electrical products. As stated in the National Electric Code (sections 90.7, 110.2, 110.3, and article 100), only electrical products listed, labeled, approved, and identified are acceptable. Approval is to be based on tests and listings of testing laboratories such as Underwriters Laboratories Inc. (UL), Factory Mutual (FM) or Canadian Standards Association/Nationally Recognized Testing Laboratory (CSA/NRTL), etc.; (Electrical)
3. Plumbing materials and supplies:
 - i. All purpose solvent cement;
 - ii. Clear PB (polybutylene) piping;
 - iii. Flexible traps and tailpieces; and
 - iv. Solder having more than 0.2 percent lead shall not be used in the repair of potable water systems (Plumbing); and
4. Bars, grilles and screens shall not be placed over emergency escape windows or doors in Groups R or I-1 unless they are releasable or removable from the inside without the use of a key, tool or force greater than that which is required for the normal operation of the window or door. (Building)
5. The following practices shall not be used on painted surfaces in all buildings of Group R that were constructed before 1978, Group E and Group I-4 buildings used as child-care facilities unless the painted surface has been tested and found to be free of lead-based paint:
 - i. Open flame burning or the use of high temperature (in excess of 1100 degrees Fahrenheit) heat guns;
 - ii. Power sanding or sandblasting, unless a special HEPA (high efficiency particulate air) filter equipped vacuum attachment is used to contain dust;
 - iii. Uncontained water blasting or power washing; or
 - iv. Dry scraping or sanding more than two square feet per room (interior) or 10 square feet or more per building (exterior). (Building)

6. A mirror shall not be placed in or adjacent to any means of egress so as to confuse the direction of egress or give the appearance of a doorway, exit, or passageway. Draperies or similar hangings shall not obscure an exit. (Plan review - Building, Fire. Inspection - Building)

i. Exception: Within dwelling units of Groups R-2, R-3, R-4 and R-5.

(e) The following products and practices shall be required, when applicable:

1. When any water closet is replaced, the replacement water closet shall require not more than 1.6 gallons of water per flush as required by the plumbing subcode. (Plumbing)

2. In buildings required by Chapter 11 of the building subcode to be accessible, when bathrooms or toilet rooms are altered, the following requirements for providing accessibility shall apply unless the requirements of Chapter 11 of the building subcode have been met:

i. When toilet partitions are moved or installed, but existing fixtures are not being moved, an accessible stall complying with ICC A117.1, Section 604.9, shall be created provided that this can be accomplished without moving fixtures. (Building)

ii. When bathroom fixtures or hardware are replaced, the replacement fixtures or hardware shall comply with ICC A117.1, Sections 603 through 608, as applicable, for nonresidential buildings or ICC A117.1, Chapter 11, for residential buildings required by Chapter 11 of the building subcode to be accessible. (Plumbing)

iii. Where full compliance is technically infeasible, a single fixture unisex accessible bathroom shall be permitted. This may be accomplished by providing two unisex bathrooms, one of which is accessible. (Building)

iv. Where it is technically infeasible to gain compliance with the altered bathroom, signage to the closest accessible bathroom (if any) shall be provided at the altered bathroom. (Building)

3. In buildings required by Chapter 11 of the building subcode to be accessible, when space is reconfigured, the reconstructed space shall comply with Chapter 11 of the building subcode.

- i. Where full compliance is technically infeasible, compliance shall be achieved to the maximum extent feasible. (Building)
4. Replacement or new doors shall comply with the following: (Building)
- i. In buildings required by Chapter 11 of the building subcode to be accessible, when new door openings are created, existing door openings are enlarged or door assemblies are replaced and the required door width can be achieved within the existing opening, the new door shall comply with ICC A117.1, Section 404.
 - (1) If the door being added, enlarged, or replaced is a building entrance and at least 60 percent of the entrance doors are accessible, then the door being added, enlarged, or replaced is not required to comply with ICC A117.1, Section 404.
 - ii. Replacement dwelling unit, guest room or rooming unit corridor doors in Groups I-1, R-1 or R-2 shall be 1¾ inch solid core wood or approved equal with approved door closers and shall not have any glass panels, other than approved wire glass in metal frames.
 - (1) 1⅜ inch solid core replacement doors shall be accepted if the existing frame is not being replaced and will accommodate only a 1⅜ inch door.
5. In buildings required by Chapter 11 of the building subcode to be accessible, when entrance steps are being replaced, a ramp shall be installed, provided that the installation of a ramp does not add more than 20 percent to the cost of replacing the steps. (Building)
- i. If at least 60 percent of the other building entrances are accessible, then the installation of a ramp shall not be required.
6. When providing vertical access is part of the scope of work, a limited use limited application elevator or platform lift may be installed as permitted Chapter 11 of the building subcode. (Building)
7. Replacement glass shall comply with the "Safety Glazing" requirements of the building subcode and shall be installed in the "Hazardous Locations" as specified by Sections 2406.4

and 2406.5 of the building subcode or by Section R308.4 of the one- and two-family dwelling subcode, as applicable. (Building)

8. Where a fireproofing material is removed that is integral to the rating of an existing fire-rated assembly, the material shall be replaced so that the rating is preserved. (Building)

9. Plug fuses of the Edison-base type shall be used only for replacements where there is no evidence of over fusing or tampering per Section 240.51(B) of the electrical subcode. (Electrical)

10. Any replacement to the electrical service equipment shall require that the grounding electrode system be updated to the requirements of Article 250 Part III of the electrical subcode. (Electrical)

11. Non-"hospital grade" receptacles in patient bed locations of health care facilities, Group I-2, shall be replaced with "hospital grade" receptacles. (Electrical)

12. In buildings of Groups R-1 and R-2, when habitable space is created in previously unoccupied space, the minimum clear ceiling height shall be seven feet. For rooms with a sloped ceiling, the minimum clear ceiling height shall be seven feet for at least 35 square feet of the floor area of the room. Any portion of the room measuring less than five feet from the finished floor to the finished ceiling shall not be considered usable floor area. (Building)

13. When a new refrigerant is introduced, the requirements of the mechanical subcode applicable to that refrigerant, if any, shall be met. This shall apply to the installation of new equipment, the replacement of existing equipment with equipment using a different refrigerant, or the replacement of the refrigerant in existing equipment with a different refrigerant. (Plumbing)

14. When the work being performed creates or exposes wood framing of any wall, floor, ceiling, or roof, fireblocking shall be provided as required by Section 718.2 of the building subcode or Section R302.11 of the one- and two-family dwelling subcode, as applicable. The fireblocking material shall comply with Section 718.2.1 of the building subcode or Section R302.11.1 of the one- and two-family dwelling subcode, as applicable.

15. When the work being performed creates or exposes the roof decking/sheathing or the framing of any wall, floor, ceiling, or roof assembly that is part of the building thermal envelope (encloses conditioned space), any accessible voids in insulation shall be filled using insulation meeting the R-values of Table R402.1.3 (N1102.1.3) of the residential energy code for wood framing and of Table R402.2.6 (N1102.2.6) of the residential energy code for metal framing equivalents or of Table 5.5-4 or 5.5-5 of the commercial energy code, as applicable.

- i.** In the event that insulation meeting the R-values above cannot be installed due to space constraints, and the equivalency exceptions of Sections R402.2.1 and R402.2.2 (N1102.2.1 and N1102.2.2) cannot be applied for residential buildings, insulation that fills the cavities of the framed assembly shall be installed.

16. When fenestration (windows, skylights, or doors) is newly installed or replaced, the U-factor (thermal transmittance) shall not exceed the U-factor of Table R402.1.2 (N1102.1.2) of the residential energy code or of Table 5.5-4 or 5.5-5 of the commercial energy code, as applicable.

- i.** Exception: In residential buildings, fenestration that meets Sections R402.3.3 (N1102.3.3) and R402.3.4 (N1102.3.4), as applicable.

17. Ducts that are newly installed or replaced shall be installed with insulation meeting the R-values of Section R403.3.1 (N1103.3.1) of the residential energy code or of Section 6.4.4.1.2 of the commercial energy code, as applicable.

18. The total replacement of a building lighting system or a newly installed building lighting system shall meet Section R404 (N1104) of the residential energy code or Section 9.1.2 of the commercial energy code, as applicable. (A "lighting system" is defined by the commercial energy code as "a group of luminaires circuited or controlled to perform a specific function.")

- i.** Exception: The total replacement of a lighting system within a room, space or tenancy shall be required to meet Section 9.1.2 for the room, space or tenancy only.

19. When the work being performed results in an indoor or outdoor gas meter, related regulator or piping becoming subject to vehicle impact, which work includes, but is not limited

to, new installation, relocation or other construction, the gas meter, related regulator or piping shall be protected by barriers meeting the requirements of Section 312 of the International Fire Code. For the purpose of applying this provision, "subject to vehicle impact" shall mean located within three feet of any garage door opening, driveway or designated parking area and not separated by a building wall from the space where a vehicle may be operated. (Plumbing)

- i.** Exception: If verification of the installation of an excess flow valve is provided by the gas utility, vehicle impact barriers shall not be required.

20. Where work, other than ordinary maintenance or minor work, is being performed on an elevator, the elevator shall be equipped to operate with a standardized fire service key. (Fire)

21. The work shall not cause an exit enclosure to be used for any purpose other than means of egress, except those penetrations permitted by Section 1023.5 of the building subcode.

22. Existing openings that become part of an exit or exit access and newly created openings to be used as an exit or exit access shall meet Section 1008.3 and Section 1013 of the building subcode when more than one exit or exit access is required. This shall apply only to the portion of the building served by the new exit or exit access.

(f) In buildings containing a fuel burning appliance or having an attached garage, carbon monoxide detection equipment shall be installed in accordance with Section 915 of the building subcode or Section R315 of the one- and two-family dwelling subcode, as applicable. (Fire)

- 1.** Exception: Battery-powered or plug-in devices shall be accepted for purposes of meeting the requirements of this section.

(g) All materials and methods used shall comply with the requirements specified in N.J.A.C. 5:23-6.8 , Materials and methods.

- 1.** For repair work undertaken as part of a reconstruction project, materials like those existing may be used. There is no limit to the amount of repair work which may be undertaken.
- 2.** Exception: Windows may be replaced with windows like those existing without meeting the size requirements of the building subcode.

i. In sleeping rooms below the fourth story in occupancies of Groups R or I-1, where new window openings are being created or the size of window openings is being changed, at least one window shall:

- (1)** Be operable;
- (2)** Have a sill height of not more than 44 inches;
- (3)** Have a width of at least 20 inches, a height of at least 24 inches and a minimum total area of 5.7 square feet measured from head to sill and from side to side.
- (4)** New window openings in sleeping rooms shall not be required to meet these requirements in buildings where the sleeping room is provided with a door to a corridor having access to two remote exits or in buildings equipped throughout with an automatic sprinkler system.

ii. Basement windows in buildings of Group R-2 shall comply with the requirements of N.J.A.C. 5:23-6.26(b) 3 where the window serves as the second means of egress from the dwelling unit. (Plan review - Building, Fire. Inspection - Building)

3. Newly installed and replacement handrails and guardrails shall comply with Sections 1011.11, 1012.8, 1014, and 1015 of the building subcode, respectively, or Sections R311.7.8, R311.8.3, and R312.1 of the one- and two-family dwelling subcode, respectively, as applicable. Where 50 percent or more of a handrail or guardrail on a flight or on a level is replaced, then this shall be considered a complete replacement and shall comply with the above referenced sections. The repair or replacement of less than 50 percent of a handrail or guardrail shall be permitted to match the existing handrail or guardrail. (Building)

(h) All new building elements, as listed in N.J.A.C. 5:23-6.9 , shall comply with the requirements of that section.

(i) The basic requirements of this subchapter for the applicable group shall be met within the work area(s). Attendant work outside the work area(s) shall not make the building less conforming with the basic requirements than it was when the reconstruction was undertaken.

1. Where the building currently exceeds the basic requirements, the extent to which it exceeds shall not be reduced unless the building also exceeds the requirements of the corresponding subcode of the UCC. In this case, the extent of compliance with the basic requirements may be reduced, but not below the requirements of the corresponding subcode of the UCC. Existing fire alarm, automatic sprinkler and standpipe systems shall not be removed without replacement and shall be maintained in operating condition.

(j) The supplemental requirements of this subchapter for the applicable group shall be met wherever the extent of the work is such that the trigger accompanying each requirement is met or exceeded.

(k) In a building required by Chapter 11 of the building subcode to be accessible, where the space reconstructed is a primary function space, an accessible path of travel to the space shall be provided up to the point at which the cost of providing accessibility is disproportionate to the cost of the overall project; a cost is disproportionate if it exceeds 20 percent of the cost of the work.

(Building)

1. The accessible path of travel shall include, but not be limited to, an accessible parking space, an accessible exterior route, an accessible building entrance, an accessible interior route to the reconstructed area, accessible restrooms, accessible drinking fountains, and accessible telephones serving the reconstructed primary function space. Priority shall be given to providing an accessible entrance or accessible restrooms where possible.

2. In determining disproportionate cost, the following materials may be deducted from the overall cost of the project:

- i.** Windows, hardware, operating controls, electrical outlets and signage;
- ii.** Mechanical systems, electrical systems, installations or alterations of fire protection systems or abatement of hazardous materials; or
- iii.** The repair or installation of roofing, siding, or other exterior wall facade.

3. Where the work consists solely of the reconstruction of materials or systems listed in (k)2 above, the path of travel requirements shall not apply.
4. Where the work is for the primary purpose of increasing the accessibility of the building or tenancy, the requirement to further improve the path of travel shall not apply.
5. Where it is technically infeasible to comply with the technical standards of ICC A117.1, the work must comply to the maximum extent feasible.

(l) When work is performed in a Class 1 structure or when work is performed on a smoke control system, a list of all materials and work requiring special inspections, and a list of agencies, qualified licensed professionals or firms intended to be retained for conducting those inspections in accordance with the requirements of the building subcode shall be submitted as part of the permit application. (Building, except smoke control systems - Fire)

History

HISTORY:

Amended by R.2000 d.492, effective December 18, 2000.

See: 32 N.J.R. 3219(a), 32 N.J.R. 4437(b).

In (c), rewrote 2 and added 4; in (d), added 5; in (e), amended the N.J.A.C. reference in 5, rewrote 8iii, and substituted "Section 250-140" for "Section 250-60" in 8v.

Amended by R.2002 d.5, effective January 7, 2002.

See: 33 N.J.R. 3392(a), 34 N.J.R. 267(a).

In (d), added new 6; in (e), added new 11.

Amended by R.2003 d.137, effective April 7, 2003.

See: 34 N.J.R. 4277(a), 35 N.J.R. 1558(c).

Deleted (e)11; added a new (f); recodified former (f) through (j) as (g) through (k).

Amended by R.2003 d.218, effective May 19, 2003.

See: 35 N.J.R. 29(a), 35 N.J.R. 2209(a).

Rewrote the section.

Administrative correction.

See: 35 N.J.R. 4861(a).

Amended by R.2004 d.145, effective April 5, 2004.

See: 35 N.J.R. 5190(a), 36 N.J.R. 1758(a).

Deleted references to use preceding references to group throughout and substituted references to automatic sprinkler for references to fire suppression throughout; in (g)2ii, amended the N.J.A.C. reference.

Amended by R.2004 d.468, effective December 20, 2004.

See: 36 N.J.R. 1858(b), 36 N.J.R. 5711(a).

In (e), added 11.

Amended by R.2005 d.4, effective January 3, 2005.

See: 36 N.J.R. 4049(a), 37 N.J.R. 47(a).

Added (e)12.

Amended by R.2006 d.120, effective April 3, 2006.

See: 37 N.J.R. 3753(a), 38 N.J.R. 1567(a).

In (e)1, deleted the N.J.A.C. reference and added "by the plumbing subcode".

Amended by R.2007 d.122, effective May 7, 2007.

See: 38 N.J.R. 4951(a), 39 N.J.R. 1673(a).

In (e) and (k)5, substituted "2003" for "1998" throughout; in (e)2ii, inserted "ICC/ANSI A117.1-2003, Chapter 10"; in (e)6, substituted "2406.3" for "2406.2"; added new (e)11 and (e)12; recodified former (e)11 and (e)12 as (e)13 and (e)14; and in (g)3, substituted "1009.10, 1010.8, 1012" for "1003.3.3.11, 1003.3.4.7" and "1013.1" for "1003.2.12".

Amended by R.2009 d.117, effective April 20, 2009.

See: 41 N.J.R. 18(a), 41 N.J.R. 1726(a).

In (e)6, inserted "or by section R308.4 of the one- and two-family dwelling subcode, as applicable"; in the introductory paragraph of (e)11, inserted "creates or"; in (e)12, inserted "newly installed or"; and added (e)15.

Amended by R.2011 d.270, effective November 7, 2011.

See: 43 N.J.R. 1297(a), 43 N.J.R. 2999(a).

In the introductory paragraph of (c)1, inserted "or Table R301.5 of the one- and two-family dwelling subcode, as applicable,"; rewrote (c)2, (e)11, (e)12 and (g)3; in (e)6, substituted "2406.4" for "2406.3"; added new (e)13, (e)14 and (l); recodified former (e)13 through (e)15 as (e)15 through (e)17; in (e)17, substituted "1022.4" for "1020.1.2"; and in (f), inserted "N.J.A.C. 5:23-3.20(c) of" and "or Section R315 of the one- and two-family dwelling subcode, as applicable".

Amended by R.2013 d.081, effective June 3, 2013.

See: 44 N.J.R. 1303(a), 45 N.J.R. 1393(a).

In the introductory paragraph of (e)2, inserted a comma following "altered"; added new (e)2iii and (e)2iv; recodified former (e)2iii as (e)3; rewrote (e)3; and recodified former (e)3 through (e)17 as (e)4 through (e)18.

Amended by R.2017 d.077, effective May 1, 2017.

See: 48 N.J.R. 1854(a), 49 N.J.R. 1020(a).

Rewrote the section.

Amended by R.2017 d.107, effective June 5, 2017.

See: 48 N.J.R. 1851(a), 49 N.J.R. 1381(b).

Rewrote (f).

Administrative correction.

See: 49 N.J.R. 3423(a).

Amended by R.2020 d.130, effective December 7, 2020.

See: 52 N.J.R. 835(a), 52 N.J.R. 2097(a).

Inserted (e)10 and recodified former (e)10 through (e)21 as (e)11 through (e)22.

Amended by R.2021 d.015, effective February 16, 2021.

See: 52 N.J.R. 561(a), 53 N.J.R. 245(a).

In the introductory paragraph of (e)18, substituted "R404" for "404".

Amended by R.2022 d.022, effective February 7, 2022.

See: 53 N.J.R. 1133(a), 54 N.J.R. 263(a).

In (e)10, deleted "repair or" following "Any", and "NEC" preceding "Article", substituted "of" for ", as referenced in", and deleted "(N.J.A.C. 5:23-3.16)" following "subcode".

Amended by R.2023 d.030, effective March 6, 2023.

See: 54 N.J.R. 1661(a), 55 N.J.R. 349(a).

In (e)4i(1), inserted a comma following "enlarged" twice; in (e)4i(1) and (e)5i, substituted "60" for "50"; and in (e)5, inserted a comma following "installed".

Administrative correction, effective August 9, 2023.

See: 55 N.J.R. 1875(a).

Administrative correction, effective December 6, 2023.

See: 56 N.J.R. 35(c).

Administrative correction, effective July 23, 2024.

See: 56 N.J.R. 1708(a).

Amended by R.2025 d.093, effective August 18, 2025.

See: 56 N.J.R. 1837(a), 57 N.J.R. 1817(a).

In (d)3iii, inserted the second occurrence of "and"; deleted former (d)3iv; and recodified former (d)3v as (d)3iv.

Annotations

Notes

Chapter Notes

End of Document

N.J.A.C. 5:23-6.8

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*NJ - New Jersey Administrative Code > TITLE 5. COMMUNITY AFFAIRS > CHAPTER 23. UNIFORM
CONSTRUCTION CODE > SUBCHAPTER 6. REHABILITATION SUBCODE*

§ 5:23-6.8 Materials and methods

(a) The following requirements shall be met for materials and installation methods for all items that are part of the applicant's proposed project for all categories of work other than repair as defined in N.J.A.C. 5:23-6.3.

1. Where sections listed below reference other sections not listed below, those sections shall apply within that limited context.

(b) Building and Fire Protection Materials and Methods: The following sections of the building subcode (N.J.A.C. 5:23-3.14) shall constitute the building and fire protection materials and methods requirements for this subchapter:

1. The following sections of Chapter 5 entitled "General Building Height and Areas":
 - i. Section 505 shall apply to newly constructed "Mezzanines and Equipment Platforms";
2. The following sections of Chapter 7 entitled "Fire and Smoke Protection Features":
 - i. Sections 703.2, 703.3, 703.4, 703.6, 703.7;
 - ii. Sections 705.2.1, 705.2.2, 705.4;
 - iii. Sections 706.2, 706.3;
 - iv. Sections 707.2, 707.9;
 - v. Section 708.2;
 - vi. Section 709.2;

- vii.** Sections 710.2, 710.5, 710.6, 710.7, 710.8;
 - viii.** Sections 711.2.1, 711.3.1;
 - ix.** Section 712.1.13;
 - x.** Section 713.3;
 - xi.** Section 714;
 - xii.** Section 715;
 - xiii.** Section 716;
 - xiv.** Section 717;
 - xv.** Sections 718.2.1, 718.3.1;
 - xvi.** Section 719;
 - xvii.** Section 720;
 - xviii.** Section 721; and
 - xix.** Section 722;
- 3.** All of Chapter 8 entitled "Interior Finishes";
- 4.** All of Chapter 9 entitled "Fire Protection Systems," except Sections 902, 903.2, 903.3.2, 904.2, 905.3, 906.1, 907.2, 908.1, 908.2, 910.2, 911, 917, and 918;
- 5.** The following sections of Chapter 10 entitled "Means of Egress":
- i.** Sections 1010.2 and 1010.3;
 - (1)** Sections 1010.2.8.3 and 1010.2.8.4 shall be the only sections that apply within Section 1010.2.8.
 - ii.** Sections 1013.3, 1013.4, 1013.5, and 1013.6;
 - iii.** Section 1015.8.1.1.3; and
 - iv.** Sections 1025.4, 1025.5;

- 6.** The following sections of Chapter 12 entitled "Interior Environment":
 - i.** Section 1202.5.2 shall apply to new sources of contaminants; and
 - ii.** Section 1209;
- 7.** All of Chapter 14 entitled "Exterior Walls" except Sections 1401, 1402.2, 1402.3, and 1402.4.
 - i.** Additionally, Section 1402.3.1 shall be included as part of Materials and Methods;
- 8.** All of Chapter 15 entitled "Roof Assemblies and Rooftop Structures" except Sections 1501, 1502, 1503.4, and 1511.8;
- 9.** All of Chapter 16 entitled "Structural Design," except Sections 1601, 1604, 1608, 1609, 1610, 1611, 1612, 1613, 1614, 1615, and 1616 shall apply to new or replaced structural members. The referenced sections of Chapter 16 shall not be used to analyze any existing structural members, except as otherwise provided by this subcode;
- 10.** All of Chapter 18 entitled "Soil and Foundations" except Sections 1801, 1802, 1803, 1804, 1805, 1806;
 - i.** Additionally, the following requirements of Section 1805 shall be included as part of Materials and Methods: 1805.2.1, 1805.2.2, 1805.3.1, 1805.3.2, 1805.3.3, 1805.4.1, 1805.4.2, 1805.4.3;
- 11.** All of Chapter 19 entitled "Concrete" except Sections 1901, 1902;
- 12.** All of Chapter 20 entitled "Aluminum";
- 13.** All of Chapter 21 entitled "Masonry" except Sections 2101, 2102;
- 14.** All of Chapter 22 entitled "Steel" except Section 2201.1;
- 15.** All of Chapter 23 entitled "Wood" except Section 2301.1;
- 16.** All of Chapter 24 entitled "Glass and Glazing" except Sections 2401, 2402;
- 17.** All of Chapter 25 entitled "Gypsum Board and Plaster" except Sections 2501.1, 2502;

- 18.** All of Chapter 26 entitled "Plastic" except Sections 2601, 2602;
 - 19.** For the applicability of Chapter 30 entitled "Elevators and Conveying Systems," refer to (i) and (j) below; and
 - 20.** The following sections of Chapter 31 entitled "Special Construction:"
 - i.** Section 3105;
 - ii.** Sections 3106.3;
 - iii.** Section 3107;
 - iv.** Section 3109 shall apply to newly installed and completely replaced swimming pools, spas, and hot tubs. For barriers, this shall also apply to partial barrier replacements if the portion being replaced exceeds 25 percent of the total perimeter of the barrier;
 - v.** Section 3110;
 - vi.** Section 3111 shall apply to newly installed and completely replaced solar energy systems; and
 - vii.** Section 3114 shall apply to newly repurposed intermodal shipping containers.
- (c) Plumbing Materials and Methods:** The following sections of the plumbing subcode (N.J.A.C. 5:23-3.15) shall constitute the plumbing materials and methods requirements for this subchapter:
- 1.** All of Chapter 2 entitled "General Regulations" except Section 2.19:
 - i.** Sections 2.16a.1 and 2 shall not apply to the replacement of water service or building sewers in the same location.
 - ii.** Section 2.19 for availability of public water supply and sewer shall apply when existing septic or water supply facilities are no longer suitable for use as determined by the local health inspector, and public facilities are available within the meaning of Section 2.19.
 - 2.** All of Chapter 3 entitled "Materials."
 - 3.** All of Chapter 4 entitled "Joints and Connections."

4. All of Chapter 5, entitled "Traps, cleanouts and backwater valves."
5. Chapter 6, entitled "Liquid Waste Treatment Equipment" except Sections 6.1.1, 6.3.1, and 6.4.1:
 - i. Section 6.1.1, 6.3.1, 6.4.1 for when interceptors are required shall not apply. However, when new fixtures, or devices are installed that will produce wastes that need to be separated, an interceptor shall be required.
6. Chapter 7, entitled "Plumbing Fixtures, Fixture Fittings and Plumbing Appliances" except section 7.21 and table 7.21.1.
7. Chapter 8 entitled "Hangers and Supports."
8. Chapter 9 entitled "Indirect Wastes Piping and Special Waste."
9. Chapter 10 entitled "Water Supply and Distribution" except for sections 10.3, 10.6.5, 10.8.1, 10.14 and 10.15.9:
 - i. Water shall be supplied so that fixtures within a building are provided with an adequate supply of water so that they are functional.
 - ii. In Section 10.6.4, the minimum of five feet for the wall sleeve shall not be required for "trenchless pipe replacement systems" for water service replacement using plastic pipe.
 - iii. Section 10.6.5 shall apply to all newly-installed or completely replaced water services.
 - iv. Section 10.8.1 shall apply, where there is not sufficient pressure for proper functioning of fixtures, a water pressure booster system shall be required.
 - v. Section 10.14 for sizing water distribution systems shall apply when the proposed work will impose additional loads on the system. Where the proposed work does not increase or decreases the load on the existing system, no increase in size shall be required. All new piping associated with the installation of additional fixtures shall comply with the sizing requirements of Chapter 10.

10. All of Chapter 11, entitled "Sanitary Drainage Systems" except 11.2.2, 11.2.3, 11.5, and 11.6:

- i.** Section 11.2.3 for sizing building sewers shall apply when the proposed work will impose additional loads on the sewer. Where the proposed work does not increase or decreases the load on the existing system, no increase in size shall be required.
- ii.** Section 11.5 for sizing drainage systems shall apply when the proposed work will impose additional loads on the system. Where the proposed work does not increase or decreases the load on the existing system, no increase in size shall be required. All new piping associated with the installation of additional fixtures shall comply with the sizing requirements of 11.5.
- iii.** Section 11.6 for sizing offsets in drainage systems shall apply when the proposed work will impose additional loads on the system. Where the proposed work does not increase or decreases the load on the existing system, no increase in size shall be required.

11. All of Chapter 12, entitled "Vents and Venting" except 12.3.1, 12.3.2 and 12.16:

- i.** Section 12.3.1 for locations where vent stacks are required shall apply where new stacks are being installed;
- ii.** Section 12.3.2 "Relief Vents for Stacks having Ten or More Branch Intervals" shall apply only when new stacks of ten or more branch intervals are being installed; and
- iii.** Section 12.16 for size and length of vents shall apply when new vents are being installed.

12. All of Chapter 13 entitled "Storm Water Drainage" except Sections 13.1.1, 13.1.2, 13.1.6, 13.1.7, 13.1.10.1, 13.4.3, 13.6.1, and 13.6.2:

- i.** Section 13.1.1 for where storm water drains are required shall apply only when new roofs, paved areas, yards, courts and courtyards are created.

- ii.** Section 13.1.2 "Storm Water Drainage to Sewer Prohibited" shall not be applied to existing connections to the sewer. This section shall only prohibit the connection of new storm water drains to a sanitary sewer that is prohibited from accepting such discharge.
- iii.** Section 13.1.6 "Areaway Drains" shall apply only to newly created, open, below grade areaways where storm water can accumulate.
- iv.** Section 13.1.7 "Window Well Drains" shall apply only to newly created window wells.
- v.** Section 13.1.10.1 for sizing roof drains, as amended in N.J.A.C. 5:23-3.15, shall apply only where additional roof area is to be drained or where other circumstances increase the load on existing roof drains.
- vi.** Section 13.4.3 "Combining Storm Water with Sanitary Drainage" shall not be applied to existing connections to the sewer. This section shall only require that newly installed sanitary and storm sewers be separate.
- vii.** Section 13.6.1 "Size of Vertical Storm Drain Piping" shall only apply when the proposed work will impose additional loads on the system. Where the proposed work does not increase or decreases the load on the existing system, no increase in size shall be required.
- viii.** Section 13.6.2 "Size of Horizontal Storm Drain Piping" shall only apply when the proposed work will impose additional loads on the system. Where the proposed work does not increase or decreases the load on the system, no increase in size shall be required.

13. All of Chapter 14 entitled "Special Requirements For Health Care Facilities."

14. All of Chapter 15 entitled "Tests and Maintenance."

15. Section 16.1.7 of Chapter 16 entitled "Regulations Governing Individual Sewage Disposal Systems for Homes and Other Establishments Where Public Sewage Systems Are Not Available."

(d) Electrical Materials and Methods. The following sections of the electrical subcode (N.J.A.C. 5:23-3.16) shall constitute the electrical materials and methods requirements for this subchapter:

1. Section 90.7, entitled "Examination of Equipment for Safety" of the Introduction, Article 90;
2. All of Chapter 1 entitled "General" except Sections 110.8 Wiring Methods, 110.26 Spaces About Electrical Equipment (1,000 Volts, Nominal, or less), 110.32 Work Space About Equipment (over 1,000 Volts, Nominal) and 110.33 Entrance to Enclosures and Access to Working Space;
 - i. Section 110.32 shall be required for upgrading the complete system or where the voltage is increased;
3. All of Chapter 2 entitled "Wiring and Protection" except Sections 210.11 Branch Circuits Required, 210.12 Arc-Fault Circuit-Interrupter Protection, 210.52 Dwelling Unit Receptacle Outlets, 210.60 Guest Rooms or Guest Suites Dormitories and Similar Occupancies, 210.62 Show Windows, 210.63 Equipment Requiring Servicing, and 210.70 Lighting Outlets Required;
 - i. In applying item #3 of the exception of Section 250.140, the branch circuit may originate at a location other than the service equipment.
4. All of Chapter 3 entitled "Wiring Methods and Materials";
5. All of Chapter 4, entitled "Equipment for General Use" except Section 404.8 Accessibility and Grouping (switches) and Section 408.18 Clearances (switchboards and switchgear);
6. All of Chapter 5, entitled "Special Occupancies;"
7. All of Chapter 6, entitled "Special Equipment;"
8. All of Chapter 7, entitled "Special Conditions;" and
9. All of Chapter 8 entitled "Communications Systems."
10. Existing working clearances, clear space, access and entrance dimensions to working spaces, illumination, headroom clearances, and location of overcurrent protection devices shall be allowed to remain without modification.

(e) Mechanical Materials and Methods: The following sections of the mechanical subcode (N.J.A.C. 5:23-3.20) shall constitute the mechanical materials and methods requirements for this subchapter:

1. All of Chapter 3, entitled "General Regulations" except Sections 301.2, 301.10, 301.11, 301.16, 301.18, 303.5, 303.6, 303.7, 306, 307.2.3, 309, and 312;
 - i. Section 312 shall apply when appliance/equipment input ratings are increased.
2. All of Chapter 4, entitled "Ventilation" except Sections 402, 403, and 407;
3. All of Chapter 5, entitled "Exhaust Systems" except Sections 502, 507.2.11, 509, and 512;
 - i. Section 507.2.11 shall apply to newly installed or replaced commercial food heat-processing appliances and Type I hoods;
 - ii. Section 509 shall apply to newly introduced sources of hazardous exhaust;
4. All of Chapter 6, entitled "Duct Systems" except Sections 602, 604.1, and 608;
 - i. Section 602 shall apply to newly constructed plenums. Modifications to existing plenums, such as installation of new building, electrical, or plumbing materials inside the plenum, increasing air flow rate within the plenum, etc. shall not require the plenum to comply with the construction requirements for new plenums. However, newly installed materials within the plenum shall be consistent with material requirements of Section 602; and
 - ii. Section 608 shall apply to newly installed systems.
5. All of Chapter 7, entitled "Combustion Air";
 - i. Chapter 7 shall not apply if the work being performed does not increase the input rating of the equipment.
6. All of Chapter 8, entitled "Chimneys and Vents";
7. All of Chapter 9, entitled "Specific Appliances, Fireplaces and Solid Fuel-Burning Equipment";

8. All of Chapter 10, entitled "Boiler, Water Heaters and Pressure Vessels";
 9. All of Chapter 11, entitled "Refrigeration," except Section 1105.9;
 10. All of Chapter 12, entitled "Hydronic Piping" except Section 1204;
 11. All of Chapter 13, entitled "Fuel Oil Piping and Storage" except Section 1305.1;
 - i. Section 1305.1 shall apply when the work being performed increases the load on the system such that the existing pipe does not meet the size required by code. Existing systems that are modified shall not require resizing as long as the load on the system is not increased and the system length is not increased even if the altered system does not meet code minimums; and
 12. All of Chapter 14, entitled "Solar Thermal Systems."
- (f) Fuel Gas Materials and Methods: The following sections of the fuel gas subcode (N.J.A.C. 5:23-3.22) shall constitute the fuel gas materials and methods requirements of this subchapter:
1. All of Chapter 3, entitled "General Regulations" except Sections 301.2, 301.6, 301.11, 301.12, 303.7, and 306 (excluding Section 306.6);
 - i. Section 304 shall not apply if the work being performed does not increase the input rating of the equipment.
 2. All of Chapter 4, entitled "Gas Piping Installations" except Sections 401.8 and 402.3;
 - i. Sections 401.8 and 402.3 shall apply when the work being performed increases the load on the system such that the existing pipe does not meet the size required by code. Existing systems that are modified shall not require resizing as long as the load on the system is not increased and the system length is not increased even if the altered system does not meet code minimums;
 3. All of Chapter 5, entitled "Chimneys and Vents";
 - i. Section 503.6.10 shall apply only when the equipment being installed results in a greater output to the common venting system;

4. All of Chapter 6, entitled "Specific Appliances"; and
5. All of Chapter 7, entitled "Gaseous Hydrogen Systems."

(g) Barrier Free Materials and Methods: The requirements of ICC A117.1 shall constitute the barrier free materials and methods requirements for this subchapter and shall apply to work projects in all buildings other than buildings of Group R-2, R-3, R-4, or R-5 containing fewer than four dwelling units or buildings of Use Group U.

1. Exception: Where full compliance is technically infeasible, compliance shall be achieved to the maximum extent feasible.
2. For toilet or bathing facilities, at least one of each type of fixture shall comply with the barrier free materials and methods. Where six or more toilet stalls are provided, in addition to a wheelchair accessible stall, at least one ambulatory accessible stall shall be provided.
3. Limited exceptions to the accessibility requirements for theatres and auditoriums are permitted as follows:
 - i. Where fixed seating is provided and it is technically infeasible to provide integrated accessible seating, accessible seating may be clustered.
 - ii. When a facility contains more than one performing area and it is technically infeasible to make all performing areas accessible, the provision of one accessible performing area shall be accepted as meeting the requirement for providing access to performing areas.
4. In buildings of Group M, where fitting room partitions are installed or moved, five percent of the fitting rooms, but not less than one, shall comply.
5. Section 309 of the ICC A117.1 shall not apply to electrical panelboard replacement(s).

(h) Residential Materials and Methods: The following sections of the one- and two-family dwelling subcode (N.J.A.C. 5:23-3.21) shall constitute the residential materials and methods requirements for this subchapter:

1. The following sections of Chapter 3, entitled "Building Planning":

- i.** Section R301.8;
 - ii.** Sections R302.10, R302.14;
 - iii.** Section R303;
 - iv.** Section R304;
 - v.** Section R305;
 - vi.** Sections R309.1.1 and R309.2.1;
 - vii.** Sections R310.1.1, R310.5, R310.7.1, and R310.7.4;
 - viii.** Sections R311.1.1, R311.4, R311.7.1, and R311.7.4;
 - ix.** Sections R317.4, R317.6, and R317.7;
 - x.** Section R324;
 - xi.** Section R327.2;
 - xii.** Section R328 shall apply to newly installed and completely replaced swimming pools, spas, and hot tubs. For barriers, this shall also apply to partial barrier replacement if the portion being replaced exceeds 25 percent of the total perimeter of the barrier;
 - xiii.** Section R329 shall apply to newly installed and completely replaced solar energy systems;
 - xiv.** Section R330 shall apply to newly installed and completely replaced energy storage systems.
- (1)** Buildings not equipped with existing hardwired, interconnected, smoke alarm(s) or a fire alarm system, battery-operated units are permitted without interconnection except in attached garages. Systems installed in attached garages of buildings shall comply with exception 1 or 2 of Section R330.1 or a heat detector shall be installed per Section R330.7, interconnected to at least one hardwired smoke alarm outside of the garage; physical interconnection shall not be required where listed wireless alarms are installed;

- xv.** Section R331 shall apply to newly installed and completely replaced stationary engine generators; and
 - xvi.** Section R332 shall apply to newly installed and completely replaced stationary fuel cell power systems;
2. The following sections of Chapter 4 entitled "Foundations":
- i.** Section R402; and
 - ii.** Section R407;
3. The following sections of Chapter 5 entitled "Floors":
- i.** Sections R502.1, R502.8, and R502.12;
 - ii.** Sections R503.2.1, R503.2.3, R503.3.1, R503.3.3;
 - iii.** Sections R504.1.2, R504.1.3, R504.3;
 - iv.** Sections R505.2.1, R505.2.2, R505.2.3, R505.2.4, R505.2.5, R505.2.6 for web hole patching only, and R505.3.5; and
 - v.** Section R507 shall apply to newly installed and completely replaced decks;
4. The following sections of Chapter 6 entitled "Wall Construction":
- i.** Sections R602.1, R602.2, R602.6;
 - ii.** Sections R603.2.1, R603.2.2, R603.2.3, R603.2.4, R603.2.5, R603.2.6 for web hole patching only, and R603.3.4;
 - iii.** Sections R604.1, R604.3;
 - iv.** Section R605;
 - v.** Sections R606.1, R606.2;
 - vi.** Section R607.2;
 - vii.** Sections R608.5.1.1, R608.5.1.2, R608.5.2, R608.5.3;
 - viii.** Sections R609.3, R609.4, R609.5; and

- ix.** Sections R610.3, R610.7;
- 5.** All of Chapter 7 entitled "Wall Covering";
- 6.** The following sections of Chapter 8, entitled "Roof-Ceiling Construction":
 - i.** Sections R802.1, R802.7, R802.10.4;
 - ii.** Section R803.2.1; and
 - iii.** Sections R804.2.1, R804.2.2, R804.2.3, R804.2.4, R804.2.5, R804.2.6 for web hole patching only, and R804.3.3;
- 7.** All of Chapter 9 entitled "Roof Assemblies", except Section R907.
 - i.** Section R907 shall apply to newly installed and completely replaced panel systems;
- 8.** All of Chapter 10 entitled "Chimneys and Fireplaces";
- 9.** All of Chapter 13, entitled "General Mechanical System Requirements", except Section M1301.1.1 and M1305;
- 10.** All of Chapter 14, entitled "Heating and Cooling Equipment and Appliances," except Sections M1401.2, M1401.3, and M1401.5;
 - i.** Section M1401.3 shall apply when appliance/equipment input ratings are increased.
- 11.** All of Chapter 15, entitled "Exhaust Systems";
- 12.** All of Chapter 16, entitled "Duct Systems," except Section M1602.2 #4.
- 13.** All of Chapter 17, entitled "Combustion Air," except M1701.2;
 - i.** Chapter 17 shall not apply if the work being performed does not increase the input rating of the equipment.
- 14.** All of Chapter 18, entitled "Chimneys and Vents";
- 15.** All of Chapter 19, entitled "Special Appliances, Equipment and Systems";
- 16.** All of Chapter 20, entitled "Boilers and Water Heaters";
- 17.** All of Chapter 21, entitled "Hydronic Piping";

- 18.** All of Chapter 22, entitled "Special Piping and Storage Systems";
- 19.** All of Chapter 23, entitled "Solar Thermal Energy Systems"; and
- 20.** All of Chapter 24, entitled "Fuel Gas," except Sections G2404.7, G2404.8, G2412.8, and G2413.3.

- i.** Section G2407 shall not apply if the work being performed does not increase the input rating of the equipment.
- ii.** Sections G2412.8 and G2413.3 shall apply when the work being performed increases the load on the system such that the existing pipe does not meet the size required by code. Existing systems that are modified shall not require resizing as long as the load on the system is not increased and the system length is not increased even if the altered system does not meet code minimums;

(i) Elevator Devices Materials and Methods: The following sections of the elevator subcode (N.J.A.C. 5:23-12) shall constitute the elevator device materials and methods requirements for this subchapter:

- 1.** The following sections of the elevator subcode and ASME A17.1 referenced by the adopted building subcode: N.J.A.C. 5:23-12.2(c) and 12.8, ASME A17.1, Sections 8.7 Alterations, 8.8, Welding; and 8.9, Code Data Plate, and Appendices, except for E, J, N, T, W, X, and Y.
- 2.** The following section of Chapter 30 of the building subcode: Section 3002.1.2--"Hoistway Enclosures, Hardware."
- 3.** The requirements of ASME A17.1 Section 2.8.3.3, as referenced by the adopted building subcode, when an automatic sprinkler system is installed in an elevator hoistway, machine room and/or machinery space.
- 4.** When a controller is replaced, without any change in the type of operation or control, the newly installed controller shall conform to the requirements of ASME A17.1 Sections 2.26.4 and 2.26.9. The installation shall also conform to the requirements of ASME A17.1 Sections 2.25; 2.26.6; 2.26.7; and 2.26.8.

5. When a controller is replaced, with any change in the type of operation or control, the newly installed controller shall conform to the requirements of ASME A17.1 Sections 2.26.4 and 2.26.9. The installation shall also conform to the requirements of ASME A17.1 Sections 2.25; 2.26.6; 2.26.7; 2.26.8; and 2.27.3 through 2.27.9.

(j) Conveying Devices Materials and Methods: The following sections of Chapter 30 of the building subcode (N.J.A.C. 5:23-3.14) shall constitute the conveying device materials and methods requirements for this subchapter:

1. Section 3004.3--"Conveyors"; Section 3004.4--"Personnel and material hoists" and the following referenced standards from Table 3001.3--"ALI ALCTV," "ANSI MH 29.1," "ASME B20.1."

(k) Manufactured Home Materials and Methods: The following sections of Part 3280 of Title 24 of the Code of Federal Regulations shall constitute the manufactured home materials and methods requirements for this subcode:

1. All of Part 3280 of Title 24 of the Code of Federal Regulations except 3280.1, 3280.5, 3280.6, 3280.7, and 3280.8.

(l) Energy Conservation Materials and Methods: The following sections of the energy subcode (N.J.A.C. 5:23-3.18) shall constitute the energy conservation materials and methods requirements for this subchapter:

1. Residential energy code provisions:

i. The following sections of Chapter 3 entitled "General Requirements":

(1) Sections R303.1 and R303.2 (N1101.10 and N1101.11).

ii. The following sections of Chapter 4 of the residential energy code entitled "Residential Energy Efficiency":

(1) Section R402 (N1102): Subsections R402.2.4, R402.2.5, R402.2.8, #2 and #3, R402.2.12, R402.3, R402.5.1.1, R402.5.3, R402.5.4, and R402.5.5 (N1102.2.4,

N1102.2.5, N1102.2.8, #2 and #3, N1102.2.12, N1102.3, N1102.5.1.1, N1102.5.3, N1102.5.4, and N1102.5.5).

(2) Section R403 (N1103): Subsections R403.3.2 and R403.3.6.1 (N1103.3.2, and N1103.3.6.1).

(3) Section R404 (N1104): Subsection R404.2 (N1104.2).

2. Commercial energy code provisions:

i. The following sections of Chapter 4 of the commercial energy code entitled "Commercial Energy Efficiency":

(1) Section 4.2.3;

(2) Sections 5.4.3.2, 5.4.3.3, 5.5.4.1, 5.8.1, and 5.8.2;

(3) Sections 6.4.1, 6.4.4.1.1, and 6.4.4.2.1;

(4) Section 7.4.2; and

(5) Sections 10.4.1, 10.4.5, and 10.4.8.

History

HISTORY:

Amended by R.1999 d.424, effective December 6, 1999.

See: 31 N.J.R. 2428(a), 31 N.J.R. 4001(c).

In (b), inserted a reference to fire protection materials the introductory paragraph, inserted 4i and 4ii, inserted a new 5iii, and recodified former 5iii and 5iv as 5iv and 5v; and in (c), changed chapter 5 reference in 4, substituted a reference to section 7.21 for a reference to 7.24 in 6, substituted a reference to section 11.2.3 for a reference to 11.2.2 in 10i, changed chapter 14 reference in 13, and changed section 16.1.7 reference in 15.

Administrative correction.

See: 32 N.J.R. 688(a).

Amended by R.2000 d.492, effective December 18, 2000.

See: 32 N.J.R. 3219(a), 32 N.J.R. 4437(b).

In (b), rewrote 15 and 21; in (d), rewrote 2 through 4; and added (h).

Amended by R.2002 d.5, effective January 7, 2002.

See: 33 N.J.R. 3392(a), 34 N.J.R. 267(a).

In (b), added new 5vi.

Amended by R.2003 d.218, effective May 19, 2003.

See: 35 N.J.R. 29(a), 35 N.J.R. 2209(a).

Rewrote the section.

Amended by R.2004 d.145, effective April 5, 2004.

See: 35 N.J.R. 5190(a), 36 N.J.R. 1758(a).

Deleted references to use preceding references to group throughout; in (b), substituted "906.1" for "906" in the introductory paragraph of 4 and inserted "1003.3.1.3.1" in 5iii; in (i), substituted a reference to automatic sprinkler for a reference to fire suppression in 3.

Administrative correction.

See: 36 N.J.R. 2490(b).

Amended by R.2005 d.82, effective March 7, 2005.

See: 36 N.J.R. 4222(a), 37 N.J.R. 771(a).

In (b), substituted "906.2" for "906.1" in the introductory paragraph of 4, and deleted i, substituted "1614" for "1613" in 9; in (c), deleted "and" following "108.1" and inserted "and 10.15.9" following "10.14" in 9.

Administrative change.

See: 37 N.J.R. 1016(a).

Amended by R.2006 d.120, effective April 3, 2006.

See: 37 N.J.R. 3753(a), 38 N.J.R. 1567(a).

In (b)19, a correction is made to a cross reference; in (c)5, deletes reference to section 6.1.7; in (e)1, section 301.16 is replaced with section 301.15; added (f)5 and (h)9 through 20.

Amended by R.2007 d.122, effective May 7, 2007.

See: 38 N.J.R. 4951(a), 39 N.J.R. 1673(a).

Rewrote (b); in the introductory paragraph of (c), substituted "materials and methods" for "material and method"; added (d)2i; rewrote (d)3; in (d)4, inserted "and materials"; in (d)5, substituted "408.18" for "408.8"; in (f)4, deleted "and" from the end; in (f)5, substituted "; and" for the period at the end; added (f)6; in the introductory paragraph of (g), substituted "2003" for "1998"; and rewrote (h).

Administrative correction.

See: 39 N.J.R. 3296(a).

Amended by R.2008 d.369, effective December 15, 2008.

See: 40 N.J.R. 4651(a), 40 N.J.R. 6958(a).

In (b)19, substituted "and (j) below" for "below, Elevator Devices"; rewrote (i)1; in (i)2, substituted "section" for "sections" and deleted "and Section 3005.3--"Conveying Systems, Conveyors" from the end; in (i)3, substituted "Section 2.8.2.3" for "Rule 102.2(c)4" and "installed" for "provided"; added (i)4, (i)5, and new (j); and recodified former (j) as (k).

Amended by R.2009 d.117, effective April 20, 2009.

See: 41 N.J.R. 18(a), 41 N.J.R. 1726(a).

In (h)9, inserted "M1301.1.1 and".

Amended by R.2011 d.270, effective November 7, 2011.

See: 43 N.J.R. 1297(a), 43 N.J.R. 2999(a).

Rewrote (b)2ii through (b)2xi, (b)10, (d)2i and (h); in (b)4, inserted "907.2,"; added new (b)5i; recodified former (b)5i as new (b)5ii; in (b)5ii, substituted "Subsections" for "Subsection"; deleted former (b)5ii through (b)5iv; in (b)8, substituted "1502" for "1502.0"; in (b)9, inserted "1614,"; in (c)16,

substituted "Requirements" for "Standards"; in (d)2, inserted "to Enclosures" and substituted "Working" for "Work"; in (d)3, inserted "210.12 Arc-Fault Circuit-Interrupter Protection," and "Dormitories and Similar Occupancies"; added (d)7i, (g)5 and (l); in (e)1, substituted "and 309" for ", 309 and 312"; in the introductory paragraph of (e)4, substituted "604.1" for "604"; in (i)3, substituted "2.8.3.3" for "2.8.2.3"; and in (j)1, inserted "the following referenced standards from" and " 'ASME B20.1' ".

Administrative correction.

See: 45 N.J.R. 2471(a).

Amended by R.2017 d.077, effective May 1, 2017.

See: 48 N.J.R. 1854(a), 49 N.J.R. 1020(a).

Rewrote the section.

Amended by R.2019 d.083, effective August 5, 2019.

See: 51 N.J.R. 3(a), 51 N.J.R. 1269(a).

In the introductory paragraph of (k), substituted "Part 3280 of Title 24 of the Code of Federal Regulations" for "the manufactured home subcode (N.J.A.C. 5:23-3.19)".

Amended by R.2020 d.130, effective December 7, 2020.

See: 52 N.J.R. 835(a), 52 N.J.R. 2097(a).

In (b)4, inserted a comma following "Systems" and inserted "903.3.2,".

Amended by R.2021 d.015, effective February 16, 2021.

See: 52 N.J.R. 561(a), 53 N.J.R. 245(a).

In (b)1i, inserted "and Equipment Platforms"; in (b)2ii, deleted "705.2.3," preceding "705.4.2"; in (b)3, deleted "except Section 802" from the end; in the introductory paragraph of (b)4, substituted "917, 918" for "916"; in (b)5i, inserted "1010.1.4.5,"; in (b)6i, substituted "1202.5.2" for "1203.5.2"; in (b)6ii, substituted "1209" for "1210"; in (b)7, substituted "1402.2, 1402.3, 1402.4" for "1402, 1403.2, 1403.3, 1403.4"; in (b)8, deleted "1503.5," preceding "1510.9"; in (b)14, substituted "Section 2201" for "Sections 2201, 2202"; in (b)15, substituted "Section 2301.1." for "Sections 2301.1, 2302"; in (b)17, deleted

"2501.2," preceding "2502"; deleted (c)16; in the introductory paragraph of (d)2, substituted "1,000" for "600" twice; in (e)12, inserted "Thermal"; in (h)1viii, substituted "R315.7.1, R315.7.4" for "R315.6.1, R315.6.4"; in (h)1xii, deleted "and" from the end; in (h)1xiii, inserted "and" at the end; added (h)1xiv; in the introductory paragraph of (h)13, substituted "Air, except M1701.2" for "Air"; in the introductory paragraph of (i) updated the N.J.A.C. cite; rewrote (i)1 and (j)1; and in (l)2i(2), inserted "(excluding 5.4.3.1.3a)".

Amended by R.2021 d.121, effective October 18, 2021.

See: 53 N.J.R. 586(a), 53 N.J.R. 1781(a).

In (e)1i and (h)10i, substituted "increased" for "increased/decreased"; in the introductory paragraph of (f)1, inserted "(excluding Section 306.6)"; and in the introductory paragraph of (h)10, substituted "Equipment, ' " for "Equipment',".

Amended by R.2022 d.158, effective December 19, 2022.

See: 54 N.J.R. 476(a), 54 N.J.R. 2371(c).

Added (d)3i.

Amended by R.2023 d.030, effective March 6, 2023.

See: 54 N.J.R. 1661(a), 55 N.J.R. 349(a).

Rewrote the section.

Administrative correction, effective April 5, 2023.

See: 55 N.J.R. 838(a).

Administrative correction, effective August 9, 2023.

See: 55 N.J.R. 1875(a).

Administrative correction, effective July 16, 2024.

See: 56 N.J.R. 1711(a).

Amended by R.2025 d.093, effective August 18, 2025.

See: 56 N.J.R. 1837(a), 57 N.J.R. 1817(a).

Rewrote (b)20iv and (h)1xiii; and in (h)1, substituted "Planning:" " for "Planning":".

Amended by R.2026 d.087, effective August 17, 2026.

See: 57 N.J.R. 2333(a), 58 N.J.R. 1882(a).

Rewrote (b), (e), (h), and (l).

Annotations

Notes

Chapter Notes

NEW JERSEY ADMINISTRATIVE CODE

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N.J.A.C. 5:23-6.9

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*NJ - New Jersey Administrative Code > TITLE 5. COMMUNITY AFFAIRS > CHAPTER 23. UNIFORM
CONSTRUCTION CODE > SUBCHAPTER 6. REHABILITATION SUBCODE*

§ 5:23-6.9 New building elements

(a) When the rehabilitation of an existing building creates or includes any building element of a type listed in this section, then the new element shall comply with the requirements for such an element established by this section.

(b) Building Subcode and One-and Two-Family Dwelling Subcode shall be as follows:

1. The installation of a floor system which did not previously exist, shall be constructed utilizing the live load requirements as specified in Section 1607 of the building subcode, or with Section R301.5 of the one- and two-family dwelling subcode, as applicable.
2. When the number of stories in a building is increased without increasing the height of the building, the building shall comply with the story requirements of Table 504.4 of the building subcode.
 - i. Stories or habitable attics within buildings of Group R-5 shall comply with N.J.A.C. 5:23-3.21(c)3i (Section R300) of the one- and two-family dwelling subcode.
3. Newly created floor openings shall comply with the requirements of Sections 712 and 713 of the building subcode.
4. Newly created atriums shall comply with the requirements of Section 404 of the building subcode.

5. Newly created door openings shall comply with Section 1010.1.1 of the building subcode. Additionally, newly created door openings in walls which are fire-resistance rated shall comply with Section 716 of the building subcode.

i. Newly created exit doors in buildings of Group R-5 shall comply with Section R311.2 of the one- and two-family dwelling subcode.

6. Newly created openings in fire resistance rated assemblies shall be protected in accordance with Sections 714, 715, 716, and 717, as applicable, of the building subcode, or with Sections R302.4 and R302.5 of the one- and two-family dwelling subcode, as applicable.

7. Newly created exit passageways and newly created exit discharge used as exit elements shall:

- i. Comply with the requirements of Section 1024 of the building subcode for exit passageways. However, the fire resistance rating of the passageway shall not be required to exceed the fire resistance rating of the exit element that discharges into the passageway; or
- ii. Comply with the requirements of Section 1028 of the building subcode for exit discharge.

8. Newly created stairways:

- i. Stairways in buildings subject to the one-and two-family dwelling subcode shall comply with Sections R318.7.1, R318.7.2, R318.7.4, R318.7.5, R318.7.8, R318.7.11, R318.7.12, R318.7.13, R320.1, and R321.1;
- ii. Exit stairways in buildings subject to the building subcode shall comply with Sections 1022 and 1028. Within the references of these sections, Section 1009 shall not be applicable;
- iii. Non-exit stairways in buildings subject to the building subcode shall comply with Sections 1011.3, 1011.4, 1011.5, 1011.9, 1011.10, 1011.11, 1011.14, 1011.15, 1011.16, 1015.2, 1015.3, and 1015.4.

- 9.** Newly installed fire escapes shall be constructed in accordance with FTO-3 of the Uniform Construction Code as permitted in the basic requirements of this subcode. (Building)
- 10.** Newly created corridors shall comply with Sections 1020.2, 1020.4, 1020.5, 1020.6, and 1020.7 of the building subcode.
- 11.** Newly constructed mezzanines and equipment platforms shall comply with Section 505 of the building subcode.
- 12.** Newly created covered mall and open mall buildings shall comply with Section 402 of the building subcode.
- 13.** Newly created motion picture projection rooms shall comply with Section 409 of the building subcode.
- 14.** Newly created stages, platforms, and technical production areas shall comply with Section 410 of the building subcode.
- 15.** Newly created spaces which are utilized for the spray application of flammable finishes shall comply with Section 416 of the building subcode.
- 16.** At least one newly created window opening in sleeping rooms below the fourth story in occupancies in Groups R or I-1 shall:
 - i.** Be operable;
 - ii.** Have a sill height of not more than 44 inches;
 - iii.** Have a width of at least 20 inches, a height of at least 24 inches and a minimum total area of 5.7 square feet measured from head to sill and from side to side. (Building)
 - iv.** New window openings in sleeping rooms shall not be required to meet these requirements in buildings where the sleeping room is provided with a door to a corridor having access to two remote exits or in buildings equipped throughout with an automatic sprinkler system.

v. Basement windows in buildings of Group R-2 shall comply with the requirements of N.J.A.C. 5:23-6.26(b)3 where the window serves as the second means of egress from the dwelling unit. (Plan review - Building, Fire. Inspection - Building)

17. Newly created specific occupancy areas shall comply with the following:

i. Paint shops in other than Group F which contain chemicals below the exempt amount for Group H, waste and soiled linen collection rooms and chute termination rooms shall be separated from other portions of the building by a one-hour fire partition or provided with an automatic sprinkler system.

ii. Newly installed play structures shall meet Section 424 of the building subcode.

iii. Incinerator rooms in all groups shall be separated from other portions of the building by a two-hour fire separation assembly and provided with an automatic sprinkler system.

iv. In Groups I-2 and I-3, physical plant maintenance shops, laundries in excess of 100 square feet in area and padded cells shall be separated from other portions of the building by a one-hour fire partition or provided with an automatic sprinkler system. (Plan review--Building, Fire. Inspection--Fire)

18. Newly created dwelling unit separation and guestroom separation assemblies shall comply with the requirements of Sections 708, 711, and 1206 of the building subcode, as appropriate, based on the type of the existing building, or with Section R302 and Appendix AK of the one- and two-family dwelling subcode, as applicable.

19. Newly created roof decks shall comply with Section 1006.3 of the building subcode, Egress from stories or occupied roofs.

20. Newly created openings in exterior walls shall comply with the table in N.J.A.C. 5:23-6.31(f)2.

i. Exception: Newly created openings in buildings of Group R-2, R-3, R-4, or R-5 with a fire separation distance of three feet or less shall be provided with opening protectives. (Plan review - Building, Fire. Inspection - Building)

21. Newly created aisle accessways and aisles shall comply with the minimum width requirements of Section 1018 of the building subcode.

22. Newly installed special construction shall comply with Section 3105 of the building subcode for awnings and canopies, Section 3106 of the building subcode for marquees and Section 3107/Appendix H of the building subcode for signs.

(c) Electrical Subcode shall be as follows:

1. Newly installed (not replacing an existing device) electrical service equipment, switchboards, panelboards, motor control centers and other electrical equipment containing overcurrent, switching, or control devices likely to require examination, adjustment, servicing, or maintenance while energized shall conform with the requirements specified at N.J.A.C. 5:23-6.8, Materials and methods, and, in addition, shall conform with Sections 110.26 (Space About Electrical Equipment--1,000 Volts, Nominal or Less), 110.32 (Work Space About Equipment--Over 1,000 Volts, Nominal), 110.33 (Entrance to Enclosures and Access to Work Space), 404.8 (Accessibility and Grouping), and 408.18 (Clearances), as applicable, of the electrical subcode. (Electrical)

i. Where the requirements of Section 110.26(A)(3) (Height of Working Space) cannot be met due to existing height constraints, this section shall not apply.

ii. In buildings required to comply with the barrier free subcode, newly installed panelboards (not replacement) shall comply with Sections 309.2 and 309.3 of the ICC A117.1.

2. Newly installed (not replacing an existing device) heating, air conditioning or refrigeration equipment likely to require examination, adjustment, servicing or maintenance shall conform with the requirements at N.J.A.C. 5:23-6.8, Materials and methods, and, in addition, shall conform with Section 210.63(A) Heating, Air Conditioning, and Refrigeration Equipment Outlet and, if newly installed in an attic, underfloor space, utility room or basement, 210.70 Lighting Outlets Required, as applicable, of the electrical subcode.

3. As specified in Section 210.12 of the electrical subcode, Arc-Fault Circuit-Interrupter (AFCI) Protection shall be required for all newly installed (not replacement) branch circuits in dwelling units provided a listed combination type arc fault circuit interrupter breaker is available.

(d) Elevator Subcode.

1. Newly installed elevator devices, including those newly installed in existing hoistways/machine rooms, completely replaced elevator devices, and a change in use of an elevator device from freight to passenger, passenger to freight, or from one freight class to another freight class, and other equipment within the scope of Chapter 30 newly installed or installed in existing hoistways/machine rooms, shall conform to the requirements of Chapter 30 of the building subcode and N.J.A.C. 5:23-12, as applicable.

i. Exception: Such devices shall not be required to comply with Section 8.4 and Section 8.5 of ASME A17.1, adopted by reference in the building subcode, and Section 3002.4 of the building subcode.

(e) Energy Subcode shall be as follows:

1. Newly created conditioned sunrooms or garages shall meet the R-value and U-factor requirements of Sections R402.2.13 and R402.4.5 (N1102.2.13 and N1102.4.5) of the residential energy code.

2. Newly installed wood burning fireplaces shall meet Section R402.5.2 (N1102.5.2) of the residential energy code and Section R1006 of the one-and two-family dwelling subcode or Section 5.4.3.2 of the commercial energy code and Section 2111.14 of the building subcode, as applicable.

3. Newly installed heating, cooling and ventilation systems shall have controls meeting Sections R403.1 and R403.6 (N1103.1 and N1103.6) of the residential energy code or Sections 6.4.3, 6.5, 7.4.4, and 7.4.6 of the commercial energy code, as applicable. Systems include, but are not limited to, the heating and cooling of air or liquids and the ventilation or exhausting of spaces.

4. Newly installed systems that include piping carrying fluids shall meet Sections R403.4 and R403.5 (N1103.4 and N1103.5) of the residential energy code or Sections 6.4.4.1.3 or Section 7.4.3 of the commercial energy code and Section 1204 of the mechanical subcode, as applicable.
5. Newly installed heating and cooling equipment shall be sized in accordance with Section R403.7 (N1103.7) of the residential energy code or Section 6.4.2.1 and 7.4.1 of the commercial energy code, as applicable.
6. Newly installed mechanical systems located outside of the building thermal envelope shall be provided with controls in accordance with Section R403.9 (N1103.9) of the residential energy code for heating outside a building, snow melt and ice systems, roof and gutter de-icing, and freeze protection systems, or Section 6.4.3.7 of the commercial energy code for snow melt and ice systems, as applicable.
7. Newly installed pool heaters and pump motors shall meet Section R403.11 (N1103.11) of the residential energy code or Section 7.4.5 of the commercial energy code, as applicable.
8. Newly installed sensible heating systems and radiant floor heating systems shall meet the insulation requirements of Sections 6.4.4.1.4 and 6.4.4.1.5 of the commercial energy code, as applicable.

History

HISTORY:

Administrative correction.

See: 30 N.J.R. 539(a).

Amended by R.1999 d.424, effective December 6, 1999.

See: 31 N.J.R. 2428(a), 31 N.J.R. 4001(c).

In (a), inserted new 6 and 7, recodified former 6 through 17 as 8 through 19, and added 20.

Amended by R.2000 d.492, effective December 18, 2000.

See: 32 N.J.R. 3219(a), 32 N.J.R. 4437(b).

In (a), rewrote 19 and 20, and added 21 and 22.

Amended by R.2002 d.5, effective January 7, 2002.

See: 33 N.J.R. 3392(a), 34 N.J.R. 267(a).

In (a), inserted new 10i, and added new 23 and 24.

Amended by R.2003 d.218, effective May 19, 2003.

See: 35 N.J.R. 29(a), 35 N.J.R. 2209(a).

Updated building subcode section citations throughout.

Amended by R.2004 d.145, effective April 5, 2004.

See: 35 N.J.R. 5190(a), 36 N.J.R. 1758(a).

Deleted references to use preceding references to group throughout and substituted references to automatic sprinkler for references to fire suppression throughout; in (a), amended the N.J.A.C. reference in 17v and inserted "(not replacing an existing device)" in 19.

Amended by R.2005 d.82, effective March 7, 2005.

See: 36 N.J.R. 4222(a), 37 N.J.R. 771(a).

Rewrote the section.

Amended by R.2006 d.120, effective April 3, 2006.

See: 37 N.J.R. 3753(a), 38 N.J.R. 1567(a).

In (a)20, deleted "tenant separation,".

Amended by R.2007 d.122, effective May 7, 2007.

See: 38 N.J.R. 4951(a), 39 N.J.R. 1673(a).

Rewrote the section.

Amended by R.2008 d.369, effective December 15, 2008.

See: 40 N.J.R. 4651(a), 40 N.J.R. 6958(a).

In the introductory paragraph of (a)10, substituted ", including those newly installed in existing hoistways/machine rooms," for "(not replacing an existing device)", deleted "newly installed (not replacement)" preceding "equipment", and inserted "newly installed or installed in existing hoistways/machine rooms,"; and rewrote (a)10i.

Amended by R.2011 d.270, effective November 7, 2011.

See: 43 N.J.R. 1297(a), 43 N.J.R. 2999(a).

In (a)3, substituted "708" for "707"; in (a)5i, substituted "R311.2" for "R311.4.2"; in (a)6, substituted "713" for "712" and "Sections R302.4 and R302.5" for "Section R317.3"; in (a)7, substituted "1023" for "1021"; rewrote (a)8 and (a)11; added new (a)19 through (a)23; recodified former (a)19 and (a)20 as (a)24 and (a)25; added (a)24i; deleted former (a)21 through (a)25; and added (a)26 through (a)37.

Amended by R.2017 d.077, effective May 1, 2017.

See: 48 N.J.R. 1854(a), 49 N.J.R. 1020(a).

Rewrote the section.

Amended by R.2021 d.015, effective February 16, 2021.

See: 52 N.J.R. 561(a), 53 N.J.R. 245(a).

In the introductory paragraph of (a)2, substituted "504.4" for "503"; in (a)2i, substituted "Stories or habitable attics within buildings of Group" for "Buildings of group" and "one- and" for "one-and"; in (a)19, substituted "1206" for "1207"; and in the introductory paragraph of (a)24, inserted a comma following "servicing", substituted "specified at" for "specified in", and "1,000" for "600" twice.

Amended by R.2021 d.105, effective September 20, 2021.

See: 53 N.J.R. 105(a), 53 N.J.R. 1567(a).

In (a)8ii, inserted ". Within the references of Section 1022, Section 1009 shall not be applicable".

Administrative correction, effective September 10, 2021.

See: 53 N.J.R. 1671(b).

Amended by R.2022 d.158, effective December 19, 2022.

See: 54 N.J.R. 476(a), 54 N.J.R. 2371(c).

Rewrote the section.

Amended by R.2023 d.030, effective March 6, 2023.

See: 54 N.J.R. 1661(a), 55 N.J.R. 349(a).

Rewrote the section.

Administrative correction, effective August 9, 2023.

See: 55 N.J.R. 1875(a).

Administrative correction, effective July 16, 2024.

See: 56 N.J.R. 1711(a).

Amended by R.2025 d.093, effective August 18, 2025.

See: 56 N.J.R. 1837(a), 57 N.J.R. 1817(a).

In (e)7, substituted "pool heaters and pump motors" for "pools heaters".

Amended by R.2026 d.087, effective August 17, 2026.

See: 57 N.J.R. 2333(a), 58 N.J.R. 1882(a).

Rewrote (b) and (e).

Annotations

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N.J.A.C. 5:23-6.10

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*NJ - New Jersey Administrative Code > TITLE 5. COMMUNITY AFFAIRS > CHAPTER 23. UNIFORM
CONSTRUCTION CODE > SUBCHAPTER 6. REHABILITATION SUBCODE*

§ 5:23-6.10 Basic requirements and supplemental requirements--general

- (a) The basic requirements, set forth in N.J.A.C. 5:23-6.11 for all groups and for individual groups in N.J.A.C. 5:23-6.12 through 6.28, shall be met within or with regard to the work area in all reconstruction projects. (These requirements are in addition to the requirements contained in N.J.A.C. 5:23-6.8, Materials and methods.)
- (b) The supplemental requirements, set forth in N.J.A.C. 5:23-6.11A for all groups and for individual groups in N.J.A.C. 5:23-6.12A through 6.28A, shall be met in all buildings where there are reconstruction projects that meet or exceed the stated threshold for each requirement.
 - 1. All reconstruction work begun within a single 12 month period shall be considered for determining the applicability of the supplemental requirement.
 - 2. If a project falls under the threshold for a supplemental requirement by a de minimis amount, the construction official may require that the supplemental requirement be met.
- (c) Reconstruction projects contained in mixed use buildings shall comply with the requirements of N.J.A.C. 5:23-6.29 as applicable.
- (d) Special technical specifications for windowless stories, the supervision of automatic sprinkler systems, automatic sprinkler system risers, acceptances of existing alarm and automatic sprinkler systems, smoke barriers, elevators and specific occupancy areas are established in N.J.A.C. 5:23-6.30. The windowless story, supervision of automatic sprinkler systems and smoke barrier special technical requirements shall apply only in those uses where specified by this subcode.

History

HISTORY:

Amended by R.2004 d.145, effective April 5, 2004.

See: 35 N.J.R. 5190(a), 36 N.J.R. 1758(a).

Deleted references to use preceding references to group throughout; in (d), substituted references to automatic sprinkler for references to fire suppression throughout.

Annotations

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N.J.A.C. 5:23-6.11

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*NJ - New Jersey Administrative Code > TITLE 5. COMMUNITY AFFAIRS > CHAPTER 23. UNIFORM
CONSTRUCTION CODE > SUBCHAPTER 6. REHABILITATION SUBCODE*

§ 5:23-6.11 Basic requirements in all Groups

- (a) This section shall apply within the work area for all reconstruction projects.
- (b) Capacity of Means of Egress: The capacity of the means of egress in each work area shall be sufficient for the maximum permitted occupant load of the work area and any adjacent spaces served by that means of egress as calculated on a per floor basis. Means of egress shall be measured in units of exit width of 22 inches.
1. The maximum permitted occupant load of a space shall be determined by the capacity of the means of egress serving the space as calculated in accordance with Table 1. Building owners shall have the option of establishing a reasonable restriction on the occupant load of the space based on the existing capacity of the means of egress or of providing additional egress capacity. (Plan review--Building, Fire. Inspection--Building)
- i. Exception: For nightclubs, the occupant load of the space shall be determined in accordance with the building subcode. The occupant load for dance floors shall be calculated at seven square feet of floor area per occupant. (Plan review--Building, Fire. Inspection--Building)

Table 1

CAPACITY PER UNIT EGRESS WIDTH

Group	Without automatic sprinkler a system		With automatic sprinkler system	
	Number of occupants		Number of occupants	
	Stairways	Doors, Ramps and Corridors	Stairways	Doors, Ramps and Corridors

Table 1**CAPACITY PER UNIT EGRESS WIDTH**

Group	Without automatic sprinkler a system		With automatic sprinkler system	
	Number of occupants		Number of occupants	
	Stairways	Doors, Ramps and Corridors	Stairways	Doors, Ramps and Corridors
A	75	100	113	150
B	60	100	90	150
E	75	100	113	150
F	60	100	90	150
H	-	-	60	100
I-1	60	100	90	100
I-2 / I-4	22	30	35	45
I-3	60	100	90	150
M	60	100	90	150
R	75	100	113	150
S	60	100	90	150

Note: The occupant load may be equal to the total number of occupants for which exit capacity is provided as determined by Table 1 above. For Group A occupancies, the resulting total occupant load shall not exceed one occupant per five square feet of net floor area over the entire use.

Interpolation shall be allowed in determining capacity of egress width.

Unit of egress width = 22 inches

(c) Interior Finishes: Interior finishes within work areas shall comply with the following:

- Existing interior finishes of walls and ceilings shall have a flame spread rating not greater than the class prescribed by Table 2 below. All existing interior finish materials which do not comply with the requirements of this section shall be removed or shall be treated with an approved fire retardant coating in accordance with the manufacturer's instructions to secure compliance with the requirements of this section. Exceptions are allowed as follows:

§ 5:23-6.11 Basic requirements in all Groups

- i.** The use of vinyl or paper wall coverings not exceeding 1/28th of an inch in thickness which is applied directly to a noncombustible or fire retardant treated wood substrate shall not be regulated by this section.
- ii.** Interior trim which does not exceed 10 percent of the aggregate wall and ceiling area of any room or space shall not be regulated by this section.
- iii.** When an approved automatic sprinkler system is provided, interior finish of Class II or Class III materials shall be permitted where Class I or Class II materials, respectively, are required by this section.
- iv.** Exposed portions of structural members complying with the requirements for heavy timber construction in accordance with the Uniform Construction Code shall not be regulated by this section. (Plan review--Building, Fire. Inspection--Building)

Table 2

Existing Interior Finish Requirements

Group	Exit	Exit Access	Rooms or
	<u>Enclosures</u>	<u>Enclosures</u>	<u>Spaces</u>
A, E, I, R-1	I	II	III
All Other Groups	I	II	No Minimum

The classification of interior finishes referred to herein corresponds to flame spread ratings determined by ASTM E84 as follows: Class I flame spread, 0-25; Class II flame spread, 26-75; Class III flame spread, 76-200. In all cases, the smoke developed rating determined by ASTM E84 shall not exceed 450.

See Group A-3 for amusement buildings.

(d) Commercial cooking operations: An automatic fire extinguishing system shall be required for newly installed commercial cooking equipment producing grease-laden vapors, except within individual dwelling units in multiple-family dwellings in Group R-2. No automatic fire extinguishing system shall be required for completely enclosed ovens, steam tables or similar equipment.

1. Exception: Bed and breakfast homestay facilities, which are designed to accommodate five or fewer guests, shall not be required to comply with this provision. (Fire)

(e) The following requirements shall apply to all casino hotels:

1. All casino hotel standpipe connections throughout the building shall be identified by a constantly lit four-inch round blue light connected to an emergency electrical system located no less than 24 inches and not more than 48 inches above the hose connection. Standpipe connections located on columns shall be marked on all four sides of the column as described above.

i. This requirement shall not apply to standpipe hose connections in buildings or portions thereof of Group R-1 that are located in or within 10 feet of an approved exit stairway enclosure.

ii. This requirement shall not apply to standpipe hose connections located in open parking structures.

2. All illuminated signs, amplification systems, turn tables, or sound-producing equipment located on or open and adjacent to the casino floor(s) shall be interlocked with the fire alarm system so that activation of the fire alarm system results in disconnection of electrical power to the device(s).

i. This requirement does not apply to exit signs or emergency communications systems.

ii. This requirement shall not apply to slot machines or similar gaming equipment.

3. On casino gaming floors and adjacent spaces open to the casino gaming floor, all house lighting shall return to normal lighting levels or all emergency lights shall be activated upon activation of the fire alarm system. For the purpose of applying this requirement, normal lighting level shall mean an illumination level of not less than one foot-candle (11 lux) at the floor level. (Plan Review--Electrical, Fire. Inspection--Fire)

History

HISTORY:

Amended by R.1999 d.424, effective December 6, 1999.

See: 31 N.J.R. 2428(a), 31 N.J.R. 4001(c).

In (b), rewrote the note at the end of Table 1.

Amended by R.2004 d.145, effective April 5, 2004.

See: 35 N.J.R. 5190(a), 36 N.J.R. 1758(a).

Deleted references to use preceding references to group throughout; in (c)1iii, substituted a reference to automatic sprinkler for a reference to fire suppression; in (d), substituted references to fire extinguishing system for references to fire suppression throughout.

Amended by R.2006 d.120, effective April 3, 2006.

See: 37 N.J.R. 3753(a), 38 N.J.R. 1567(a).

In (b)1, added Group I-4 to Table 1.

Amended by R.2007 d.51, effective February 5, 2007.

See: 38 N.J.R. 375(a), 39 N.J.R. 371(a).

In the introductory paragraph of (b)1, deleted "(Plan review--Building, Fire. Inspection--Building)" following "capacity"; and added new (b)1i.

Amended by R.2007 d.338, effective November 5, 2007.

See: 39 N.J.R. 280(a), 39 N.J.R. 4569(a).

Added (e).

Annotations

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N.J.A.C. 5:23-6.11A

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*NJ - New Jersey Administrative Code > TITLE 5. COMMUNITY AFFAIRS > CHAPTER 23. UNIFORM
CONSTRUCTION CODE > SUBCHAPTER 6. REHABILITATION SUBCODE*

§ 5:23-6.11A Supplemental requirements in all Groups

- (a) This section shall apply to all reconstruction projects.
- (b) Vertical Opening Protection: For purposes of applying the supplemental requirement for vertical opening protection below, a low hazard occupancy is an occupancy having contents of such low combustibility that no self-propagating fire can occur therein. A moderate hazard occupancy is an occupancy having contents that are likely to burn with moderate rapidity or to give off a considerable volume of smoke. (Plan review--Building, Fire. Inspection-Building)
- (c) Windowless Stories: Any windowless basement or story located below the seventh story which is created by the work being performed or any existing windowless basement or story below the seventh story in which the work area exceeds 50 percent of the gross enclosed floor area of the windowless story, shall comply with the requirements listed in N.J.A.C. 5:23-6.30. (Fire)
- (d) Underground Structures: When the work area exceeds 50 percent of the gross enclosed floor area of an underground structure, the entire structure shall comply with Section 405 of the building subcode.

History

HISTORY:

Amended by R.2004 d.145, effective April 5, 2004.

See: 35 N.J.R. 5190(a), 36 N.J.R. 1758(a).

§ 5:23-6.11A Supplemental requirements in all Groups

Amended by R.2021 d.015, effective February 16, 2021.

See: 52 N.J.R. 561(a), 53 N.J.R. 245(a).

In (d), substituted "405" for "405.0".

Annotations

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CONSTRUCTION CODE > SUBCHAPTER 6. REHABILITATION SUBCODE*

§ 5:23-6.12 Basic requirements--Group A-1

(a) Exits: Two exits shall be required for stories with less than 500 occupants. Three exits shall be required for stories with 501 to 1,000 occupants. Four exits shall be required for stories with more than 1,000 occupants. Two means of egress are also required from all mezzanines with an occupant load greater than 50 or with exit travel distance greater than 75 feet.

1. A single exit is permitted in the story at the level of exit discharge when the occupant load of the story does not exceed 50 and the exit access travel distance does not exceed 75 feet.

2. Existing fire escapes shall be accepted as providing one of the required means of egress unless judged to be dangerous for use under emergency exiting conditions. For use of fire escapes, access shall be through a door except when serving an occupant load of 10 or fewer. All occupants shall have unobstructed access to fire escapes without having to pass through a room subject to locking.

- i. When more than one exit is required and there is not sufficient space for an exterior stair within the lot line, a new fire escape shall be accepted as providing one of the required means of egress. Newly-installed fire escapes shall comply with FTO-3.

- ii. Ladders shall be prohibited on fire escapes used as a required means of egress. (Plan review--Building, Fire. Inspection--Building)

(b) Egress Doorways: A minimum of two egress doorways shall be required for all rooms and spaces with an occupant load greater than 50 or in which the travel distance exceeds 75 feet. All egress doors serving an occupant load greater than 50 shall swing in the direction of exit travel.

1. Exception: Storage rooms with a maximum occupant load of 10 shall not be required to have two egress doorways.
2. All required exit doors equipped with latching devices in buildings or spaces with an occupant load greater than 100 shall be equipped with approved panic hardware. (Plan review--Building, Fire. Inspection--Building)

(c) Capacity of Means of Egress: The capacity of the means of egress in each work area shall be determined in accordance with N.J.A.C. 5:23-6.11(b). Additionally, for buildings with an occupant load of 100 or more, a main entrance capable of serving as the main exit with an egress capacity for at least one-half the total occupant load is required. The remaining exits shall be capable of providing one-half of the total required exit capacity. This provision shall not apply in buildings with multiple main entrances. (Plan review--Building, Fire. Inspection--Building)

(d) Dead End Corridors: Existing dead end corridors shall not exceed 35 feet in length.

Exceptions are allowed as follows:

1. Dead end corridors may be up to 50 feet in length in a building with an automatic alarm system installed in conformance with the building subcode in effect at the time of its installation.
2. Dead end corridors may be up to 70 feet in length in a building with an automatic sprinkler system installed in conformance with the building code in effect at the time of its installation. (Plan review--Building, Fire. Inspection--Building)

(e) Means of Egress Lighting: Artificial lighting with an intensity of not less than one foot candle at floor level shall be required during all times that the conditions of occupancy of the building require that the exits be available. Lighting shall also be required to illuminate the exit discharge. In all buildings, rooms or spaces required to have more than one exit or exit access, means of egress lighting shall be connected to an emergency electrical system conforming to NFPA 70 (NEC) except that continued illumination shall be required to be provided for not less than one hour in the case of primary power loss.

1. In buildings used for motion pictures or other projections by means of directed light, the illumination of aisles may be reduced during periods of projection to not less than 0.2 foot candle. The switch requirements and location(s) for controlling egress lighting connected to the emergency electrical system shall be in conformance with the NFPA 70 (NEC). (Plan review--Building, Fire, Electric. Inspection--Building)

(f) Illuminated Exit Signs: Illuminated exit signs shall be provided for all required means of egress in all buildings, rooms or spaces required to have more than one exit or exit access. Exit signs shall be visible from the exit access and supplemented by directional signs when necessary. (Exception: Approved main exterior doors that are clearly identified as exits are not required to have exit signs.) Exit signs shall meet the following criteria:

1. Red or green letters at least six inches high; minimum width of each stroke $\frac{3}{4}$ inch on a white background or in other approved distinguishable colors. Arrows, if provided, shall be such that the direction cannot readily be changed. The word "Exit" shall be clearly discernible when the sign is not energized.
2. Exit signs shall be illuminated at all times when the building is occupied by a source providing at least five foot candles at the illuminated surface or shall be approved self-luminous signs which provide evenly illuminated letters with a minimum luminance of 0.06 foot lamberts. Exit signs shall be connected to an emergency electrical system conforming to NFPA 70 (NEC) except that continued illumination shall be required to be provided for not less than one hour in the case of primary power loss. No emergency power shall be required for approved self-luminous signs. (Plan review--Building, Fire. Inspection--Building)

(g) Handrails: Every required exit stairway having three or more risers and not provided with handrails or in which the existing handrails are in danger of collapsing when used under emergency exiting conditions, shall be provided with handrails for the full length of the run of steps on at least one side. All exit stairways more than 66 inches wide shall have handrails on both sides unless the full width of the stairway is not needed to accommodate the design occupancy. (Plan review--Building, Fire. Inspection--Building)

(h) Guards: Every open portion of a stair, landing or balcony which is more than 30 inches above the floor or grade below and is not provided with guards or those in which the existing guards are in danger of collapsing when used under emergency exiting conditions, shall be provided with guards. (Plan review--Building, Fire. Inspection--Building)

(i) Vertical Opening Protection: Vertical opening protection for interior stairways and other vertical openings shall be provided as follows:

1. For vertical openings connecting more than six floor levels, approved assemblies having a fire resistance rating of not less than two hours with approved opening protectives shall be required.
2. For vertical openings connecting four to six floor levels, approved assemblies having a fire resistance rating of not less than one hour with approved opening protectives shall be required.
3. For vertical openings not exceeding three stories, a minimum 30-minute UFC fire barrier shall be required. Exceptions are as follows:
 - i. When connecting the main floor and mezzanines; or
 - ii. When all of the following conditions are met:
 - (1) The communicating area has a low hazard occupancy or has a moderate hazard occupancy which is protected throughout by an automatic sprinkler system;
 - (2) The lowest or next to the lowest level is a street floor;
 - (3) The entire area is open and unobstructed in a manner such that it may be assumed that a fire in any part of the interconnected spaces will be readily obvious to all of the occupants;
 - (4) Exit capacity is sufficient to provide egress simultaneously for all the occupants of all levels by considering all areas to be a single floor area for the determination of required exit capacity; and
 - (5) Each floor level, considered separately, has at least one-half of its individual required exit capacity provided by an exit or exits leading directly out of that level

without having to traverse another communicating floor level or be exposed to the smoke or fire spreading from another communicating floor level. (Plan review-- Building, Fire. Inspection-- Building)

(j) Structural Elements: Structural elements which are uncovered during the course of the rehabilitation and which are found to be unsound or otherwise structurally deficient, shall be reinforced, supported or replaced in accordance with the applicable structural design criteria of the building subcode. Where structural elements are sound, there is no excessive deflection (defined as deflection in excess of the standards set forth in N.J.A.C. 5:23-6.7(c)1), and fixed loads are not changing in a way that will increase the stresses on existing structures beyond that which is permitted by N.J.A.C. 5:23-6.7(c), existing structural elements shall be permitted to remain. (Building)

(k) Plumbing Fixtures: Plumbing fixtures shall be provided as follows. Where the plumbing subcode allows for the substitution or omission of fixtures, such substitutions or omissions shall also be permitted under this section. (Plumbing)

Total	Water Closets			Drinking Water	Service
Occupancy<1>	Male	Female	Lavatories	Facilities	Sinks
1-50	1 Unisex		1	1	1
51-100	1	1	1 per sex	1	1
101 and over	Fixtures to be provided as per Table 7.21.1 of the plumbing subcode.				

Note 1. For purposes of determining the number of plumbing fixtures required, total occupancy shall be anticipated occupancy of the building under normal use conditions. It is not necessarily the same as the total permitted occupant load based on egress capacity.

(l) Mechanical Requirements: All spaces intended for occupancy shall be provided with either natural or mechanical ventilation.

1. Spaces intended to be naturally ventilated shall be provided with openable doors, windows, louvers, or other openings to the outdoors. The minimum openable area to the outdoors shall be four percent of the floor area being ventilated. Where rooms without openings to the

outdoors are ventilated through an adjoining room, the unobstructed opening to the adjoining room shall be at least eight percent of the floor area of the interior room or space, but not less than 25 square feet. The ventilation openings to the outdoors shall be based on the total floor area being ventilated.

2. Mechanically-ventilated spaces shall comply with the following:

- i.** Newly-installed HVAC systems shall comply with the requirements of the mechanical subcode.
- ii.** Existing systems that are altered or extended shall not reduce the amount of outside air below the existing rate per person or the rate included in the mechanical subcode, whichever is lower. As a minimum, mechanically-ventilated spaces shall be provided with five CFM per person of outdoor air and 15 CFM of ventilation air per person.

3. All newly-introduced devices, equipment or operations that produce airborne particulates, odors, fumes, sprays, vapors, smoke or gases in such quantities to be irritating or injurious to health shall be provided with local exhaust. (Building)

(m) Interior finishes shall comply with N.J.A.C. 5:23-6.11(c). (Plan review--Building, Fire. Inspection--Building)

(n) Specific Occupancy Areas: Specific occupancy areas within the work area, as listed in N.J.A.C. 5:23-6.30(h), shall comply with the requirements established in that section for separation and/or protection. (Building)

History

HISTORY:

Amended by R.1999 d.424, effective December 6, 1999.

See: 31 N.J.R. 2428(a), 31 N.J.R. 4001(c).

In (e), substituted "except that continued illumination shall be required to be provided" for "to assure continued illumination" in the last sentence of the introductory paragraph, and rewrote 1; and in (f)2, rewrote the second sentence.

Amended by R.2000 d.492, effective December 18, 2000.

See: 32 N.J.R. 3219(a), 32 N.J.R. 4437(b).

In (e), added the second sentence in the introductory paragraph; and added (o).

Amended by R.2003 d.218, effective May 19, 2003.

See: 35 N.J.R. 29(a), 35 N.J.R. 2209(a).

In (l)2i and in the first sentence of (l)2ii, substituted "the International Mechanical Code, 2000 edition" for "ASHRAE 62-89"; in (o), substituted "Section 716" for "Section 721.0".

Amended by R.2004 d.145, effective April 5, 2004.

See: 35 N.J.R. 5190(a), 36 N.J.R. 1758(a).

In (d)2, substituted "an automatic sprinkler" for "a suppression" preceding "system" and substituted "code" for "subcode" following "with the building"; in (i)3, inserted "UFC" following "30-minute" in the introductory paragraph, and substituted "sprinkler" for "suppression" preceding "system" in ii(1).

Amended by R.2006 d.120, effective April 3, 2006.

See: 37 N.J.R. 3753(a), 38 N.J.R. 1567(a).

In (l)2i and ii, substituted "mechanical subcode" for "International Mechanical Code, 2000 edition".

Amended by R.2007 d.122, effective May 7, 2007.

See: 38 N.J.R. 4951(a), 39 N.J.R. 1673(a).

Added (a)2; in (l)2ii, deleted "unless the indoor air quality procedure of ASHRAE 62-89 is followed and results in a lesser amount" following "ventilation air per person"; and in (o), substituted "717" for "716".

Amended by R.2009 d.117, effective April 20, 2009.

See: 41 N.J.R. 18(a), 41 N.J.R. 1726(a).

In (o), inserted "creates or" and deleted "exposed" preceding the second occurrence of "framing".

Amended by R.2017 d.077, effective May 1, 2017.

See: 48 N.J.R. 1854(a), 49 N.J.R. 1020(a).

In the introductory paragraph of (a), substituted "or" for "and"; in (a)1, deleted "(Plan review--Building, Fire. Inspection--Building)" from the end; in (a)2ii, inserted "(Plan review--Building, Fire. Inspection--Building)"; and deleted (o).

Annotations

Notes

Chapter Notes

NEW JERSEY ADMINISTRATIVE CODE

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N.J.A.C. 5:23-6.12A

This file includes all Regulations adopted and published through the New Jersey Register, Vol. 58 No. 16,
August 17, 2026

*NJ - New Jersey Administrative Code > TITLE 5. COMMUNITY AFFAIRS > CHAPTER 23. UNIFORM
CONSTRUCTION CODE > SUBCHAPTER 6. REHABILITATION SUBCODE*

§ 5:23-6.12A Supplemental requirements--Group A-1

(a) Automatic Sprinkler System: An automatic sprinkler system shall be installed throughout the fire area containing the A-1 Group and all floors between the A-1 Group and the level of exit discharge when any one of the following conditions exists:

1. The work area exceeds 12,000 square feet (gross enclosed floor area);
2. The work area has an occupant load of 300 or more;
3. The work area is located on a floor other than the level of exit discharge; or
4. The work area contains a multi-theatre complex. (Fire)

(b) Automatic Alarm System: When the work area exceeds 25 percent of the gross enclosed floor area of the building, an automatic fire alarm system that complies with NFPA 72 shall be installed in all storage, workshop, boiler or furnace rooms. (Fire)

(c) Manual Alarm System: For buildings greater than three stories in height with occupant loads over 25, when the work area exceeds 25 percent of the gross enclosed floor area of the building, manual fire alarms shall be required throughout the building. (Fire)

(d) Vertical Opening Protection: When the work area exceeds 50 percent of the gross enclosed floor area of the building, vertical opening protection shall be provided throughout the building as follows:

1. A minimum two hour fire rated assembly with approved opening protectives shall be required for interior stairways and other vertical openings connecting more than six floor levels.
 2. A minimum one hour fire rated assembly with approved opening protectives shall be required for interior stairways and other vertical openings connecting four to six floor levels.
 3. A minimum 30-minute UFC fire barrier shall be required for interior stairways and other vertical openings not exceeding three stories. Exceptions shall be permitted as follows.
 - i. When connecting the main floor and mezzanines; or
 - ii. When all of the following conditions are met:
 - (1) The communicating area has a low hazard occupancy or has a moderate hazard occupancy which is protected throughout by an automatic sprinkler system;
 - (2) The lowest or next to the lowest level is a street floor;
 - (3) The entire area is open and unobstructed in a manner such that it may be assumed that a fire in any part of the interconnected spaces will be readily obvious to all of the occupants;
 - (4) Exit capacity is sufficient to provide egress simultaneously for all the occupants of all levels by considering all areas to be a single floor area for the determination of required exit capacity; and
 - (5) Each floor level, considered separately, has at least one-half of its individual required exit capacity provided by an exit or exits leading directly out of that level without having to traverse another communicating floor level or be exposed to the smoke or fire spreading from another communicating floor level. (Plan review-- Building, Fire. Inspection-- Building)
- (e) Requirements for high-rise buildings: Any building or structure having one or more floors, other than occupiable roofs, used for human occupancy located either more than six stories or

more than 75 feet above the lowest level accessible to a fire department vehicle shall comply with the following:

1. When the work area is one entire floor or more or when the work area is 20 percent or more of the occupied floor area served by a recirculating air system, the recirculating air system which serves the work area shall be equipped with approved smoke and heat detection devices installed in accordance with the UCC. The devices shall stop the fan(s) automatically and shall be of the manual reset type. Automatic fan shutdown is not required when the system is part of an approved smoke removal or smoke control system. (Building)
2. When the work area is one entire floor or more or when the work area is 20 percent or more of the occupied floor area of the building, all elevators in the building shall be equipped with the following emergency control devices:
 - i. All automatic (nondesignated attendant) elevators having a travel distance of 25 feet or more above or below the designated level shall be equipped with Phase 1 Emergency Recall Operation as required by ASME A17.1-1987, Rules 211.3a and 211.3b listed in N.J.A.C. 5:70-3;
 - ii. At least one elevator shall be equipped with Phase II Emergency In-Car Operation, as required by ASME A17.1-1987, Rule 211.3c;
 - (1) In buildings with multiple elevators, at least one elevator to each floor served by an elevator shall be equipped with Phase II Emergency In-Car Operation; and
 - iii. All designated attendant elevators having a travel distance of 25 feet or more above or below the designated level shall be equipped with emergency controls, as required by ASME A17.1-1987, Rule 211.4. (Elevator)
3. When the work area is one entire floor or more or when the work area is 20 percent or more of the occupied floor area of the building, standpipes shall be provided up to and including the highest floor that is part of the work area. The standpipes shall be located and installed in accordance with the building subcode, except as follows:

i. No pump shall be required provided that the standpipes are capable of accepting delivery by fire department apparatus of a minimum of 250 gpm at 65 psi to the topmost floor in buildings equipped throughout with an automatic sprinkler system or a minimum of 500 gpm at 65 psi to the topmost floor in all other buildings. (Where the standpipe terminates below the topmost floor, the standpipe shall be designed to meet these requirements (gpm/psi) for possible future extension of the standpipe.)

ii. Hose and hose cabinets shall not be required. (Fire)

(f) Elevator Devices: When the work area exceeds 50 percent of the gross enclosed floor area of the building, all elevator devices serving any part of the work area shall comply with the requirements of N.J.A.C. 5:23-6.30(g) below. (Elevator)

History

HISTORY:

Amended by R.2000 d.492, effective December 18, 2000.

See: 32 N.J.R. 3219(a), 32 N.J.R. 4437(b).

In (e)2i, amended the N.J.A.C. reference.

Amended by R.2004 d.145, effective April 5, 2004.

See: 35 N.J.R. 5190(a), 36 N.J.R. 1758(a).

Rewrote (a); in (d)3, inserted "UFC" following "30-minute"; substituted references to sprinkler for references to fire suppression throughout.

Amended by R.2009 d.117, effective April 20, 2009.

See: 41 N.J.R. 18(a), 41 N.J.R. 1726(a).

In (e)1, deleted "or exhaust" preceding the first and second occurrences of "system".

Amended by R.2026 d.087, effective August 17, 2026.

See: 57 N.J.R. 2333(a), 58 N.J.R. 1882(a).

In the introductory paragraph of (e), inserted ", other than occupiable roofs,".

Annotations

Notes

Chapter Notes

NEW JERSEY ADMINISTRATIVE CODE

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End of Document

N.J.A.C. 5:23-6.13

This file includes all Regulations adopted and published through the New Jersey Register, Vol. 58 No. 16,
August 17, 2026

*NJ - New Jersey Administrative Code > TITLE 5. COMMUNITY AFFAIRS > CHAPTER 23. UNIFORM
CONSTRUCTION CODE > SUBCHAPTER 6. REHABILITATION SUBCODE*

§ 5:23-6.13 Basic requirements--Group A-2 Nightclubs

(a) Exits: Two exits shall be required for stories with less than 500 occupants. Three exits shall be required for stories with 501 to 1,000 occupants. Four exits shall be required for stories with more than 1,000 occupants. Two means of egress are also required from all mezzanines with an occupant load greater than 50 or with exit travel distance greater than 75 feet.

1. A single exit is permitted in the story at the level of exit discharge when the occupant load of the story does not exceed 50 and the exit access travel distance does not exceed 75 feet.

2. Existing fire escapes shall be accepted as providing one of the required means of egress unless judged to be dangerous for use under emergency exiting conditions. For use of fire escapes, access shall be through a door except when serving an occupant load of 10 or fewer. All occupants shall have unobstructed access to fire escapes without having to pass through a room subject to locking.

i. When more than one exit is required and there is not sufficient space for an exterior stair within the lot line, a new fire escape shall be accepted as providing one of the required means of egress. Newly-installed fire escapes shall comply with FTO-3.

ii. Ladders shall be prohibited on fire escapes used as a required means of egress. (Plan review—Building, Fire. Inspection—Building)

(b) Egress Doorways: A minimum of two egress doorways shall be required for all rooms and spaces with an occupant load greater than 50 or in which the travel distance exceeds 75 feet. All egress doors serving an occupant load greater than 50 shall swing in the direction of exit travel.

1. Exception: Storage rooms with a maximum occupant load of 10 shall not be required to have two egress doorways.
 2. All required exit doors equipped with latching devices in buildings or spaces with an occupant load greater than 100 shall be equipped with approved panic hardware.
 3. If there are more than two individual rooms which can be used for separate functions, each with an occupant load of more than 300, the required egress doors from such rooms shall lead directly outside or to an exit passageway. Exit passageways shall be completely enclosed by assemblies having a fire-resistance rating of at least two hours, shall lead directly outside and shall not be used for any other purpose unless a horizontal exit is provided in accordance with the building subcode. (Plan review--Building, Fire. Inspection--Building)
- (c) Capacity of Means of Egress: The capacity of the means of egress in each work area shall be determined in accordance with N.J.A.C. 5:23-6.11(b). The main exit and at least one remaining exit shall be placed a distance apart equal to one-half the length of the maximum overall diagonal distance of the area served in buildings not equipped throughout with an automatic fire sprinkler system and one-third the maximum overall diagonal distance of the area served in buildings that are equipped throughout with an automatic fire sprinkler system. (Plan review -- Building, Fire. Inspection -- Building)
1. Buildings with an occupant load of 100 or more shall have a main entrance capable of serving as the main exit with an egress capacity for at least one-half the total occupant load. The remaining exits shall be capable of providing two-thirds of the total required exit capacity.
 2. Buildings with an occupant load of more than 300 shall have a main entrance capable of serving as the main exit with an egress capacity for at least two-thirds of the total occupant load. The remaining exits shall also be capable of providing two-thirds of the total required exit capacity.
- (d) Dead End Corridors: Existing dead end corridors shall not exceed 35 feet in length.

Exceptions are allowed as follows:

1. Dead end corridors may be up to 50 feet in length in a building with an automatic alarm system installed in conformance with the building code in effect at the time of its installation.
2. Dead end corridors may be up to 70 feet in length in a building with a suppression system installed in conformance with the building code in effect at the time of its installation. (Plan review--Building, Fire. Inspection-- Building)

(e) Means of Egress Lighting: Artificial lighting with an intensity of not less than one foot candle at floor level shall be required during all times that the conditions of occupancy of the building require that the exits be available. Lighting shall also be required to illuminate the exit discharge. In all buildings, rooms or spaces required to have more than one exit or exit access, means of egress lighting shall be connected to an emergency electrical system conforming to NFPA 70 (NEC) except that continued illumination shall be required to be provided for not less than one hour in the case of primary power loss.

1. In buildings used for motion pictures or other projections by means of directed light, the illumination of aisles may be reduced during periods of projection to not less than 0.2 foot candle. The switch requirements and location(s) for controlling egress lighting connected to the emergency electrical system shall be in conformance with the NFPA 70 (NEC). (Plan review--Building, Fire, Electric. Inspection--Building)

(f) Illuminated Exit Signs: Illuminated exit signs shall be provided for all required means of egress in all buildings, rooms or spaces required to have more than one exit or exit access. Exit signs shall be visible from the exit access and supplemented by directional signs when necessary. (Exception: Approved main exterior doors that are clearly identified as exits are not required to have exit signs.) Exit signs shall meet the following criteria:

1. Red or green letters at least six inches high; minimum width of each stroke $\frac{3}{4}$ inch on a white background or in other approved distinguishable colors. Arrows, if provided, shall be such that the direction cannot readily be changed. The word "Exit" shall be clearly discernible when the sign is not energized.

2. Exit signs shall be illuminated at all times when the building is occupied by a source providing at least five foot candles at the illuminated surface or shall be approved self-luminous signs which provide evenly illuminated letters with a minimum luminance of 0.06 foot lamberts. Exit signs shall be connected to an emergency electrical system conforming to NFPA 70 (NEC) except that continued illumination shall be required to be provided for not less than one hour in the case of primary power loss. No emergency power shall be required for approved self-luminous signs. (Plan review--Building, Fire. Inspection--Building)

(g) Handrails: Every required exit stairway having three or more risers and not provided with handrails or in which the existing handrails are in danger of collapsing when used under emergency exiting conditions, shall be provided with handrails for the full length of the run of steps on at least one side. All exit stairways more than 66 inches wide shall have handrails on both sides unless the full width of the stairway is not needed to accommodate the design occupancy. (Plan review--Building, Fire. Inspection--Building)

(h) Guards: Every open portion of a stair, landing or balcony which is more than 30 inches above the floor or grade below and is not provided with guards or those in which the existing guards are in danger of collapsing when used under emergency exiting conditions, shall be provided with guards. (Plan review--Building, Fire. Inspection--Building)

(i) Vertical Opening Protection: Vertical opening protection for interior stairways and other vertical openings shall be provided as follows:

1. For vertical openings connecting more than six floor levels, approved assemblies having a fire resistance rating of not less than two hours with approved opening protectives shall be required.
2. For vertical openings connecting four to six floor levels, approved assemblies having a fire resistance rating of not less than one hour with approved opening protectives shall be required.
3. For vertical openings not exceeding three stories, a minimum 30 minute UFC fire barrier shall be required. Exceptions are as follows:

- i. When connecting the main floor and mezzanines; or

ii. When all of the following conditions are met:

- (1)** The communicating area has a low hazard occupancy or has a moderate hazard occupancy which is protected throughout by an automatic suppression system; and
- (2)** The lowest or next to the lowest level is a street floor; and
- (3)** The entire area is open and unobstructed in a manner such that it may be assumed that a fire in any part of the interconnected spaces will be readily obvious to all of the occupants; and
- (4)** Exit capacity is sufficient to provide egress simultaneously for all the occupants of all levels by considering all areas to be a single floor area for the determination of required exit capacity; and
- (5)** Each floor level, considered separately, has at least one-half of its individual required exit capacity provided by an exit or exits leading directly out of that level without having to traverse another communicating floor level or be exposed to the smoke or fire spreading from another communicating floor level. (Plan review-- Building, Fire. Inspection-- Building)

(j) Structural Elements: Structural elements which are uncovered during the course of the rehabilitation and which are found to be unsound or otherwise structurally deficient, shall be reinforced, supported or replaced in accordance with the applicable structural design criteria of the building subcode. Where structural elements are sound, there is no excessive deflection (defined as deflection in excess of the standards set forth in N.J.A.C. 5:23-6.7(c)1), and fixed loads are not changing in a way that will increase the stresses on existing structures beyond that which is permitted by N.J.A.C. 5:23-6.7(c), existing structural elements shall be permitted to remain. (Building)

(k) Plumbing Fixtures: Plumbing fixtures shall be provided as follows. Where the plumbing subcode allows for the substitution or omission of fixtures, such substitutions or omissions shall also be permitted under this section. (Plumbing)

§ 5:23-6.13 Basic requirements--Group A-2 Nightclubs

<u>Total Occupancy<1></u>	Water Closets		<u>Lavatories</u>	<u>Drinking Water Facilities</u>	<u>Service Sinks</u>
	<u>Male</u>	<u>Female</u>			
1-25	1 Unisex		1	0	0
26 and over	Fixtures to be provided as per Table 7.21.1 of the plumbing subcode.				

Note 1. For purposes of determining the number of plumbing fixtures required, total occupancy shall be the anticipated occupancy of the building under normal use conditions. It is not necessarily the same as the total permitted occupant load based on egress capacity.

(I) Mechanical Requirements: All spaces intended for occupancy shall be provided with either natural or mechanical ventilation.

1. Spaces intended to be naturally ventilated shall be provided with openable doors, windows, louvers, or other openings to the outdoors. The minimum openable area to the outdoors shall be four percent of the floor area being ventilated. Where rooms without openings to the outdoors are ventilated through an adjoining room, the unobstructed opening to the adjoining room shall be at least eight percent of the floor area of the interior room or space, but not less than 25 square feet. The ventilation openings to the outdoors shall be based on the total floor area being ventilated.

2. Mechanically-ventilated spaces shall comply with the following:

- i. Newly-installed HVAC systems shall comply with the requirements of the mechanical subcode.
- ii. Existing systems that are altered or extended shall not reduce the amount of outside air below the existing rate per person or the rate included in the mechanical subcode, whichever is lower. As a minimum, mechanically-ventilated spaces shall be provided with five CFM per person of outdoor air and 15 CFM of ventilation air per person.

3. All newly-introduced devices, equipment or operations that produce airborne particulates, odors, fumes, sprays, vapors, smoke or gases in such quantities to be irritating or injurious to health shall be provided with local exhaust. (Building)

(m) Interior finishes shall comply with N.J.A.C. 5:23-6.11(c). (Plan review--Building, Fire. Inspection--Building)

(n) Specific Occupancy Areas: Specific occupancy areas within the work area, as listed in N.J.A.C. 5:23-6.30(h), shall comply with the requirements established in that section for separation and/or protection. (Building)

History

HISTORY:

Amended by R.1999 d.424, effective December 6, 1999.

See: 31 N.J.R. 2428(a), 31 N.J.R. 4001(c).

In (f), substituted "except that continued illumination shall be required to be provided" for "to assure continued illumination" in the last sentence of the introductory paragraph, and rewrote 1; and in (g)2, rewrote the second sentence.

Amended by R.2000 d.492, effective December 18, 2000.

See: 32 N.J.R. 3219(a), 32 N.J.R. 4437(b).

In (f), added the second sentence in the introductory paragraph; and added (p).

Amended by R.2003 d.218, effective May 19, 2003.

See: 35 N.J.R. 29(a), 35 N.J.R. 2209(a).

In (m)2i and in the first sentence of (m)2ii, substituted "the International Mechanical Code, 2000 edition" for "ASHRAE 62-89"; in (p), substituted "Section 716" for "Section 721.0".

Amended by R.2004 d.145, effective April 5, 2004.

See: 35 N.J.R. 5190(a), 36 N.J.R. 1758(a).

Amended by R.2006 d.120, effective April 3, 2006.

See: 37 N.J.R. 3753(a), 38 N.J.R. 1567(a).

In (m)2i and ii, substituted "mechanical subcode" for "International Mechanical Code, 2000 edition".

Amended by R.2007 d.51, effective February 5, 2007.

See: 38 N.J.R. 375(a), 39 N.J.R. 371(a).

Deleted former (a); recodified former (b) through (d) as (a) through (c); rewrote new (c); and recodified former (e) through (p) as (d) through (o).

Administrative correction.

See: 39 N.J.R. 1249(a).

Amended by R.2007 d.122, effective May 7, 2007.

See: 38 N.J.R. 4951(a), 39 N.J.R. 1673(a).

Added (a)2; in (l)2ii, deleted "unless the indoor air quality procedure of ASHRAE 62-89 is followed and results in a lesser amount" following "ventilation air per person"; and in (o), substituted "717" for "716".

Amended by R.2009 d.117, effective April 20, 2009.

See: 41 N.J.R. 18(a), 41 N.J.R. 1726(a).

In (o), inserted "creates or" and deleted "exposed" preceding the second occurrence of "framing".

Amended by R.2011 d.270, effective November 7, 2011.

See: 43 N.J.R. 1297(a), 43 N.J.R. 2999(a).

In the introductory paragraph of (i)3, inserted "UFC".

Amended by R.2017 d.077, effective May 1, 2017.

See: 48 N.J.R. 1854(a), 49 N.J.R. 1020(a).

In the introductory paragraph of (a), substituted "or" for "and"; in (a)1, deleted "(Plan review—Building, Fire. Inspection—Building)" from the end; in (a)2ii, inserted "(Plan review—Building, Fire. Inspection—Building)"; and deleted (o).

Annotations

Notes

Chapter Notes

NEW JERSEY ADMINISTRATIVE CODE

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N.J.A.C. 5:23-6.13A

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*NJ - New Jersey Administrative Code > TITLE 5. COMMUNITY AFFAIRS > CHAPTER 23. UNIFORM
CONSTRUCTION CODE > SUBCHAPTER 6. REHABILITATION SUBCODE*

§ 5:23-6.13A Supplemental requirements--Group A-2 Nightclubs

(a) Automatic Fire Sprinkler System: An automatic fire sprinkler system shall be installed throughout all floors containing the Group A-2 nightclub and all floors between the Group A-2 nightclub and the level of exit discharge when the conditions in (a)1 or 2 below exist. For purposes of applying this section, the level of exit discharge shall be defined as having all exits discharging not more than five feet above nor more than two feet below the adjacent grade.

1. The work area is located on a floor other than the level of exit discharge; or
2. The work area is at the level of exit discharge and has an occupant load of 300 or more or a net occupiable floor area of greater than 5,000 square feet.
3. The automatic fire sprinkler system shall be tied to the performance sound system and to the house lights in such a way that activation of the automatic sprinkler system mutes the performance sound system and restores the intensity of illumination to that required by the building subcode. (Fire)

(b) Automatic Alarm System: When the occupant load of the work area exceeds 100, an automatic fire alarm system that complies with NFPA 72 shall be installed throughout.

1. If the alarm is activated by smoke detectors, it shall be activated by either two cross-zoned smoke detectors within a single protected area or a single smoke detector monitored by an alarm verification zone or an approved equivalent method and the smoke detectors shall be of a type designed to reduce the possibility of false notifications based on the conditions present in the area protected.

2. The automatic fire alarm system shall be tied to the performance sound system and to the house lights in such a way that activation of the fire detection system mutes the performance sound system and restores the intensity of illumination to that required by Section 1008.2.1 of the building subcode. (Fire)

(c) Manual alarm system: For buildings greater than three stories in height with occupant loads over 25, when the work area exceeds 25 percent of the gross enclosed floor area of the building, or for buildings where the occupant load of the work area exceeds 100, manual fire alarms shall be required throughout the building. (Fire)

(d) Vertical Opening Protection: When the work area exceeds 50 percent of the gross enclosed floor area of the building, vertical opening protection shall be provided throughout the building as follows:

1. A minimum two hour fire rated assembly with approved opening protectives shall be required for interior stairways and other vertical openings connecting more than six floor levels.
2. A minimum one hour fire rated assembly with approved opening protectives shall be required for interior stairways and other vertical openings connecting four to six floor levels.
3. A minimum 30 minute UFC fire barrier shall be required for interior stairways and other vertical openings not exceeding three stories. Exceptions shall be permitted as follows:
 - i. When connecting the main floor and mezzanines; or
 - ii. When all of the following conditions are met:
 - (1) The communicating area has a low hazard occupancy or has a moderate hazard occupancy which is protected throughout by an automatic fire suppression system;
 - (2) The lowest or next to the lowest level is a street floor;
 - (3) The entire area is open and unobstructed in a manner such that it may be assumed that a fire in any part of the interconnected spaces will be readily obvious to all of the occupants;

(4) Exit capacity is sufficient to provide egress simultaneously for all the occupants of all levels by considering all areas to be a single floor area for the determination of required exit capacity; and

(5) Each floor level, considered separately, has at least one-half of its individual required exit capacity provided by an exit or exits leading directly out of that level without having to traverse another communicating floor level or be exposed to the smoke or fire spreading from another communicating floor level. (Plan review-- Building, Fire. Inspection-- Building)

(e) Requirements for high-rise buildings: Any building or structure having one or more floors, other than occupiable roofs, used for human occupancy located either more than six stories or more than 75 feet above the lowest level accessible to a fire department vehicle, shall comply with the following:

1. When the work area is one entire floor or more or when the work area is 20 percent or more of the occupied floor area served by a recirculating air system, the recirculating air system which serves the work area shall be equipped with approved smoke and heat detection devices installed in accordance with the UCC. The devices shall stop the fan(s) automatically and shall be of the manual reset type. Automatic fan shutdown is not required when the system is part of an approved smoke removal or smoke control system. (Building)

2. When the work area is one entire floor or more or when the work area is 20 percent or more of the occupied floor area of the building, all elevators in the building shall be equipped with the following emergency control devices:

- i. All automatic (nondesignated attendant) elevators having a travel distance of 25 feet or more above or below the designated level shall be equipped with Phase 1 Emergency Recall Operation as required by ASME A17.1-1987, Rules 211.3a and 211.3b listed in N.J.A.C. 5:70-3;

- ii. At least one elevator shall be equipped with Phase II Emergency In-Car Operation, as required by ASME A17.1-1987, Rule 211.3c; and

- (1) In buildings with multiple elevators, at least one elevator to each floor served by an elevator shall be equipped with Phase II Emergency In-Car Operation.
- iii. All designated attendant elevators having a travel distance of 25 feet or more above or below the designated level shall be equipped with emergency controls, as required by ASME A17.1-1987, Rule 211.4. (Elevator)
3. When the work area is one entire floor or more or when the work area is 20 percent or more of the occupied floor area of the building, standpipes shall be provided up to and including the highest floor that is part of the work area. The standpipes shall be located and installed in accordance with the building subcode, except as follows:
- i. No pump shall be required provided that the standpipes are capable of accepting delivery by fire department apparatus of a minimum of 250 gpm at 65 psi to the topmost floor in buildings equipped throughout with an automatic fire suppression system or a minimum of 500 gpm at 65 psi to the topmost floor in all other buildings. (Where the standpipe terminates below the topmost floor, the standpipe shall be designed to meet these requirements (gpm/psi) for possible future extension of the standpipe.)
- ii. Hose and hose cabinets shall not be required. (Fire)
- (f) Elevator Devices: When the work area exceeds 50 percent of the gross enclosed floor area of the building, all elevator devices serving any part of the work area shall comply with the requirements of N.J.A.C. 5:23-6.30(g). (Elevator)

History

HISTORY:

Amended by R.2000 d.492, effective December 18, 2000.

See: 32 N.J.R. 3219(a), 32 N.J.R. 4437(b).

In (e)2i, amended the N.J.A.C. reference.

Amended by R.2003 d.218, effective May 19, 2003.

See: 35 N.J.R. 29(a), 35 N.J.R. 2209(a).

In (a), inserted "Nightclubs" following "A-2" throughout.

Amended by R.2004 d.145, effective April 5, 2004.

See: 35 N.J.R. 5190(a), 36 N.J.R. 1758(a).

Amended by R.2007 d.51, effective February 5, 2007.

See: 38 N.J.R. 375(a), 39 N.J.R. 371(a).

Rewrote (a) and (b); and in (c), inserted "or for buildings where the occupant load of the work area exceeds 100,".

Amended by R.2009 d.117, effective April 20, 2009.

See: 41 N.J.R. 18(a), 41 N.J.R. 1726(a).

In (e)1, deleted "or exhaust" preceding the first and second occurrences of "system".

Amended by R.2011 d.270, effective November 7, 2011.

See: 43 N.J.R. 1297(a), 43 N.J.R. 2999(a).

In (b)2, substituted "1006.2" for "1003.2.11.1"; and in the introductory paragraph of (d)3, inserted "UFC".

Amended by R.2017 d.077, effective May 1, 2017.

See: 48 N.J.R. 1854(a), 49 N.J.R. 1020(a).

In (b)2, substituted "1008.2.1" for "1006.2".

Amended by R.2026 d.087, effective August 17, 2026.

See: 57 N.J.R. 2333(a), 58 N.J.R. 1882(a).

In the introductory paragraph of (e), inserted ", other than occupiable roofs,".

Annotations

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Chapter Notes

NEW JERSEY ADMINISTRATIVE CODE

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N.J.A.C. 5:23-6.14

This file includes all Regulations adopted and published through the New Jersey Register, Vol. 58 No. 16,
August 17, 2026

*NJ - New Jersey Administrative Code > TITLE 5. COMMUNITY AFFAIRS > CHAPTER 23. UNIFORM
CONSTRUCTION CODE > SUBCHAPTER 6. REHABILITATION SUBCODE*

§ 5:23-6.14 Basic requirements--Groups A-2 other than Nightclubs, A-3 and A-4

(a) Automatic Sprinkler System: An automatic sprinkler system shall be required in spaces of Group A-3 used as ballrooms, exhibit areas and accessory spaces which exceed 12,000 square feet and are located in buildings of Group R-1 and R-2.

1. Exceptions:

i. An automatic sprinkler system shall not be required if the space is divided into fire areas of not more than 12,000 square feet by a two-hour fire separation with 1 1/2-hour opening protectives or if the space is completely separated from any other uses by a two-hour fire separation with 1 1/2-hour opening protectives. (Fire)

(b) Exits: Two exits shall be required for stories with less than 500 occupants. Three exits shall be required for stories with 501 to 1,000 occupants. Four exits shall be required for stories with more than 1,000 occupants. Two means of egress are also required from all mezzanines with an occupant load greater than 50 or with exit travel distance greater than 75 feet.

1. When more than one exit is required, existing fire escapes shall be accepted as providing one of the required means of egress unless judged to be dangerous for use under emergency exiting conditions. For use of fire escapes, access shall be through a door except when serving an occupant load of 10 or fewer. All occupants shall have unobstructed access to fire escapes without having to pass through a room subject to locking.

i. When more than one exit is required and there is not sufficient space for an exterior stair within the lot line, a new fire escape shall be accepted as providing one of the required means of egress. Newly-installed fire escapes shall comply with FTO-3.

ii. Ladders shall be prohibited on fire escapes used as a required means of egress.

2. A single exit is permitted in the story at the level of exit discharge when the occupant load of the story does not exceed 50 and the exit access travel distance does not exceed 75 feet.

(Plan review--Building, Fire. Inspection--Building)

(c) Egress Doorways: A minimum of two egress doorways shall be required for all rooms and spaces with an occupant load greater than 50 or in which the travel distance exceeds 75 feet. All egress doors serving an occupant load greater than 50 shall swing in the direction of exit travel.

1. Exception: Storage rooms with a maximum occupant load of 10 shall not be required to have two egress doorways.

2. All required exit doors equipped with latching devices in buildings or spaces with an occupant load greater than 100 shall be equipped with approved panic hardware.

3. If there are more than two individual rooms which can be used for separate functions, each with an occupant load of more than 300, the required egress doors from such rooms shall lead directly outside or to an exit passageway. Exit passageways shall be completely enclosed by assemblies having a fire-resistance rating of at least two hours, shall lead directly outside and shall not be used for any other purpose. (Plan review--Building, Fire. Inspection--Building)

(d) Capacity of Means of Egress: The capacity of the means of egress in each work area shall be determined in accordance with N.J.A.C. 5:23-6.11(b). Additionally, for buildings with an occupant load of 100 or more, a main entrance capable of serving as the main exit with an egress capacity for at least one-half the total occupant load is required. The remaining exits shall be capable of providing one-half of the total required exit capacity. This provision shall not apply in buildings with multiple main entrances. (Plan review--Building, Fire. Inspection--Building)

(e) Dead End Corridors: Existing dead end corridors shall not exceed 35 feet in length. Exceptions are as follows:

1. Dead end corridors may be up to 50 feet in length in a building with an automatic alarm system installed in conformance with the building code in effect at the time of its installation.
2. Dead end corridors may be up to 70 feet in length in a building with an automatic sprinkler system installed in conformance with the building code in effect at the time of its installation.

(Plan review--Building, Fire. Inspection--Building)

(f) Means of Egress Lighting: Artificial lighting with an intensity of not less than one foot candle at floor level shall be required during all times that the conditions of occupancy of the building require that the exits be available. Lighting shall also be required to illuminate the exit discharge. In all buildings, rooms or spaces required to have more than one exit or exit access, means of egress lighting shall be connected to an emergency electrical system conforming to NFPA 70 (NEC) except that continued illumination shall be required to be provided for not less than one hour in the case of primary power loss.

1. In buildings used for motion pictures or other projections by means of directed light, the illumination of aisles may be reduced during periods of projection to not less than 0.2 foot candle. The switch requirements and location(s) for controlling egress lighting connected to the emergency electrical system shall be in conformance with the NFPA 70 (NEC). (Plan review--Building, Fire, Electric. Inspection--Building)

(g) Illuminated Exit Signs: Illuminated exit signs shall be provided for all required means of egress in all buildings, rooms or spaces required to have more than one exit or exit access. Exit signs shall be visible from the exit access and supplemented by directional signs when necessary. (Exception: Approved main exterior doors that are clearly identified as exits are not required to have exit signs.) Exit signs shall meet the following criteria:

1. Red or green letters at least six inches high; minimum width of each stroke 3/4 inch on a white background or in other approved distinguishable colors. Arrows, if provided, shall be

such that the direction cannot readily be changed. The word "Exit" shall be clearly discernible when the sign is not energized.

2. Exit signs shall be illuminated at all times when the building is occupied by a source providing at least five foot candles at the illuminated surface or shall be approved self-luminous signs which provide evenly illuminated letters with a minimum luminance of 0.06 foot lamberts. Exit signs shall be connected to an emergency electrical system conforming to NFPA 70 (NEC) except that continued illumination shall be required to be provided for not less than one hour in the case of primary power loss. No emergency power shall be required for approved self-luminous signs. (Plan review--Building, Fire. Inspection--Building)

(h) Handrails: Every required exit stairway having three or more risers and not provided with handrails or in which the existing handrails are in danger of collapsing when used under emergency exiting conditions, shall be provided with handrails for the full length of the run of steps on at least one side. All exit stairways more than 66 inches wide shall have handrails on both sides unless the full width of the stairway is not needed to accommodate the design occupancy. (Plan review--Building, Fire. Inspection--Building)

(i) Guards: Every open portion of a stair, landing or balcony which is more than 30 inches above the floor or grade below and is not provided with guards or those in which the existing guards are in danger of collapsing when used under emergency exiting conditions, shall be provided with guards. (Plan review--Building, Fire. Inspection--Building)

(j) Vertical Opening Protection: Vertical opening protection for interior stairways and other vertical openings shall be provided as follows:

1. For vertical openings connecting more than six floor levels, approved assemblies having a fire resistance rating of not less than two hours with approved opening protectives shall be required.
2. For vertical openings connecting four to six floor levels, approved assemblies having a fire resistance rating of not less than one hour with approved opening protectives shall be required.

3. For vertical openings not exceeding three stories, a minimum 30-minute UFC fire barrier shall be required. Exceptions are as follows:

i. When connecting the main floor and mezzanines; or

ii. When all of the following conditions are met:

(1) The communicating area has a low hazard occupancy or has a moderate hazard occupancy which is protected throughout by an automatic sprinkler system;

(2) The lowest or next to the lowest level is a street floor;

(3) The entire area is open and unobstructed in a manner such that it may be assumed that a fire in any part of the interconnected spaces will be readily obvious to all of the occupants;

(4) Exit capacity is sufficient to provide egress simultaneously for all the occupants of all levels by considering all areas to be a single floor area for the determination of required exit capacity; and

(5) Each floor level, considered separately, has at least one-half of its individual required exit capacity provided by an exit or exits leading directly out of that level without having to traverse another communicating floor level or be exposed to the smoke or fire spreading from another communicating floor level. (Plan review-- Building, Fire. Inspection-- Building)

(k) Structural Elements: Structural elements which are uncovered during the course of the rehabilitation and which are found to be unsound or otherwise structurally deficient, shall be reinforced, supported or replaced in accordance with the applicable structural design criteria of the building subcode. Where structural elements are sound, there is no excessive deflection (defined as deflection in excess of the standards set forth in N.J.A.C. 5:23-6.7(c)1), and fixed loads are not changing in a way that will increase the stresses on existing structures beyond that which is permitted by N.J.A.C. 5:23-6.7(c), existing structural elements shall be permitted to remain. (Building)

(I) Plumbing fixtures: The following apply to plumbing fixtures: (Plumbing)

1. For auditoriums, museums, libraries, and similar facilities, plumbing fixtures shall be provided as follows. Where the plumbing subcode allows for the substitution or omission of fixtures, such substitutions or omissions shall also be permitted under this section.

Total	Water Closets		Drinking Water	Service
Occupancy<1, 2>	Male	Female	Lavatories	Sinks
1-50	1 Unisex		1	1
51-100	1	1	1 per sex	1
101 and over	Fixtures to be provided as per Table 7.21.1 of the plumbing subcode.			

Note 1. For purposes of determining the number of plumbing fixtures required, total occupancy shall be the anticipated occupancy of the building under normal use conditions. It is not necessarily the same as the total permitted occupant load based on egress capacity.

Note 2. Requirements for employees and customers may be met with a single set of restrooms. The required number of fixtures shall be the greater of the required number for employees or customers.

2. For restaurants, plumbing fixtures shall be provided as follows. Where the plumbing subcode allows for the substitution or omission of fixtures, such substitutions or omissions shall also be permitted under this section.

Total	Water Closets		Drinking Water	Service
Occupancy<1,2>	Water Closets	Lavatories	Facilities	Sinks
1-25	1 Unisex	1	0	0
26 and over	Fixtures to be provided as per Table 7.21.1 of the plumbing subcode.			

Note 1. For purposes of determining the number of plumbing fixtures required, total occupancy shall be the anticipated occupancy of the building under normal use conditions. It is not necessarily the same as the total permitted occupant load based on egress capacity.

Note 2. Requirements for employees and customers may be met with a single set of restrooms. The required number of fixtures shall be the greater of the required number for employees or customers.

3. For recreational facilities, passenger terminals, and other buildings of Groups A-2 other than Nightclubs, A-3 and A-4, plumbing fixtures shall be provided as required by Table 7.21.1 of the plumbing subcode. Where the plumbing subcode allows for the substitution or omission of fixtures, such substitutions or omissions shall also be permitted under this section.

(m) Mechanical Requirements: All spaces intended for occupancy shall be provided with either natural or mechanical ventilation.

1. Spaces intended to be naturally ventilated shall be provided with openable doors, windows, louvers, or other openings to the outdoors. The minimum openable area to the outdoors shall be four percent of the floor area being ventilated. Where rooms without openings to the outdoors are ventilated through an adjoining room, the unobstructed opening to the adjoining room shall be at least eight percent of the floor area of the interior room or space, but not less than 25 square feet. The ventilation openings to the outdoors shall be based on the total floor area being ventilated.

2. Mechanically-ventilated spaces shall comply with the following:

i. Newly-installed HVAC systems shall comply with the requirements of the mechanical subcode.

ii. Existing systems that are altered or extended shall not reduce the amount of outside air below the existing rate per person or the rate included in the mechanical subcode, whichever is lower. As a minimum, mechanically-ventilated spaces shall be provided with five CFM per person of outdoor air and 15 CFM of ventilation air per person.

3. All newly-introduced devices, equipment or operations that produce airborne particulates, odors, fumes, sprays, vapors, smoke or gases in such quantities to be irritating or injurious to health shall be provided with local exhaust. (Building)

(n) Interior finishes shall comply with N.J.A.C. 5:23-6.11(c). (Plan review--Building, Fire. Inspection--Building)

(o) Specific Occupancy Areas: Specific occupancy areas within the work area, as listed in N.J.A.C. 5:23-6.30(h), shall comply with the requirements established in that section for separation and/or protection. (Building)

History

HISTORY:

Amended by R.1999 d.424, effective December 6, 1999.

See: 31 N.J.R. 2428(a), 31 N.J.R. 4001(c).

In (f), substituted "except that continued illumination shall be required to be provided" for "to assure continued illumination" in the last sentence of the introductory paragraph, and rewrote 1; and in (g)2, rewrote the second sentence.

Amended by R.2000 d.492, effective December 18, 2000.

See: 32 N.J.R. 3219(a), 32 N.J.R. 4437(b).

Rewrote (a); in (f), added the second sentence in the introductory paragraph; and added (p).

Amended by R.2003 d.218, effective May 19, 2003.

See: 35 N.J.R. 29(a), 35 N.J.R. 2209(a).

In (a), introductory paragraph and (l)3, substituted "A-2 other than Nightclubs, A-3 and A-4" for "A-3"; in (m)2i and first sentence of (m)2ii, substituted "the International Mechanical Code" for "ASHRAE 62-89"; in (p), substituted "Section 716" for "Section 721.0".

Amended by R.2004 d.145, effective April 5, 2004.

See: 35 N.J.R. 5190(a), 36 N.J.R. 1758(a).

Rewrote (a); in (j)3, inserted "UFC" following "30-minute"; in (l), deleted "Use" preceding "Groups" in 3; substituted references to sprinkler for references to fire suppression throughout.

Amended by R.2006 d.120, effective April 3, 2006.

See: 37 N.J.R. 3753(a), 38 N.J.R. 1567(a).

In (m)2i and ii, substituted "mechanical subcode" for "International Mechanical Code, 2000 edition".

Amended by R.2007 d.122, effective May 7, 2007.

See: 38 N.J.R. 4951(a), 39 N.J.R. 1673(a).

Added (b)1ii; in (m)2ii, deleted "unless the indoor air quality procedure of ASHRAE 62-89 is followed and results in a lesser amount" following "ventilation air per person"; and in (p), substituted "717" for "716".

Amended by R.2009 d.117, effective April 20, 2009.

See: 41 N.J.R. 18(a), 41 N.J.R. 1726(a).

In (p), inserted "creates or" and deleted "exposed" preceding the second occurrence of "framing".

Amended by R.2017 d.077, effective May 1, 2017.

See: 48 N.J.R. 1854(a), 49 N.J.R. 1020(a).

In the introductory paragraph of (b), substituted "or" for "and"; and deleted (p).

Annotations

Notes

Chapter Notes

NEW JERSEY ADMINISTRATIVE CODE

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N.J.A.C. 5:23-6.14A

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August 17, 2026

*NJ - New Jersey Administrative Code > TITLE 5. COMMUNITY AFFAIRS > CHAPTER 23. UNIFORM
CONSTRUCTION CODE > SUBCHAPTER 6. REHABILITATION SUBCODE*

§ 5:23-6.14A Supplemental requirements--Groups A-2 other than Nightclubs, A-3 and A-4

(a) Automatic fire sprinkler system: An automatic fire sprinkler system shall be installed throughout the floors containing the Group A-2 other than nightclubs, Groups A-3 and A-4 and all floors between the Group A-2 other than nightclubs, Groups A-3 and A-4 and the level of exit discharge when any one of the following conditions exists:

1. The work area exceeds 12,000 square feet (gross enclosed floor area);
2. The work area has an occupant load of 300 or more;
3. The work area is located on a floor other than the level of exit discharge.
4. Exception: Sprinklers shall not be required for participant sport areas where the main floor of the participant sport is at the level of exit discharge of the main entrance. (Fire)

(b) Automatic Alarm System: When the work area exceeds 25 percent of the gross enclosed floor area of the building, an automatic fire alarm system that complies with NFPA 72 shall be installed in all storage, workshop, boiler or furnace rooms. (Fire)

(c) Manual Alarm System: For buildings greater than three stories in height with occupant loads over 25, when the work area exceeds 25 percent of the gross enclosed floor area of the building, manual fire alarms shall be required throughout the building. (Fire)

(d) Vertical Opening Protection: When the work area exceeds 50 percent of the gross enclosed floor area of the building, vertical opening protection shall be provided throughout the building as follows:

§ 5:23-6.14A Supplemental requirements--Groups A-2 other than Nightclubs, A-3 and A-4

1. A minimum two hour fire rated assembly with approved opening protectives shall be required for interior stairways and other vertical openings connecting more than six floor levels.
 2. A minimum one hour fire rated assembly with approved opening protectives shall be required for interior stairways and other vertical openings connecting four to six floor levels.
 3. A minimum 30-minute UFC fire barrier shall be required for interior stairways and other vertical openings not exceeding three stories. Exceptions shall be permitted as follows:
 - i. When connecting the main floor and mezzanines; or
 - ii. When all of the following conditions are met:
 - (1) The communicating area has a low hazard occupancy or has a moderate hazard occupancy which is protected throughout by an automatic sprinkler system; and
 - (2) The lowest or next to the lowest level is a street floor; and
 - (3) The entire area is open and unobstructed in a manner such that it may be assumed that a fire in any part of the interconnected spaces will be readily obvious to all of the occupants; and
 - (4) Exit capacity is sufficient to provide egress simultaneously for all the occupants of all levels by considering all areas to be a single floor area for the determination of required exit capacity; and
 - (5) Each floor level, considered separately, has at least one-half of its individual required exit capacity provided by an exit or exits leading directly out of that level without having to traverse another communicating floor level or be exposed to the smoke or fire spreading from another communicating floor level. (Plan review-- Building, Fire. Inspection-- Building)
- (e) Requirements for high-rise buildings: Any building or structure having one or more floors, other than occupiable roofs, used for human occupancy located either more than six stories or

more than 75 feet above the lowest level accessible to a fire department vehicle shall comply with the following:

1. When the work area is one entire floor or more or when the work area is 20 percent or more of the occupied floor area served by a recirculating air system, the recirculating air system which serves the work area shall be equipped with approved smoke and heat detection devices installed in accordance with the UCC. The devices shall stop the fan(s) automatically and shall be of the manual reset type. Automatic fan shutdown is not required when the system is part of an approved smoke removal or smoke control system. (Building)
2. When the work area is one entire floor or more or when the work area is 20 percent or more of the occupied floor area of the building, all elevators in the building shall be equipped with the following emergency control devices:
 - i. All automatic (nondesignated attendant) elevators having a travel distance of 25 feet or more above or below the designated level shall be equipped with Phase 1 Emergency Recall Operation as required by ASME A17.1-1987, Rules 211.3a and 211.3b listed in N.J.A.C. 5:70-3;
 - ii. At least one elevator shall be equipped with Phase II Emergency In-Car Operation, as required by ASME A17.1-1987, Rule 211.3c; and
 - (1) In buildings with multiple elevators, at least one elevator to each floor served by an elevator shall be equipped with Phase II Emergency In-Car Operation.
 - iii. All designated attendant elevators having a travel distance of 25 feet or more above or below the designated level shall be equipped with emergency controls, as required by ASME A17.1-1987, Rule 211.4. (Elevator)
3. When the work area is one entire floor or more or when the work area is 20 percent or more of the occupied floor area of the building, standpipes shall be provided up to and including the highest floor that is part of the work area. The standpipes shall be located and installed in accordance with the building subcode, except as follows:

§ 5:23-6.14A Supplemental requirements--Groups A-2 other than Nightclubs, A-3 and A-4

i. No pump shall be required provided that the standpipes are capable of accepting delivery by fire department apparatus of a minimum of 250 gpm at 65 psi to the topmost floor in buildings equipped throughout with an automatic sprinkler system or a minimum of 500 gpm at 65 psi to the topmost floor in all other buildings. (Where the standpipe terminates below the topmost floor, the standpipe shall be designed to meet these requirements (gpm/psi) for possible future extension of the standpipe.)

ii. Hose and hose cabinets shall not be required. (Fire)

(f) Elevator Devices: When the work area exceeds 50 percent of the gross enclosed floor area of the building, all elevator devices serving any part of the work area shall comply with the requirements of N.J.A.C. 5:23-6.30(g). (Elevator)

(g) Amusement Buildings: When any reconstruction project is undertaken in a building or portion thereof designed to disorient the occupant, reduce vision, present barriers or otherwise impede the flow of traffic, the following requirements shall be met throughout the building or portion thereof that constitutes the amusement use:

1. Every such amusement facility shall be equipped throughout with an automatic sprinkler system installed in accordance with the New Jersey Uniform Construction Code.
2. The interior finish of all walls and ceilings shall in no case be less than a Class II material in accordance with this subchapter.
3. Every such amusement facility shall be equipped with exit signs installed in accordance with this subchapter.
4. Every such amusement facility shall be equipped throughout with an approved automatic fire alarm system installed in accordance with the Uniform Construction Code and in accordance with (g)5 through 8 below.
5. The automatic alarm system shall activate a prerecorded message which can be clearly heard throughout the entire facility instructing the patrons to proceed to the nearest exit. Any

alarm signals used in conjunction with the prerecorded message shall produce a signal which is distinctive from all sounds used in the normal operation of the amusement facility.

6. Every such amusement facility shall be equipped with emergency lighting equipment installed in accordance with the New Jersey Uniform Construction Code. The emergency lighting equipment shall automatically activate when:

- i. The automatic sprinkler system is activated;
- ii. The fire alarm system is activated; or
- iii. Loss of the primary power supply occurs.

7. All audio and visual equipment such as horns, bells, flashing, or otherwise distracting stimuli and mechanized displays shall cease operation upon initiation of an alarm by the automatic fire alarm system or activation of the automatic sprinkler system.

8. Activation of the automatic alarm system shall automatically shut down the air distribution system. (Plan review--Building, Fire. Inspection--Building)

History

HISTORY:

Amended by R.2000 d.492, effective December 18, 2000.

See: 32 N.J.R. 3219(a), 32 N.J.R. 4437(b).

Deleted former (a) and recodified former (b) through (g) as (a) through (f); in (d)2i, amended N.J.A.C. reference; in (f)4, amended internal reference.

Amended by R.2003 d.218, effective May 19, 2003.

See: 35 N.J.R. 29(a), 35 N.J.R. 2209(a).

Amended by R.2004 d.145, effective April 5, 2004.

See: 35 N.J.R. 5190(a), 36 N.J.R. 1758(a).

Added a new (a); recodified former (a) through (f) as (b) through (g); in (d)3, inserted "UFC" following "30-minute"; and substituted references to automatic sprinkler for references to fire suppression throughout.

Amended by R.2009 d.117, effective April 20, 2009.

See: 41 N.J.R. 18(a), 41 N.J.R. 1726(a).

In (e)1, deleted "or exhaust" preceding the first and second occurrences of "system" and deleted a closing parenthesis following the final occurrence of "system."

Amended by R.2011 d.270, effective November 7, 2011.

See: 43 N.J.R. 1297(a), 43 N.J.R. 2999(a).

In (g)4, substituted "(g)5" for "(f)5".

Amended by R.2026 d.087, effective August 17, 2026.

See: 57 N.J.R. 2333(a), 58 N.J.R. 1882(a).

In the introductory paragraph of (e), inserted ", other than occupiable roofs,".

Annotations

Notes

Chapter Notes

NEW JERSEY ADMINISTRATIVE CODE

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*NJ - New Jersey Administrative Code > TITLE 5. COMMUNITY AFFAIRS > CHAPTER 23. UNIFORM
CONSTRUCTION CODE > SUBCHAPTER 6. REHABILITATION SUBCODE*

§ 5:23-6.15 Basic requirements--Group A-3 Places of Worship

(a) Exits: Two exits shall be required for stories with less than 500 occupants. Three exits shall be required for stories with 501 to 1,000 occupants. Four exits shall be required for stories with more than 1,000 occupants. Two means of egress are also required from all mezzanines with an occupant load greater than 50 or with exit travel distance greater than 75 feet.

1. When more than one exit is required, existing fire escapes shall be accepted as providing one of the required means of egress unless judged to be dangerous for use under emergency exiting conditions. For use of fire escapes, access shall be through a door except when serving an occupant load of 10 or fewer. All occupants shall have unobstructed access to fire escapes without having to pass through a room subject to locking.

i. When more than one exit is required and there is not sufficient space for an exterior stair within the lot line, a new fire escape shall be accepted as providing one of the required means of egress. Newly-installed fire escapes shall comply with FTO-3.

ii. Ladders shall be prohibited on fire escapes used as a required means of egress.

2. A single exit is permitted in the story at the level of exit discharge when the occupant load of the story does not exceed 50 and the exit access travel distance does not exceed 75 feet.

(Plan review--Building, Fire. Inspection--Building)

(b) Egress Doorways: A minimum of two egress doorways shall be required for all rooms and spaces with an occupant load greater than 50 or in which the travel distance exceeds 75 feet. All egress doors serving an occupant load greater than 50 shall swing in the direction of exit travel.

1. Exception: Storage rooms with a maximum occupant load of 10 shall not be required to have two egress doorways.
 2. All required exit doors equipped with latching devices in buildings or spaces with an occupant load greater than 100 shall be equipped with approved panic hardware. (Plan review--Building, Fire. Inspection--Building)
- (c) Capacity of Means of Egress:** The capacity of the means of egress in each work area shall be determined in accordance with N.J.A.C. 5:23-6.11(b). Additionally, for buildings with an occupant load of 100 or more, a main entrance capable of serving as the main exit with an egress capacity for at least one-half the total occupant load is required. The remaining exits shall be capable of providing one-half of the total required exit capacity. This provision shall not apply in buildings with multiple main entrances. (Plan review--Building, Fire. Inspection--Building)
- (d) Dead end corridors:** Existing dead end corridors shall not exceed 35 feet in length. Exceptions are allowed as follows:
1. Dead end corridors may be up to 50 feet in length in a building with an automatic alarm system installed in conformance with the building code in effect at the time of its installation.
 2. Dead end corridors may be up to 70 feet in length in a building with an automatic sprinkler system installed in conformance with the building code in effect at the time of its installation. (Plan review--Building, Fire. Inspection--Building)
- (e) Means of Egress Lighting:** Artificial lighting with an intensity of not less than one foot candle at floor level shall be required during all times that the conditions of occupancy of the building require that the exits be available. Lighting shall also be required to illuminate the exit discharge. In all buildings, rooms or spaces required to have more than one exit or exit access, means of egress lighting shall be connected to an emergency electrical system conforming to NFPA 70 (NEC) except that continued illumination shall be required to be provided for not less than one hour in the case of primary power loss.
1. In buildings used for motion pictures or other projections by means of directed light, the illumination of aisles may be reduced during periods of projection to not less than 0.2 foot

candle. The switch requirements and location(s) for controlling egress lighting connected to the emergency electrical system shall be in conformance with the NFPA 70 (NEC). (Plan review--Building, Fire, Electric. Inspection--Building)

(f) Illuminated Exit Signs: Illuminated exit signs shall be provided for all required means of egress in all buildings, rooms or spaces required to have more than one exit or exit access. Exit signs shall be visible from the exit access and supplemented by directional signs when necessary. (Exception: Approved main exterior doors that are clearly identified as exits are not required to have exit signs.) Exit signs shall meet the following criteria:

1. Red or green letters at least six inches high; minimum width of each stroke $\frac{3}{4}$ inch on a white background or in other approved distinguishable colors. Arrows, if provided, shall be such that the direction cannot readily be changed. The word "Exit" shall be clearly discernible when the sign is not energized.
2. Exit signs shall be illuminated at all times when the building is occupied by a source providing at least five foot candles at the illuminated surface or shall be approved self-luminous signs which provide evenly illuminated letters with a minimum luminance of 0.06 foot lamberts. Exit signs shall be connected to an emergency electrical system conforming to NFPA 70 (NEC) except that continued illumination shall be required to be provided for not less than one hour in the case of primary power loss. No emergency power shall be required for approved self-luminous signs. (Plan review--Building, Fire. Inspection--Building)

(g) Handrails: Every required exit stairway having three or more risers and not provided with handrails or in which the existing handrails are in danger of collapsing when used under emergency exiting conditions, shall be provided with handrails for the full length of the run of steps on at least one side. All exit stairways more than 66 inches wide shall have handrails on both sides unless the full width of the stairway is not needed to accommodate the design occupancy. (Plan review--Building, Fire. Inspection--Building)

(h) Guards: Every open portion of a stair, landing or balcony which is more than 30 inches above the floor or grade below and is not provided with guards or those in which the existing guards are

in danger of collapsing when used under emergency exiting conditions, shall be provided with guards. (Plan review--Building, Fire. Inspection--Building)

(i) Vertical Opening Protection: Vertical opening protection for interior stairways and other vertical openings shall be provided as follows:

- 1.** For vertical openings connecting more than six floor levels, approved assemblies having a fire resistance rating of not less than two hours with approved opening protectives shall be required.
- 2.** For vertical openings connecting four to six floor levels, approved assemblies having a fire resistance rating of not less than one hour with approved opening protectives shall be required.
- 3.** For vertical openings not exceeding three stories, a minimum 30-minute UFC fire barrier shall be required. Exceptions are as follows:
 - i.** When connecting the main floor and mezzanines; or
 - ii.** When all of the following conditions are met:
 - (1)** The communicating area has a low hazard occupancy or has a moderate hazard occupancy which is protected throughout by an automatic sprinkler system;
 - (2)** The lowest or next to the lowest level is a street floor;
 - (3)** The entire area is open and unobstructed in a manner such that it may be assumed that a fire in any part of the interconnected spaces will be readily obvious to all of the occupants;
 - (4)** Exit capacity is sufficient to provide egress simultaneously for all the occupants of all levels by considering all areas to be a single floor area for the determination of required exit capacity; and
 - (5)** Each floor level, considered separately, has at least one-half of its individual required exit capacity provided by an exit or exits leading directly out of that level without having to traverse another communicating floor level or be exposed to the

smoke or fire spreading from another communicating floor level. (Plan review-- Building, Fire. Inspection-- Building)

(j) Structural Elements: Structural elements which are uncovered during the course of the rehabilitation and which are found to be unsound or otherwise structurally deficient, shall be reinforced, supported or replaced in accordance with the applicable structural design criteria of the building subcode. Where structural elements are sound, there is no excessive deflection (defined as deflection in excess of the standards set forth in N.J.A.C. 5:23-6.7(c)1), and fixed loads are not changing in a way that will increase the stresses on existing structures beyond that which is permitted by N.J.A.C. 5:23-6.7(c), existing structural elements shall be permitted to remain. (Building)

(k) Plumbing Fixtures: Plumbing fixtures shall be provided as follows. Where the plumbing subcode allows for the substitution or omission of fixtures, such substitutions or omissions shall also be permitted under this section. (Plumbing)

Total	Water Closets			Drinking Water	Service
Occupancy<1>	Male	Female	Lavatories	Facilities	Sinks
1-50	1 Unisex		1	1	1
51-100	1	1	1 per sex	1	1
101 and over	Fixtures to be provided as per Table 7.21.1 of the plumbing subcode.				

Note 1. For purposes of determining the number of plumbing fixtures required, total occupancy shall be the anticipated occupancy of the building under normal use conditions. It is not necessarily the same as the total permitted occupant load based on egress capacity.

(l) Mechanical Requirements: All spaces intended for occupancy shall be provided with either natural or mechanical ventilation.

1. Spaces intended to be naturally ventilated shall be provided with openable doors, windows, louvers, or other openings to the outdoors. The minimum openable area to the outdoors shall be four percent of the floor area being ventilated. Where rooms without openings to the outdoors are ventilated through an adjoining room, the unobstructed opening to the adjoining

room shall be at least eight percent of the floor area of the interior room or space, but not less than 25 square feet. The ventilation openings to the outdoors shall be based on the total floor area being ventilated.

2. Mechanically-ventilated spaces shall comply with the following:

- i.** Newly-installed HVAC systems shall comply with the requirements of the mechanical subcode.
- ii.** Existing systems that are altered or extended shall not reduce the amount of outside air below the existing rate per person or the rate included in the mechanical subcode, whichever is lower. As a minimum, mechanically-ventilated spaces shall be provided with five CFM per person of outdoor air and 15 CFM of ventilation air per person.

3. All newly-introduced devices, equipment or operations that produce airborne particulates, odors, fumes, sprays, vapors, smoke or gases in such quantities to be irritating or injurious to health shall be provided with local exhaust. (Building)

(m) Interior finishes shall comply with N.J.A.C. 5:23-6.11(c). (Plan review--Building, Fire. Inspection--Building)

(n) Specific Occupancy Areas: Specific occupancy areas within the work area, as listed in N.J.A.C. 5:23-6.30(h), shall comply with the requirements established in that section for separation and/or protection. (Building)

History

HISTORY:

Amended by R.1999 d.424, effective December 6, 1999.

See: 31 N.J.R. 2428(a), 31 N.J.R. 4001(c).

In (e), substituted "except that continued illumination shall be required to be provided" for "to assure continued illumination" in the last sentence of the introductory paragraph, and rewrote 1; and in (f)2, rewrote the second sentence.

Amended by R.2000 d.492, effective December 18, 2000.

See: 32 N.J.R. 3219(a), 32 N.J.R. 4437(b).

In (e), added second sentence in the introductory paragraph; and added (o).

Amended by R.2003 d.218, effective May 19, 2003.

See: 35 N.J.R. 29(a), 35 N.J.R. 2209(a).

In (l), substituted "the International Mechanical Code, 2000 edition" for "ASHRAE 62-89" in 2i and the second paragraph of 2ii; in (o), substituted section "716" for "721.0" of the building subcode.

Amended by R.2004 d.145, effective April 5, 2004.

See: 35 N.J.R. 5190(a), 36 N.J.R. 1758(a).

Substituted references to automatic sprinkler for references to suppression throughout; in (i)3, inserted "UFC" following "30-minute".

Amended by R.2006 d.120, effective April 3, 2006.

See: 37 N.J.R. 3753(a), 38 N.J.R. 1567(a).

In (l)2i and ii, substituted "mechanical subcode" for "International Mechanical Code, 2000 edition".

Amended by R.2007 d.122, effective May 7, 2007.

See: 38 N.J.R. 4951(a), 39 N.J.R. 1673(a).

Added (a)1ii; in (l)2ii, deleted "unless the indoor air quality procedure of ASHRAE 62-89 is followed and results in a lesser amount" following "ventilation air per person"; and in (o), substituted "717" for "716".

Amended by R.2009 d.117, effective April 20, 2009.

See: 41 N.J.R. 18(a), 41 N.J.R. 1726(a).

In (o), inserted "creates or" and deleted "exposed" preceding the second occurrence of "framing".

Amended by R.2017 d.077, effective May 1, 2017.

See: 48 N.J.R. 1854(a), 49 N.J.R. 1020(a).

In the introductory paragraph of (a), substituted "or" for "and"; and deleted (o).

Annotations

Notes

Chapter Notes

NEW JERSEY ADMINISTRATIVE CODE

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End of Document

N.J.A.C. 5:23-6.15A

This file includes all Regulations adopted and published through the New Jersey Register, Vol. 58 No. 16,
August 17, 2026

*NJ - New Jersey Administrative Code > TITLE 5. COMMUNITY AFFAIRS > CHAPTER 23. UNIFORM
CONSTRUCTION CODE > SUBCHAPTER 6. REHABILITATION SUBCODE*

§ 5:23-6.15A Supplemental requirements--Group A-3 Places of Worship

(a) Vertical Opening Protection: When the work area exceeds 50 percent of the gross enclosed floor area of the building, vertical opening protection shall be provided throughout the building as follows:

1. A minimum two hour fire rated assembly with approved opening protectives shall be required for interior stairways and other vertical openings connecting more than six floor levels.
2. A minimum one hour fire rated assembly with approved opening protectives shall be required for interior stairways and other vertical openings connecting four to six floor levels.
3. A minimum 30-minute UFC fire barrier shall be required for interior stairways and other vertical openings not exceeding three stories. Exceptions shall be permitted as follows:
 - i. When connecting the main floor and mezzanines; or
 - ii. When all of the following conditions are met:
 - (1) The communicating area has a low hazard occupancy or has a moderate hazard occupancy which is protected throughout by an automatic sprinkler system;
 - (2) The lowest or next to the lowest level is a street floor;
 - (3) The entire area is open and unobstructed in a manner such that it may be assumed that a fire in any part of the interconnected spaces will be readily obvious to all of the occupants;

(4) Exit capacity is sufficient to provide egress simultaneously for all the occupants of all levels by considering all areas to be a single floor area for the determination of required exit capacity; and

(5) Each floor level, considered separately, has at least one-half of its individual required exit capacity provided by an exit or exits leading directly out of that level without having to traverse another communicating floor level or be exposed to the smoke or fire spreading from another communicating floor level. (Plan review-- Building, Fire. Inspection-- Building)

(b) Requirements for high-rise buildings: Any building or structure having one or more floors, other than occupiable roofs, used for human occupancy located either more than six stories or more than 75 feet above the lowest level accessible to a fire department vehicle shall comply with the following:

1. When the work area is one entire floor or more or when the work area is 20 percent or more of the occupied floor area served by a recirculating air system, the recirculating air system which serves the work area shall be equipped with approved smoke and heat detection devices installed in accordance with the UCC. The devices shall stop the fan(s) automatically and shall be of the manual reset type. Automatic fan shutdown is not required when the system is part of an approved smoke removal or smoke control system. (Building)

2. When the work area is one entire floor or more or when the work area is 20 percent or more of the occupied floor area of the building, all elevators in the building shall be equipped with the following emergency control devices:

i. All automatic (nondesignated attendant) elevators having a travel distance of 25 feet or more above or below the designated level shall be equipped with Phase 1 Emergency Recall Operation as required by ASME A17.1-1987, Rules 211.3a and 211.3b listed in N.J.A.C. 5:70-3;

ii. At least one elevator shall be equipped with Phase II Emergency In-Car Operation, as required by ASME A17.1-1987, Rule 211.3c; and

(1) In buildings with multiple elevators, at least one elevator to each floor served by an elevator shall be equipped with Phase II Emergency In-Car Operation.

iii. All designated attendant elevators having a travel distance of 25 feet or more above or below the designated level shall be equipped with emergency controls, as required by ASME A17.1-1987, Rule 211.4. (Elevator)

3. When the work area is one entire floor or more or when the work area is 20 percent or more of the occupied floor area of the building, standpipes shall be provided up to and including the highest floor that is part of the work area. The standpipes shall be located and installed in accordance with the building subcode, except as follows:

i. No pump shall be required provided that the standpipes are capable of accepting delivery by fire department apparatus of a minimum of 250 gpm at 65 psi to the topmost floor in buildings equipped throughout with an automatic sprinkler system or a minimum of 500 gpm at 65 psi to the topmost floor in all other buildings. (Where the standpipe terminates below the topmost floor, the standpipe shall be designed to meet these requirements (gpm/psi) for possible future extension of the standpipe.)

ii. Hose and hose cabinets shall not be required. (Fire)

(c) Elevator Devices: When the work area exceeds 50 percent of the gross enclosed floor area of the building, all elevator devices serving any part of the work area shall comply with the requirements of N.J.A.C. 5:23-6.30(g). (Elevator)

History

HISTORY:

Amended by R.2000 d.492, effective December 18, 2000.

See: 32 N.J.R. 3219(a), 32 N.J.R. 4437(b).

In (b)2i, updated N.J.A.C. reference.

Amended by R.2003 d.218, effective May 19, 2003.

See: 35 N.J.R. 29(a), 35 N.J.R. 2209(a).

Amended by R.2004 d.145, effective April 5, 2004.

See: 35 N.J.R. 5190(a), 36 N.J.R. 1758(a).

Substituted references to sprinkler for references to fire suppression throughout; in (a)3, inserted "UFC" following "30-minute".

Amended by R.2009 d.117, effective April 20, 2009.

See: 41 N.J.R. 18(a), 41 N.J.R. 1726(a).

In (b)1, deleted "or exhaust" preceding the first and second occurrences of "system".

Amended by R.2026 d.087, effective August 17, 2026.

See: 57 N.J.R. 2333(a), 58 N.J.R. 1882(a).

In the introductory paragraph of (b), inserted ", other than occupiable roofs,".

Annotations

Notes

Chapter Notes

NEW JERSEY ADMINISTRATIVE CODE

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N.J.A.C. 5:23-6.16

This file includes all Regulations adopted and published through the New Jersey Register, Vol. 58 No. 16,
August 17, 2026

*NJ - New Jersey Administrative Code > TITLE 5. COMMUNITY AFFAIRS > CHAPTER 23. UNIFORM
CONSTRUCTION CODE > SUBCHAPTER 6. REHABILITATION SUBCODE*

§ 5:23-6.16 Basic requirements--Group A-5

(a) Exits: Two exits shall be required for stories with less than 500 occupants. Three exits shall be required for stories with 501 to 1,000 occupants. Four exits shall be required for stories with more than 1,000 occupants. Two means of egress are also required from all mezzanines with an occupant load greater than 50 or with exit travel distance greater than 75 feet.

1. When more than one exit is required, existing fire escapes shall be accepted as providing one of the required means of egress unless judged to be dangerous for use under emergency exiting conditions. For use of fire escapes, access shall be through a door except when serving an occupant load of 10 or fewer. All occupants shall have unobstructed access to fire escapes without having to pass through a room subject to locking.

i. When more than one exit is required and there is not sufficient space for an exterior stair within the lot line, a new fire escape shall be accepted as providing one of the required means of egress. Newly-installed fire escapes shall comply with FTO-3.

ii. Ladders shall be prohibited on fire escapes used as a required means of egress.

2. A single exit is permitted in the story at the level of exit discharge when the occupant load of the story does not exceed 50 and the exit access travel distance does not exceed 75 feet.

(Plan review--Building, Fire. Inspection--Building)

(b) Egress Doorways: A minimum of two egress doorways shall be required for all rooms and spaces with an occupant load greater than 50 or in which the travel distance exceeds 75 feet. All egress doors serving an occupant load greater than 50 shall swing in the direction of exit travel.

1. Exception: Storage rooms with a maximum occupant load of 10 shall not be required to have two egress doorways.
2. All required exit doors equipped with latching devices in buildings or spaces with an occupant load greater than 100 shall be equipped with approved panic hardware. (Plan review--Building, Fire. Inspection--Building)

(c) Capacity of Means of Egress: The capacity of the means of egress in each work area shall be determined in accordance with N.J.A.C. 5:23-6.11(b). Additionally, for buildings with an occupant load of 100 or more, a main entrance capable of serving as the main exit with an egress capacity for at least one-half the total occupant load is required. The remaining exits shall be capable of providing one-half of the total required exit capacity. This provision shall not apply in buildings with multiple main entrances. (Plan review--Building, Fire. Inspection--Building)

(d) Dead End Corridors: Existing dead end corridors shall not exceed 65 feet in length.

Exceptions are allowed as follows:

1. Dead end corridors may be up to 50 feet in length in a building with an automatic alarm system installed in conformance with the building code in effect at the time of its installation.
2. Dead end corridors may be up to 70 feet in length in a building with an automatic sprinkler system installed in conformance with the building code in effect at the time of its installation. (Plan review--Building, Fire. Inspection--Building)

(e) Means of Egress Lighting: Artificial lighting with an intensity of not less than one foot candle at floor level shall be required during all times that the conditions of occupancy of the building require that the exits be available. Lighting shall also be required to illuminate the exit discharge. In all buildings, rooms or spaces required to have more than one exit or exit access, means of egress lighting shall be connected to an emergency electrical system conforming to NFPA 70 (NEC) except that continued illumination shall be required to be provided for not less than one hour in the case of primary power loss.

1. In buildings used for motion pictures or other projections by means of directed light, the illumination of aisles may be reduced during periods of projection to not less than 0.2 foot

candle. The switch requirements and location(s) for controlling egress lighting connected to the emergency electrical system shall be in conformance with the NFPA 70 (NEC). (Plan review--Building, Fire, Electric. Inspection--Building)

(f) Illuminated Exit Signs: Illuminated exit signs shall be provided for all required means of egress in all buildings, rooms or spaces required to have more than one exit or exit access. Exit signs shall be visible from the exit access and supplemented by directional signs when necessary. (Exception: Approved main exterior doors that are clearly identified as exits are not required to have exit signs.) Exit signs shall meet the following criteria:

1. Red or green letters at least six inches high; minimum width of each stroke $\frac{3}{4}$ inch on a white background or in other approved distinguishable colors. Arrows, if provided, shall be such that the direction cannot readily be changed. The word "Exit" shall be clearly discernible when the sign is not energized.
2. Exit signs shall be illuminated at all times when the building is occupied by a source providing at least five foot candles at the illuminated surface or shall be approved self-luminous signs which provide evenly illuminated letters with a minimum luminance of 0.06 foot lamberts. Exit signs shall be connected to an emergency electrical system conforming to NFPA 70 (NEC) except that continued illumination shall be required to be provided for not less than one hour in the case of primary power loss. No emergency power shall be required for approved self-luminous signs. (Plan review--Building, Fire. Inspection--Building)

(g) Handrails: Every required exit stairway having three or more risers and not provided with handrails or in which the existing handrails are in danger of collapsing when used under emergency exiting conditions, shall be provided with handrails for the full length of the run of steps on at least one side. All exit stairways more than 66 inches wide shall have handrails on both sides unless the full width of the stairway is not needed to accommodate the design occupancy. (Plan review--Building, Fire. Inspection--Building)

(h) Guards: Every open portion of a stair, landing or balcony which is more than 30 inches above the floor or grade below and is not provided with guards or those in which the existing guards are

in danger of collapsing when used under emergency exiting conditions, shall be provided with guards. (Plan review--Building, Fire. Inspection--Building)

(i) Vertical Opening Protection: Vertical opening protection for interior stairways and other vertical openings shall be provided as follows. Stairways are not required to be enclosed where all portions of the means of egress are essentially open to the outside.

1. For vertical openings connecting more than six floor levels, approved assemblies having a fire resistance rating of not less than two hours with approved opening protectives shall be required.
2. For vertical openings connecting four to six floor levels, approved assemblies having a fire resistance rating of not less than one hour with approved opening protectives shall be required.
3. For vertical openings not exceeding three stories, a minimum 30-minute UFC fire barrier shall be required. Exceptions are as follows:
 - i. When connecting the main floor and mezzanines; or
 - ii. When all of the following conditions are met:
 - (1) The communicating area has a low hazard occupancy or has a moderate hazard occupancy which is protected throughout by an automatic sprinkler system;
 - (2) The lowest or next to the lowest level is a street floor;
 - (3) The entire area is open and unobstructed in a manner such that it may be assumed that a fire in any part of the interconnected spaces will be readily obvious to all of the occupants;
 - (4) Exit capacity is sufficient to provide egress simultaneously for all the occupants of all levels by considering all areas to be a single floor area for the determination of required exit capacity; and
 - (5) Each floor level, considered separately, has at least one-half of its individual required exit capacity provided by an exit or exits leading directly out of that level without having to traverse another communicating floor level or be exposed to the

smoke or fire spreading from another communicating floor level. (Plan review--
Building, Fire. Inspection--Building)

(j) Structural Elements: Structural elements which are uncovered during the course of the rehabilitation and which are found to be unsound or otherwise structurally deficient, shall be reinforced, supported or replaced in accordance with the applicable structural design criteria of the building subcode. Where structural elements are sound, there is no excessive deflection (defined as deflection in excess of the standards set forth in N.J.A.C. 5:23-6.7(c)1), and fixed loads are not changing in a way that will increase the stresses on existing structures beyond that which is permitted by N.J.A.C. 5:23-6.7(c), existing structural elements shall be permitted to remain. (Building)

(k) Plumbing Fixtures: Plumbing fixtures shall be provided as required by Table 7.21.1 of the plumbing subcode. Where the plumbing subcode allows for the substitution or omission of fixtures, such substitutions or omissions shall also be permitted under this section. (Plumbing)

(l) Mechanical Requirements: All spaces intended for occupancy shall be provided with either natural or mechanical ventilation.

1. Spaces intended to be naturally ventilated shall be provided with openable doors, windows, louvers, or other openings to the outdoors. The minimum openable area to the outdoors shall be four percent of the floor area being ventilated. Where rooms without openings to the outdoors are ventilated through an adjoining room, the unobstructed opening to the adjoining room shall be at least eight percent of the floor area of the interior room or space, but not less than 25 square feet. The ventilation openings to the outdoors shall be based on the total floor area being ventilated.

2. Mechanically-ventilated spaces shall comply with the following:

- i. Newly-installed HVAC systems shall comply with the requirements of the mechanical subcode.
- ii. Existing systems that are altered or extended shall not reduce the amount of outside air below the existing rate per person or the rate included in the mechanical subcode,

whichever is lower. As a minimum, mechanically-ventilated spaces shall be provided with five CFM per person of outdoor air and 15 CFM of ventilation air per person.

3. All newly-introduced devices, equipment or operations that produce airborne particulates, odors, fumes, sprays, vapors, smoke or gases in such quantities to be irritating or injurious to health shall be provided with local exhaust. (Building)

(m) Interior finishes shall comply with N.J.A.C. 5:23-6.11(c). (Plan review--Building, Fire. Inspection--Building)

(n) Specific Occupancy Areas: Specific occupancy areas within the work area, as listed in N.J.A.C. 5:23-6.30(h), shall comply with the requirements established in that section for separation and/or protection. (Building)

History

HISTORY:

Amended by R.1999 d.424, effective December 6, 1999.

See: 31 N.J.R. 2428(a), 31 N.J.R. 4001(c).

In (e), substituted "except that continued illumination shall be required to be provided" for "to assure continued illumination" in the last sentence of the introductory paragraph, and rewrote 1; and in (f)2, rewrote the second sentence.

Amended by R.2000 d.492, effective December 18, 2000.

See: 32 N.J.R. 3219(a), 32 N.J.R. 4437(b).

In (e), added second sentence in the introductory paragraph; and added (o).

Amended by R.2003 d.218, effective May 19, 2003.

See: 35 N.J.R. 29(a), 35 N.J.R. 2209(a).

In (l)2i and in the first sentence of (l)2ii, substituted "the International Mechanical Code, 2000 edition" for "ASHRAE 62-89"; in (o), substituted "Section 716" for "Section 721.0".

Amended by R.2004 d.145, effective April 5, 2004.

See: 35 N.J.R. 5190(a), 36 N.J.R. 1758(a).

Substituted references to automatic sprinkler for references to suppression throughout; in (i)3, inserted "UFC" following "30-minute".

Amended by R.2006 d.120, effective April 3, 2006.

See: 37 N.J.R. 3753(a), 38 N.J.R. 1567(a).

In (l)2i and ii, substituted "mechanical subcode" for "International Mechanical Code, 2000 edition".

Amended by R.2007 d.122, effective May 7, 2007.

See: 38 N.J.R. 4951(a), 39 N.J.R. 1673(a).

Added (a)1ii; in (l)2ii, deleted "unless the indoor air quality procedure of ASHRAE 62-89 is followed and results in a lesser amount" following "ventilation air per person"; and in (o), substituted "717" for "716".

Amended by R.2009 d.117, effective April 20, 2009.

See: 41 N.J.R. 18(a), 41 N.J.R. 1726(a).

In (o), inserted "creates or" and deleted "exposed" preceding the second occurrence of "framing".

Amended by R.2017 d.077, effective May 1, 2017.

See: 48 N.J.R. 1854(a), 49 N.J.R. 1020(a).

In the introductory paragraph of (a), substituted "or" for "and"; and deleted (o).

Annotations

Notes

Chapter Notes

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N.J.A.C. 5:23-6.16A

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*NJ - New Jersey Administrative Code > TITLE 5. COMMUNITY AFFAIRS > CHAPTER 23. UNIFORM
CONSTRUCTION CODE > SUBCHAPTER 6. REHABILITATION SUBCODE*

§ 5:23-6.16A Supplemental requirements--Groups A-5

(a) Automatic fire sprinkler system: An automatic fire sprinkler system shall be installed in all Group A-5 work areas when the work area contains concession stands, retail areas, press boxes or other accessory use areas in excess of 1,000 square feet.

(b) Manual Alarm Systems: For buildings greater than three stories in height with occupant loads over 25, when the work area exceeds 50 percent of the gross enclosed floor area of the building, manual fire alarms shall be required throughout the building. (Fire)

(c) Vertical Opening Protection: When the work area exceeds 50 percent of the gross enclosed floor area of the building, vertical opening protection shall be provided throughout the building as follows:

1. A minimum two hour fire rated assembly with approved opening protectives shall be required for interior stairways and other vertical openings connecting more than six floor levels.
2. A minimum one hour fire rated assembly with approved opening protectives shall be required for interior stairways and other vertical openings connecting four to six floor levels.
3. A minimum 30-minute UFC fire barrier shall be required for interior stairways and other vertical openings not exceeding three stories. Exceptions shall be permitted as follows:
 - i. When connecting the main floor and mezzanines; or
 - ii. When all of the following conditions are met:

- (1) The communicating area has a low hazard occupancy or has a moderate hazard occupancy which is protected throughout by an automatic sprinkler system;
- (2) The lowest or next to the lowest level is a street floor;
- (3) The entire area is open and unobstructed in a manner such that it may be assumed that a fire in any part of the interconnected spaces will be readily obvious to all of the occupants;
- (4) Exit capacity is sufficient to provide egress simultaneously for all the occupants of all levels by considering all areas to be a single floor area for the determination of required exit capacity; and
- (5) Each floor level, considered separately, has at least one-half of its individual required exit capacity provided by an exit or exits leading directly out of that level without having to traverse another communicating floor level or be exposed to the smoke or fire spreading from another communicating floor level.

4. Exception: Stairways are not required to be enclosed where all portions of the means of egress are essentially open to the outside. (Plan review--Building, Fire. Inspection--Building)

(d) Requirements for high-rise buildings: Any building or structure having one or more floors, other than occupiable roofs, used for human occupancy located either more than six stories or more than 75 feet above the lowest level accessible to a fire department vehicle shall comply with the following:

1. When the work area is one entire floor or more or when the work area is 20 percent or more of the occupied floor area served by a recirculating air system, the recirculating air system which serves the work area shall be equipped with approved smoke and heat detection devices installed in accordance with the UCC. The devices shall stop the fan(s) automatically and shall be of the manual reset type. Automatic fan shutdown is not required when the system is part of an approved smoke removal or smoke control system. (Building)

2. When the work area is one entire floor or more or when the work area is 20 percent or more of the occupied floor area of the building, all elevators in the building shall be equipped with the following emergency control devices:

i. All automatic (nondesignated attendant) elevators having a travel distance of 25 feet or more above or below the designated level shall be equipped with Phase 1 Emergency Recall Operation as required by ASME A17.1-1987, Rules 211.3a and 211.3b listed in N.J.A.C. 5:70-3;

ii. At least one elevator shall be equipped with Phase II Emergency In-Car Operation, as required by ASME A17.1-1987, Rule 211.3c; and

(1) In buildings with multiple elevators, at least one elevator to each floor served by an elevator shall be equipped with Phase II Emergency In-Car Operation.

iii. All designated attendant elevators having a travel distance of 25 feet or more above or below the designated level shall be equipped with emergency controls, as required by ASME A17.1-1987, Rule 211.4. (Elevator)

3. When the work area is one entire floor or more or when the work area is 20 percent or more of the occupied floor area of the building, standpipes shall be provided up to and including the highest floor that is part of the work area. The standpipes shall be located and installed in accordance with the building subcode, except as follows:

i. No pump shall be required provided that the standpipes are capable of accepting delivery by fire department apparatus of a minimum of 250 gpm at 65 psi to the topmost floor in buildings equipped throughout with an automatic sprinkler system or a minimum of 500 gpm at 65 psi to the topmost floor in all other buildings. (Where the standpipe terminates below the topmost floor, the standpipe shall be designed to meet these requirements (gpm/psi) for possible future extension of the standpipe.)

ii. Hose and hose cabinets shall not be required. (Fire)

(e) Elevator Devices: When the work area exceeds 50 percent of the gross enclosed floor area of the building, all elevator devices serving any part of the work area shall comply with the requirements of N.J.A.C. 5:23-6.30(g). (Elevator)

History

HISTORY:

Amended by R.2000 d.492, effective December 18, 2000.

See: 32 N.J.R. 3219(a), 32 N.J.R. 4437(b).

In (c)2i, updated N.J.A.C. reference.

Amended by R.2004 d.145, effective April 5, 2004.

See: 35 N.J.R. 5190(a), 36 N.J.R. 1758(a).

Added a new (a); recodified former (a) through (d) as (b) through (e); in (c)3, inserted "UFC" following "30-minute"; and substituted references to sprinkler for references to fire suppression throughout.

Amended by R.2009 d.117, effective April 20, 2009.

See: 41 N.J.R. 18(a), 41 N.J.R. 1726(a).

In (d)1, deleted "or exhaust" preceding the first and second occurrences of "system".

Amended by R.2026 d.087, effective August 17, 2026.

See: 57 N.J.R. 2333(a), 58 N.J.R. 1882(a).

In the introductory paragraph of (d), inserted ", other than occupiable roofs,".

Annotations

Notes

Chapter Notes

NEW JERSEY ADMINISTRATIVE CODE

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N.J.A.C. 5:23-6.17

This file includes all Regulations adopted and published through the New Jersey Register, Vol. 58 No. 16,
August 17, 2026

*NJ - New Jersey Administrative Code > TITLE 5. COMMUNITY AFFAIRS > CHAPTER 23. UNIFORM
CONSTRUCTION CODE > SUBCHAPTER 6. REHABILITATION SUBCODE*

§ 5:23-6.17 Basic requirements--Group B

(a) Exits: Two exits shall be required for stories with less than 500 occupants. Three exits shall be required for stories with 501 to 1,000 occupants. Four exits shall be required for stories with more than 1,000 occupants. Two means of egress are also required from all mezzanines with an occupant load greater than 50 or with exit travel distance greater than 75 feet.

1. When more than one exit is required, existing fire escapes shall be accepted as providing one of the required means of egress unless judged to be dangerous for use under emergency exiting conditions. For use of fire escapes, access shall be through a door except when serving an occupant load of 10 or fewer. All occupants shall have unobstructed access to fire escapes without having to pass through a room subject to locking.

i. When more than one exit is required and there is not sufficient space for an exterior stair within the lot line, a new fire escape shall be accepted as providing one of the required means of egress. Newly-installed fire escapes shall comply with FTO-3.

2. A single exit is permitted in the story at the level of exit discharge when the occupant load of the story does not exceed 50 and the exit access travel distance does not exceed 75 feet.

3. A single exit shall be permitted in buildings of not more than two stories in height, with not more than 3,000 square feet per floor when the exit access travel distance does not exceed 75 feet and a minimum fire resistance rating of one hour is provided for the exit enclosure and the opening protection. (Plan review--Building, Fire. Inspection--Building)

(b) Egress Doorways: A minimum of two egress doorways shall be required for all rooms and spaces with an occupant load greater than 50 or in which the travel distance exceeds 75 feet. All egress doors serving an occupant load greater than 50 shall swing in the direction of exit travel.

1. Exception: Storage rooms with a maximum occupant load of 10 shall not be required to have two egress doorways. (Plan review--Building, Fire. Inspection--Building)

(c) Capacity of Means of Egress: The capacity of the means of egress in each work area shall be determined in accordance with N.J.A.C. 5:23-6.11(b). (Plan review--Building, Fire. Inspection--Building)

(d) Dead End Corridors: Existing dead end corridors shall not exceed 35 feet in length.

Exceptions are allowed as follows:

1. Dead end corridors may be up to 50 feet in length in a building with an automatic alarm system installed in conformance with the building code in effect at the time of its installation.
2. Dead end corridors may be up to 70 feet in length in a building with an automatic sprinkler system installed in conformance with the building code in effect at the time of its installation. (Plan review--Building, Fire. Inspection--Building)

(e) Means of Egress Lighting: Artificial lighting with an intensity of not less than one foot candle at floor level shall be required during all times that the conditions of occupancy of the building require that the exits be available. Lighting shall also be required to illuminate the exit discharge. In all buildings, rooms or spaces required to have more than one exit or exit access, means of egress lighting shall be connected to an emergency electrical system conforming to NFPA 70 (NEC) except that continued illumination shall be required to be provided for not less than one hour in the case of primary power loss. (Plan review--Building, Fire, Electric. Inspection--Building)

(f) Illuminated Exit Signs: Illuminated exit signs shall be provided for all required means of egress in all buildings, rooms or spaces required to have more than one exit or exit access. Exit signs shall be visible from the exit access and supplemented by directional signs when necessary.

(Exception: Approved main exterior doors that are clearly identified as exits are not required to have exit signs.) Exit signs shall meet the following criteria:

1. Red or green letters at least six inches high; minimum width of each stroke $\frac{3}{4}$ inch on a white background or in other approved distinguishable colors. Arrows, if provided, shall be such that the direction cannot readily be changed. The word "Exit" shall be clearly discernible when the sign is not energized.
2. Exit signs shall be illuminated at all times when the building is occupied by a source providing at least five foot candles at the illuminated surface or shall be approved self-luminous signs which provide evenly illuminated letters with a minimum luminance of 0.06 foot lamberts. Exit signs shall be connected to an emergency electrical system conforming to NFPA 70 (NEC) except that continued illumination shall be required to be provided for not less than one hour in the case of primary power loss. No emergency power shall be required for approved self-luminous signs. (Plan review--Building, Fire. Inspection--Building)

(g) Handrails: Every required exit stairway having three or more risers and not provided with handrails or in which the existing handrails are in danger of collapsing when used under emergency exiting conditions, shall be provided with handrails for the full length of the run of steps on at least one side. All exit stairways more than 66 inches wide shall have handrails on both sides unless the full width of the stairway is not needed to accommodate the design occupancy. (Plan review--Building, Fire. Inspection--Building)

(h) Guards: Every open portion of a stair, landing or balcony which is more than 30 inches above the floor or grade below and is not provided with guards or those in which the existing guards are in danger of collapsing when used under emergency exiting conditions, shall be provided with guards. (Plan review--Building, Fire. Inspection--Building)

(i) Vertical Opening Protection: Vertical opening protection for interior stairways and other vertical openings shall be provided as follows:

§ 5:23-6.17 Basic requirements--Group B

1. For vertical openings connecting more than six floor levels, approved assemblies having a fire resistance rating of not less than two hours with approved opening protectives shall be required.
2. For vertical openings connecting four to six floor levels, approved assemblies having a fire resistance rating of not less than one hour with approved opening protectives shall be required.
3. For vertical openings not exceeding three stories, a minimum 30-minute UFC fire barrier shall be required, with the following exception:

- i. No vertical opening protection shall be required for vertical openings of up to three stories in buildings not exceeding 3,000 square feet per floor or in buildings with an automatic sprinkler system throughout. (Plan review--Building, Fire. Inspection--Building)

(j) Structural Elements: Structural elements which are uncovered during the course of the rehabilitation and which are found to be unsound or otherwise structurally deficient, shall be reinforced, supported or replaced in accordance with the applicable structural design criteria of the building subcode. Where structural elements are sound, there is no excessive deflection (defined as deflection in excess of the standards set forth in N.J.A.C. 5:23-6.7(c)1), and fixed loads are not changing in a way that will increase the stresses on existing structures beyond that which is permitted by N.J.A.C. 5:23-6.7(c), existing structural elements shall be permitted to remain. (Building)

(k) Plumbing Fixtures: Plumbing fixtures shall be provided as follows: Where the plumbing subcode allows for the substitution or omission of fixtures, such substitutions or omissions shall also be permitted under this section. (Plumbing)

Total	Water		Drinking Water	Service
Occupancy<1,2,3,4>	Closets	Lavatories	Facilities	Sinks
1-15	1 Unisex	1	1	1
Employees	Fixtures to be provided as per Table 7.21.1 of the plumbing subcode.			
16 and over				
1-25	1 Unisex	1	1	1
Customers	Fixtures to be provided as per Table 7.21.1 of the plumbing subcode.			
26 and over				

Note 1. For purposes of determining the number of plumbing fixtures required, total occupancy shall be the anticipated occupancy of the building under normal use conditions. It is not necessarily the same as the total permitted occupant load based on egress capacity.

Note 2. Customer and employee facilities may be satisfied with a single unisex toilet facility where the number of employees does not exceed 15 and where the total occupancy does not exceed 25 or where the occupied floor area does not exceed 1,500 square feet.

Note 3. Requirements for employees and customers may be met with a single set of restrooms. The required number of fixtures shall be the greater of the required number for employees or customers.

Note 4. Regardless of total occupancy, exam rooms shall comply with Section 7.21.6e of the plumbing subcode.

(I) Mechanical Requirements: All spaces intended for occupancy shall be provided with either natural or mechanical ventilation.

1. Spaces intended to be naturally ventilated shall be provided with openable doors, windows, louvers, or other openings to the outdoors. The minimum openable area to the outdoors shall be four percent of the floor area being ventilated. Where rooms without openings to the outdoors are ventilated through an adjoining room, the unobstructed opening to the adjoining room shall be at least eight percent of the floor area of the interior room or space, but not less than 25 square feet. The ventilation openings to the outdoors shall be based on the total floor area being ventilated.

2. Mechanically-ventilated spaces shall comply with the following:

- i.** Newly-installed HVAC systems shall comply with the requirements of the mechanical subcode.
- ii.** Existing systems that are altered or extended shall not reduce the amount of outside air below the existing rate per person or the rate included in the mechanical subcode, whichever is lower. As a minimum, mechanically-ventilated spaces shall be provided with five CFM per person of outdoor air and 15 CFM of ventilation air per person.

3. All newly-introduced devices, equipment or operations that produce airborne particulates, odors, fumes, sprays, vapors, smoke or gases in such quantities to be irritating or injurious to health shall be provided with local exhaust. (Building)

(m) Interior finishes shall comply with N.J.A.C. 5:23-6.11(c). (Plan review--Building, Fire. Inspection--Building)

(n) Specific Occupancy Areas: Specific occupancy areas within the work area, as listed in N.J.A.C. 5:23-6.30(h), shall comply with the requirements established in that section for separation and/or protection. (Building)

History

HISTORY:

Amended by R.1999 d.424, effective December 6, 1999.

See: 31 N.J.R. 2428(a), 31 N.J.R. 4001(c).

In (e), substituted "except that continued illumination shall be required to be provided" for "to assure continued illumination" and inserted a reference to electric plan review in the last sentence of the introductory paragraph; and in (f)2, rewrote the second sentence.

Amended by R.2000 d.492, effective December 18, 2000.

See: 32 N.J.R. 3219(a), 32 N.J.R. 4437(b).

In (e), added second sentence; and added (o).

Amended by R.2003 d.218, effective May 19, 2003.

See: 35 N.J.R. 29(a), 35 N.J.R. 2209(a).

In (l)2i and in the first sentence of (l)2ii, substituted "the International Mechanical Code, 2000 edition" for "ASHRAE 62-89"; in (o), substituted "Section 716" for "Section 721.0".

Amended by R.2004 d.145, effective April 5, 2004.

See: 35 N.J.R. 5190(a), 36 N.J.R. 1758(a).

Substituted references to sprinkler for references to fire suppression throughout; in (i)3, inserted "UFC" following "30-minute".

Amended by R.2006 d.120, effective April 3, 2006.

See: 37 N.J.R. 3753(a), 38 N.J.R. 1567(a).

In (l)2i and ii, substituted "mechanical subcode" for "International Mechanical Code, 2000 edition".

Amended by R.2007 d.122, effective May 7, 2007.

See: 38 N.J.R. 4951(a), 39 N.J.R. 1673(a).

In (l)2ii, deleted "unless the indoor air quality procedure of ASHRAE 62-89 is followed and results in a lesser amount" following "ventilation air per person"; and in (o), substituted "717" for "716".

Amended by R.2009 d.117, effective April 20, 2009.

See: 41 N.J.R. 18(a), 41 N.J.R. 1726(a).

In (o), inserted "creates or" and deleted "exposed" preceding the second occurrence of "framing".

Amended by R.2017 d.077, effective May 1, 2017.

See: 48 N.J.R. 1854(a), 49 N.J.R. 1020(a).

In the introductory paragraph of (a), substituted "or" for "and"; and deleted (o).

Amended by R.2021 d.015, effective February 16, 2021.

See: 52 N.J.R. 561(a), 53 N.J.R. 245(a).

In the table in (k), inserted ", 4" to the heading of the second column, and added "Note 4".

Annotations

Notes

Chapter Notes

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N.J.A.C. 5:23-6.17A

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*NJ - New Jersey Administrative Code > TITLE 5. COMMUNITY AFFAIRS > CHAPTER 23. UNIFORM
CONSTRUCTION CODE > SUBCHAPTER 6. REHABILITATION SUBCODE*

§ 5:23-6.17A Supplemental requirements--Group B

(a) Manual Alarm System: When the work area exceeds 50 percent of the gross enclosed floor area of the building, a fire alarm system shall be installed throughout the building.

1. Exception: Manual alarm systems are not required in buildings which do not have occupied floors which are two or more stories above the lowest level of exit discharge or floors two or more stories below the highest level of exit discharge. (Fire)

(b) Vertical Opening Protection: When the work area exceeds 50 percent of the gross enclosed floor area of the building, vertical opening protection shall be provided throughout the building as follows:

1. A minimum two hour fire rated assembly with approved opening protectives shall be required for interior stairways and other vertical openings connecting more than six floor levels.
2. A minimum one hour fire rated assembly with approved opening protectives shall be required for interior stairways and other vertical openings connecting four to six floor levels.
3. A minimum 30-minute UFC fire barrier shall be required for interior stairways and other vertical openings not exceeding three stories.
 - i. Exception: No vertical opening protection shall be required for buildings up to 3,000 square feet per floor or for buildings with an automatic sprinkler system throughout. (Plan review--Building, Fire. Inspection--Building)

(c) Requirements for high-rise buildings: Any building or structure having one or more floors, other than occupiable roofs, used for human occupancy located either more than six stories or more than 75 feet above the lowest level accessible to a fire department vehicle shall comply with the following:

1. When the work area is one entire floor or more or when the work area is 20 percent or more of the occupied floor area served by a recirculating air system, the recirculating air system which serves the work area shall be equipped with approved smoke and heat detection devices installed in accordance with the UCC. The devices shall stop the fan(s) automatically and shall be of the manual reset type. Automatic fan shutdown is not required when the system is part of an approved smoke removal or smoke control system. (Building)
2. When the work area is one entire floor or more or when the work area is 20 percent or more of the occupied floor area of the building, all elevators in the building shall be equipped with the following emergency control devices:
 - i. All automatic (nondesignated attendant) elevators having a travel distance of 25 feet or more above or below the designated level shall be equipped with Phase 1 Emergency Recall Operation as required by ASME A17.1-1987, Rules 211.3a and 211.3b listed in N.J.A.C. 5:70-3;
 - ii. At least one elevator shall be equipped with Phase II Emergency In-Car Operation, as required by ASME A17.1-1987, Rule 211.3c; and
 - (1) In buildings with multiple elevators, at least one elevator to each floor served by an elevator shall be equipped with Phase II Emergency In-Car Operation.
 - iii. All designated attendant elevators having a travel distance of 25 feet or more above or below the designated level shall be equipped with emergency controls, as required by ASME A17.1-1987, Rule 211.4. (Elevator)
3. When the work area is one entire floor or more or when the work area is 20 percent or more of the occupied floor area of the building, standpipes shall be provided up to and including the

highest floor that is part of the work area. The standpipes shall be located and installed in accordance with the building subcode, except as follows:

- i.** No pump shall be required provided that the standpipes are capable of accepting delivery by fire department apparatus of a minimum of 250 gpm at 65 psi to the topmost floor in buildings equipped throughout with an automatic sprinkler system or a minimum of 500 gpm at 65 psi to the topmost floor in all other buildings. (Where the standpipe terminates below the topmost floor, the standpipe shall be designed to meet these requirements (gpm/psi) for possible future extension of the standpipe.)
- ii.** Hose and hose cabinets shall not be required. (Fire)

4. When the work area is one entire floor or more or when the work area is 20 percent or more of the occupied floor area of the building, central control station and communication systems shall be provided as follows:

- i.** An approved public address communication system consisting of loudspeakers in each corridor and in each room and tenant space exceeding 1,000 square feet, each elevator and elevator lobby and in each stair enclosure which shall be capable of being operated from the central control station;
- ii.** A two-way fire department communication system which shall operate between the central control and every elevator, elevator lobby and entry to enclosed exit stairways;
- iii.** A central control station for fire department operations shall be provided in a location approved by the fire department. It shall contain the public address panel, the fire department communications panel, fire detection and alarm system annunciator panels, status indicators and controls for air handling systems, sprinkler valve and water flow detector display panels, and status indicators and a telephone for fire department use with controlled access to the public telephone system. (Fire)

5. Automatic Sprinkler System: When the work area is an entire floor, an automatic sprinkler system shall be installed on that floor. When an automatic sprinkler system is provided, the

sprinkler riser shall be sized to serve the entire building, even if the system currently being installed serves only a portion of the building. (Fire)

(d) Elevator Devices: When the work area exceeds 50 percent of the gross enclosed floor area of the building, all elevator devices serving any part of the work area shall comply with the requirements of N.J.A.C. 5:23-6.30(g). (Elevator)

(e) Airport Traffic Control Towers: When the work area exceeds 50 percent of the gross enclosed floor area of an airport traffic control tower, the entire structure shall comply with the requirements of Section 412.3 of the building subcode.

History

HISTORY:

Amended by R.2000 d.492, effective December 18, 2000.

See: 32 N.J.R. 3219(a), 32 N.J.R. 4437(b).

In (c)2i, updated N.J.A.C. reference.

Amended by R.2003 d.218, effective May 19, 2003.

See: 35 N.J.R. 29(a), 35 N.J.R. 2209(a).

In (e), substituted "Section 412.1" for "Section 414.0".

Amended by R.2004 d.145, effective April 5, 2004.

See: 35 N.J.R. 5190(a), 36 N.J.R. 1758(a).

Substituted references to sprinkler for references to fire suppression throughout; in (b)3, inserted "UFC" following "30-minute".

Amended by R.2009 d.117, effective April 20, 2009.

See: 41 N.J.R. 18(a), 41 N.J.R. 1726(a).

In (c)1, deleted "or exhaust" preceding the first and second occurrences of "system".

Amended by R.2011 d.270, effective November 7, 2011.

See: 43 N.J.R. 1297(a), 43 N.J.R. 2999(a).

In (e), substituted "412.3" for "412.1".

Amended by R.2026 d.087, effective August 17, 2026.

See: 57 N.J.R. 2333(a), 58 N.J.R. 1882(a).

In the introductory paragraph of (c), inserted ", other than occupiable roofs,".

Annotations

Notes

Chapter Notes

NEW JERSEY ADMINISTRATIVE CODE

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N.J.A.C. 5:23-6.18

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*NJ - New Jersey Administrative Code > TITLE 5. COMMUNITY AFFAIRS > CHAPTER 23. UNIFORM
CONSTRUCTION CODE > SUBCHAPTER 6. REHABILITATION SUBCODE*

§ 5:23-6.18 Basic requirements--Group E

(a) Exits: Two exits shall be required for stories with less than 500 occupants. Three exits shall be required for stories with 501 to 1,000 occupants. Four exits shall be required for stories with more than 1,000 occupants. Two means of egress are also required from all mezzanines with an occupant load greater than 50 or with exit travel distance greater than 75 feet.

1. A single exit is permitted in the story at the level of exit discharge when the occupant load of the story does not exceed 50 and the exit access travel distance does not exceed 75 feet.

i. A single exit shall not be permitted when a building is used as a child care center.

2. Existing fire escapes shall be accepted as providing one of the required means of egress unless judged to be dangerous for use under emergency exiting conditions. For use of fire escapes, access shall be through a door except when serving an occupant load of 10 or fewer. All occupants shall have unobstructed access to fire escapes without having to pass through a room subject to locking.

i. When more than one exit is required and there is not sufficient space for an exterior stair within the lot line, a new fire escape shall be accepted as providing one of the required means of egress. Newly-installed fire escapes shall comply with FTO-3.

ii. Ladders shall be prohibited on fire escapes used as a required means of egress. (Plan review--Building, Fire. Inspection--Building)

(b) Egress Doorways: A minimum of two egress doorways shall be required for all rooms and spaces with an occupant load greater than 50 or in which the travel distance exceeds 75 feet. All egress doors serving an occupant load greater than 50 shall swing in the direction of exit travel.

1. Exception: Storage rooms with a maximum occupant load of 10 shall not be required to have two egress doorways.
2. A single means of egress shall be permitted in classrooms having a maximum occupant load of 75 in buildings equipped throughout with an automatic sprinkler system.
3. All required exit doors equipped with latching devices in buildings or spaces with an occupant load greater than 100 shall be equipped with approved panic hardware. (Plan review--Building, Fire. Inspection--Building)

(c) Capacity of Means of Egress: The capacity of the means of egress in each work area shall be determined in accordance with N.J.A.C. 5:23-6.11(b). (Plan review--Building, Fire. Inspection--Building)

(d) Dead End Corridors: Existing dead end corridors shall not exceed 35 feet in length.

Exceptions are allowed as follows:

1. Dead end corridors may be up to 50 feet in length in a building with an automatic alarm system installed in conformance with the building code in effect at the time of its installation.
2. Dead end corridors may be up to 70 feet in length in a building with an automatic sprinkler system installed in conformance with the building code in effect at the time of its installation. (Plan review--Building, Fire. Inspection--Building)

(e) Means of Egress Lighting: Artificial lighting with an intensity of not less than one foot candle at floor level shall be required during all times that the conditions of occupancy of the building require that the exits be available. Lighting shall also be required to illuminate the exit discharge. In all buildings, rooms or spaces required to have more than one exit or exit access, means of egress lighting shall be connected to an emergency electrical system conforming to NFPA 70

(NEC) except that continued illumination shall be required to be provided for not less than one hour in the case of primary power loss.

1. In buildings used for motion pictures or other projections by means of directed light, the illumination of aisles may be reduced during periods of projection to not less than 0.2 foot candle. The switch requirements and location(s) for controlling egress lighting connected to the emergency electrical system shall be in conformance with the NFPA 70 (NEC). (Plan review--Building, Fire, Electric. Inspection--Building)

(f) Illuminated Exit Signs: Illuminated exit signs shall be provided for all required means of egress in all buildings, rooms or spaces required to have more than one exit or exit access. Exit signs shall be visible from the exit access and supplemented by directional signs when necessary. (Exception: Approved main exterior doors that are clearly identified as exits are not required to have exit signs.) Exit signs shall meet the following criteria:

1. Red or green letters at least six inches high; minimum width of each stroke $\frac{3}{4}$ inch on a white background or in other approved distinguishable colors. Arrows, if provided, shall be such that the direction cannot readily be changed. The word "Exit" shall be clearly discernible when the sign is not energized.

2. Exit signs shall be illuminated at all times when the building is occupied by a source providing at least five foot candles at the illuminated surface or shall be approved self-luminous signs which provide evenly illuminated letters with a minimum luminance of 0.06 foot lamberts. Exit signs shall be connected to an emergency electrical system conforming to NFPA 70 (NEC) except that continued illumination shall be required to be provided for not less than one hour in the case of primary power loss. No emergency power shall be required for approved self-luminous signs. (Plan review--Building, Fire. Inspection--Building)

(g) Handrails: Every required exit stairway having three or more risers and not provided with handrails or in which the existing handrails are in danger of collapsing when used under emergency exiting conditions, shall be provided with handrails for the full length of the run of steps on at least one side. All exit stairways more than 66 inches wide shall have handrails on both

sides unless the full width of the stairway is not needed to accommodate the design occupancy.

(Plan review--Building, Fire. Inspection--Building)

(h) Guards: Every open portion of a stair, landing or balcony which is more than 30 inches above the floor or grade below and is not provided with guards or those in which the existing guards are in danger of collapsing when used under emergency exiting conditions, shall be provided with guards. (Plan review--Building, Fire. Inspection--Building)

(i) Vertical Opening Protection: Vertical opening protection for interior stairways and other vertical openings shall be provided as follows:

1. For vertical openings connecting more than six floor levels, approved assemblies having a fire resistance rating of not less than two hours with approved opening protectives shall be required.
2. For vertical openings connecting four to six floor levels, approved assemblies having a fire resistance rating of not less than one hour with approved opening protectives shall be required.
3. For vertical openings not exceeding three stories, a minimum one-hour UFC fire barrier shall be required, with the following exception:
 - i. No vertical opening protection shall be required for vertical openings of up to three stories with an automatic sprinkler system throughout. (Plan review--Building, Fire. Inspection--Building)

(j) Structural Elements: Structural elements which are uncovered during the course of the rehabilitation and which are found to be unsound or otherwise structurally deficient, shall be reinforced, supported or replaced in accordance with the applicable structural design criteria of the building subcode. Where structural elements are sound, there is no excessive deflection (defined as deflection in excess of the standards set forth in N.J.A.C. 5:23-6.7(c)1), and fixed loads are not changing in a way that will increase the stresses on existing structures beyond that which is permitted by N.J.A.C. 5:23-6.7(c), existing structural elements shall be permitted to remain. (Building)

(k) Plumbing Fixtures: Plumbing fixtures shall be provided as required by Table 7.21.1 of the plumbing subcode. Where the plumbing subcode allows for the substitution or omission of fixtures, such substitutions or omissions shall also be permitted under this section. (Plumbing)

(l) Mechanical Requirements: All spaces intended for occupancy shall be provided with either natural or mechanical ventilation. All public school buildings shall be provided with mechanical ventilation.

1. Spaces intended to be naturally ventilated shall be provided with openable doors, windows, louvers or other openings to the outdoors. The minimum openable area to the outdoors shall be four percent of the floor area being ventilated. Where rooms without openings to the outdoors are ventilated through an adjoining room, the unobstructed opening to the adjoining room shall be at least eight percent of the floor area of the interior room or space, but not less than 25 square feet. The ventilation openings to the outdoors shall be based on the total floor area being ventilated.

2. Mechanically ventilated spaces shall comply with the following:

i. Newly-installed HVAC systems shall comply with the requirements of the mechanical subcode.

ii. Existing systems that are altered or extended shall not reduce the amount of outside air below the existing rate per person or the rate included in the mechanical subcode, whichever is lower. As a minimum, mechanically-ventilated spaces shall be provided with five CFM per person of outdoor air and 15 CFM of ventilation air per person.

3. All newly-introduced devices, equipment, or operations that produce airborne particulates, odors, fumes, sprays, vapors, smoke, or gases in such quantities to be irritating or injurious to health shall be provided with local exhaust. (Building)

(m) Interior finishes shall comply with N.J.A.C. 5:23-6.11(c). (Plan review--Building, Fire. Inspection--Building)

(n) Specific Occupancy Areas: Specific occupancy areas within the work area, as listed in N.J.A.C. 5:23-6.30(h), shall comply with the requirements established in that section for separation and/or protection. (Building)

History

HISTORY:

Administrative correction.

See: 30 N.J.R. 3785(b).

Amended by R.1999 d.424, effective December 6, 1999.

See: 31 N.J.R. 2428(a), 31 N.J.R. 4001(c).

In (e), substituted "except that continued illumination shall be required to be provided" for "to assure continued illumination" in the last sentence of the introductory paragraph, and rewrote 1; and in (f)2, rewrote the second sentence.

Amended by R.2000 d.492, effective December 18, 2000.

See: 32 N.J.R. 3219(a), 32 N.J.R. 4437(b).

In (e), added second sentence in the introductory paragraph; and added (o).

Amended by R.2003 d.218, effective May 19, 2003.

See: 35 N.J.R. 29(a), 35 N.J.R. 2209(a).

In (l)2i and in the first sentence of (l)2ii, substituted "the International Mechanical Code, 2000 edition" for "ASHRAE 62-89"; in (o), substituted "Section 716" for "Section 721.0".

Amended by R.2004 d.145, effective April 5, 2004.

See: 35 N.J.R. 5190(a), 36 N.J.R. 1758(a).

Substituted references to sprinkler for references to fire suppression throughout; in (b), added 3; in (i)3, inserted "UFC" following "one-hour".

Amended by R.2006 d.120, effective April 3, 2006.

See: 37 N.J.R. 3753(a), 38 N.J.R. 1567(a).

In (l)2i and ii, substituted "mechanical subcode" for "International Mechanical Code, 2000 edition".

Administrative correction.

See: 38 N.J.R. 5010(d).

Amended by R.2007 d.122, effective May 7, 2007.

See: 38 N.J.R. 4951(a), 39 N.J.R. 1673(a).

Added (a)2; in (l)2ii, deleted "unless the indoor air quality procedure of ASHRAE 62-89 is followed and results in a lesser amount" following "ventilation air per person"; and in (o), substituted "717" for "716".

Amended by R.2009 d.117, effective April 20, 2009.

See: 41 N.J.R. 18(a), 41 N.J.R. 1726(a).

In (o), inserted "creates or" and deleted "exposed" preceding the second occurrence of "framing".

Amended by R.2017 d.077, effective May 1, 2017.

See: 48 N.J.R. 1854(a), 49 N.J.R. 1020(a).

In the introductory paragraph of (a), substituted "or" for "and"; in (a)1i and (b)2, deleted "(Plan review--Building, Fire. Inspection--Building)" from the end; in (a)2ii and (b)3, inserted "(Plan review--Building, Fire. Inspection--Building)"; and deleted (o).

Annotations

Notes

Chapter Notes

End of Document

N.J.A.C. 5:23-6.18A

This file includes all Regulations adopted and published through the New Jersey Register, Vol. 58 No. 16,
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*NJ - New Jersey Administrative Code > TITLE 5. COMMUNITY AFFAIRS > CHAPTER 23. UNIFORM
CONSTRUCTION CODE > SUBCHAPTER 6. REHABILITATION SUBCODE*

§ 5:23-6.18A Supplemental requirements--Group E

(a) Automatic Sprinkler System: In buildings three stories or more in height, with greater than 12,000 square feet per floor, when the work area exceeds 50 percent of the gross enclosed floor area of a floor, an automatic sprinkler system shall be installed throughout that floor. (Fire)

(b) Automatic Alarm System: When the work area exceeds 50 percent of the gross enclosed floor area of a building, an automatic fire alarm system shall be installed throughout the building as follows:

1. An approved system of automatic smoke detectors; or
2. An approved automatic sprinkler system equipped with automatic fire alarm devices; or
3. An approved system which combines the following elements shall be acceptable when devices are located as indicated below:
 - i. Combination fixed temperature/rate-of-rise detectors in classrooms and ancillary spaces;
 - ii. Photoelectric or projected-beam smoke detectors in exit access corridors and at the top of the exit stair enclosures; and
 - iii. Fixed temperature detectors in such a system shall be accepted in locations such as boiler rooms, garage areas and other spaces in which conditions render other detectors inappropriate.

4. Existing fire detection systems, installed and maintained in accordance with the manufacturer's recommendations, and meeting the intent of current standards for automatic fire alarms, shall be acceptable, provided:

- i.** The existing system is certified as functional by an approved service agency competent in the manufactured system.
- ii.** Where a portion of an existing system is not serviceable and cannot be repaired, the existing system shall be replaced in accordance with the above and the provisions of the building subcode. (Fire)

(c) Manual Alarm System: When the work area exceeds 50 percent of the gross enclosed floor area of the building, manual fire alarm boxes shall be provided throughout the building in compliance with Section 907.4.2 of the building subcode and in accordance with the following:

- 1.** Manual fire alarm boxes shall be provided in the natural path of escape from fire, near each exterior door from the corridor, kitchen, heater room and other exterior exits that are required to serve 50 or more persons. Additional fire alarm boxes shall be located in the main office, stage, at each stairway entrance from a corridor or place of assembly and near one exterior exit in each section of a place of assembly. It shall not be necessary to traverse more than 200 feet of unobstructed horizontal distance on the same floor in order to reach a fire alarm box. (Fire)

(d) Vertical Opening Protection: When the work area exceeds 50 percent of the gross enclosed floor area of the building, vertical opening protection shall be provided throughout the building as follows:

- 1.** A minimum two hour fire rated assembly with approved opening protectives shall be required for interior stairways and other vertical openings connecting more than six floor levels.
- 2.** A minimum one hour fire rated assembly with approved opening protectives shall be required for interior stairways and other vertical openings connecting four to six floor levels.

3. A minimum one-hour UFC fire barrier shall be required for interior stairways and other vertical openings not exceeding three stories.

i. No vertical opening protection shall be required for buildings with an automatic sprinkler system throughout. (Plan review--Building, Fire. Inspection--Building)

(e) Requirements for high-rise buildings: Any building or structure having one or more floors, other than occupiable roofs, used for human occupancy located either more than six stories or more than 75 feet above the lowest level accessible to a fire department vehicle shall comply with the following:

1. When the work area is one entire floor or more or when the work area is 20 percent or more of the occupied floor area served by a recirculating air system, the recirculating air system which serves the work area shall be equipped with approved smoke and heat detection devices installed in accordance with the UCC. The devices shall stop the fan(s) automatically and shall be of the manual reset type. Automatic fan shutdown is not required when the system is part of an approved smoke removal or smoke control system. (Building)

2. When the work area is one entire floor or more or when the work area is 20 percent or more of the occupied floor area of the building, all elevators in the building shall be equipped with the following emergency control devices:

i. All automatic (nondesignated attendant) elevators having a travel distance of 25 feet or more above or below the designated level shall be equipped with Phase 1 Emergency Recall Operation as required by ASME A17.1-1987, Rules 211.3a and 211.3b listed in N.J.A.C. 5:70-3;

ii. At least one elevator shall be equipped with Phase II Emergency In-Car Operation, as required by ASME A17.1-1987, Rule 211.3c;

(1) In buildings with multiple elevators, at least one elevator to each floor served by an elevator shall be equipped with Phase II Emergency In-Car Operation; and

iii. All designated attendant elevators having a travel distance of 25 feet or more above or below the designated level shall be equipped with emergency controls, as required by ASME A17.1-1987, Rule 211.4. (Elevator)

3. When the work area is one entire floor or more or when the work area is 20 percent or more of the occupied floor area of the building, standpipes shall be provided up to and including the highest floor that is part of the work area. The standpipes shall be located and installed in accordance with the building subcode, except as follows:

i. No pump shall be required provided that the standpipes are capable of accepting delivery by the fire department apparatus of a minimum of 250 gpm at 65 psi to the topmost floor in buildings equipped throughout with an automatic sprinkler system at a minimum of 500 gpm at 65 psi to the topmost floor in all other buildings. (Where the standpipe terminates below the topmost floor, the standpipe shall be designed to meet these requirements (gpm/psi) for possible future extension of standpipe.)

ii. Hose and hose cabinets shall not be required. (Fire)

(f) Elevator Devices: When the work area exceeds 50 percent of the gross enclosed floor area of the building, all elevator devices serving any part of the work area shall comply with the requirements of N.J.A.C. 5:23-6.30(g). (Elevator)

History

HISTORY:

Administrative correction.

See: 30 N.J.R. 3242(a).

Amended by R.2000 d.492, effective December 18, 2000.

See: 32 N.J.R. 3219(a), 32 N.J.R. 4437(b).

In (e)2i, updated N.J.A.C. reference.

Amended by R.2003 d.218, effective May 19, 2003.

See: 35 N.J.R. 29(a), 35 N.J.R. 2209(a).

In (c), substituted "Section 907.3" for "Section 918.5".

Amended by R.2004 d.145, effective April 5, 2004.

See: 35 N.J.R. 5190(a), 36 N.J.R. 1758(a).

Substituted references to sprinkler for references to fire suppression throughout; in(d)3, inserted "UFC" following "one-hour".

Amended by R.2009 d.117, effective April 20, 2009.

See: 41 N.J.R. 18(a), 41 N.J.R. 1726(a).

In (e)1, deleted "or exhaust" preceding the first and second occurrences of "system".

Amended by R.2011 d.270, effective November 7, 2011.

See: 43 N.J.R. 1297(a), 43 N.J.R. 2999(a).

In the introductory paragraph of (c), substituted "907.4.2" for "907.3".

Amended by R.2017 d.077, effective May 1, 2017.

See: 48 N.J.R. 1854(a), 49 N.J.R. 1020(a).

In (a), substituted "12,000" for "20,000".

Amended by R.2026 d.087, effective August 17, 2026.

See: 57 N.J.R. 2333(a), 58 N.J.R. 1882(a).

In the introductory paragraph of (e), inserted ", other than occupiable roofs,".

Annotations

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N.J.A.C. 5:23-6.19

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*NJ - New Jersey Administrative Code > TITLE 5. COMMUNITY AFFAIRS > CHAPTER 23. UNIFORM
CONSTRUCTION CODE > SUBCHAPTER 6. REHABILITATION SUBCODE*

§ 5:23-6.19 Basic requirements--Group F

(a) Exits: Two exits shall be required for stories with less than 500 occupants. Three exits shall be required for stories with 501 to 1,000 occupants. Four exits shall be required for stories with more than 1,000 occupants. Two means of egress are also required from all mezzanines with an occupant load greater than 50 or with exit travel distance greater than 75 feet.

1. When more than one exit is required, existing fire escapes shall be accepted as providing one of the required means of egress unless judged to be dangerous for use under emergency exiting conditions. For use of fire escapes, access shall be through a door except when serving an occupant load of 10 or fewer. All occupants shall have unobstructed access to fire escapes without having to pass through a room subject to locking.

i. When more than one exit is required and there is not sufficient space for an exterior stair within the lot line, a new fire escape shall be accepted as providing one of the required means of egress. Newly-installed fire escapes shall comply with FTO-3.

2. A single exit is permitted in the story at the level of exit discharge when the occupant load of the story does not exceed 50 and the exit access travel distance does not exceed 75 feet.

(Plan review--Building, Fire. Inspection--Building)

(b) Egress Doorways: A minimum of two egress doorways shall be required for all rooms and spaces with an occupant load greater than 50 or in which the travel distance exceeds 75 feet. All egress doors serving an occupant load greater than 50 shall swing in the direction of exit travel.

1. Exception: Storage rooms with a maximum occupant load of 10 shall not be required to have two egress doorways. (Plan review--Building, Fire. Inspection--Building)

(c) Capacity of Means of Egress: The capacity of the means of egress in each work area shall be determined in accordance with N.J.A.C. 5:23-6.11(b). (Plan review--Building, Fire. Inspection--Building)

(d) Dead End Corridors: Existing dead end corridors shall not exceed 35 feet in length.

Exceptions are allowed as follows:

1. Dead end corridors may be up to 50 feet in length in a building with an automatic alarm system installed in conformance with the building code in effect at the time of its installation.

2. Dead end corridors may be up to 70 feet in length in a building with an automatic sprinkler system installed in conformance with the building code in effect at the time of its installation.

(Plan review--Building, Fire. Inspection--Building)

(e) Means of Egress Lighting: Artificial lighting with an intensity of not less than one foot candle at floor level shall be required during all times that the conditions of occupancy of the building require that the exits be available. In all buildings, rooms or spaces required to have more than one exit or exit access, means of egress lighting shall be connected to an emergency electrical system conforming to NFPA 70 (NEC) except that continued illumination shall be required to be provided for not less than one hour in the case of primary power loss. (Plan review--Building, Fire, Electric. Inspection--Building)

(f) Illuminated Exit Signs: Illuminated exit signs shall be provided for all required means of egress in all buildings, rooms or spaces required to have more than one exit or exit access. Exit signs shall be visible from the exit access and supplemented by directional signs when necessary. (Exception: Approved main exterior doors that are clearly identified as exits are not required to have exit signs.) Exit signs shall meet the following criteria: (Plan review--Building, Fire. Inspection--Building)

1. Red or green letters at least six inches high; minimum width of each stroke 3/4 inch on a white background or in other approved distinguishable colors. Arrows, if provided, shall be

such that the direction cannot readily be changed. The word "Exit" shall be clearly discernible when the sign is not energized.

2. Exit signs shall be illuminated at all times when the building is occupied by a source providing at least five foot candles at the illuminated surface or shall be approved self-luminous signs which provide evenly illuminated letters with a minimum luminance of 0.06 foot lamberts. Exit signs shall be connected to an emergency electrical system conforming to NFPA 70 (NEC) except that continued illumination shall be required to be provided for not less than one hour in the case of primary power loss. No emergency power shall be required for approved self-luminous signs. (Plan review--Building, Fire. Inspection--Building)

(g) Handrails: Every required exit stairway having three or more risers and not provided with handrails or in which the existing handrails are in danger of collapsing when used under emergency exiting conditions, shall be provided with handrails for the full length of the run of steps on at least one side. All exit stairways more than 66 inches wide shall have handrails on both sides unless the full width of the stairway is not needed to accommodate the design occupancy. (Plan review--Building, Fire. Inspection--Building)

(h) Guards: Every open portion of a stair, landing or balcony which is more than 30 inches above the floor or grade below and is not provided with guards or those in which the existing guards are in danger of collapsing when used under emergency exiting conditions, shall be provided with guards. (Plan review--Building, Fire. Inspection--Building)

(i) Vertical Opening Protection: Vertical opening protection for interior stairways and other vertical openings shall be provided as follows:

1. For vertical openings connecting more than six floor levels, approved assemblies having a fire resistance rating of not less than two hours with approved opening protectives shall be required.
2. For vertical openings connecting four to six floor levels, approved assemblies having a fire resistance rating of not less than one hour with approved opening protectives shall be required.

3. For vertical openings not exceeding three stories, a minimum one-hour UFC fire barrier shall be required, with the following exceptions:

- i.** No vertical opening protection shall be required for vertical openings of up to three stories in special purpose manufacturing occupancies when necessary for manufacturing operations and when direct access is provided to at least one protected stairway; or
- ii.** In buildings with an automatic sprinkler system throughout. (Plan review--Building, Fire. Inspection--Building)

(j) Structural Elements: Structural elements which are uncovered during the course of the rehabilitation and which are found to be unsound or otherwise structurally deficient, shall be reinforced, supported or replaced in accordance with the applicable structural design criteria of the building subcode. Where structural elements are sound, there is no excessive deflection (defined as deflection in excess of the standards set forth in N.J.A.C. 5:23-6.7(c)1), and fixed loads are not changing in a way that will increase the stresses on existing structures beyond that which is permitted by N.J.A.C. 5:23-6.7(c), existing structural elements shall be permitted to remain. (Building)

(k) Plumbing Fixtures: Plumbing fixtures shall be provided as follows. Where the plumbing subcode allows for the substitution or omission of fixtures, such substitutions or omissions shall also be permitted under this section. (Plumbing)

	Total Occupancy<1>	Water Closets	Lavatories	Drinking Water Facilities	Service Sinks
Light Industrial	1-15	1 Unisex	1	1	1
		16 and over			Fixture s to be provide d as per Table
Heavy Industrial			7.21.1 of the plumbing subcode. Fixtures to be provided as per Table 7.21.1 of the plumbing subcode		

Note 1. For purposes of determining the number of plumbing fixtures required, total occupancy shall be anticipated occupancy of the building under normal use conditions. It is not necessarily the same as the total permitted occupant load based on egress capacity.

(l) Mechanical Requirements: All spaces intended for occupancy shall be provided with either natural or mechanical ventilation.

1. Spaces intended to be naturally ventilated shall be provided with openable doors, windows, louvers, or other openings to the outdoors. The minimum openable area to the outdoors shall be four percent of the floor area being ventilated. Where rooms without openings to the outdoors are ventilated through an adjoining room, the unobstructed opening to the adjoining room shall be at least eight percent of the floor area of the interior room or space, but not less than 25 square feet. The ventilation openings to the outdoors shall be based on the total floor area being ventilated.

2. Mechanically-ventilated spaces shall comply with the following:

i. Newly-installed HVAC systems shall comply with the requirements of the mechanical subcode.

ii. Existing systems that are altered or extended shall not reduce the amount of outside air below the existing rate per person or the rate included in the mechanical subcode, whichever is lower. As a minimum, mechanically-ventilated spaces shall be provided with five CFM per person of outdoor air and 15 CFM of ventilation air per person.

3. All newly-introduced devices, equipment or operations that produce airborne particulates, odors, fumes, sprays, vapors, smoke or gases in such quantities to be irritating or injurious to health shall be provided with local exhaust. (Building)

(m) Interior finishes shall comply with N.J.A.C. 5:23-6.11(c). (Plan review--Building, Fire. Inspection--Building)

(n) Specific Occupancy Areas: Specific occupancy areas within the work area, as listed in N.J.A.C. 5:23-6.30(h), shall comply with the requirements established in that section for separation and/or protection. (Building)

History

HISTORY:

Amended by R.1999 d.424, effective December 6, 1999.

See: 31 N.J.R. 2428(a), 31 N.J.R. 4001(c).

In (e), substituted "except that continued illumination shall be required to be provided" for "to assure continued illumination" and added a reference to plan review and inspection in the last sentence of the introductory paragraph; and in (f)2, rewrote the second sentence.

Amended by R.2000 d.492, effective December 18, 2000.

See: 32 N.J.R. 3219(a), 32 N.J.R. 4437(b).

Added (o).

Amended by R.2003 d.218, effective May 19, 2003.

See: 35 N.J.R. 29(a), 35 N.J.R. 2209(a).

In (l)2i and in the first sentence of (l)2ii, substituted "the International Mechanical Code, 2000 edition" for "ASHRAE 62-89"; in (o), substituted "Section 716" for "Section 721.0".

Amended by R.2004 d.145, effective April 5, 2004.

See: 35 N.J.R. 5190(a), 36 N.J.R. 1758(a).

Substituted references to automatic sprinkler for references to suppression throughout; in(i)3, inserted "UFC" following "one-hour".

Amended by R.2006 d.120, effective April 3, 2006.

See: 37 N.J.R. 3753(a), 38 N.J.R. 1567(a).

In (l)2i and ii, substituted "mechanical subcode" for "International Mechanical Code, 2000 edition".

Amended by R.2007 d.122, effective May 7, 2007.

See: 38 N.J.R. 4951(a), 39 N.J.R. 1673(a).

In (l)2ii, deleted "unless the indoor air quality procedure of ASHRAE 62-89 is followed and results in a lesser amount" following "ventilation air per person"; and in (o), substituted "717" for "716".

Amended by R.2009 d.117, effective April 20, 2009.

See: 41 N.J.R. 18(a), 41 N.J.R. 1726(a).

In (o), inserted "creates or" and deleted "exposed" preceding the second occurrence of "framing".

Amended by R.2017 d.077, effective May 1, 2017.

See: 48 N.J.R. 1854(a), 49 N.J.R. 1020(a).

In the introductory paragraph of (a), substituted "or" for "and"; and deleted (o).

Annotations

Notes

Chapter Notes

NEW JERSEY ADMINISTRATIVE CODE

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N.J.A.C. 5:23-6.19A

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*NJ - New Jersey Administrative Code > TITLE 5. COMMUNITY AFFAIRS > CHAPTER 23. UNIFORM
CONSTRUCTION CODE > SUBCHAPTER 6. REHABILITATION SUBCODE*

§ 5:23-6.19A Supplemental Requirements--Group F

(a) Automatic sprinkler system: In buildings with a Group F-1 fire area greater than 12,000 square feet or a Group F-1 fire area more than three stories in height, when the work area exceeds 50 percent of the gross enclosed floor area of the building, an automatic sprinkler system shall be provided throughout the entire building.

(b) Manual Alarm System: For buildings greater than three stories in height with occupant loads over 25, when the work area exceeds 50 percent of the gross enclosed floor area of the building, manual fire alarms shall be required throughout the building.

1. Exception: Manual alarm systems shall not be required in buildings equipped throughout with an automatic sprinkler system. (Fire)

(c) Vertical Opening Protection: When the work area exceeds 50 percent of the gross enclosed floor area of the building, vertical opening protection shall be provided throughout the building as follows:

1. A minimum two hour fire rated assembly with approved opening protectives shall be required for interior stairways and other vertical openings connecting more than six floor levels.

2. A minimum one hour fire rated assembly with approved opening protectives shall be required for interior stairways and other vertical openings connecting four to six floor levels.

3. A minimum one-hour UFC fire barrier required for interior stairways and other vertical openings not exceeding three stories.

i. Exception: No vertical opening protection shall be required for special purpose occupancies when necessary for manufacturing operations and direct access is provided to at least one protected stairway or for buildings with an automatic sprinkler system throughout. (Plan review--Building, Fire. Inspection--Building)

(d) Requirements for high-rise buildings: Any building or structure having one or more floors, other than occupiable roofs, used for human occupancy located either more than six stories or more than 75 feet above the lowest level accessible to a fire department vehicle shall comply with the following:

1. When the work area is one entire floor or more or when the work area is 20 percent or more of the occupied floor area served by a recirculating air system, the recirculating air system which serves the work area shall be equipped with approved smoke and heat detection devices installed in accordance with the UCC. The devices shall stop the fan(s) automatically and shall be of the manual reset type. Automatic fan shutdown is not required when the system is part of an approved smoke removal or smoke control system. (Building)

2. When the work area is one entire floor or more or when the work area is 20 percent or more of the occupied floor area of the building, all elevators in the building shall be equipped with the following emergency control devices:

i. All automatic (nondesignated attendant) elevators having a travel distance of 25 feet or more above or below the designated level shall be equipped with Phase 1 Emergency Recall Operation as required by ASME A17.1-1987, Rules 211.3a and 211.3b listed in N.J.A.C. 5:70-3;

ii. At least one elevator shall be equipped with Phase II Emergency In-Car Operation, as required by ASME A17.1-1987, Rule 211.3c;

(1) In buildings with multiple elevators, at least one elevator to each floor served by an elevator shall be equipped with Phase II Emergency In-Car Operation; and

iii. All designated attendant elevators having a travel distance of 25 feet or more above or below the designated level shall be equipped with emergency controls, as required by ASME A17.1-1987, Rule 211.4. (Elevator)

3. When the work area is one entire floor or more or when the work area is 20 percent or more of the occupied floor area of the building, standpipes shall be provided up to and including the highest floor that is part of the work area. The standpipes shall be located and installed in accordance with the building subcode, except as follows:

i. No pump shall be required provided that the standpipes are capable of accepting delivery by fire department apparatus of a minimum of 250 gpm at 65 psi to the topmost floor in buildings equipped throughout with an automatic sprinkler system or a minimum of 500 gpm of 65 psi to the topmost floor in all other buildings. (Where the standpipe terminates below the topmost floor, the standpipe shall be designed to meet these requirements (gpm/psi) for possible future extension of the standpipe.)

ii. Hose and hose cabinets shall not be required. (Fire)

(e) Elevator Devices: When the work area exceeds 50 percent of the gross enclosed floor area of the building, all elevator devices serving any part of the work area shall comply with the requirements of N.J.A.C. 5:23-6.30(g). (Elevator)

History

HISTORY:

Amended by R.2000 d.492, effective December 18, 2000.

See: 32 N.J.R. 3219(a), 32 N.J.R. 4437(b).

In (c)2i, updated N.J.A.C. reference.

Amended by R.2004 d.145, effective April 5, 2004.

See: 35 N.J.R. 5190(a), 36 N.J.R. 1758(a).

Added a new (a); recodified former (a) through (d) as (b) through (e); in (c)3, inserted "UFC" following "one-hour"; and substituted references to sprinkler for references to fire suppression throughout.

Amended by R.2009 d.117, effective April 20, 2009.

See: 41 N.J.R. 18(a), 41 N.J.R. 1726(a).

In (d)1, deleted "or exhaust" preceding the first and second occurrences of "system".

Amended by R.2026 d.087, effective August 17, 2026.

See: 57 N.J.R. 2333(a), 58 N.J.R. 1882(a).

In the introductory paragraph of (d), inserted ", other than occupiable roofs,".

Annotations

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NEW JERSEY ADMINISTRATIVE CODE

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*NJ - New Jersey Administrative Code > TITLE 5. COMMUNITY AFFAIRS > CHAPTER 23. UNIFORM
CONSTRUCTION CODE > SUBCHAPTER 6. REHABILITATION SUBCODE*

§ 5:23-6.20 Basic requirements--Group H

- (a) Automatic Sprinkler System: An automatic sprinkler shall be installed throughout the work area. The sprinkler riser shall be sized to serve the entire building, even if the system currently being installed serves only a portion of the building. (Fire)
- (b) Exits: Two exits shall be required for stories with less than 500 occupants. Three exits shall be required for stories with 501 to 1,000 occupants. Four exits shall be required for stories with more than 1,000 occupants.
1. For buildings of Group H-1, H-2 or H-3, a minimum of two exits shall be required from all mezzanines with an occupant load of greater than three or in which the travel distance exceeds 50 feet. For buildings of Group H-4 or H-5, a minimum of two exits shall be required from all mezzanines with an occupant load of greater than 10 or in which the travel distance exceeds 75 feet.
 2. A single exit is permitted in the story at the level of exit discharge when the occupant load of the story does not exceed 50 and the exit access travel distance does not exceed 75 feet.
 3. For buildings of Group H-1 or H-2, new slidescapes or safety chutes shall be permitted where constructed in accordance with the building subcode.
 4. Existing fire escapes shall be accepted as providing one of the required means of egress unless judged to be dangerous for use under emergency exiting conditions. For use of fire escapes, access shall be through a door except when serving an occupant load of 10 or fewer.

All occupants shall have unobstructed access to fire escapes without having to pass through a room subject to locking.

i. When more than one exit is required and there is not sufficient space for an exterior stair within the lot line, a new fire escape shall be accepted as providing one of the required means of egress. Newly-installed fire escapes shall comply with FTO-3. (Plan review--Building, Fire. Inspection--Building)

(c) Egress Doorways: For buildings or spaces of Group H-1, H-2, or H-3, a minimum of two egress doorways shall be required for all rooms and spaces with an occupant load greater than three or in which the travel distance exceeds 50 feet. For buildings or spaces of Group H-4 or H-5, a minimum of two egress doorways shall be required for all rooms and spaces with an occupant load greater than 10 or in which the travel distance exceeds 75 feet. All egress doors shall swing in the direction of exit travel. (Plan review--Building, Fire. Inspection--Building)

(d) Capacity of Means of Egress: The capacity of the means of egress in each work area shall be determined in accordance with N.J.A.C. 5:23-6.11(b). (Plan review--Building, Fire. Inspection--Building)

(e) Dead End Corridors: Existing dead end corridors shall not exceed 35 feet in length. (Plan review--Building, Fire. Inspection--Building)

(f) Means of Egress Lighting: Artificial lighting with an intensity of not less than one foot candle at floor level shall be required during all times that the conditions of occupancy of the building require that the exits be available. In all buildings, rooms or spaces required to have more than one exit or exit access, means of egress lighting shall be connected to an emergency electrical system conforming to NFPA 70 (NEC) except that continued illumination shall be required to be provided for not less than one hour in the case of primary power loss.

1. Exception: Lighting to illuminate the exit discharge shall not be required. (Plan review--Building, Fire, Electric. Inspection--Building)

(g) Illuminated Exit Signs: Illuminated exit signs shall be provided for all required means of egress in all buildings, rooms or spaces required to have more than one exit or exit access. Exit

signs shall be visible from the exit access and supplemented by directional signs when necessary. (Exception: Approved main exterior doors that are clearly identified as exits are not required to have exit signs.) Exit signs shall meet the following criteria: (Plan review--Building, Fire. Inspection--Building)

1. Red or green letters at least six inches high; minimum width of each stroke $\frac{3}{4}$ inch on a white background or in other approved distinguishable colors. Arrows, if provided, shall be such that the direction cannot readily be changed. The word "Exit" shall be clearly discernible when the sign is not energized.
2. Exit signs shall be illuminated at all times when the building is occupied by a source providing at least five foot candles at the illuminated surface or shall be approved self-luminous signs which provide evenly illuminated letters with a minimum luminance of 0.06 foot lamberts. Exit signs shall be connected to an emergency electrical system conforming to NFPA 70 (NEC) except that continued illumination shall be required to be provided for not less than one hour in the case of primary power loss. No emergency power shall be required for approved self-luminous signs. (Plan review--Building, Fire. Inspection--Building)

(h) Handrails: Every required exit stairway having three or more risers and not provided with handrails or in which the existing handrails are in danger of collapsing when used under emergency exiting conditions, shall be provided with handrails for the full length of the run of steps on at least one side. All exit stairways more than 66 inches wide shall have handrails on both sides unless the full width of the stairway is not needed to accommodate the design occupancy. (Plan review--Building, Fire. Inspection--Building)

(i) Guards: Every open portion of a stair, landing or balcony which is more than 30 inches above the floor or grade below and is not provided with guards or those in which the existing guards are in danger of collapsing when used under emergency exiting conditions, shall be provided with guards. (Plan review--Building, Fire. Inspection--Building)

(j) Vertical Opening Protection: Vertical opening protection for interior stairways and other vertical openings shall be provided as follows:

1. For vertical openings connecting more than six floor levels, approved assemblies having a fire resistance rating of not less than two hours with approved opening protectives shall be required.
2. For vertical openings connecting four to six floor levels, approved assemblies having a fire resistance rating of not less than one hour with approved opening protectives shall be required.
3. For vertical openings not exceeding three stories, a minimum one-hour UFC fire barrier shall be required for interior stairways and other vertical openings not exceeding three stories, with the following exception:

- i. No vertical opening protection shall be required for vertical openings of up to three stories when necessary for manufacturing operations in a building where every floor level has direct access to at least two remote enclosed stairways or other approved exits. (Plan review--Building, Fire. Inspection--Building)

(k) Structural Elements: Structural elements which are uncovered during the course of the rehabilitation and which are found to be unsound or otherwise structurally deficient, shall be reinforced, supported or replaced in accordance with the applicable structural design criteria of the building subcode. Where structural elements are sound, there is no excessive deflection (defined as deflection in excess of the standards set forth in N.J.A.C. 5:23-6.7(c)1), and fixed loads are not changing in a way that will increase the stresses on existing structures beyond that which is permitted by N.J.A.C. 5:23-6.7(c), existing structural elements shall be permitted to remain. (Building)

(l) Plumbing Fixtures: Plumbing fixtures shall be provided as follows. Where the plumbing subcode allows for the substitution or omission of fixtures, such substitutions or omissions shall also be permitted under this section. (Plumbing)

	Total Occupancy<1>	Water Closets	Lavatories	Drinking Water Facilities	Service Sinks
Light	1-15	1 Unisex	1	1	1
Industrial		16 and over			Fixture s to be provide d as per

Heavy

7.21.1 of the plumbing subcode.

Fixtures to be provided as per Table

Industrial

7.21.1 of the plumbing subcode

Note 1. For purposes of determining the number of plumbing fixtures required, total occupancy shall be the anticipated occupancy of the building under normal use conditions. It is not necessarily the same as the total permitted occupant load based on egress capacity.

(m) Mechanical Requirements: All spaces intended for occupancy shall be provided with either natural or mechanical ventilation.

1. Spaces intended to be naturally ventilated shall be provided with openable doors, windows, louvers, or other openings to the outdoors. The minimum openable area to the outdoors shall be four percent of the floor area being ventilated. Where rooms without openings to the outdoors are ventilated through an adjoining room, the unobstructed opening to the adjoining room shall be at least eight percent of the floor area of the interior room or space, but not less than 25 square feet. The ventilation openings to the outdoors shall be based on the total floor area being ventilated.

2. Mechanically-ventilated spaces shall comply with the following:

- i. Newly-installed HVAC systems shall comply with the requirements of the mechanical subcode.
- ii. Existing systems that are altered or extended shall not reduce the amount of outside air below the existing rate per person or the rate included in the mechanical subcode, whichever is lower. As a minimum, mechanically-ventilated spaces shall be provided with five CFM per person of outdoor air and 15 CFM of ventilation air per person.

3. All newly-introduced devices, equipment or operations that produce airborne particulates, odors, fumes, sprays, vapors, smoke or gases in such quantities to be irritating or injurious to health shall be provided with local exhaust. (Building)

(n) Interior finishes shall comply with N.J.A.C. 5:23-6.11(c). (Plan review--Building, Fire. Inspection--Building)

(o) Specific Occupancy Areas: Specific occupancy areas within the work area, as listed in N.J.A.C. 5:23-6.30(h), shall comply with the requirements established in that section for separation and/or protection. (Building)

History

HISTORY:

Amended by R.1999 d.424, effective December 6, 1999.

See: 31 N.J.R. 2428(a), 31 N.J.R. 4001(c).

In (f), substituted "except that continued illumination shall be required to be provided" for "to assure continued illumination" in the last sentence of the introductory paragraph, and inserted a reference to electric plan review in 1; and in (g)2, rewrote the second sentence.

Amended by R.2000 d.492, effective December 18, 2000.

See: 32 N.J.R. 3219(a), 32 N.J.R. 4437(b).

Added (p).

Amended by R.2003 d.218, effective May 19, 2003.

See: 35 N.J.R. 29(a), 35 N.J.R. 2209(a).

In (b)1 and (c), inserted "or H-5" following "H-4"; in (m)2i and in the first sentence of (m)2ii, substituted "the International Mechanical Code, 2000 edition" for "ASHRAE 62-89"; in (p), substituted "Section 716" for "Section 721.0".

Amended by R.2004 d.145, effective April 5, 2004.

See: 35 N.J.R. 5190(a), 36 N.J.R. 1758(a).

Deleted "Use" preceding "Group" throughout; rewrote (a); in (j)3, inserted "UFC" following "one-hour".

Amended by R.2006 d.120, effective April 3, 2006.

See: 37 N.J.R. 3753(a), 38 N.J.R. 1567(a).

In (m)2i and ii, substituted "mechanical subcode" for "International Mechanical Code, 2000 edition".

Amended by R.2007 d.122, effective May 7, 2007.

See: 38 N.J.R. 4951(a), 39 N.J.R. 1673(a).

Added (b)4; in (m)2ii, deleted "unless the indoor air quality procedure of ASHRAE 62-89 is followed and results in a lesser amount" following "ventilation air per person"; and in (p), substituted "717" for "716".

Amended by R.2009 d.117, effective April 20, 2009.

See: 41 N.J.R. 18(a), 41 N.J.R. 1726(a).

In (p), inserted "creates or" and deleted "exposed" preceding the second occurrence of "framing".

Amended by R.2017 d.077, effective May 1, 2017.

See: 48 N.J.R. 1854(a), 49 N.J.R. 1020(a).

In (b)3, deleted "(Plan review--Building, Fire. Inspection--Building)" from the end; in (b)4i, inserted "(Plan review--Building, Fire. Inspection--Building)"; and deleted (p).

Annotations

Notes

Chapter Notes

NEW JERSEY ADMINISTRATIVE CODE

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N.J.A.C. 5:23-6.20A

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August 17, 2026

*NJ - New Jersey Administrative Code > TITLE 5. COMMUNITY AFFAIRS > CHAPTER 23. UNIFORM
CONSTRUCTION CODE > SUBCHAPTER 6. REHABILITATION SUBCODE*

§ 5:23-6.20A Supplemental requirements--Group H

(a) Manual Alarm Systems: When the work area exceeds 50 percent of the gross enclosed floor area of the building or use, a manual fire alarm system shall be installed throughout for buildings or portions thereof of Group H-2, H-3, H-4 or H-5. (Fire)

(b) Automatic Alarm Systems: When the work area exceeds 50 percent of the gross enclosed floor area of the building or use, an automatic fire alarm system shall be installed throughout in buildings of Group H. (Fire)

(c) Vertical Opening Protection: When the work area exceeds 50 percent of the gross enclosed floor area of the building, vertical opening protection shall be provided throughout the building as follows:

1. A minimum two hour fire rated assembly with approved opening protectives shall be required for interior stairways and other vertical openings connecting more than six floor levels.
2. A minimum one hour fire rated assembly with approved opening protectives shall be required for interior stairways and other vertical openings connecting four to six floor levels.
3. A minimum one-hour UFC fire barrier shall be required for interior stairways and other vertical openings not exceeding three stories.

- i. Exception: No vertical opening protection shall be required when the opening is necessary for manufacturing operations in a building where every floor level has direct

access to at least two remote enclosed stairways or other approved exits. (Plan review--
Building, Fire. Inspection--Building)

(d) Requirements for high-rise buildings: Any building or structure having one or more floors, other than occupiable roofs, used for human occupancy located either more than six stories or more than 75 feet above the lowest level accessible to a fire department vehicle shall comply with the following:

1. When the work area is one entire floor or more or when the work area is 20 percent or more of the occupied floor area served by a recirculating air system, the recirculating air system which serves the work area shall be equipped with approved smoke and heat detection devices installed in accordance with the UCC. The devices shall stop the fan(s) automatically and shall be of the manual reset type. Automatic fan shutdown is not required when the system is part of an approved smoke removal or smoke control system. (Building)

2. When the work area is one entire floor or more or when the work area is 20 percent or more of the occupied floor area of the building, all elevators in the building shall be equipped with the following emergency control devices:

i. All automatic (nondesignated attendant) elevators having a travel distance of 25 feet or more above or below the designated level shall be equipped with Phase 1 Emergency Recall Operation as required by ASME A17.1-1987, Rules 211.3a and 211.3b listed in N.J.A.C. 5:70-3;

ii. At least one elevator shall be equipped with Phase II Emergency In-Car Operation, as required by ASME A17.1-1987, Rule 211.3c;

(1) In buildings with multiple elevators, at least one elevator to each floor served by an elevator shall be equipped with Phase II Emergency In-Car Operation; and

iii. All designated attendant elevators having a travel distance of 25 feet or more above or below the designated level shall be equipped with emergency controls, as required by ASME A17.1-1987, Rule 211.4. (Elevator)

3. When the work area is one entire floor or more or when the work area is 20 percent or more of the occupied floor area of the building, standpipes shall be provided up to and including the highest floor that is part of the work area. The standpipes shall be located and installed in accordance with the building subcode, except as follows:

i. No pump shall be required provided that the standpipes are capable of accepting delivery by fire department apparatus of a minimum of 250 gpm at 65 psi to the topmost floor in buildings equipped throughout with an automatic sprinkler system or a minimum of 500 gpm at 65 psi to the topmost floor in all other buildings. (Where the standpipe terminates below the topmost floor, the standpipe shall be designed to meet these requirements (gpm/psi) for possible future extension of the standpipe.)

ii. Hose and hose cabinets shall not be required. (Fire)

(e) Elevator Devices: When the work area exceeds 50 percent of the gross enclosed floor area of the building, all elevator devices serving any part of the work area shall comply with the requirements of N.J.A.C. 5:23-6.30(g). (Elevator)

(f) Use Group H-5: When the work area exceeds 50 percent of the gross enclosed floor area of a facility of Use Group H-5, the entire building is required to comply with the requirements of Section 415.11 of the building subcode. (Building)

(g) Hazardous materials: When the work exceeds 25 percent of the gross enclosed floor area of the Group H portion of a building, the entire building is required to comply with the requirements of Sections 414 and 415 of the building subcode. (Building)

History

HISTORY:

Amended by R.2000 d.492, effective December 18, 2000.

See: 32 N.J.R. 3219(a), 32 N.J.R. 4437(b).

In (e)2i, updated N.J.A.C. reference.

Amended by R.2003 d.218, effective May 19, 2003.

See: 35 N.J.R. 29(a), 35 N.J.R. 2209(a).

In (b), substituted ", H-4 or H-5" for "or H-4"; in (g), substituted "Use Group H-5" for "HPFM Facilities", substituted "a facility of Use Group H-5" for "an HPM facility", and substituted "Section 415.9" for "Section 416.0"; in (h), substituted "Section 414 and 415" for "Section 417.0 and 418.0".

Amended by R.2004 d.145, effective April 5, 2004.

See: 35 N.J.R. 5190(a), 36 N.J.R. 1758(a).

Deleted former (a); recodified former (b) through (h) as (a) through (g); in (c)1, inserted "UFC" following "one-hour"; in (d)3i, substituted "sprinkler" for "fire suppression" preceding "system"; deleted "Use" preceding "Group" throughout.

Amended by R.2007 d.122, effective May 7, 2007.

See: 38 N.J.R. 4951(a), 39 N.J.R. 1673(a).

In (f), substituted "415.8" for "415.9".

Amended by R.2009 d.117, effective April 20, 2009.

See: 41 N.J.R. 18(a), 41 N.J.R. 1726(a).

In (d)1, deleted "or exhaust" preceding the first and second occurrences of "system".

Amended by R.2017 d.077, effective May 1, 2017.

See: 48 N.J.R. 1854(a), 49 N.J.R. 1020(a).

In (f), substituted "415.11" for "415.8" and "building" for "Building".

Amended by R.2026 d.087, effective August 17, 2026.

See: 57 N.J.R. 2333(a), 58 N.J.R. 1882(a).

In the introductory paragraph of (d), inserted ", other than occupiable roofs,".

Annotations

Notes

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NEW JERSEY ADMINISTRATIVE CODE

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N.J.A.C. 5:23-6.21

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*NJ - New Jersey Administrative Code > TITLE 5. COMMUNITY AFFAIRS > CHAPTER 23. UNIFORM
CONSTRUCTION CODE > SUBCHAPTER 6. REHABILITATION SUBCODE*

§ 5:23-6.21 Basic requirements--Group I-1

(a) Automatic Sprinkler System: In buildings greater than two stories in height above grade or having an occupant load greater than 20 persons, excluding staff, an automatic sprinkler system shall be installed throughout the work area. The sprinkler riser shall be sized to serve the entire building, even if the system currently being installed serves only a portion of the building. (Fire)

(b) Exits: Two exits shall be required for stories with less than 500 occupants. Three exits shall be required for stories with 501 to 1,000 occupants. Four exits shall be required for stories with more than 1,000 occupants. Two means of egress are also required from all mezzanines with an occupant load greater than 50 or with exit travel distance greater than 75 feet.

1. A single exit shall not be permitted.
2. Existing fire escapes shall be accepted as providing one of the required means of egress unless judged to be dangerous for use under emergency exiting conditions. For use of fire escapes, access shall be through a door except when serving an occupant load of 10 or fewer. All occupants shall have unobstructed access to fire escapes without having to pass through a room subject to locking.
 - i. When more than one exit is required and there is not sufficient space for an exterior stair within the lot line, a new fire escape shall be accepted as providing one of the required means of egress. Newly-installed fire escapes shall comply with FTO-3.
 - ii. Ladders shall be prohibited on fire escapes used as a required means of egress.
 - iii. Window access to fire escapes shall be permitted from individual rooms.

3. Existing slidescapes or safety chutes shall be permitted. (Plan review--Building, Fire. Inspection--Building)

(c) Emergency Egress Windows: When the work being performed creates a bedroom below the fourth floor, at least one sleeping room window or exterior door shall:

1. Be operable;
2. Have a sill height of not more than 44 inches; and
3. Have a width of at least 20 inches, a height of at least 24 inches, and a minimum total area of 5.7 square feet measured from head to sill and side to side.
4. Windows are not required to meet these requirements in buildings where the sleeping room is provided with a door to a corridor having access to two remote exits or in buildings equipped throughout with an automatic sprinkler system.

(d) Egress Doorways: A minimum of two egress doorways shall be required for all rooms and spaces with an occupant load greater than 50 or in which travel distance exceeds 75 feet. All egress doors serving an occupant load greater than 50 shall swing in the direction of exit travel.

1. Exception: Storage rooms with a maximum occupant load of 10 shall not be required to have two egress doorways.
2. All dwelling unit, guest room or rooming unit corridor doors shall be at least 1 $\frac{3}{8}$ inch solid core wood or approved equal with approved door closers and shall not have any glass panels, other than approved wire glass in metal frames. Corridor doors shall not be constructed of hollow core wood, shall not contain louvers and shall not be of panel construction. Doors shall fit both plumb and level in frames, and be reasonably tight fitting. All replacement doors shall be 1 $\frac{3}{4}$ inch solid core wood or approved equal, unless existing frame will accommodate only a 1 $\frac{3}{8}$ inch door. (Note: Existing doors meeting HUD Guidelines or BOCA Existing Structures Code (1984) for a rating of 15 minutes or better shall be accepted.)
3. In buildings with an automatic sprinkler system, doors are required only to provide a smoke barrier, to be free of louvers, to fit plumb and level and to be reasonably tight fitting.

4. All doors opening onto a passageway at grade or onto an exit stair shall be self-closing or automatic closing by listed closing devices.

i. Exception: Group homes with a maximum of 15 occupants and an approved automatic fire detection system shall not be required to have self-closing doors. (Plan review--Building, Fire. Inspection--Building)

(e) Capacity of Means of Egress: The capacity of the means of egress in each work area shall be determined in accordance with N.J.A.C. 5:23-6.11(b). (Plan review--Building, Fire. Inspection--Building)

(f) Dead End Corridors: Existing dead end corridors shall not exceed 35 feet in length. Exceptions are as follows:

1. Dead end corridors may be up to 50 feet in length in a building with an automatic alarm system installed in conformance with the building code in effect at the time of its installation.

2. Dead end corridors may be up to 70 feet in length in a building with an automatic sprinkler system installed in conformance with the building code in effect at the time of its installation. (Plan review--Building, Fire. Inspection--Building)

(g) Means of Egress Lighting: Artificial lighting with an intensity of not less than one foot candle at floor level shall be required during all times that the conditions of occupancy of the building require that the exits be available. Lighting shall also be required to illuminate the exit discharge. In all buildings, rooms or spaces required to have more than one exit or exit access, means of egress lighting shall be connected to an emergency electrical system conforming to NFPA 70 (NEC) except that continued illumination shall be required to be provided for not less than one hour in the case of primary power loss. (Plan review--Building, Fire, Electric. Inspection--Building)

(h) Illuminated Exit Signs: Illuminated exit signs shall be provided for all required means of egress in all buildings, rooms or spaces required to have more than one exit or exit access. Exit signs shall be visible from the exit access and supplemented by directional signs when necessary.

(Exception: Approved main exterior doors that are clearly identified as exits are not required to have exit signs.) Exit signs shall meet the criteria contained in (h)1 and 2 below:

1. Red or green letters at least six inches high; minimum width of each stroke $\frac{3}{4}$ inch on a white background or in other approved distinguishable colors. Arrows, if provided, shall be such that the direction cannot readily be changed. The word "Exit" shall be clearly discernible when the sign is not energized.
2. Exit signs shall be illuminated at all times when the building is occupied by a source providing at least five foot candles at the illuminated surface or shall be approved self-luminous signs which provide evenly illuminated letters with a minimum luminance of 0.06 foot lamberts. Exit signs shall be connected to an emergency electrical system conforming to NFPA 70 (NEC) except that continued illumination shall be required to be provided for not less than one hour in the case of primary power loss. No emergency power shall be required for approved self-luminous signs.
3. Exceptions: Illuminated exit signs shall not be required for buildings with an occupant load, excluding staff, of 20 or less or when the second means of egress is a fire escape that is accessed directly from the individual sleeping room. (Plan review--Building, Fire. Inspection--Building)

(i) Handrails: Every required exit stairway having three or more risers and not provided with handrails or in which the existing handrails are in danger of collapsing when used under emergency exiting conditions, shall be provided with handrails for the full length of the run of steps on at least one side. All exit stairways more than 66 inches wide shall have handrails on both sides unless the full width of the stairway is not needed to accommodate the design occupancy. (Plan review--Building, Fire. Inspection--Building)

(j) Guards: Every open portion of a stair, landing or balcony which is more than 30 inches above the floor or grade below and is not provided with guards or those in which the existing guards are in danger of collapsing when used under emergency exiting conditions, shall be provided with guards. (Plan review--Building, Fire. Inspection--Building)

(k) Vertical Opening Protection: Vertical opening protection for interior stairways and other vertical openings shall be provided as follows:

1. For vertical openings connecting more than six floor levels, approved assemblies having a fire resistance rating of not less than two hours with approved opening protectives shall be required.
2. For vertical openings connecting four to six floor levels, approved assemblies having a fire resistance rating of not less than one hour with approved opening protectives shall be required.
3. For vertical openings not exceeding three stories, a minimum one-hour UFC fire barrier shall be required, with the following exception:

i. Exception: Vertical opening protection shall not be required for either the top or bottom of a stairway connecting not more than two floor levels when such stairway does not serve as a required means of egress and the occupant load does not exceed 12, excluding staff.

(Plan review--Building, Fire. Inspection--Building)

(l) Equipment Rooms: Boiler/furnace equipment rooms shall be enclosed by one hour fire-rated wall and ceiling assemblies.

1. Exception: Enclosure shall not be required for boiler/furnace equipment of low pressure type (operating at pressures of 15 psig or less for steam equipment or 160 psig or less for hot water equipment) when installed in accordance with manufacturer's recommendations or for boiler/furnace equipment of residential, single-family type (200,000 BTU per hour input rating or less.)
2. Exception: Enclosure shall not be required for boiler/furnace equipment rooms equipped with a limited area sprinkler system in accordance with Section 903.3.8 of the building subcode.
3. For group homes and supervised transitional living homes heated with oil-burning equipment, an emergency shutoff switch shall be required at the top of the stairs leading to the

basement for equipment in the basement or outside of the room for equipment located in other enclosed rooms. (Plan review--Building, Fire. Inspection--Building)

(m) Structural Elements: Structural elements which are uncovered during the course of the rehabilitation and which are found to be unsound or otherwise structurally deficient, shall be reinforced, supported or replaced in accordance with the applicable structural design criteria of the building subcode. Where structural elements are sound, there is no excessive deflection (defined as deflection in excess of the standards set forth in N.J.A.C. 5:23-6.7(c)1), and fixed loads are not changing in a way that will increase the stresses on existing structures beyond that which is permitted by N.J.A.C. 5:23-6.7(c), existing structural elements shall be permitted to remain. (Building)

(n) Plumbing Fixtures: Plumbing fixtures shall be provided as required by Table 7.21.1 of the plumbing subcode. Where the plumbing subcode allows for the substitution or omission of fixtures, such substitutions or omissions shall also be permitted under this section. (Plumbing)

(o) Mechanical Requirements: All spaces intended for occupancy shall be provided with either natural or mechanical ventilation.

1. Spaces intended to be naturally ventilated shall be provided with openable doors, windows, louvers, or other openings to the outdoors. The minimum openable area to the outdoors shall be four percent of the floor area being ventilated. Where rooms without openings to the outdoors are ventilated through an adjoining room, the unobstructed opening to the adjoining room shall be at least eight percent of the floor area of the interior room or space, but not less than 25 square feet. The ventilation openings to the outdoors shall be based on the total floor area being ventilated.

2. Mechanically-ventilated spaces shall comply with the following:

- i. Newly-installed HVAC systems shall comply with the requirements of the mechanical subcode.
- ii. Existing systems that are altered or extended shall not reduce the amount of outside air below the existing rate per person or the rate included in the mechanical subcode,

whichever is lower. As a minimum, mechanically-ventilated spaces shall be provided with five CFM per person of outdoor air and 15 CFM of ventilation air per person.

3. All newly-introduced devices, equipment or operations that produce airborne particulates, odors, fumes, sprays, vapors, smoke or gases in such quantities to be irritating or injurious to health shall be provided with local exhaust. (Building)

(p) Interior finishes shall comply with N.J.A.C. 5:23-6.11(c). (Plan review--Building, Fire. Inspection--Building)

(q) Specific Occupancy Areas: Specific occupancy areas within the work area, as listed in N.J.A.C. 5:23-6.30(h), shall comply with the requirements established in that section for separation and/or protection. (Building)

History

HISTORY:

Amended by R.1999 d.424, effective December 6, 1999.

See: 31 N.J.R. 2428(a), 31 N.J.R. 4001(c).

Inserted a new (c); recodified former (c) through (p) as (d) through (q); in the new (g), substituted "except that continued illumination shall be required to be provided" for "to assure continued illumination" and inserted a reference to electric plan review in the last sentence; and in the new (h), made an internal reference change in introductory paragraph, and rewrote the second sentence in 2.

Administrative correction.

See: 32 N.J.R. 688(a).

Amended by R.2000 d.492, effective December 18, 2000.

See: 32 N.J.R. 3219(a), 32 N.J.R. 4437(b).

In (g), added second sentence; and added (r).

Amended by R.2003 d.218, effective May 19, 2003.

See: 35 N.J.R. 29(a), 35 N.J.R. 2209(a).

In (l)2, substituted "Section 903.3.5.1.1" for "Section 907.0"; in (o)2i and in the first sentence of (o)2ii, substituted "the International Mechanical Code, 2000 edition" for "ASHRAE 62-89"; in (r), substituted "Section 716" for "Section 721.0".

Amended by R.2004 d.145, effective April 5, 2004.

See: 35 N.J.R. 5190(a), 36 N.J.R. 1758(a).

Rewrote (a); in (k)3, inserted "UFC" following "one-hour"; substituted references to automatic sprinkler for references to fire suppression throughout.

Amended by R.2006 d.120, effective April 3, 2006.

See: 37 N.J.R. 3753(a), 38 N.J.R. 1567(a).

In (o)2i and ii, substituted "mechanical subcode" for "International Mechanical Code, 2000 edition".

Amended by R.2007 d.122, effective May 7, 2007.

See: 38 N.J.R. 4951(a), 39 N.J.R. 1673(a).

In (o)2ii, deleted "unless the indoor air quality procedure of ASHRAE 62-89 is followed and results in a lesser amount" following "ventilation air per person"; and in (r), substituted "717" for "716".

Amended by R.2009 d.117, effective April 20, 2009.

See: 41 N.J.R. 18(a), 41 N.J.R. 1726(a).

In (r), inserted "creates or" and deleted "exposed" preceding the second occurrence of "framing".

Amended by R.2017 d.077, effective May 1, 2017.

See: 48 N.J.R. 1854(a), 49 N.J.R. 1020(a).

In the introductory paragraph of (b), substituted "or" for "and"; and deleted (r).

Administrative correction, effective July 16, 2024.

See: 56 N.J.R. 1711(a).

Annotations

Notes

Chapter Notes

NEW JERSEY ADMINISTRATIVE CODE

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*NJ - New Jersey Administrative Code > TITLE 5. COMMUNITY AFFAIRS > CHAPTER 23. UNIFORM
CONSTRUCTION CODE > SUBCHAPTER 6. REHABILITATION SUBCODE*

§ 5:23-6.21A Supplemental requirements--Group I-1

(a) Automatic Alarm Systems: When the work area exceeds 50 percent of the gross enclosed floor area of the building, a supervised automatic fire alarm system shall be required throughout the building.

1. Exception: Automatic alarm systems shall not be required in buildings, other than boarding homes, with an automatic sprinkler system and a manual fire alarm system and with single station smoke alarms in the vicinity of sleeping areas in accordance with NFPA 72. (Fire)

(b) Manual Alarm Systems: When the work area exceeds 50 percent of the gross enclosed floor area of the building, manual fire alarms shall be required throughout the building. (Fire)

(c) Vertical Opening Protection: When the work area exceeds 50 percent of the gross enclosed floor area of the building, vertical opening protection shall be provided throughout the building as follows:

1. A minimum two hour fire rated assembly with approved opening protectives shall be required for interior stairways and other vertical openings connecting more than six floor levels.
2. A minimum one hour fire rated assembly with approved opening protectives shall be required for interior stairways and other vertical openings connecting four to six floor levels.
3. A minimum one-hour UFC fire barrier shall be required for interior stairways and other vertical openings not exceeding three stories.

- i. Exception: No vertical opening protection shall be required for either the top or bottom of a stairway connecting not more than two floor levels when such stairway does not serve as a required means of egress and the occupant load does not exceed 12, excluding staff.

(Plan review--Building, Fire. Inspection--Building)

(d) Requirements for high-rise buildings: Any building or structure having one or more floors, other than occupiable roofs, used for human occupancy located either more than six stories or more than 75 feet above the lowest level accessible to a fire department vehicle shall comply with the following:

1. When the work area is one entire floor or more or when the work area is 20 percent or more of the occupied floor area served by a recirculating air system, the recirculating air system which serves the work area shall be equipped with approved smoke and heat detection devices installed in accordance with the UCC. The devices shall stop the fan(s) automatically and shall be of the manual reset type. Automatic fan shutdown is not required when the system is part of an approved smoke removal or smoke control system. (Building)

2. When the work area is one entire floor or more or when the work area is 20 percent or more of the occupied floor area of the building, all elevators in the building shall be equipped with the following emergency control devices:

- i. All automatic (nondesignated attendant) elevators having a travel distance of 25 feet or more above or below the designated level shall be equipped with Phase 1 Emergency Recall Operation as required by ASME A17.1-1987, Rules 211.3a and 211.3b listed in N.J.A.C. 5:70-3;

- ii. At least one elevator shall be equipped with Phase II Emergency In-Car Operation, as required by ASME A17.1-1987, Rule 211.3c;

(1) In buildings with multiple elevators, at least one elevator to each floor served by an elevator shall be equipped with Phase II Emergency In-Car Operation; and

iii. All designated attendant elevators having a travel distance of 25 feet or more above or below the designated level shall be equipped with emergency controls, as required by ASME A17.1-1987, Rule 211.4. (Elevator)

3. When the work area is one entire floor or more or when the work area is 20 percent or more of the occupied floor area of the building, standpipes shall be provided up to and including the highest floor that is part of the work area. The standpipes shall be located and installed in accordance with the building subcode, except as follows:

i. No pump shall be required provided that the standpipes are capable of accepting delivery by fire department apparatus of a minimum of 250 gpm at 65 psi to the topmost floor in buildings equipped throughout with an automatic sprinkler system or a minimum of 500 gpm at 65 psi to the topmost floor in all other buildings. (Where the standpipe terminates below the topmost floor, the standpipe shall be designed to meet these requirements (gpm/psi) for possible future extension of the standpipe.)

ii. Hose and hose cabinets shall not be required. (Fire)

(e) Elevator Devices: When the work area exceeds 50 percent of the gross enclosed floor area of the building, all elevator devices serving any part of the work area shall comply with the requirements of N.J.A.C. 5:23-6.30(g). (Elevator)

History

HISTORY:

Amended by R.1999 d.259, effective August 16, 1999.

See: 31 N.J.R. 825(a), 31 N.J.R. 2330(a).

Inserted a new (d); and recodified former (d) through (f) as (e) through (g).

Amended by R.2000 d.492, effective December 18, 2000.

See: 32 N.J.R. 3219(a), 32 N.J.R. 4437(b).

In (f)2i, updated N.J.A.C. reference.

Amended by R.2003 d.137, effective April 7, 2003.

See: 34 N.J.R. 4277(a), 35 N.J.R. 1558(c).

Deleted former (d); recodified former (e) through (g) as (d) through (f).

Amended by R.2004 d.145, effective April 5, 2004.

See: 35 N.J.R. 5190(a), 36 N.J.R. 1758(a).

Deleted former (a); recodified former (b) through (f) as (a) through (e); in (c)3, inserted "UFC" following "one-hour"; substituted "sprinkler" for "fire suppression" preceding "system" throughout.

Amended by R.2009 d.117, effective April 20, 2009.

See: 41 N.J.R. 18(a), 41 N.J.R. 1726(a).

In (a)1, substituted "alarms" for "detectors"; and in (d)1, deleted "or exhaust" preceding the first and second occurrences of "system".

Amended by R.2026 d.087, effective August 17, 2026.

See: 57 N.J.R. 2333(a), 58 N.J.R. 1882(a).

In the introductory paragraph of (d), inserted ", other than occupiable roofs,".

Annotations

Notes

Chapter Notes

NEW JERSEY ADMINISTRATIVE CODE

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N.J.A.C. 5:23-6.22

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*NJ - New Jersey Administrative Code > TITLE 5. COMMUNITY AFFAIRS > CHAPTER 23. UNIFORM
CONSTRUCTION CODE > SUBCHAPTER 6. REHABILITATION SUBCODE*

§ 5:23-6.22 Basic requirements--Groups I-2 and I-4

(a) Automatic Sprinkler System: An automatic sprinkler system shall be installed throughout the work area.

1. Exception: Automatic sprinklers shall not be required in buildings of Type I or Type IIA construction of any height or of Type IIB construction not over one story in height. This exception shall not apply to nursing homes.
2. Exception: For other than buildings of construction Type IIIB or VB, an automatic sprinkler system shall not be required in day care centers with an occupant load of 100 or less where all the children under 2 1/2 years of age are cared for on the first floor and in which each child care room has an exit door directly to the exterior. (Fire)

(b) Exits: Two exits shall be required for stories with less than 500 occupants. Three exits shall be required for stories with 501 to 1,000 occupants. Four exits shall be required for stories with more than 1,000 occupants. Two means of egress are also required from all mezzanines with an occupant load greater than 50 or with exit travel distance greater than 75 feet.

1. A single exit shall not be permitted.
2. Existing fire escapes shall be accepted as providing one of the required means of egress unless judged to be dangerous for use under emergency exiting conditions. For use of fire escapes, access shall be through a door except when serving an occupant load of 10 or fewer. All occupants shall have unobstructed access to fire escapes without having to pass through a room subject to locking.

i. When more than one exit is required and there is not sufficient space for an exterior stair within the lot line, a new fire escape shall be accepted as providing one of the required means of egress. Newly-installed fire escapes shall comply with FTO-3.

ii. Ladders shall be prohibited on fire escapes used as a required means of egress. (Plan review--Building, Fire. Inspection--Building)

(c) Egress Doorways: A minimum of two egress doorways shall be required for all rooms and spaces with an occupant load greater than 50 or in which the travel distance exceeds 75 feet. All egress doors serving an occupant load greater than 50 shall swing in the direction of exit travel.

1. Exception: Storage rooms with a maximum occupant load of 10 shall not be required to have two egress doorways.

2. A minimum of two egress doorways shall be required for any patient sleeping room or suite of rooms greater than 1,000 square feet. (Plan review--Building, Fire. Inspection--Building)

(d) Capacity of Means of Egress: The capacity of the means of egress in each work area shall be determined in accordance with N.J.A.C. 5:23-6.11(b). (Plan review--Building, Fire. Inspection--Building)

(e) Dead End Corridors: Existing dead end corridors shall not exceed 35 feet in length. Exceptions are allowed as follows:

1. Dead end corridors may be up to 50 feet in length in a building with an automatic alarm system installed in conformance with the building code in effect at the time of its installation.

2. Dead end corridors may be up to 70 feet in length in a building with an automatic sprinkler system installed in conformance with the building code in effect at the time of its installation.

(Plan review--Building, Fire. Inspection--Building)

(f) Means of Egress Lighting: Artificial lighting with an intensity of not less than one foot candle at floor level shall be required during all times that the conditions of occupancy of the building require that the exits be available. Lighting shall also be required to illuminate the exit discharge. In all buildings, rooms or spaces required to have more than one exit or exit access, means of

egress lighting shall be connected to an emergency electrical system conforming to NFPA 70 (NEC) except that continued illumination shall be required to be provided for not less than one hour in the case of primary power loss. (Plan Review--Building, Fire, Electric. Inspection--Building)

(g) Illuminated Exit Signs: Illuminated exit signs shall be provided for all required means of egress in all buildings, rooms or spaces required to have more than one exit or exit access. Exit signs shall be visible from the exit access and supplemented by directional signs when necessary. (Exception: Approved main exterior doors that are clearly identified as exits are not required to have exit signs.) Exit signs shall meet the criteria contained in (g)1 and 2 below:

1. Red or green letters at least six inches high; minimum width of each stroke $\frac{3}{4}$ inch on a white background or in other approved distinguishable colors. Arrows, if provided, shall be such that the direction cannot readily be changed. The word "Exit" shall be clearly discernible when the sign is not energized.
2. Exit signs shall be illuminated at all times when the building is occupied by a source providing at least five foot candles at the illuminated surface or shall be approved self-luminous signs which provide evenly illuminated letters with a minimum luminance of 0.06 foot lamberts. Exit signs shall be connected to an emergency electrical system conforming to NFPA 70 (NEC) except that continued illumination shall be required to be provided for not less than one hour in the case of primary power loss. No emergency power shall be required for approved self-luminous signs.
3. Exception: When the second means of egress is a fire escape that is accessed directly from the individual sleeping room, illuminated exit signs shall not be required above the means of egress serving the fire escape. (Plan review--Building, Fire. Inspection--Building)

(h) Handrails: Every required exit stairway having three or more risers and not provided with handrails or in which the existing handrails are in danger of collapsing when used under emergency exiting conditions, shall be provided with handrails for the full length of the run of steps on at least one side. All exit stairways more than 66 inches wide shall have handrails on both

sides unless the full width of the stairway is not needed to accommodate the design occupancy.

(Plan review--Building, Fire. Inspection--Building)

(i) Guards: Every open portion of a stair, landing or balcony which is more than 30 inches above the floor or grade below and is not provided with guards or those in which the existing guards are in danger of collapsing when used under emergency exiting conditions, shall be provided with guards. (Plan review--Building, Fire. Inspection--Building)

(j) Vertical Opening Protection: Vertical opening protection for interior stairways and other vertical openings shall be provided as follows:

1. For vertical openings connecting more than six floor levels, approved assemblies having a fire resistance rating of not less than two hours with approved opening protectives shall be required.
2. For vertical openings connecting four to six floor levels, approved assemblies having a fire resistance rating of not less than one hour with approved opening protectives shall be required.
3. For vertical openings not exceeding three stories, a minimum one-hour UFC fire barrier shall be required, with the following exception:

i. Exception: Vertical opening protection shall not be required for vertical openings connecting not more than two floor levels which are separated by a one-hour UFC fire barrier equipped with a self-closing or automatically closing 20-minute door at the top or bottom of the stairway when such stairway does not serve as a required means of egress.

(Plan review--Building, Fire. Inspection--Building)

(k) Boiler/Furnace Equipment Rooms: Boiler/furnace equipment rooms shall be enclosed by one hour fire-rated wall and ceiling assemblies for day nurseries, children's shelter facilities, residential child care facilities and similar facilities with children below the age of 2 1/2 years.

1. Exception: Enclosure shall not be required for boiler/furnace equipment of low pressure type (operating at pressures of 15 psig or less for steam equipment or 160 psig or less for hot water equipment) when installed in accordance with manufacturer's recommendations or for

boiler/furnace equipment of residential, single-family type (200,000 BTU per hour input rating or less.)

2. Exception: Enclosure shall not be required for boiler/furnace equipment rooms equipped with a limited area sprinkler system in accordance with Section 903.3.8 of the building subcode.

3. Where oil-burning equipment is used, an emergency shutoff switch shall be required at the top of the stairs leading to the basement for equipment in the basement or outside of the room for equipment located in other enclosed rooms. (Plan review--Building, Fire. Inspection--Building)

(l) Smoke Barriers: On every story used for sleeping purposes for more than 30 occupants and on stories which are usable, but unoccupied, when the work area exceeds 22,500 square feet on a floor, the work area shall be divided into not less than two compartments by smoke barrier walls complying with the technical requirements of N.J.A.C. 5:23-6.30(e) such that each compartment does not exceed 22,500 square feet and is no more than 150 feet in length and width. (Plan review--Building, Fire. Inspection--Building)

(m) Structural Elements: Structural elements which are uncovered during the course of the rehabilitation and which are found to be unsound or otherwise structurally deficient, shall be reinforced, supported or replaced in accordance with the applicable structural design criteria of the building subcode. Where structural elements are sound, there is no excessive deflection (defined as deflection in excess of the standards set forth in N.J.A.C. 5:23-6.7(c)1), and fixed loads are not changing in a way that will increase the stresses on existing structures beyond that which is permitted by N.J.A.C. 5:23-6.7(c), existing structural elements shall be permitted to remain. (Building)

(n) Plumbing Fixtures: Plumbing fixtures shall be provided as required by Table 7.21.1 of the plumbing subcode. Where the plumbing subcode allows for the substitution or omission of fixtures, such substitutions or omissions shall also be permitted under this section. (Plumbing)

(o) Mechanical Requirements: All spaces intended for occupancy shall be provided with either natural or mechanical ventilation.

1. Spaces intended to be naturally ventilated shall be provided with openable doors, windows, louvers, or other openings to the outdoors. The minimum openable area to the outdoors shall be four percent of the floor area being ventilated. Where rooms without openings to the outdoors are ventilated through an adjoining room, the unobstructed opening to the adjoining room shall be at least eight percent of the floor area of the interior room or space, but not less than 25 square feet. The ventilation openings to the outdoors shall be based on the total floor area being ventilated.

2. Mechanically-ventilated spaces shall comply with the following:

i. Newly-installed HVAC systems shall comply with the requirements of the mechanical subcode.

ii. Existing systems that are altered or extended shall not reduce the amount of outside air below the existing rate per person or the rate included in the mechanical subcode, whichever is lower. As a minimum, mechanically-ventilated spaces shall be provided with five CFM per person of outdoor air and 15 CFM of ventilation air per person.

3. All newly-introduced devices, equipment or operations that produce airborne particulates, odors, fumes, sprays, vapors, smoke or gases in such quantities to be irritating or injurious to health shall be provided with local exhaust. (Building)

(p) Interior finishes shall comply with N.J.A.C. 5:23-6.11(c). (Plan review--Building, Fire. Inspection--Building)

(q) Specific Occupancy Areas: Specific occupancy areas within the work area, as listed in N.J.A.C. 5:23-6.30(h), shall comply with the requirements established in that section for separation and/or protection. (Building)

History

HISTORY:

Amended by R.1999 d.424, effective December 6, 1999.

See: 31 N.J.R. 2428(a), 31 N.J.R. 4001(c).

In (f), substituted "except that continued illumination shall be required to be provided" for "to assure continued illumination" and inserted a reference to electric plan review in the last sentence; and in (g)2, rewrote the second sentence.

Amended by R.2000 d.492, effective December 18, 2000.

See: 32 N.J.R. 3219(a), 32 N.J.R. 4437(b).

In (f), added second sentence; and added (r).

Amended by R.2003 d.218, effective May 19, 2003.

See: 35 N.J.R. 29(a), 35 N.J.R. 2209(a).

In (k)2, substituted "Section 903.3.5.1.1" for "Section 907.0"; in (o)2i and in the first sentence of (o)2ii, substituted "the International Mechanical Code, 2000 edition" for "ASHRAE 62-89"; in (r), substituted "Section 716" for "Section 721.0".

Amended by R.2004 d.145, effective April 5, 2004.

See: 35 N.J.R. 5190(a), 36 N.J.R. 1758(a).

Substituted references to automatic sprinkler for references to fire suppression throughout; in (a), substituted "installed throughout the work area" for "required" following "shall be"; in (j), inserted "UFC" following "one-hour" throughout.

Amended by R.2006 d.120, effective April 3, 2006.

See: 37 N.J.R. 3753(a), 38 N.J.R. 1567(a).

In (o)2i and ii, substituted "mechanical subcode" for "International Mechanical Code, 2000 edition".

Amended by R.2007 d.2, effective January 2, 2007.

See: 38 N.J.R. 3377(a), 39 N.J.R. 28(b).

In (a)1, added last sentence; and in (a)2, substituted "has" for "as".

Amended by R.2007 d.122, effective May 7, 2007.

See: 38 N.J.R. 4951(a), 39 N.J.R. 1673(a).

Added (b)2; in (o)2ii, deleted "unless the indoor air quality procedure of ASHRAE 62-89 is followed and results in a lesser amount" following "ventilation air per person"; and in (r), substituted "717" for "716".

Amended by R.2009 d.117, effective April 20, 2009.

See: 41 N.J.R. 18(a), 41 N.J.R. 1726(a).

In (r), inserted "creates or" and deleted "exposed" preceding the second occurrence of "framing".

Amended by R.2017 d.077, effective May 1, 2017.

See: 48 N.J.R. 1854(a), 49 N.J.R. 1020(a).

In (a)1, substituted "I" for "1", "IIA" for "2A", and "IIB" for "2B"; in (a)2, substituted "For other than buildings of construction Type IIIB or VB, an automatic sprinkler system" for "Automatic sprinklers"; in the introductory paragraph of (b), substituted "or" for "and"; in (b)1, deleted "(Plan review--Building, Fire. Inspection--Building)" from the end; in (b)2ii, inserted "(Plan review--Building, Fire. Inspection--Building)"; in (k)2, substituted "903.3.8" for "903.3.5.1.1" and "building" for "Building"; and deleted (r).

Annotations

Notes

Chapter Notes

NEW JERSEY ADMINISTRATIVE CODE

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N.J.A.C. 5:23-6.22A

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*NJ - New Jersey Administrative Code > TITLE 5. COMMUNITY AFFAIRS > CHAPTER 23. UNIFORM
CONSTRUCTION CODE > SUBCHAPTER 6. REHABILITATION SUBCODE*

§ 5:23-6.22A Supplemental requirements--Groups I-2 and I-4

(a) Automatic Sprinkler System: When the work area is 50 percent or more of the occupied floor area of the building, an automatic sprinkler system shall be required throughout the floor. The sprinkler riser shall be sized to serve the entire building, even if the system currently being installed serves only a portion of the building.

1. Exception: For other than buildings of construction Type IIIB or VB, an automatic sprinkler system shall not be required for day care centers with an occupant load of 100 or less where all children below 2 1/2 years of age are cared for on the first floor and in which each child care room has an exit door directly to the exterior. (Fire)

(b) Automatic Alarm Systems: When the work area exceeds 50 percent of the gross enclosed floor area of the building, a supervised automatic fire alarm system shall be required throughout the building.

1. Exception: Automatic alarm systems shall not be required for buildings with an automatic sprinkler system and a manual fire alarm system with single station smoke alarms in the vicinity of sleeping areas in accordance with NFPA 72. (Fire)

(c) Manual Alarm Systems: When the work area exceeds 50 percent of the gross enclosed floor area of the building, manual fire alarms shall be required throughout the building. (Fire)

(d) Vertical Opening Protection: When the work area exceeds 50 percent of the gross enclosed floor area of the building, vertical opening protection shall be provided throughout the building as follows:

1. A minimum two hour fire rated assembly with approved opening protectives shall be required for interior stairways and other vertical openings connecting more than six floor levels.
2. A minimum one hour fire rated assembly with approved opening protectives shall be required for interior stairways and other vertical openings connecting four to six floor levels.
3. A minimum one-hour UFC fire barrier shall be required for interior stairways and other vertical openings not exceeding three stories.

- i. Exception: No vertical opening protection shall be required for vertical openings connecting not more than two floor levels which are separated by a one-hour UFC fire barrier equipped with a self-closing or automatically closing 20-minute door at the top or bottom of the stairway when such stairway does not serve as a required means of egress.
(Plan review--Building, Fire. Inspection--Building)

(e) Requirements for high-rise buildings: Any building or structure having one or more floors, other than occupiable roofs, used for human occupancy located either more than six stories or more than 75 feet above the lowest level accessible to a fire department vehicle shall comply with the following:

1. When the work area is one entire floor or more or when the work area is 20 percent or more of the occupied floor area served by a recirculating air system, the recirculating air system which serves the work area shall be equipped with approved smoke and heat detection devices installed in accordance with the UCC. The devices shall stop the fan(s) automatically and shall be of the manual reset type. Automatic fan shutdown is not required when the system is part of an approved smoke removal or smoke control system. (Building)
2. When the work area is one entire floor or more or when the work area is 20 percent or more of the occupied floor area of the building, all elevators in the building shall be equipped with the following emergency control devices:
 - i. All automatic (nondesignated attendant) elevators having a travel distance of 25 feet or more above or below the designated level shall be equipped with Phase 1 Emergency

Recall Operation as required by ASME A17.1-1987, Rules 211.3a and 211.3b listed in N.J.A.C. 5:70-3;

ii. At least one elevator shall be equipped with Phase II Emergency In-Car Operation, as required by ASME A17.1-1987, Rule 211.3c;

(1) In buildings with multiple elevators, at least one elevator to each floor served by an elevator shall be equipped with Phase II Emergency In-Car Operation; and

iii. All designated attendant elevators having a travel distance of 25 feet or more above or below the designated level shall be equipped with emergency controls, as required by ASME A17.1-1987, Rule 211.4. (Elevator)

3. When the work area is one entire floor or more or when the work area is 20 percent or more of the occupied floor area of the building, standpipes shall be provided up to and including the highest floor that is part of the work area. The standpipes shall be located and installed in accordance with the building subcode, except as follows:

i. No pump shall be required provided that the standpipes are capable of accepting delivery by fire department apparatus of a minimum of 250 gpm at 65 psi to the topmost floor in buildings equipped throughout with an automatic sprinkler system or a minimum of 500 gpm at 65 psi to the topmost floor in all other buildings. (Where the standpipe terminates below the topmost floor, the standpipe shall be designed to meet these requirements (gpm/psi) for possible future extension of the standpipe.)

ii. Hose and hose cabinets shall not be required. (Fire)

(f) Smoke Barriers: When the work area exceeds 50 percent of the occupied enclosed floor area of a story used for sleeping purposes for more than 30 occupants or of a story which is usable, but unoccupied, the story shall be divided into two or more compartments by smoke barrier walls complying with the technical requirements of N.J.A.C. 5:23-6.30(e) such that each compartment does not exceed 22,500 square feet and is no more than 150 feet in length and width. (Plan review--Building, Fire. Inspection--Building)

(g) Elevator Devices: When the work area exceeds 50 percent of the gross enclosed floor area of the building, all elevator devices serving any part of the work area shall comply with the requirements of N.J.A.C. 5:23-6.30(g). (Elevator)

History

HISTORY:

Amended by R.2000 d.492, effective December 18, 2000.

See: 32 N.J.R. 3219(a), 32 N.J.R. 4437(b).

In (e)2i, updated N.J.A.C. reference.

Amended by R.2003 d.218, effective May 19, 2003.

See: 35 N.J.R. 29(a), 35 N.J.R. 2209(a).

Amended by R.2004 d.145, effective April 5, 2004.

See: 35 N.J.R. 5190(a), 36 N.J.R. 1758(a).

Substituted references to automatic sprinkler for references to fire suppression throughout; in (d), inserted "UFC" following "one-hour" throughout.

Amended by R.2009 d.117, effective April 20, 2009.

See: 41 N.J.R. 18(a), 41 N.J.R. 1726(a).

In (b)1, substituted "alarms" for "detectors"; and in (e)1, deleted "or exhaust" preceding the first and second occurrences of "system".

Amended by R.2017 d.077, effective May 1, 2017.

See: 48 N.J.R. 1854(a), 49 N.J.R. 1020(a).

In (a)1, substituted "For other than buildings of construction Type IIIB or VB, an automatic" for "No Automatic", and inserted "not".

Amended by R.2026 d.087, effective August 17, 2026.

See: 57 N.J.R. 2333(a), 58 N.J.R. 1882(a).

In the introductory paragraph of (e), inserted ", other than occupiable roofs,".

Annotations

Notes

Chapter Notes

NEW JERSEY ADMINISTRATIVE CODE

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End of Document

N.J.A.C. 5:23-6.23

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*NJ - New Jersey Administrative Code > TITLE 5. COMMUNITY AFFAIRS > CHAPTER 23. UNIFORM
CONSTRUCTION CODE > SUBCHAPTER 6. REHABILITATION SUBCODE*

§ 5:23-6.23 Basic requirements--Group I-3

(a) Automatic Sprinkler System: An automatic sprinkler system shall be installed throughout the work area. As an alternative, buildings shall be in compliance with all applicable provisions of Chapter 15 "Existing Detention and Correctional Occupancies" of the Life Safety Code, NFPA 101, 1985 edition.

1. In buildings not required to be equipped throughout with an automatic sprinkler system, an automatic sprinkler system shall be provided in all padded cells, boiler rooms, storage and workshop rooms 24 square feet or larger, mechanical equipment and similar rooms. (Fire)

(b) Exits: Two exits shall be required for stories with less than 500 occupants. Three exits shall be required for stories with 501 to 1,000 occupants. Four exits shall be required for stories with more than 1,000 occupants. Two means of egress are also required from all mezzanines with an occupant load greater than 50 or with exit travel distance greater than 75 feet.

1. A single exit shall not be permitted.

2. Existing fire escapes shall be accepted as providing one of the required means of egress unless judged to be dangerous for use under emergency exiting conditions. For use of fire escapes, access shall be through a door except when serving an occupant load of 10 or fewer. All occupants shall have unobstructed access to fire escapes without having to pass through a room subject to locking.

i. When more than one exit is required and there is not sufficient space for an exterior stair within the lot line, a new fire escape shall be accepted as providing one of the required means of egress. Newly-installed fire escapes shall comply with FTO-3.

ii. Ladders shall be prohibited on fire escapes used as a required means of egress. (Plan review--Building, Fire. Inspection--Building)

(c) Egress Doorways: A minimum of two egress doorways shall be required for all rooms and spaces with an occupant load greater than 50 or in which the travel distance exceeds 75 feet. All egress doors serving an occupant load greater than 50 shall swing in the direction of exit travel.

1. Exception: Storage rooms with a maximum occupant load of 10 shall not be required to have two egress doorways.

2. Buildings with remote power unlocking capability on more than 10 doors shall be provided with an emergency power source for such locks. Power shall be arranged to automatically operate upon failure of normal power within 10 seconds and for a duration of not less than one hour. (Plan review--Building, Fire. Inspection--Building)

(d) Capacity of Means of Egress: The capacity of the means of egress in each work area shall be determined in accordance with N.J.A.C. 5:23-6.11(b). (Plan review--Building, Fire. Inspection--Building)

(e) Dead End Corridors: Existing dead end corridor shall not exceed 35 feet in length. Exceptions are allowed as follows:

1. Dead end corridors may be up to 50 feet in length in a building with an automatic alarm system installed in conformance with the building code in effect at the time of its installation.

2. Dead end corridors may be up to 70 feet in length in a building with an automatic sprinkler system installed in conformance with the building code in effect at the time of its installation.

(Plan review--Building, Fire. Inspection--Building)

(f) Means of Egress Lighting: Artificial lighting with an intensity of not less than one foot candle at floor level shall be required during all times that the conditions of occupancy of the building

require that the exits be available. Lighting shall also be required to illuminate the exit discharge. In all buildings, rooms or spaces required to have more than one exit or exit access, means of egress lighting shall be connected to an emergency electrical system conforming to NFPA 70 (NEC) except that continued illumination shall be required to be provided for not less than one hour in the case of primary power loss. (Plan review--Building, Fire, Electric. Inspection--Building)

(g) Illuminated Exit Signs: Illuminated exit signs shall be provided for all required means of egress in all buildings, rooms or spaces required to have more than one exit or exit access. Exit signs shall be visible from the exit access and supplemented by directional signs when necessary. (Exception: Approved main exterior doors that are clearly identified as exits are not required to have exit signs.) Exit signs shall meet the criteria contained in (g)1 and 2 below:

1. Red or green letters at least six inches high; minimum width of each stroke $\frac{3}{4}$ inch on a white background or in other approved distinguishable colors. Arrows, if provided, shall be such that the direction cannot readily be changed. The word "Exit" shall be clearly discernible when the sign is not energized.
2. Exit signs shall be illuminated at all times when the building is occupied by a source providing at least five foot candles at the illuminated surface or shall be approved self-luminous signs which provide evenly illuminated letters with a minimum luminance of 0.06 foot lamberts. Exit signs shall be connected to an emergency electrical system conforming to NFPA 70 (NEC) except that continued illumination shall be required to be provided for not less than one hour in the case of primary power loss. No emergency power shall be required for approved self-luminous signs.
3. Exception: When the second means of egress is a fire escape that is accessed directly from the individual sleeping room, illuminated exit signs shall not be required above the means of egress serving the fire escape. (Plan review--Building, Fire. Inspection--Building)

(h) Handrails: Every required exit stairway having three or more risers and not provided with handrails or in which the existing handrails are in danger of collapsing when used under

emergency exiting conditions, shall be provided with handrails for the full length of the run of steps on at least one side. All exit stairways more than 66 inches wide shall have handrails on both sides unless the full width of the stairway is not needed to accommodate the design occupancy.

(Plan review--Building, Fire. Inspection--Building)

(i) Guards: Every open portion of a stair, landing or balcony which is more than 30 inches above the floor or grade below and is not provided with guards or those in which the existing guards are in danger of collapsing when used under emergency exiting conditions, shall be provided with guards. (Plan review--Building, Fire. Inspection--Building)

(j) Vertical Opening Protection: Approved assemblies having a fire resistance rating of not less than one hour with approved opening protectives shall be required for all vertical openings. The vertical opening protection may be omitted if either of the following conditions is met:

1. The building is in compliance with NFPA 101, Chapter 15, 1985 edition; or
2. The building is equipped throughout with an automatic sprinkler system. (Plan review--Building, Fire. Inspection--Building)

(k) Interior Finishes and Furnishings: Interior furnishings, drapes, curtains, carpeting, decorations, bedding, etc. shall be flame retardant. (Plan review--Building, Fire. Inspection--Building)

(l) Structural Elements: Structural elements which are uncovered during the course of the rehabilitation and which are found to be unsound or otherwise structurally deficient, shall be reinforced, supported or replaced in accordance with the applicable structural design criteria of the building subcode. Where structural elements are sound, there is no excessive deflection (defined as deflection in excess of the standards set forth in N.J.A.C. 5:23-6.7(c)1), and fixed loads are not changing in a way that will increase the stresses on existing structures beyond that which is permitted by N.J.A.C. 5:23-6.7(c), existing structural elements shall be permitted to remain. (Building)

(m) Plumbing Fixtures: Plumbing fixtures shall be provided as required by Table 7.21.1 of the plumbing subcode. Where the plumbing subcode allows for the substitution or omission of fixtures, such substitutions or omissions shall also be permitted under this section. (Plumbing)

(n) Mechanical Requirements: All spaces intended for occupancy shall be provided with either natural or mechanical ventilation.

1. Spaces intended to be naturally ventilated shall be provided with openable doors, windows, louvers, or other openings to the outdoors. The minimum openable area to the outdoors shall be four percent of the floor area being ventilated. Where rooms without openings to the outdoors are ventilated through an adjoining room, the unobstructed opening to the adjoining room shall be at least eight percent of the floor area of the interior room or space, but not less than 25 square feet. The ventilation openings to the outdoors shall be based on the total floor area being ventilated.

2. Mechanically-ventilated spaces shall comply with the following:

i. Newly-installed HVAC systems shall comply with the requirements of the mechanical subcode.

ii. Existing systems that are altered or extended shall not reduce the amount of outside air below the existing rate per person or the rate included in the mechanical subcode, whichever is lower. As a minimum, mechanically-ventilated spaces shall be provided with five CFM per person of outdoor air and 15 CFM of ventilation air per person.

3. All newly-introduced devices, equipment or operations that produce airborne particulates, odors, fumes, sprays, vapors, smoke or gases in such quantities to be irritating or injurious to health shall be provided with local exhaust. (Building)

(o) Interior finishes shall comply with N.J.A.C. 5:23-6.11(c). (Plan review--Building, Fire. Inspection--Building)

(p) Specific Occupancy Areas: Specific occupancy areas within the work area, as listed in N.J.A.C. 5:23-6.30(h), shall comply with the requirements established in that section for separation and/or protection. (Building)

History

HISTORY:

Amended by R.1999 d.424, effective December 6, 1999.

See: 31 N.J.R. 2428(a), 31 N.J.R. 4001(c).

In (f), substituted "except that continued illumination shall be required to be provided" for "to assure continued illumination" and inserted a reference to electric plan review in the last sentence; and in (g)2, rewrote the second sentence.

Amended by R.2000 d.492, effective December 18, 2000.

See: 32 N.J.R. 3219(a), 32 N.J.R. 4437(b).

In (f), added second sentence; and added (q).

Amended by R.2003 d.218, effective May 19, 2003.

See: 35 N.J.R. 29(a), 35 N.J.R. 2209(a).

In (n)2i and in the first sentence of (n)2ii, substituted "the International Mechanical Code, 2000 edition" for "ASHRAE 62-89"; in (q), substituted "Section 716" for "Section 721.0".

Amended by R.2004 d.145, effective April 5, 2004.

See: 35 N.J.R. 5190(a), 36 N.J.R. 1758(a).

Substituted references to automatic sprinkler for references to fire suppression throughout; rewrote (a).

Amended by R.2006 d.120, effective April 3, 2006.

See: 37 N.J.R. 3753(a), 38 N.J.R. 1567(a).

In (n)2i and ii, substituted "mechanical subcode" for "International Mechanical Code, 2000 edition".

Amended by R.2007 d.122, effective May 7, 2007.

See: 38 N.J.R. 4951(a), 39 N.J.R. 1673(a).

Added (b)2; in (n)2ii, deleted "unless the indoor air quality procedure of ASHRAE 62-89 is followed and results in a lesser amount" following "ventilation air per person"; and in (q), substituted "717" for "716".

Amended by R.2009 d.117, effective April 20, 2009.

See: 41 N.J.R. 18(a), 41 N.J.R. 1726(a).

In (q), inserted "creates or" and deleted "exposed" preceding the second occurrence of "framing".

Amended by R.2017 d.077, effective May 1, 2017.

See: 48 N.J.R. 1854(a), 49 N.J.R. 1020(a).

In the introductory paragraph of (b), substituted "or" for "and"; in (b)1, deleted "(Plan review--Building, Fire. Inspection--Building)" from the end; in (b)2ii, inserted "(Plan review--Building, Fire. Inspection--Building)"; and deleted (q).

Annotations

Notes

Chapter Notes

NEW JERSEY ADMINISTRATIVE CODE

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N.J.A.C. 5:23-6.23A

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*NJ - New Jersey Administrative Code > TITLE 5. COMMUNITY AFFAIRS > CHAPTER 23. UNIFORM
CONSTRUCTION CODE > SUBCHAPTER 6. REHABILITATION SUBCODE*

§ 5:23-6.23A Supplemental requirements--Group I-3

(a) Automatic Sprinkler System: When the work area exceeds 50 percent of the gross enclosed floor area of the building, an automatic sprinkler system or compliance with Chapter 15 "Existing Detention and Correctional Occupancies" of the Life Safety Code, NFPA 101, 1985 edition shall be required throughout the building. In buildings without an automatic sprinkler system, padded cells, boiler and mechanical equipment rooms, and storage and workshop rooms 24 square feet or larger must have an automatic sprinkler system. (Fire)

(b) Automatic Alarm Systems: When the work area exceeds 50 percent of the gross enclosed floor area of the building, a supervised automatic fire alarm system shall be required throughout all resident housing areas in the building. Smoke detectors shall be arranged and positioned to prevent damage or tampering, provided that the function and speed of detecting a fire is equivalent to that provided by the spacing and arrangement of requirements of NFPA 72 listed in Chapter 35 of the building subcode.

1. Exception: An automatic fire alarm system shall not be required for buildings with an automatic sprinkler system and a manual fire alarm system and with single station smoke detectors in the vicinity of sleeping areas in accordance with NFPA 72.

2. Exception: Smoke detectors shall not be required in sleeping rooms with four or fewer occupants. (Fire)

(c) Manual Alarm Systems: When the work area exceeds 50 percent of the gross enclosed floor area of the building, manual fire alarms shall be required throughout the building. (Fire)

(d) Vertical Opening Protection: When the work area exceeds 50 percent of the gross enclosed floor area of the building, vertical opening protection shall be provided between floor levels of residential areas unless the building is equipped throughout with an automatic sprinkler system or the building complies with NFPA 101, Chapter 15, 1985 edition. (Plan review--Building, Fire. Inspection--Building)

(e) Requirements for high-rise buildings: Any building or structure having one or more floors, other than occupiable roofs, used for human occupancy located either more than six stories or more than 75 feet above the lowest level accessible to a fire department vehicle shall comply with the following:

1. When the work area is one entire floor or more or when the work area is 20 percent or more of the occupied floor area served by a recirculating air system, the recirculating air system which serves the work area shall be equipped with approved smoke and heat detection devices installed in accordance with the UCC. The devices shall stop the fan(s) automatically and shall be of the manual reset type. Automatic fan shutdown is not required when the system is part of an approved smoke removal or smoke control system. (Building)

2. When the work area is one entire floor or more or when the work area is 20 percent or more of the occupied floor area of the building, all elevators in the building shall be equipped with the following emergency control devices:

- i. All automatic (nondesignated attendant) elevators having a travel distance of 25 feet or more above or below the designated level shall be equipped with Phase 1 Emergency Recall Operation as required by ASME A17.1-1987, Rules 211.3a and 211.3b listed in N.J.A.C. 5:70-3;

- ii. At least one elevator shall be equipped with Phase II Emergency In-Car Operation, as required by ASME A17.1-1987, Rule 211.3c;

- (1)** In buildings with multiple elevators, at least one elevator to each floor served by an elevator shall be equipped with Phase II Emergency In-Car Operation; and

iii. All designated attendant elevators having a travel distance of 25 feet or more above or below the designated level shall be equipped with emergency controls, as required by ASME A17.1-1987, Rule 211.4. (Elevator)

3. When the work area is one entire floor or more or when the work area is 20 percent or more of the occupied floor area of the building, standpipes shall be provided up to and including the highest floor that is part of the work area. The standpipes shall be located and installed in accordance with the building subcode, except as follows:

i. No pump shall be required provided that the standpipes are capable of accepting delivery by fire department apparatus of a minimum of 250 gpm at 65 psi to the topmost floor in buildings equipped throughout with an automatic sprinkler system or a minimum of 500 gpm at 65 psi to the topmost floor in all other buildings. (Where the standpipe terminates below the topmost floor, the standpipe shall be designed to meet these requirements (gpm/psi) for possible future extension of the standpipe.)

ii. Hose and hose cabinets shall not be required. (Fire)

(f) Elevator Devices: When the work area exceeds 50 percent of the gross enclosed floor area of the building, all elevator devices serving any part of the work area shall comply with the requirements of N.J.A.C. 5:23-6.30(g). (Elevator)

History

HISTORY:

Amended by R.2000 d.492, effective December 18, 2000.

See: 32 N.J.R. 3219(a), 32 N.J.R. 4437(b).

In (e)2i, updated N.J.A.C. reference.

Amended by R.2004 d.145, effective April 5, 2004.

See: 35 N.J.R. 5190(a), 36 N.J.R. 1758(a).

Substituted references to automatic sprinkler for references to fire suppression throughout.

Amended by R.2009 d.117, effective April 20, 2009.

See: 41 N.J.R. 18(a), 41 N.J.R. 1726(a).

In (e)1, deleted "or exhaust" preceding the first and second occurrences of "system".

Amended by R.2026 d.087, effective August 17, 2026.

See: 57 N.J.R. 2333(a), 58 N.J.R. 1882(a).

In the introductory paragraph of (e), inserted ", other than occupiable roofs,".

Annotations

Notes

Chapter Notes

NEW JERSEY ADMINISTRATIVE CODE

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N.J.A.C. 5:23-6.24

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*NJ - New Jersey Administrative Code > TITLE 5. COMMUNITY AFFAIRS > CHAPTER 23. UNIFORM
CONSTRUCTION CODE > SUBCHAPTER 6. REHABILITATION SUBCODE*

§ 5:23-6.24 Basic requirements--Group M

(a) Exits: Two exits shall be required for stories with less than 500 occupants. Three exits shall be required for stories with 501 to 1,000 occupants. Four exits shall be required for stories with more than 1,000 occupants. Two means of egress are also required from all mezzanines with an occupant load greater than 50 or with exit travel distance greater than 75 feet.

1. When more than one exit is required, existing fire escapes shall be accepted as providing one of the required means of egress unless judged to be dangerous for use under emergency exiting conditions. For use of fire escapes, access shall be through a door except when serving an occupant load of 10 or fewer. All occupants shall have unobstructed access to fire escapes without having to pass through a room subject to locking.

i. When more than one exit is required and there is not sufficient space for an exterior stair within the lot line, a new fire escape shall be accepted as providing one of the required means of egress. Newly-installed fire escapes shall comply with FTO-3.

2. A single exit is permitted in the story at the level of exit discharge when the occupant load of the story does not exceed 50 and the exit access travel distance does not exceed 75 feet.

(Plan review--Building, Fire. Inspection--Building)

(b) Egress Doorways: A minimum of two egress doorways shall be required for all rooms and spaces with an occupant load greater than 50 or in which the travel distance exceeds 75 feet. All egress doors serving an occupant load greater than 50 shall swing in the direction of exit travel.

1. Exception: Storage rooms with a maximum occupant load of 10 shall not be required to have two egress doorways. (Plan review--Building, Fire. Inspection--Building)

(c) Capacity of Means of Egress: The capacity of the means of egress in each work area shall be determined in accordance with N.J.A.C. 5:23-6.11(b). (Plan review--Building, Fire. Inspection--Building)

(d) Dead End Corridors: Existing dead end corridors shall not exceed 35 feet in length.

Exceptions are allowed as follows:

1. Dead end corridors may be up to 50 feet in length in a building with an automatic alarm system installed in conformance with the building code in effect at the time of its installation.

2. Dead end corridors may be up to 70 feet in length in a building with an automatic sprinkler system installed in conformance with the building code in effect at the time of its installation. (Plan review--Building, Fire. Inspection--Building)

(e) Means of Egress Lighting: Artificial lighting with an intensity of not less than one foot candle at floor level shall be required during all times that the conditions of occupancy of the building require that the exits be available. Lighting shall also be required to illuminate the exit discharge. In all buildings, rooms or spaces required to have more than one exit or exit access, means of egress lighting shall be connected to an emergency electrical system conforming to NFPA 70 (NEC) except that continued illumination shall be required to be provided for not less than one hour in the case of primary power loss. (Plan review--Building, Fire, Electric. Inspection--Building)

(f) Illuminated Exit Signs: Illuminated exit signs shall be provided for all required means of egress in all buildings, rooms or spaces required to have more than one exit or exit access. Exit signs shall be visible from the exit access and supplemented by directional signs when necessary. (Exception: Approved main exterior doors that are clearly identified as exits are not required to have exit signs.) Exit signs shall meet the following criteria:

1. Red or green letters at least six inches high; minimum width of each stroke 3/4 inch on a white background or in other approved distinguishable colors. Arrows, if provided, shall be

such that the direction cannot readily be changed. The word "Exit" shall be clearly discernible when the sign is not energized.

2. Exit signs shall be illuminated at all times when the building is occupied by a source providing at least five foot candles at the illuminated surface or shall be approved self-luminous signs which provide evenly illuminated letters with a minimum luminance of 0.06 foot lamberts. Exit signs shall be connected to an emergency electrical system conforming to NFPA 70 (NEC) except that continued illumination shall be required to be provided for not less than one hour in the case of primary power loss. No emergency power shall be required for approved self-luminous signs. (Plan review--Building, Fire. Inspection--Building)

(g) Handrails: Every required exit stairway having three or more risers and not provided with handrails or in which the existing handrails are in danger of collapsing when used under emergency exiting conditions, shall be provided with handrails for the full length of the run of steps on at least one side. All exit stairways more than 66 inches wide shall have handrails on both sides unless the full width of the stairway is not needed to accommodate the design occupancy. (Plan review--Building, Fire. Inspection--Building)

(h) Guards: Every open portion of a stair, landing or balcony which is more than 30 inches above the floor or grade below and is not provided with guards or those in which the existing guards are in danger of collapsing when used under emergency exiting conditions, shall be provided with guards. (Plan review--Building, Fire. Inspection--Building)

(i) Vertical Opening Protection: Vertical opening protection for interior stairways and other vertical openings shall be provided as follows:

1. For vertical openings connecting more than six floor levels, approved assemblies having a fire resistance rating of not less than two hours with approved opening protectives shall be required.
2. For vertical openings connecting four to six floor levels, approved assemblies having a fire resistance rating of not less than one hour with approved opening protectives shall be required.

3. For vertical openings not exceeding three stories, a minimum 30-minute UFC fire barrier shall be required, with the following exceptions:

- i.** No vertical opening protection shall be required for openings connecting only two floor levels, such as between the street floor and mezzanine or second floor; or
- ii.** In buildings with an automatic sprinkler system throughout. (Plan review--Building, Fire. Inspection--Building)

(j) Structural Elements: Structural elements which are uncovered during the course of the rehabilitation and which are found to be unsound or otherwise structurally deficient, shall be reinforced, supported or replaced in accordance with the applicable structural design criteria of the building subcode. Where structural elements are sound, there is no excessive deflection (defined as deflection in excess of the standards set forth in N.J.A.C. 5:23-6.7(c)1), and fixed loads are not changing in a way that will increase the stresses on existing structures beyond that which is permitted by N.J.A.C. 5:23-6.7(c), existing structural elements shall be permitted to remain. (Building)

(k) Plumbing Fixtures: Plumbing fixtures shall be provided as follows. Where the plumbing subcode allows for the substitution or omission of fixtures, such substitutions or omissions shall also be permitted under this section. (Plumbing)

	Total Occupancy<1,2,3>	Water Closets	Lavatories	Drinking Water Facilities	Service Sinks
Employees	1-15	1 Unisex 16 and over	1	1	1 Fixture s to be provide d as per Table
			7.21.1 of the plumbing subcode.		
Customers	1-25	1 Unisex 26 and over	1	1	1 Fixture s to be provide d as per Table
			7.21.1 of the plumbing subcode.		

Note 1. For purposes of determining the number of plumbing fixtures required, total occupancy shall be the anticipated occupancy of the building under normal use conditions. It is not necessarily the same as the total permitted occupant load based on egress capacity.

Note 2. Customer and employee facilities may be satisfied with a single unisex toilet facility where the number of employees does not exceed 15 and where the total occupancy does not exceed 25 or where the occupied floor area does not exceed 1, 500 square feet.

Note 3. Requirements for employees and customers may be met with a single set of restrooms. The required number of fixtures shall be the greater of the required number for employees or customers.

(I) Mechanical Requirements: All spaces intended for occupancy shall be provided with either natural or mechanical ventilation.

1. Spaces intended to be naturally ventilated shall be provided with openable doors, windows, louvers, or other openings to the outdoors. The minimum openable area to the outdoors shall be four percent of the floor area being ventilated. Where rooms without openings to the outdoors are ventilated through an adjoining room, the unobstructed opening to the adjoining room shall be at least eight percent of the floor area of the interior room or space, but not less than 25 square feet. The ventilation openings to the outdoors shall be based on the total floor area being ventilated.

2. Mechanically-ventilated spaces shall comply with the following:

- i.** Newly-installed HVAC systems shall comply with the requirements of the mechanical subcode.
- ii.** Existing systems that are altered or extended shall not reduce the amount of outside air below the existing rate per person or the rate included in the mechanical subcode, whichever is lower. As a minimum, mechanically-ventilated spaces shall be provided with five CFM per person of outdoor air and 15 CFM of ventilation air per person.

3. All newly-introduced devices, equipment or operations that produce airborne particulates, odors, fumes, sprays, vapors, smoke or gases in such quantities to be irritating or injurious to health shall be provided with local exhaust. (Building)

(m) Interior finishes shall comply with N.J.A.C. 5:23-6.11(c). (Plan review--Building, Fire. Inspection--Building)

(n) Specific Occupancy Areas: Specific occupancy areas within the work area, as listed in N.J.A.C. 5:23-6.30(h), shall comply with the requirements established in that section for separation and/or protection. (Building)

History

HISTORY:

Amended by R.1999 d.424, effective December 6, 1999.

See: 31 N.J.R. 2428(a), 31 N.J.R. 4001(c).

In (e), substituted "except that continued illumination shall be required to be provided" for "to assure continued illumination" and inserted a reference to electric plan review in the last sentence; and in (f)2, rewrote the second sentence.

Amended by R.2000 d.492, effective December 18, 2000.

See: 32 N.J.R. 3219(a), 32 N.J.R. 4437(b).

In (e), added second sentence; and added (o).

Amended by R.2003 d.218, effective May 19, 2003.

See: 35 N.J.R. 29(a), 35 N.J.R. 2209(a).

In (l)2i and in the first sentence of (l)2ii, substituted "the International Mechanical Code, 2000 edition" for "ASHRAE 62-89"; in (o), substituted "Section 716" for "Section 721.0".

Amended by R.2004 d.145, effective April 5, 2004.

See: 35 N.J.R. 5190(a), 36 N.J.R. 1758(a).

Substituted references to automatic sprinkler for references to suppression throughout; in (i)3, inserted "UFC" following "30-minute".

Amended by R.2006 d.120, effective April 3, 2006.

See: 37 N.J.R. 3753(a), 38 N.J.R. 1567(a).

In (l)2i and ii, substituted "mechanical subcode" for "International Mechanical Code, 2000 edition".

Amended by R.2007 d.122, effective May 7, 2007.

See: 38 N.J.R. 4951(a), 39 N.J.R. 1673(a).

In (l)2ii, deleted "unless the indoor air quality procedure of ASHRAE 62-89 is followed and results in a lesser amount" following "ventilation air per person"; and in (o), substituted "717" for "716".

Amended by R.2009 d.117, effective April 20, 2009.

See: 41 N.J.R. 18(a), 41 N.J.R. 1726(a).

In (o), inserted "creates or" and deleted "exposed" preceding the second occurrence of "framing".

Amended by R.2017 d.077, effective May 1, 2017.

See: 48 N.J.R. 1854(a), 49 N.J.R. 1020(a).

In the introductory paragraph of (a), substituted "or" for "and"; and deleted (o).

Annotations

Notes

Chapter Notes

NEW JERSEY ADMINISTRATIVE CODE

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*NJ - New Jersey Administrative Code > TITLE 5. COMMUNITY AFFAIRS > CHAPTER 23. UNIFORM
CONSTRUCTION CODE > SUBCHAPTER 6. REHABILITATION SUBCODE*

§ 5:23-6.24A Supplemental requirements--Group M

(a) Automatic Sprinkler System: In buildings with a Group M fire area greater than 12,000 square feet or a Group M fire area more than three stories in height, when the work area exceeds 50 percent of the gross enclosed floor area of the building, an automatic fire sprinkler system shall be provided throughout the entire building. (Fire)

(b) Manual Alarm System: For buildings greater than three stories in height with occupant loads over 25, when the work area exceeds 50 percent of the gross enclosed floor area of the building, manual fire alarms shall be required throughout the building.

1. Exception: Manual alarm systems shall not be required in buildings equipped throughout with an automatic sprinkler system. (Fire)

(c) Vertical Opening Protection: When the work area exceeds 50 percent of the gross enclosed floor area of the building, vertical opening protection shall be provided throughout the building as follows:

1. A minimum two hour fire rated assembly with approved opening protectives shall be required for interior stairways and other vertical openings connecting more than six floor levels.

2. A minimum one hour fire rated assembly with approved opening protectives shall be required for interior stairways and other vertical openings connecting four to six floor levels.

3. A minimum 30-minute UFC fire barrier shall be required for interior stairways and other vertical openings not exceeding three stories.

i. Exception: No vertical opening protection shall be required for openings connecting only two floor levels, such as between the street floor and mezzanine or second floor, or for buildings with an automatic sprinkler system throughout. (Plan review--Building, Fire. Inspection--Building)

(d) Requirements for high-rise buildings: Any building or structure having one or more floors, other than occupiable roofs, used for human occupancy located either more than six stories or more than 75 feet above the lowest level accessible to a fire department vehicle shall comply with the following:

1. When the work area is one entire floor or more or when the work area is 20 percent or more of the occupied floor area served by a recirculating air system, the recirculating air system which serves the work area shall be equipped with approved smoke and heat detection devices installed in accordance with the UCC. The devices shall stop the fan(s) automatically and shall be of the manual reset type. Automatic fan shutdown is not required when the system is part of an approved smoke removal or smoke control system. (Building)

2. When the work area is one entire floor or more or when the work area is 20 percent or more of the occupied floor area of the building, all elevators in the building shall be equipped with the following emergency control devices:

i. All automatic (nondesignated attendant) elevators having a travel distance of 25 feet or more above or below the designated level shall be equipped with Phase 1 Emergency Recall Operation as required by ASME A17.1-1987, Rules 211.3a and 211.3b listed in N.J.A.C. 5:70-3;

ii. At least one elevator shall be equipped with Phase II Emergency In-Car Operation, as required by ASME A17.1-1987, Rule 211.3c;

(1) In buildings with multiple elevators, at least one elevator to each floor served by an elevator shall be equipped with Phase II Emergency In-Car Operation; and

iii. All designated attendant elevators having a travel distance of 25 feet or more above or below the designated level shall be equipped with emergency controls, as required by ASME A17.1-1987, Rule 211.4. (Elevator)

3. When the work area is one entire floor or more or when the work area is 20 percent or more of the occupied floor area of the building, standpipes shall be provided up to and including the highest floor that is part of the work area. The standpipes shall be located and installed in accordance with the building subcode, except as follows:

i. No pump shall be required provided that the standpipes are capable of accepting delivery by fire department apparatus of a minimum of 250 gpm at 65 psi to the topmost floor in buildings equipped throughout with an automatic sprinkler system or a minimum of 500 gpm at 65 psi to the topmost floor in all other buildings. (Where the standpipe terminates below the topmost floor, the standpipe shall be designed to meet these requirements (gpm/psi) for possible future extension of the standpipe.)

ii. Hose and hose cabinets shall not be required. (Fire)

4. Automatic Sprinkler System: When the work area is an entire floor, an automatic sprinkler system shall be installed on that floor. When an automatic sprinkler system is provided, the sprinkler riser shall be sized to serve the entire building, even if the system currently being installed serves only a portion of the building. (Fire)

(e) Elevator Devices: When the work area exceeds 50 percent of the gross enclosed floor area of the building, all elevator devices serving any part of the work area shall comply with the requirements of N.J.A.C. 5:23-6.30(g). (Elevator)

History

HISTORY:

Amended by R.2000 d.492, effective December 18, 2000.

See: 32 N.J.R. 3219(a), 32 N.J.R. 4437(b).

In (d)2i, updated N.J.A.C. reference.

Amended by R.2004 d.145, effective April 5, 2004.

See: 35 N.J.R. 5190(a), 36 N.J.R. 1758(a).

Substituted references to automatic sprinkler for references to fire suppression throughout; rewrote (a); in (c)3, inserted "UFC" following "30-minute".

Administrative correction.

See: 36 N.J.R. 2490(b).

Amended by R.2009 d.117, effective April 20, 2009.

See: 41 N.J.R. 18(a), 41 N.J.R. 1726(a).

In (d)1, deleted "or exhaust" preceding the first and second occurrences of "system".

Amended by R.2026 d.087, effective August 17, 2026.

See: 57 N.J.R. 2333(a), 58 N.J.R. 1882(a).

In the introductory paragraph of (d), inserted ", other than occupiable roofs,".

Annotations

Notes

Chapter Notes

NEW JERSEY ADMINISTRATIVE CODE

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N.J.A.C. 5:23-6.25

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*NJ - New Jersey Administrative Code > TITLE 5. COMMUNITY AFFAIRS > CHAPTER 23. UNIFORM
CONSTRUCTION CODE > SUBCHAPTER 6. REHABILITATION SUBCODE*

§ 5:23-6.25 Basic requirements--Group R-1

(a) Smoke alarms: Battery-powered, single station smoke alarms or smoke alarms complying with the building subcode shall be required in individual guest rooms. (Fire)

(b) Exits: Two exits shall be required for stories with less than 500 occupants. Three exits shall be required for stories with 501 to 1,000 occupants. Four exits shall be required for stories with more than 1,000 occupants. Two means of egress are also required from all mezzanines with an occupant load greater than 50 or with exit travel distance greater than 75 feet.

1. When more than one exit is required, existing fire escapes shall be accepted as providing one of the required means of egress unless judged to be dangerous for use under emergency exiting conditions. For use of fire escapes, access shall be through a door except when serving an occupant load of 10 or fewer. All occupants shall have unobstructed access to fire escapes without having to pass through a room subject to locking.

i. When more than one exit is required and there is not sufficient space for an exterior stair within the lot line, a new fire escape shall be accepted as providing one of the required means of egress. Newly-installed fire escapes shall comply with FTO-3.

ii. Window access to fire escapes shall be permitted from individual guestrooms.

iii. Window access shall be permitted to serve more than one guestroom for bed and breakfasts provided that the window serves a floor with a maximum occupant load of 10 and that the window has a clear opening of at least 5.7 square feet, a minimum net clear

opening of 24 inches in height, a minimum net clear opening of 20 inches in width, and a sill height of not more than 44 inches above the finished floor.

iv. For bed and breakfasts, where a door is required because the occupant load served exceeds 10, the door shall have a clear opening of at least 10 square feet, a minimum net clear opening of 54 inches in height and a minimum net clear opening of 24 inches in width.

2. A single exit is permitted in the story at the level of exit discharge when the occupant load of the story does not exceed 50 and the exit access travel distance does not exceed 75 feet.

3. Multilevel guest units do not require an exit from each level within the unit provided that these conditions are met: The building is Type I or Type II construction, with travel distance within the dwelling unit not exceeding 75 feet or the building is not more than three stories and all third floor space is part of a dwelling unit located in part on the second floor and no habitable room has a travel distance of greater than 50 feet from the door of the room to the entrance of the dwelling unit.

4. A single exit is permitted from floors that are not more than 16 feet above grade provided that each unit on such floors has an operable window with a sill height of not more than 44 inches.

5. A single exit is permitted in buildings that are not more than two stories in height from floors that are more than 16 feet above grade with not more than four dwelling units per floor and exit access travel distance not exceeding 50 feet and with a minimum fire resistance rating of one hour for the exit enclosure and opening protectives and provided that each dwelling unit on such floors has an operable window with a sill height of not more than 44 inches. (Plan review--Building, Fire. Inspection--Building)

(c) Emergency Egress Windows: When the work being performed creates a bedroom below the fourth floor, at least one sleeping room window or exterior door shall:

1. Be operable;

2. Have a sill height of not more than 44 inches;
3. Have a width of at least 20 inches, a height of at least 24 inches, and have a minimum total area of 5.7 square feet measured from head to sill and side to side.
4. Windows are not required to meet these requirements in buildings where the sleeping room is provided with a door to a corridor having access to two remote exits or in buildings equipped throughout with an automatic sprinkler system.

(d) Egress Doorways: A minimum of two egress doorways shall be required for all rooms and spaces with an occupant load greater than 50 or in which the travel distance exceeds 75 feet. All egress doors serving an occupant load greater than 50 shall swing in the direction of exit travel.

1. Exception: Storage rooms with a maximum occupant load of 10 shall not be required to have two egress doorways.
2. All dwelling unit, guest room or rooming unit corridor doors shall be at least 1 $\frac{3}{8}$ inch solid core wood or approved equal with approved door closers and shall not have any glass panels, other than approved wire glass in metal frames. Corridor doors shall not be constructed of hollow core wood, shall not contain louvers and shall not be of panel construction. Doors shall fit both plumb and level in frames, and be reasonably tight fitting. All replacement doors shall be 1 $\frac{3}{4}$ inch solid core wood or approved equal, unless existing frame will accommodate only a 1 $\frac{3}{8}$ inch door. (Note: Existing doors meeting HUD Guidelines or BOCA Existing Structures Code (1984) for a rating of 15 minutes or better shall be accepted.)
3. In buildings equipped with an automatic sprinkler system, doors are required only to provide a smoke barrier, to be free of louvers, to fit plumb and level and to be reasonably tight fitting.
4. All doors opening onto a passageway at grade or onto an exit stair shall be self-closing or automatic closing by listed closing devices. (Plan review--Building, Fire. Inspection--Building)

(e) Capacity of Means of Egress: The capacity of the means of egress in each work area shall be determined in accordance with N.J.A.C. 5:23-6.11(b). (Plan review--Building, Fire. Inspection--Building)

(f) Dead End Corridors: Existing dead end corridors shall not exceed 35 feet in length. Exceptions are allowed as follows:

1. Dead end corridors may be up to 50 feet in length in a building with an automatic alarm system installed in conformance with the building code in effect at the time of its installation.
 2. Dead end corridors may be up to 70 feet in length in a building with an automatic sprinkler system installed in conformance with the building code in effect at the time of its installation.
- (Plan review--Building, Fire. Inspection--Building)

(g) Means of Egress Lighting: Artificial lighting with an intensity of not less than one foot candle at floor level shall be required during all times that the conditions of occupancy of the building require that the exits be available. Lighting shall also be required to illuminate the exit discharge. In all buildings, rooms or spaces required to have more than one exit or exit access, means of egress lighting shall be connected to an emergency electrical system conforming to NFPA 70 (NEC) except that continued illumination shall be required to be provided for not less than one hour in the case of primary power loss. (Plan review--Building, Fire, Electric. Inspection--Building)

(h) Illuminated Exit Signs: Illuminated exit signs shall be provided for all required means of egress in all buildings, rooms or spaces required to have more than one exit or exit access. Exit signs shall be visible from the exit access and supplemented by directional signs when necessary. (Exception: Approved main exterior doors that are clearly identified as exits are not required to have exit signs.) Exit signs shall meet the criteria contained in (h)1 and 2 below:

1. Red or green letters at least six inches high; minimum width of each stroke $\frac{3}{4}$ inch on a white background or in other approved distinguishable colors. Arrows, if provided, shall be such that the direction cannot readily be changed. The word "Exit" shall be clearly discernible when the sign is not energized.

2. Exit signs shall be illuminated at all times when the building is occupied by a source providing at least five foot candles at the illuminated surface or shall be approved self-luminous signs which provide evenly illuminated letters with a minimum luminance of 0.06 foot lamberts. Exit signs shall be connected to an emergency electrical system conforming to NFPA 70 (NEC) except that continued illumination shall be required to be provided for not less than one hour in the case of primary power loss. No emergency power shall be required for approved self-luminous signs.

3. Exception: When the second means of egress is a fire escape that is accessed directly from the individual sleeping room, illuminated exit signs shall not be required above the means of egress serving the fire escape. (Plan review--Building, Fire. Inspection--Building)

(i) Handrails: Every required exit stairway having three or more risers and not provided with handrails or in which the existing handrails are in danger of collapsing when used under emergency exiting conditions, shall be provided with handrails for the full length of the run of steps on at least one side. All exit stairways more than 66 inches wide shall have handrails on both sides unless the full width of the stairway is not needed to accommodate the design occupancy. (Plan review--Building, Fire. Inspection--Building)

(j) Guards: Every open portion of a stair, landing or balcony which is more than 30 inches above the floor or grade below and is not provided with guards or those in which the existing guards are in danger of collapsing when used under emergency exiting conditions, shall be provided with guards. (Plan review--Building, Fire. Inspection--Building)

(k) Vertical Opening Protection: Vertical opening protection for interior stairways and other vertical openings shall be provided as follows:

1. For vertical openings connecting more than six floor levels, approved assemblies having a fire resistance rating of not less than two hours with approved opening protectives shall be required.
2. For vertical openings connecting four to six floor levels, approved assemblies having a fire resistance rating of not less than one hour with approved opening protectives shall be required.

3. For vertical openings not exceeding three stories, a minimum one-hour UFC fire barrier shall be required, with the following exceptions:

- i.** Vertical opening protection shall not be required in buildings not exceeding three stories with an automatic sprinkler system throughout; or
- ii.** In buildings with not more than 25 guests when the following conditions are met:

- (1)** Every sleeping room is provided with an operable window having a sill height not greater than 44 inches;
- (2)** Every sleeping room above the second floor is provided with direct access to a fire escape or other approved secondary exit;
- (3)** Any exit access corridor exceeding eight feet in length which serves two means of egress, at least one of which is an unprotected vertical opening, is separated from the vertical opening by a one-hour UFC fire barrier; and
- (4)** The building is protected throughout by a supervised, automatic fire alarm system, installed in accordance with the UCC. (Plan review--Building, Fire. Inspection--Building)

(l) Transoms and Other Interior Openings: All transoms shall be either glazed with 1/4 inch wire glass set in metal frames and permanently secured in the closed position or sealed with materials consistent with the corridor construction. Any other sash, grill or opening in a corridor, and any window in a corridor not opening to the outside air shall be sealed with materials consistent with the corridor construction. (Plan review--Building, Fire. Inspection--Building)

(m) Boiler/Furnace Equipment Rooms: Boiler/furnace equipment rooms shall be enclosed by one hour fire-rated wall and ceiling assemblies.

- 1.** Exception: Enclosure shall not be required for boiler/furnace equipment of low pressure type (operating at pressures of 15 psig or less for steam equipment or 160 psig or less for hot water equipment) when installed in accordance with manufacturer's recommendations or for

boiler/furnace equipment of residential, single-family type (200,000 BTU per hour input rating or less.)

2. Exception: Enclosure shall not be required for boiler/furnace equipment rooms equipped with a limited area sprinkler system in accordance with Section 903.3.8 of the building subcode. (Plan review--Building, Fire. Inspection--Building)

(n) Structural Elements: Structural elements which are uncovered during the course of the rehabilitation and which are found to be unsound or otherwise structurally deficient, shall be reinforced, supported or replaced in accordance with the applicable structural design criteria of the building subcode. Where structural elements are sound, there is no excessive deflection (defined as deflection in excess of the standards set forth in N.J.A.C. 5:23-6.7(c)1), and fixed loads are not changing in a way that will increase the stresses on existing structures beyond that which is permitted by N.J.A.C. 5:23-6.7(c), existing structural elements shall be permitted to remain. (Building)

(o) Electrical Equipment and Wiring: Guestrooms shall be provided with one switch-controlled ceiling or wall type outlet or equivalent to illuminate entrances and exits. Additionally, each guest bathroom shall be provided with at least one duplex receptacle outlet which is GFCI protected and at least one switch-controlled lighting outlet.

(p) Plumbing Fixtures: Plumbing fixtures shall be provided as required by Table 7.21.1 of the plumbing subcode. Where the plumbing subcode allows for the substitution or omission of fixtures, such substitutions or omissions shall also be permitted under this section. (Plumbing)

(q) Mechanical Requirements: All spaces intended for occupancy shall be provided with either natural or mechanical ventilation.

1. Spaces intended to be naturally ventilated shall be provided with openable doors, windows, louvers, or other openings to the outdoors. The minimum openable area to the outdoors shall be four percent of the floor area being ventilated. Where rooms without openings to the outdoors are ventilated through an adjoining room, the unobstructed opening to the adjoining room shall be at least eight percent of the floor area of the interior room or space, but not less

than 25 square feet. The ventilation openings to the outdoors shall be based on the total floor area being ventilated.

2. Mechanically-ventilated spaces shall comply with the following:

i. Newly-installed HVAC systems shall comply with the requirements of the mechanical subcode.

ii. Existing systems that are altered or extended shall not reduce the amount of outside air below the existing rate per person or the rate included in the mechanical subcode, whichever is lower. As a minimum, mechanically-ventilated spaces shall be provided with five CFM per person of outdoor air and 15 CFM of ventilation air per person.

3. All newly-introduced devices, equipment or operations that produce airborne particulates, odors, fumes, sprays, vapors, smoke or gases in such quantities to be irritating or injurious to health shall be provided with local exhaust. (Building)

(r) Interior finishes shall comply with N.J.A.C. 5:23-6.11(c). (Plan review--Building, Fire. Inspection--Building)

(s) Specific Occupancy Areas: Specific occupancy areas within the work area, as listed in N.J.A.C. 5:23-6.30(h), shall comply with the requirements established in that section for separation and/or protection.

1. Exception: Specific occupancy areas within and serving a dwelling unit are not required to comply with this section. (Building)

(t) Accessibility of Sleeping Rooms: At least one sleeping room or suite of every 25 or fewer that are part of the scope of work shall be made accessible unless the facility already provides the number of accessible sleeping rooms required by Chapter 11 of the building subcode. In addition, at least one sleeping room or suite of every 25 or fewer that are part of the scope of work shall be equipped with a visual alarm and notification device for the hearing impaired unless the facility already provides the number required by Chapter 11 of the building subcode. (Building)

History

HISTORY:

Amended by R.1999 d.424, effective December 6, 1999.

See: 31 N.J.R. 2428(a), 31 N.J.R. 4001(c).

Inserted a new (c); recodified former (c) through (s) as (d) through (t); in the new (g), substituted "except that continued illumination shall be required to be provided" for "to assure continued illumination" and inserted a reference to electric plan review in the last sentence; and in the new (h), made an internal reference change in the introductory paragraph, and rewrote the second sentence in 2.

Administrative change.

See: 32 N.J.R. 688(a).

Amended by R.2000 d.492, effective December 18, 2000.

See: 32 N.J.R. 3219(a), 32 N.J.R. 4437(b).

In (g), added second sentence; and added (u).

Amended by R.2003 d.218, effective May 19, 2003.

See: 35 N.J.R. 29(a), 35 N.J.R. 2209(a).

In (m)2, substituted "Section 903.3.5.1.1" for "Section 907.0"; in (q)2i and in the first sentence of (q)2ii, substituted "the International Mechanical Code, 2000 edition" for "ASHRAE 62-89"; in (u), substituted "Section 716" for "Section 721.0".

Amended by R.2004 d.145, effective April 5, 2004.

See: 35 N.J.R. 5190(a), 36 N.J.R. 1758(a).

Substituted references to automatic sprinkler for references to fire suppression throughout; in (k), inserted "UFC" following "one-hour" throughout.

Amended by R.2006 d.120, effective April 3, 2006.

See: 37 N.J.R. 3753(a), 38 N.J.R. 1567(a).

In (q)2i and ii, substituted "mechanical subcode" for "International Mechanical Code, 2000 edition".

Amended by R.2007 d.122, effective May 7, 2007.

See: 38 N.J.R. 4951(a), 39 N.J.R. 1673(a).

In (q)2ii, deleted "unless the indoor air quality procedure of ASHRAE 62-89 is followed and results in a lesser amount" following "ventilation air per person"; and in (u), substituted "717" for "716".

Amended by R.2009 d.117, effective April 20, 2009.

See: 41 N.J.R. 18(a), 41 N.J.R. 1726(a).

In (a), substituted "alarms" for "detectors" throughout; and in (u), inserted "creates or" and deleted "exposed" preceding the second occurrence of "framing".

Amended by R.2017 d.077, effective May 1, 2017.

See: 48 N.J.R. 1854(a), 49 N.J.R. 1020(a).

In the introductory paragraph of (b), substituted "or" for "and"; added (b)1iii and (b)1iv; in (b)3, substituted "I" for "1" and "II" for "2"; in (m)2, substituted "903.3.8" for "903.3.5.1.1" and "building" for "Building"; in (t), substituted the first occurrence of "Chapter 11 of the building subcode." for "the barrier free subcode. (N.J.A.C. 5:23-7.1(b)7)", and substituted the second occurrence of "Chapter 11 of the building" for "the barrier free"; and deleted (u).

Annotations

Notes

Chapter Notes

NEW JERSEY ADMINISTRATIVE CODE

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*NJ - New Jersey Administrative Code > TITLE 5. COMMUNITY AFFAIRS > CHAPTER 23. UNIFORM
CONSTRUCTION CODE > SUBCHAPTER 6. REHABILITATION SUBCODE*

§ 5:23-6.25A Supplemental requirements--Group R-1

(a) Automatic Sprinkler System: In buildings four or more stories in height (excluding basements), when the work area is an entire floor, an automatic sprinkler system shall be installed throughout the work area. (Fire)

(b) Automatic Alarm Systems: When the work area exceeds 50 percent of the gross enclosed floor area of the building, an automatic fire alarm system shall be required throughout the building. System smoke detectors are not required in guestrooms provided that the single-station detectors required by Section 907.2.11.1 of the building subcode are connected to the emergency electrical system and are annunciated by guestroom at a constantly attended location from which the fire alarm system is capable of being manually activated.

1. Exception: An automatic fire detection system is not required in buildings that do not have interior corridors serving guestrooms and where all guestrooms have a means of egress door opening directly to an exterior exit access which leads directly to the exits. (Note: Single station smoke alarms are still required in individual guest rooms in such buildings in accordance with N.J.A.C. 5:23-6.25(a) or 6.25A(d), as applicable). (Fire)

(c) Manual Alarm Systems: When the work area exceeds 50 percent of the gross enclosed floor area of the building, a manual fire alarm system shall be required throughout the building.

1. No manual fire alarms shall be required for buildings with less than 25 occupants and less than 10 guestrooms. (Fire)

(d) Smoke Detectors: When the work area exceeds 25 percent of the gross enclosed floor area of the building, smoke detectors within guestrooms that meet the specifications of the building subcode shall be required throughout the building. The smoke detectors shall be installed in the locations indicated in the building subcode and placed within those locations in accordance with NFPA 72. (Fire)

(e) Vertical Opening Protection: When the work area exceeds 50 percent of the gross enclosed floor area of the building, vertical opening protection shall be provided throughout the building as follows:

1. A minimum two hours fire rated assembly with approved opening protectives shall be required for interior stairways and other vertical openings connecting more than six floor levels.
2. A minimum one hour fire rated assembly with approved opening protectives shall be required for interior stairways and other vertical openings connecting four to six floor levels.
3. A minimum one-hour UFC fire barrier required for interior stairways and other vertical openings not exceeding three stories. Exceptions shall be permitted as follows:
 - i. For buildings with an automatic sprinkler system throughout;
 - ii. For buildings with not more than 25 guests when the following conditions are met:
 - (1) Every sleeping room is provided with an approved, operable window having a sill height not greater than 44 inches;
 - (2) Every sleeping room above the second floor is provided with direct access to a fire escape or other approved secondary exit;
 - (3) Any exit access corridor exceeding eight feet in length which serves two means of egress, at least one of which is an unprotected vertical opening, shall be separated from the vertical opening by a one-hour UFC fire barrier; and

(4) The building is protected throughout by a supervised, automatic fire alarm system, installed in accordance with the UCC. (Plan review--Building, Fire. Inspection--Building)

(f) Requirements for high-rise buildings: Any building or structure having one or more floors, other than occupiable roofs, used for human occupancy located either more than six stories or more than 75 feet above the lowest level accessible to a fire department vehicle shall comply with the following:

1. When the work area is one entire floor or more or when the work area is 20 percent or more of the occupied floor area served by a recirculating air system, the recirculating air system which serves the work area shall be equipped with approved smoke and heat detection devices installed in accordance with the UCC. The devices shall stop the fan(s) automatically and shall be of the manual reset type. Automatic fan shutdown is not required when the system is part of an approved smoke removal or smoke control system. (Building)

2. When the work area is one entire floor or more or when the work area is 20 percent or more of the occupied floor area of the building, all elevators in the building shall be equipped with the following emergency control devices:

i. All automatic (nondesignated attendant) elevators having a travel distance of 25 feet or more above or below the designated level shall be equipped with Phase 1 Emergency Recall Operation as required by ASME A17.1-1987, Rules 211.3a and 211.3b listed in N.J.A.C. 5:70-3;

ii. At least one elevator shall be equipped with Phase II Emergency In-Car Operation, as required by ASME A17.1-1987, Rule 211.3c;

(1) In buildings with multiple elevators, at least one elevator to each floor served by an elevator shall be equipped with Phase II Emergency In-Car Operation; and

iii. All designated attendant elevators having a travel distance of 25 feet or more above or below the designated level shall be equipped with emergency controls, as required by ASME A17.1-1987, Rule 211.4. (Elevator)

3. When the work area is one entire floor or more or when the work area is 20 percent or more of the occupied floor area of the building, standpipes shall be provided up to and including the highest floor that is part of the work area. The standpipes shall be located and installed in accordance with the building subcode, except as follows:

i. No pump shall be required provided that the standpipes are capable of accepting delivery by fire department apparatus of a minimum of 250 gpm at 65 psi to the topmost floor in buildings equipped throughout with an automatic sprinkler system or a minimum of 500 gpm at 65 psi to the topmost floor in all other buildings. (Where the standpipe terminates below the topmost floor, the standpipe shall be designed to meet these requirements (gpm/psi) for possible future extension of the standpipe.)

ii. Hose and hose cabinets shall not be required. (Fire)

4. When the work area is one entire floor or more, central control station and communication systems shall be provided as follows:

i. An approved public address communication system consisting of loudspeakers in each corridor and in each room and tenant space exceeding 1,000 square feet, each elevator and elevator lobby and in each stair enclosure which shall be capable of being operated from the central control station;

ii. A two-way fire department communication system which shall operate between the central control and every elevator, elevator lobby and entry to enclosed exit stairways;

iii. A central control station for fire department operations shall be provided in a location approved by the fire department. It shall contain the public address panel, the fire department communications panel, fire detection and alarm system annunciator panels, status indicators and controls for air handling systems, sprinkler valve and water flow detector display panels, and status indicators and a telephone for fire department use with controlled access to the public telephone system. (Fire)

5. Automatic Sprinkler System: When the work area is an entire floor, an automatic sprinkler system shall be installed on that floor. When an automatic sprinkler system is provided, the

sprinkler riser shall be sized to serve the entire building, even if the system currently being installed serves only a portion of the building. (Fire)

(g) Elevator Devices: When the work area exceeds 50 percent of the gross enclosed floor area of the building, all elevator devices serving any part of the work area shall comply with the requirements of N.J.A.C. 5:23-6.30(g). (Elevator)

History

HISTORY:

Amended by R.1999 d.259, effective August 16, 1999.

See: 31 N.J.R. 825(a), 31 N.J.R. 2330(a).

Inserted (e); and recodified existing (e) through (g) as (f) through (h).

Amended by R.1999 d.424, effective December 6, 1999.

See: 31 N.J.R. 2428(a), 31 N.J.R. 4001(c).

In (d), substituted "25 percent" for "50 percent" following "exceeds" in the first sentence.

Amended by R.2000 d.492, effective December 18, 2000.

See: 32 N.J.R. 3219(a), 32 N.J.R. 4437(b).

In (e), substituted "detectors" for "alarms" preceding "shall be installed" in the introductory paragraph; and in (g)2i, updated N.J.A.C. reference.

Amended by R.2002 d.15, effective January 22, 2002.

See: 33 N.J.R. 2933(b), 33 N.J.R. 3883(a), 34 N.J.R. 521(a).

In (e), substituted "alarms" for "detectors", inserted "located" preceding "in a building", and added the last sentence in the introductory paragraph, and rewrote 1.

Amended by R.2003 d.137, effective April 7, 2003.

See: 34 N.J.R. 4277(a), 35 N.J.R. 1558(c).

Deleted former (e); recodified former (f) through (h) as (e) through (g).

Amended by R.2004 d.145, effective April 5, 2004.

See: 35 N.J.R. 5190(a), 36 N.J.R. 1758(a).

Substituted references to automatic sprinkler for references to fire suppression throughout; in (e), inserted "UFC" following "one-hour" throughout.

Amended by R.2007 d.122, effective May 7, 2007.

See: 38 N.J.R. 4951(a), 39 N.J.R. 1673(a).

In (b), substituted "907.2.10.1.1 of the building subcode" for "920.3.1".

Amended by R.2009 d.117, effective April 20, 2009.

See: 41 N.J.R. 18(a), 41 N.J.R. 1726(a).

In (b)1, substituted "alarms" for "detectors" and "(a)" for "(b)"; and in (f)1, deleted "or exhaust" preceding the first and second occurrences of "system".

Amended by R.2011 d.270, effective November 7, 2011.

See: 43 N.J.R. 1297(a), 43 N.J.R. 2999(a).

In the introductory paragraph of (b), substituted "907.2.11.1" for "907.2.10.1.1".

Amended by R.2026 d.087, effective August 17, 2026.

See: 57 N.J.R. 2333(a), 58 N.J.R. 1882(a).

In the introductory paragraph of (f), inserted ", other than occupiable roofs,".

Annotations

Notes

Chapter Notes

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End of Document

N.J.A.C. 5:23-6.26

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*NJ - New Jersey Administrative Code > TITLE 5. COMMUNITY AFFAIRS > CHAPTER 23. UNIFORM
CONSTRUCTION CODE > SUBCHAPTER 6. REHABILITATION SUBCODE*

§ 5:23-6.26 Basic requirements--Groups R-2 and R-4

(a) Automatic Fire Sprinkler System: In Group R-2 dormitories, an automatic fire sprinkler system shall be installed throughout the work area.

(b) Exits: Two exits shall be required for stories with less than 500 occupants. Three exits shall be required for stories with 501 to 1,000 occupants. Four exits shall be required for stories with more than 1,000 occupants. Two means of egress are also required from all mezzanines with an occupant load greater than 50 or with exit travel distance greater than 75 feet.

1. When more than one exit is required, existing fire escapes shall be accepted as providing one of the required means of egress unless judged to be dangerous for use under emergency exiting conditions. For use of fire escapes, access shall be through a door except when serving an occupant load of 10 or fewer. All occupants shall have unobstructed access to fire escapes without having to pass through a room subject to locking.

i. When more than one exit is required and there is not sufficient space for an exterior stair within the lot line, a new fire escape shall be accepted as providing one of the required means of egress. Newly-installed fire escapes shall comply with FTO-3.

ii. Window access to fire escapes shall be permitted from individual units.

iii. For rooming houses, ladders shall be prohibited on fire escapes used as a required means of egress.

2. A single exit is permitted in the story at the level of exit discharge when the occupant load of the story does not exceed 50 and the exit access travel distance does not exceed 75 feet.

3. Dwelling units in basements (stories below grade) shall have two means of egress unless the building has an automatic sprinkler system. (An operable window with a net clear opening of at least five square feet, a minimum net clear opening of 24 inches in height and 20 inches in width, and a sill height of not more than 44 inches above the finished floor is acceptable as one of the means of egress.)
4. For rooming houses, a single exit shall be prohibited.
5. Multilevel dwelling units do not require an exit from each level within the dwelling unit provided that these conditions are met: The building is Type 1 or Type 2 construction, with travel distance within the dwelling unit not exceeding 75 feet or the building is not more than three stories and all third floor space is part of a dwelling unit located in part on the second floor and no habitable room has a travel distance of greater than 50 feet from the door of the room to the entrance of the dwelling unit.
6. A single exit is permitted from floor(s) that are not more than 16 feet above grade provided that each dwelling unit on such floors has an operable window with a sill height of not more than 44 inches. (In community residences for the developmentally disabled, the maximum occupant load, excluding staff, is 12.)
7. A single exit is permitted in buildings that are not more than two stories in height from floors that are more than 16 feet above grade with not more than four dwelling units per floor and exit access travel distance not exceeding 50 feet and with a minimum fire resistance rating of one hour for the exit enclosure and opening protectives and provided that each dwelling unit on such floors has an operable window with a sill height of not more than 44 inches. (In community residences for the developmentally disabled, the maximum occupant load, excluding staff, is 12.)
8. As used in this subsection, "rooming house" means any building and any part thereof, which contains two or more units of dwelling space which do not provide a private, secure dwelling space arranged for independent living and containing both full bath and kitchen facilities (exclusive of any such unit occupied by an owner or operator), including any

residential hotel. The term does not include any hotel, motel or established guest house in which a minimum of 85 percent of the units of dwelling space are offered on a temporary basis only, for periods lasting no more than 90 days, to guests who either maintain or intend to maintain a primary residence at a location other than the hotel, motel or established guest house. The term also does not include one-family residential dwellings made available for occupancy by not more than five roomers. (Plan review--Building, Fire. Inspection--Building)

(c) Emergency Egress Windows: When the work being performed creates a bedroom below the fourth floor, at least one sleeping room window or exterior door shall:

1. Be operable;
2. Have a sill height of not more than 44 inches; and
3. Have a width of at least 20 inches, a height of at least 24 inches, and have a minimum total area of 5.7 square feet measured from head to sill and side to side.
4. Windows are not required to meet these requirements in buildings where the sleeping room is provided with a door to a corridor having access to two remote exits or in buildings equipped throughout with an automatic sprinkler system. For dwelling units in basements, one of the two remote exits may be as per (b)3 above.

(d) Egress Doorways: A minimum of two egress doorways shall be required for all rooms and spaces with an occupant load greater than 50 or in which the travel distance exceeds 75 feet. All egress doors serving an occupant load greater than 50 shall swing in the direction of exit travel.

1. Exception: Storage rooms with a maximum occupant load of 10 shall not be required to have two egress doorways.
2. All dwelling unit, guest room or rooming unit corridor doors shall be at least 1 $\frac{3}{8}$ inch solid core wood or approved equal with approved door closers and shall not have any glass panels, other than approved wire glass in metal frames. Corridor doors shall not be constructed of hollow core wood, shall not contain louvers and shall not be of panel construction. Doors shall fit both plumb and level in frames, and be reasonably tight fitting. All replacement doors shall

be 1¾ inch solid core wood or approved equal, unless existing frame will accommodate only a 1⅜ inch door. (Note: Existing doors meeting HUD Guidelines or BOCA Existing Structures Code (1984) for a rating of 15 minutes or better shall be accepted.)

3. In buildings with an automatic sprinkler system, doors are required only to provide a smoke barrier, to be free of louvers, to fit plumb and level and to be reasonably tight fitting.

4. All doors opening onto a passageway at grade or onto an exit stair shall be self-closing or automatic closing by listed closing devices.

i. Exception: Group homes with a maximum of 15 occupants and an approved automatic detection system shall not be required to have self-closing doors. (Plan review--Building, Fire. Inspection--Building)

(e) Capacity of Means of Egress: The capacity of the means of egress in each work area shall be determined in accordance with N.J.A.C. 5:23-6.11(b). (Plan review--Building, Fire. Inspection--Building)

(f) Dead End Corridors: Existing dead end corridors shall not exceed 35 feet in length. Exceptions are allowed as follows:

1. Dead end corridors may be up to 50 feet in length in a building with an automatic alarm system installed in conformance with the building code in effect at the time of its installation.

2. Dead end corridors may be up to 70 feet in length in a building with an automatic sprinkler system installed in conformance with the building code in effect at the time of its installation.

(Plan review--Building, Fire. Inspection--Building)

(g) Means of Egress Lighting: Artificial lighting with an intensity of not less than one foot candle at floor level shall be required during all times that the conditions of occupancy of the building require that the exits be available. Lighting shall also be required to illuminate the exit discharge. In all buildings, rooms or spaces required to have more than one exit or exit access, means of egress lighting shall be connected to an emergency electrical system conforming to NFPA 70

(NEC) except that continued illumination shall be required to be provided for not less than one hour in the case of primary power loss.

1. Means of egress lighting shall be wired on a circuit independent of circuits within any dwelling unit. The disconnecting means and over current protection device shall not be located within a dwelling unit or such that access must be obtained by going through a dwelling unit. (Plan review--Building, Fire, Electric. Inspection--Building)

(h) Illuminated Exit Signs: Illuminated exit signs shall be provided for all required means of egress in all buildings, rooms or spaces required to have more than one exit or exit access. Exit signs shall be visible from the exit access and supplemented by directional signs when necessary. (Exception: Approved main exterior doors that are clearly identified as exits are not required to have exit signs.) Exit signs shall meet the criteria contained in (h)1 and 2 below:

1. Red or green letters at least six inches high; minimum width of each stroke $\frac{3}{4}$ inch on a white background or in other approved distinguishable colors. Arrows, if provided, shall be such that the direction cannot readily be changed. The word "Exit" shall be clearly discernible when the sign is not energized.
2. Exit signs shall be illuminated at all times when the building is occupied by a source providing at least five foot candles at the illuminated surface or shall be approved self-luminous signs which provide evenly illuminated letters with a minimum luminance of 0.06 foot lamberts. Exit signs shall be connected to an emergency electrical system conforming to NFPA 70 (NEC) except that continued illumination shall be required to be provided for not less than one hour in the case of primary power loss. No emergency power shall be required for approved self-luminous signs.
3. Exceptions: Illuminated exit signs shall not be required for buildings with an occupant load, excluding staff, of 20 or less or when the second means of egress is a fire escape that is accessed directly from the individual sleeping room. (Plan review--Building, Fire. Inspection--Building)

(i) Handrails: Every required exit stairway having three or more risers and not provided with handrails or in which the existing handrails are in danger of collapsing when used under emergency exiting conditions, shall be provided with handrails for the full length of the run of steps on at least one side. All exit stairways more than 66 inches wide shall have handrails on both sides unless the full width of the stairway is not needed to accommodate the design occupancy.

(Plan review--Building, Fire. Inspection--Building)

(j) Guards: Every open portion of a stair, landing or balcony which is more than 30 inches above the floor or grade below and is not provided with guards or those in which the existing guards are in danger of collapsing when used under emergency exiting conditions, shall be provided with guards. (Plan review--Building, Fire. Inspection--Building)

(k) Vertical Opening Protection: Vertical opening protection for interior stairways and other vertical openings shall be provided as follows:

1. For vertical openings connecting more than six floor levels, approved assemblies having a fire resistance rating of not less than two hours with approved opening protectives shall be required.
2. For vertical openings connecting four to six floor levels, approved assemblies having a fire resistance rating of not less than one hour with approved opening protectives shall be required.
3. For vertical openings not exceeding three stories, a minimum 30-minute UFC fire barrier shall be required, with the following exceptions:
 - i. Buildings with an automatic sprinkler system throughout; or
 - ii. When the vertical opening connects not more than two floor levels and not more than four dwelling units per floor provided that each dwelling unit has access to a fire escape or other approved secondary exit; or
 - iii. Owner-occupied buildings with not more than four dwelling units per floor, and in which the following conditions are met:

- (1) Every sleeping room is provided with an operable window having a sill height not greater than 44 inches;
- (2) Every dwelling unit or sleeping room above the second floor is provided with direct access to a fire escape or other approved secondary exit; and
- (3) The building is protected throughout by a supervised, automatic fire alarm system, installed in accordance with the UCC. (Plan review--Building, Fire. Inspection--Building)

(l) Transoms and Other Interior Openings: All transoms shall be either glazed with 1/4 inch wire glass set in metal frames and permanently secured in the closed position or sealed with materials consistent with the corridor construction. Any other sash, grill or opening in a corridor, and any window in a corridor not opening to the outside air shall be sealed with materials consistent with the corridor construction. (Plan review--Building, Fire. Inspection--Building)

(m) Boiler/Furnace Equipment Rooms: Boiler/furnace equipment rooms shall be enclosed by one hour fire-rated wall and ceiling assemblies.

1. Exception: Enclosure shall not be required for boiler/furnace equipment of low pressure type (operating at pressures of 15 psig or less for steam equipment or 160 psig or less for hot water equipment) when installed in accordance with manufacturer's recommendations or for boiler/furnace equipment of residential, single-family type (200,000 BTU per hour input rating or less.)
2. Exception: Enclosure shall not be required for boiler/furnace equipment rooms equipped with a limited area sprinkler system in accordance with Section 903.3.8 of the building subcode.
3. For group homes and supervised transitional living homes heated by oil-burning equipment, an emergency shutoff switch is required at top of the stairs leading to the basement for equipment in the basement or outside of the room for equipment located in other enclosed rooms. (Plan review--Building, Fire. Inspection--Building)

(n) Structural Elements: Structural elements which are uncovered during the course of the rehabilitation and which are found to be unsound or otherwise structurally deficient, shall be reinforced, supported or replaced in accordance with the applicable structural design criteria of the building subcode. Where structural elements are sound, there is no excessive deflection (defined as deflection in excess of the standards set forth in N.J.A.C. 5:23-6.7(c)1), and fixed loads are not changing in a way that will increase the stresses on existing structures beyond that which is permitted by N.J.A.C. 5:23-6.7(c), existing structural elements shall be permitted to remain.

(Building)

(o) Electrical Equipment and Wiring:

1. All areas shall have receptacle and lighting outlets in accordance with Section 210.52 and 210.70, respectively, of the electrical subcode.

i. In the event that receptacle and lighting outlets cannot be installed in the required locations without updating the small appliance branch circuits, kitchen areas shall have a minimum of two duplex receptacle outlets or equivalent and a switch controlled lighting outlet. At least one of the required duplex receptacles shall be provided to serve counter space.

2. Electrical service equipment (overcurrent devices) shall be located where they will not be subject to physical damage and shall not be located in the vicinity of easily ignitable material.

3. All 125 volt, single-phase, 15 and 20 ampere receptacles in locations specified in Section 210.8(A) of the electrical subcode shall have ground-fault circuit protection for personnel.

4. All 125 volt, single phase, 15 and 20 ampere receptacles in locations specified in Section 210.52 of the electrical subcode shall be tamper resistant as specified in Section 406.12 of the electrical subcode. (Electrical)

(p) Plumbing Fixtures: Plumbing fixtures shall be provided as required by Table 7.21.1 of the plumbing subcode. Where the plumbing subcode allows for the substitution or omission of fixtures, such substitutions or omissions shall also be permitted under this section. (Plumbing)

(q) Mechanical Requirements: All spaces intended for occupancy shall be provided with either natural or mechanical ventilation.

1. Spaces intended to be naturally ventilated shall be provided with openable doors, windows, louvers, or other openings to the outdoors. The minimum openable area to the outdoors shall be four percent of the floor area being ventilated. Where rooms without openings to the outdoors are ventilated through an adjoining room, the unobstructed opening to the adjoining room shall be at least eight percent of the floor area of the interior room or space, but not less than 25 square feet. The ventilation openings to the outdoors shall be based on the total floor area being ventilated.

2. Mechanically-ventilated spaces shall comply with the following:

- i. Newly-installed HVAC systems shall comply with the requirements of the mechanical subcode.
- ii. Existing systems that are altered or extended shall not reduce the amount of outside air below the existing rate per person or the rate included in the mechanical subcode, whichever is lower. As a minimum, mechanically-ventilated spaces shall be provided with five CFM per person of outdoor air and 15 CFM of ventilation air per person.

3. All newly-introduced devices, equipment or operations that produce airborne particulates, odors, fumes, sprays, vapors, smoke or gases in such quantities to be irritating or injurious to health shall be provided with local exhaust. (Building)

(r) Interior finishes shall comply with N.J.A.C. 5:23-6.11(c). (Plan review--Building, Fire. Inspection--Building)

(s) Specific Occupancy Areas: Specific occupancy areas within the work area, as listed in N.J.A.C. 5:23-6.30(h), shall comply with the requirements established in that section for separation and/or protection.

1. Exception: Specific occupancy areas within and serving a dwelling unit are not required to comply with this section. (Building)

(t) Accessibility: Accessible features shall be provided for all items that are part of the scope of work in those buildings with four or more dwelling units that are required by Chapter 11 of the building subcode to be accessible.

(u) Communicating Attic Spaces: Where adjacent dwelling units have communicating space in the attic, a wall shall be constructed to provide a continuous one hour fire separation using construction materials consistent with the existing wall or complying with the requirements for new structures. All work shall be performed on the side of the wall of the dwelling unit that is undergoing reconstruction. (Plan review--Building, Fire. Inspection-- Building)

History

HISTORY:

Amended by R.1999 d.424, effective December 6, 1999.

See: 31 N.J.R. 2428(a), 31 N.J.R. 4001(c).

Inserted a new (b); recodified former (b) through (s) as (c) through (t); in the new (f), substituted "except that continued illumination shall be required to be provided" for "to assure continued illumination" in the last sentence of the introductory paragraph, and inserted a reference to electric plan review in 1; in the new (g), made an internal reference change in the introductory paragraph, and rewrote the second sentence in 2; and rewrote the new (s).

Administrative change.

See: 32 N.J.R. 688(a).

Amended by R.2000 d.492, effective December 18, 2000.

See: 32 N.J.R. 3219(a), 32 N.J.R. 4437(b).

In (f), added second sentence in the introductory paragraph; and added (u).

Amended by R.2003 d.218, effective May 19, 2003.

See: 35 N.J.R. 29(a), 35 N.J.R. 2209(a).

In (a)7, substituted "opening protectives and" for "opening protection"; in (l)2, substituted "Section 903.3.5.1.1" for "Section 907.0"; in (n)7, substituted "210.8(A)" for "210-8(a)"; in (p)2i and in the first sentence of (p)2ii, substituted "the International Mechanical Code, 2000 edition" for "ASHRAE 62-89"; in (u), substituted "Section 716" for "Section 721.0".

Amended by R.2004 d.145, effective April 5, 2004.

See: 35 N.J.R. 5190(a), 36 N.J.R. 1758(a).

Added a new (a); recodified former (a) to (u) as (b) to (v); in (k)3, inserted "UFC" following "30-minute"; substituted references to automatic sprinkler for references to fire suppression throughout.

Amended by R.2006 d.120, effective April 3, 2006.

See: 37 N.J.R. 3753(a), 38 N.J.R. 1567(a).

Added (o)8; in (q)2i and ii, substituted "mechanical subcode" for "International Mechanical Code, 2000 edition".

Amended by R.2007 d.122, effective May 7, 2007.

See: 38 N.J.R. 4951(a), 39 N.J.R. 1673(a).

In (q)2ii, deleted "unless the indoor air quality procedure of ASHRAE 62-89 is followed and results in a lesser amount" following "ventilation air per person"; and in (v), substituted "717" for "716".

Amended by R.2009 d.117, effective April 20, 2009.

See: 41 N.J.R. 18(a), 41 N.J.R. 1726(a).

In (v), inserted "creates or" and deleted "exposed" preceding the second occurrence of "framing".

Administrative correction.

See: 43 N.J.R. 3083(a).

Amended by R.2017 d.077, effective May 1, 2017.

See: 48 N.J.R. 1854(a), 49 N.J.R. 1020(a).

In the introductory paragraph of (b), substituted "or" for "and"; in (m)2, substituted "903.3.8" for "903.3.5.1.1" and "building" for "Building"; in (o)7, deleted "(Electrical)" from the end; added new (o)8; recodified former (o)8 as (o)9; in (o)9, inserted "(Electrical)"; in (t), substituted "Chapter 11 of the building" for "the barrier free"; and deleted (v).

Amended by R.2022 d.035, effective March 7, 2022.

See: 53 N.J.R. 977(a), 54 N.J.R. 417(a).

Rewrote the introductory paragraph of (o)1; recodified former (o)2 as (o)1i; in (o)1i, substituted "In the event that lighting and receptacle outlets cannot be installed in the required locations without updating the small appliance branch circuits, kitchen" for "Kitchen"; deleted former (o)3 through (o)5 and (o)9; and recodified former (o)6 through (o)8 as (o)2 through (o)4.

Administrative correction, effective May 2, 2022.

See: 54 N.J.R. 1017(b).

Annotations

Notes

Chapter Notes

NEW JERSEY ADMINISTRATIVE CODE

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N.J.A.C. 5:23-6.26A

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*NJ - New Jersey Administrative Code > TITLE 5. COMMUNITY AFFAIRS > CHAPTER 23. UNIFORM
CONSTRUCTION CODE > SUBCHAPTER 6. REHABILITATION SUBCODE*

§ 5:23-6.26A Supplemental requirements--Groups R-2 and R-4

(a) Automatic Sprinkler System: Automatic fire sprinkler systems shall be installed in Group R-2 and R-4 as follows:

1. In Group R-2 buildings four or more stories in height (excluding basements), when the work area is an entire floor, an automatic fire sprinkler system shall be installed throughout the work area.
2. In Group R-4 buildings where the occupant load of the work area exceeds eight occupants.
(Fire)

(b) Manual Alarm Systems: When the work area exceeds 50 percent of the gross enclosed floor area of the building, a manual fire alarm system shall be required throughout the building.

1. Exception: No manual fire alarm system shall be required for buildings where all dwelling units are located fewer than three stories above the lowest level of exit discharge or one story or less below the highest level of exit discharge serving the dwelling unit(s). (Fire)

(c) Smoke Detection Systems: When the work area exceeds 25 percent of the gross enclosed floor area of the building, approved smoke detection systems shall be located in all interior common areas. Such systems shall be powered by an alternating current (AC) constantly active electric circuit that cannot be deactivated by the operation of any interconnected switching device and shall comply with the electrical subcode, except as otherwise provided in this section. Such systems shall be on circuitry that is connected into the building owner's electric meter.

1. In multiple dwellings six stories or more in height and having 30 or more dwelling units, such systems:
 - i. Shall be connected to a supervisory type listed control panel conforming to U.L. 864 requirements and NFPA 72 standards as adopted by the building subcode, except as otherwise provided in this section;
 - ii. Shall be powered by an approved emergency power source as installed in conformance with the electrical subcode; and
 - iii. Shall have a control panel of the multi-zoned type that will visually indicate the floor or zone from which the alarm is activated, which panel shall be located in accordance with NFPA 72 standards as adopted by the building subcode or as directed by the local fire subcode official.
2. A pre-signal alarm feature is not permitted.
3. The separate zoning of floors in high-rise buildings for selective floor evacuation is permitted at the discretion of the fire subcode official in consultation with the fire department.
4. Alarms shall be located so as to be effectively heard above all other sounds, by all the occupants, in every occupied space within the building not separated by fire walls having a fire-resistance rating of at least two hours.
5. With the approval of the fire subcode official, fixed temperature heat detectors in those locations where frequent nuisance alarms would be likely to occur. Such building spaces include, but are not limited to, garages, crawl spaces, uninhabitable attics, heater and boiler rooms, laundry rooms, kitchens, restaurant service areas, and other rooms where the ambient temperatures are below 40 degrees Fahrenheit or above 100 degrees Fahrenheit and/or have a relative humidity either below 20 percent or above 85 percent or where environmental conditions are likely to produce nuisance alarms.
6. Existing common area smoke detection systems that were installed in compliance with this subchapter or with the Regulations Governing Rooming and Boarding Houses or Regulations

for the Maintenance of Hotels and Multiple Dwellings and maintained in accordance with N.J.A.C. 5:70-3, for which a construction permit was issued subject to plan review approval, shall be accepted as conforming to this section. (Fire)

(d) Smoke Detection within Dwelling Units: Smoke alarms shall be provided within dwelling units as follows:

1. When the work area is an entire dwelling unit, smoke alarms that meet the specifications of the building subcode shall be installed. The smoke alarms shall be installed in the locations indicated in the building subcode and placed within those locations in accordance with NFPA 72.
2. When any work is undertaken within a dwelling unit, single station smoke alarms shall be installed. (Battery-powered units shall be permitted.) The smoke alarms shall be installed in the locations indicated in the building subcode and placed within those locations in accordance with NFPA 72. (Fire)

(e) Vertical Opening Protection: When the work area exceeds 50 percent of the gross enclosed floor area of the building, vertical opening protection shall be provided throughout the building as follows:

1. A minimum two hour fire rated assembly with approved opening protectives shall be required for interior stairways and other vertical openings connecting more than six floor levels.
2. A minimum one hour fire rated assembly with approved opening protectives shall be required for interior stairways and other vertical openings connecting four to six floor levels.
3. A minimum 30-minute UFC fire barrier shall be required for interior stairways and other vertical openings not exceeding three stories. Exceptions shall be permitted as follows:
 - i. Buildings with an automatic sprinkler system throughout;

- ii.** When the vertical opening connects not more than two floor levels with not more than four dwelling units per floor and each dwelling unit has access to a fire escape or other approved secondary exit; or
 - iii.** Owner-occupied buildings with not more than four dwelling units per floor, and in which the following conditions are met:
 - (1)** Every sleeping room is provided with an approved, operable window having a sill height not greater than 44 inches;
 - (2)** Every dwelling unit or sleeping room above the second floor is provided with direct access to a fire escape or other approved secondary exit; and
 - (3)** The building is protected throughout by a supervised, automatic fire alarm system, installed in accordance with the UCC. (Plan review--Building, Fire. Inspection--Building)
- (f)** Requirements for high-rise buildings: Any building or structure having one or more floors, other than occupiable roofs, used for human occupancy located either more than six stories or more than 75 feet above the lowest level accessible to a fire department vehicle, shall comply with the following:
- 1.** When the work area is one entire floor or more or when the work area is 20 percent or more of the occupied floor area served by a recirculating air system, the recirculating air system which serves the work area shall be equipped with approved smoke and heat detection devices installed in accordance with the UCC. The devices shall stop the fan(s) automatically and shall be of the manual reset type. Automatic fan shutdown is not required when the system is part of an approved smoke removal or smoke control system. (Building)
 - 2.** When the work area is one entire floor or more or when the work area is 20 percent or more of the occupied floor area of the building, all elevators in the building shall be equipped with the following emergency control devices:

- i.** All automatic (nondesignated attendant) elevators having a travel distance of 25 feet or more above or below the designated level shall be equipped with Phase 1 Emergency Recall Operation as required by ASME A17.1-1987, Rules 211.3a and 211.3b listed in N.J.A.C. 5:70-3;
 - ii.** At least one elevator shall be equipped with Phase II Emergency In-Car Operation, as required by ASME A17.1-1987, Rule 211.3c;
 - (1)** In buildings with multiple elevators, at least one elevator to each floor served by an elevator shall be equipped with Phase II Emergency In-Car Operation; and
 - iii.** All designated attendant elevators having a travel distance of 25 feet or more above or below the designated level shall be equipped with emergency controls, as required by ASME A17.1-1987, Rule 211.4. (Elevator)
- 3.** When the work area is one entire floor or more or when the work area is 20 percent or more of the occupied floor area of the building, standpipes shall be provided up to and including the highest floor that is part of the work area. The standpipes shall be located and installed in accordance with the building subcode, except as follows:
 - i.** No pump shall be required provided that the standpipes are capable of accepting delivery by fire department apparatus of a minimum of 250 gpm at 65 psi to the topmost floor in buildings equipped throughout with an automatic sprinkler system or a minimum of 500 gpm at 65 psi to the topmost floor in all other buildings. (Where the standpipe terminates below the topmost floor, the standpipe shall be designed to meet these requirements (gpm/psi) for possible future extension of the standpipe.)
 - ii.** Hose and hose cabinets shall not be required. (Fire)
- 4.** When the work area is one entire floor or more or when the work area is 20 percent or more of the occupied floor area of the building, central control station and communication systems shall be provided as follows:

- i. An approved public address communication system consisting of loudspeakers in each common corridor, each elevator and elevator lobby and in each stair enclosure which shall be capable of being operated from the central control station;
- ii. A two-way fire department communication system which shall operate between the central control and every elevator, elevator lobby and entry to enclosed exit stairways;
- iii. A central control station for fire department operations shall be provided in a location approved by the fire department. It shall contain the public address panel, the fire department communications panel, fire detection and alarm system annunciator panels, status indicators and controls for air handling systems, sprinkler valve and water flow detector display panels, and status indicators and a telephone for fire department use with controlled access to the public telephone system. (Fire)

(g) Elevator Devices: When the work area exceeds 50 percent of the gross enclosed floor area of the building, all elevator devices serving any part of the work area shall comply with the requirements of N.J.A.C. 5:23-6.30(g).

- 1. Exception: Elevator devices wholly within individual dwelling units and not accessible to the general public shall not be required to comply. (Elevator)

History

HISTORY:

Amended by R.1999 d.259, effective August 16, 1999.

See: 31 N.J.R. 825(a), 31 N.J.R. 2330(a).

Inserted (e); and recodified existing (e) through (g) as (f) through (h).

Amended by R.2000 d.492, effective December 18, 2000.

See: 32 N.J.R. 3219(a), 32 N.J.R. 4437(b).

In (c)6 and in (g)2i, updated N.J.A.C. reference.

Amended by R.2002 d.15, effective January 22, 2002.

See: 33 N.J.R. 2933(b), 33 N.J.R. 3883(a), 34 N.J.R. 521(a).

In (e), substituted "alarms" for "detectors" and added the last sentence in the introductory paragraph, and rewrote 1.

Amended by R.2003 d.137, effective April 7, 2003.

See: 34 N.J.R. 4277(a), 35 N.J.R. 1558(c).

Deleted former (e); recodified former (f) through (h) as (e) through (g).

Amended by R.2003 d.218, effective May 19, 2003.

See: 35 N.J.R. 29(a), 35 N.J.R. 2209(a).

Amended by R.2004 d.145, effective April 5, 2004.

See: 35 N.J.R. 5190(a), 36 N.J.R. 1758(a).

Substituted references to automatic sprinkler for references to fire suppression throughout; rewrote (a); in (e)3, inserted "UFC" following "30-minute".

Amended by R.2007 d.122, effective May 7, 2007.

See: 38 N.J.R. 4951(a), 39 N.J.R. 1673(a).

In (c), substituted "05" for "93" and "02" for "90" throughout.

Amended by R.2009 d.117, effective April 20, 2009.

See: 41 N.J.R. 18(a), 41 N.J.R. 1726(a).

In the introductory paragraph of (d) and in (d)1 and (d)2, substituted "alarms" for "detectors" throughout; and in (f)1, deleted "or exhaust" preceding the first and second occurrences of "system".

Amended by R.2011 d.270, effective November 7, 2011.

See: 43 N.J.R. 1297(a), 43 N.J.R. 2999(a).

In the introductory paragraph of (c), substituted "the electrical subcode" for "NFPA 70-05 (National Electric Code) requirements"; in (c)1i and (c)1iii, deleted "-02" following "72" and inserted "as adopted

by the building subcode"; and in (c)1ii, substituted "the electrical subcode; and" for "NFPA 70-05 (National Electric Code)".

Amended by R.2026 d.087, effective August 17, 2026.

See: 57 N.J.R. 2333(a), 58 N.J.R. 1882(a).

In the introductory paragraph of (f), inserted ", other than occupiable roofs,".

Annotations

Notes

Chapter Notes

NEW JERSEY ADMINISTRATIVE CODE

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End of Document

N.J.A.C. 5:23-6.27

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*NJ - New Jersey Administrative Code > TITLE 5. COMMUNITY AFFAIRS > CHAPTER 23. UNIFORM
CONSTRUCTION CODE > SUBCHAPTER 6. REHABILITATION SUBCODE*

§ 5:23-6.27 Basic requirements--Groups R-3 and R-5

(a) Smoke Detection within Dwelling Units: Smoke alarms that meet the specifications of the building subcode or one- and two-family dwelling subcode, as applicable, shall be installed. The smoke alarms shall be installed in the locations indicated in the building subcode or one- and two-family dwelling subcode, as applicable, and placed within those locations in accordance with NFPA 72. (Fire.)

(b) Egress Windows:

1. When the building is used as a bed and breakfast, every sleeping room below the fourth story shall be provided with an operable window having a sill height of not more than 44 inches.

i. Windows in sleeping rooms shall not be required to meet these requirements in buildings where the sleeping room is provided with a door to a corridor having access to two remote exits or in buildings equipped throughout with an automatic sprinkler system.

2. When the work being performed creates a bedroom below the fourth floor, at least one sleeping room window or exterior door shall:

i. Be operable;

ii. Have a sill height of not more than 44 inches; and

iii. Have a width of at least 20 inches, a height of at least 24 inches, and have a minimum total area of 5.7 square feet measured from head to sill and side to side.

iv. Windows are not required to meet these requirements in buildings where the sleeping room is provided with a door to a corridor having access to two remote exits or in buildings equipped throughout with an automatic sprinkler system. (Plan review--Building, Fire. Inspection--Building)

(c) When the work being performed creates living space over a private garage, the private garage shall comply with Section 406.3.2 of the building subcode for fire resistance rating or Section R302.6 of the one- and two-family dwelling subcode, as applicable.

(d) Structural Elements: Structural elements which are uncovered during the course of the rehabilitation and which are found to be unsound or otherwise structurally deficient, shall be reinforced, supported or replaced in accordance with the applicable structural design criteria of the building subcode or one- and two-family dwelling subcode, as applicable. Where structural elements are sound, there is no excessive deflection (defined as deflection in excess of the standards set forth in N.J.A.C. 5:23-6.7(c)1), and fixed loads are not changing in a way that will increase the stresses on existing structures beyond that which is permitted by N.J.A.C. 5:23-6.7(c), existing structural elements shall be permitted to remain. (Building)

(e) When the work being performed creates an additional dwelling unit within the building, the new dwelling unit shall be separated from the existing dwelling unit(s) with fire partitions or horizontal assemblies having a fire resistance rating of not less than one hour constructed in accordance with Sections 708 and 711 of the building subcode or R302 of the one- and two-family dwelling subcode, as applicable.

(f) Electrical equipment and Wiring:

1. All areas shall have receptacle and lighting outlets in accordance with Sections 210.52 and 210.70, respectively, of the electrical subcode.

i. In the event that receptacle and lighting outlets cannot be installed in the required locations without updating the small appliance branch circuits, kitchen areas shall have a minimum of two duplex receptacle outlets or equivalent and one switch controlled lighting

outlet. At least one of the required duplex receptacles shall be provided to serve counter space.

2. Electrical service equipment (overcurrent devices) shall be located where they will not be subject to physical damage and shall not be located in the vicinity of easily ignitable material.
3. All 125 volt, single-phase, 15 and 20 ampere receptacles in locations specified in Section 210.8(A) of the electrical subcode shall have ground-fault circuit protection for personnel.
4. All 125 volt, single phase, 15 and 20 ampere receptacles in locations specified in Section 210.52 of the electrical subcode shall be tamper resistant as specified in Section 406.12 of the electrical subcode. (Electrical)

(g) Communicating Attic Spaces: Where adjacent dwelling units have communicating space in the attic, a wall shall be constructed to provide a continuous one hour fire separation using construction materials consistent with the existing wall or complying with the requirements for new structures. All work shall be performed on the side of the wall of the dwelling unit that is undergoing reconstruction. (Plan review --Building, Fire. Inspection-- Building)

(h) Plumbing Fixtures: Each dwelling unit shall be provided with a minimum of one kitchen sink, one water closet, one lavatory, and one bathtub or shower or bathtub/shower combination.

History

HISTORY:

Amended by R.1999 d.259, effective August 16, 1999.

See: 31 N.J.R. 825(a), 31 N.J.R. 2330(a).

Inserted (b); and recodified existing (b) through (e) as (c) through (f).

Amended by R.1999 d.424, effective December 6, 1999.

See: 31 N.J.R. 2428(a), 31 N.J.R. 4001(c).

Rewrote (c); inserted a new (d); recodified former (d) through (f) as (e) through (g); and added (h).

Amended by R.2000 d.492, effective December 18, 2000.

See: 32 N.J.R. 3219(a), 32 N.J.R. 4437(b).

Added (i).

Amended by R.2003 d.137, effective April 7, 2003.

See: 34 N.J.R. 4277(a), 35 N.J.R. 1558(c).

Deleted former (b); recodified former (c) through (i) as (b) through (h).

Amended by R.2003 d.218, effective May 19, 2003.

See: 35 N.J.R. 29(a), 35 N.J.R. 2209(a).

In (c), substituted "Section R309" for "section 407"; in (e)7, substituted "Section 210.8(A)" for "Section 210-8(a)"; in (h), substituted "Section 716" for "Section 721.0".

Amended by R.2004 d.145, effective April 5, 2004.

See: 35 N.J.R. 5190(a), 36 N.J.R. 1758(a).

In (b), substituted "sprinkler" for "fire suppression" in 1i and 2iv; added a new (e) and recodified former (e) through (h) as (f) through (i).

Amended by R.2006 d.120, effective April 3, 2006.

See: 37 N.J.R. 3753(a), 38 N.J.R. 1567(a).

Added (f)8; in (i), added "for Group R-3 or Sections R502.12 and R.602.8 of the one- and two- family subcode for Group R-5".

Amended by R.2007 d.122, effective May 7, 2007.

See: 38 N.J.R. 4951(a), 39 N.J.R. 1673(a).

In (a), inserted "or one- and two-family dwelling subcode, as applicable," in two places; in (c), substituted "406.1.4" for "R309", and inserted "or Section R309 of the one- and two-family dwelling subcode, as applicable"; in (e), substituted "711" for "710", and "R317.1" for "R321.1"; and in (i), substituted "717" for "716", and inserted "dwelling".

Amended by R.2009 d.117, effective April 20, 2009.

See: 41 N.J.R. 18(a), 41 N.J.R. 1726(a).

In (a), substituted "alarms" for "detectors" twice; and in (i), inserted "creates or" and deleted "exposed" preceding the second occurrence of "framing".

Amended by R.2011 d.270, effective November 7, 2011.

See: 43 N.J.R. 1297(a), 43 N.J.R. 2999(a).

In (c), substituted "R302.6" for "R309"; in (e), substituted "709 and 712" for "708 and 711" and "R302" for "R317.1"; and in (i), substituted "R302.11 and R302.12" for "R502.12 and R602.8".

Amended by R.2017 d.077, effective May 1, 2017.

See: 48 N.J.R. 1854(a), 49 N.J.R. 1020(a).

In (b)1i, deleted "(Plan review--Building, Fire. Inspection--Building)" from the end; in (b)2iv, inserted "(Plan review--Building, Fire. Inspection--Building)"; in (d), inserted "or one- and two-family dwelling subcode, as applicable"; in (e), substituted "708 and 711" for "709 and 712"; in (f)7, deleted "(Electrical)" from the end; added new (f)8; recodified former (f)8 as (f)9; in (f)9, inserted "(Electrical)"; and deleted (i).

Amended by R.2021 d.015, effective February 16, 2021.

See: 52 N.J.R. 561(a), 53 N.J.R. 245(a).

In (c), substituted "406.3.2" for "406.1.4".

Amended by R.2022 d.035, effective March 7, 2022.

See: 53 N.J.R. 977(a), 54 N.J.R. 417(a).

Rewrote the introductory paragraph of (f)1; recodified former (f)2 as (f)1i; in (f)1i, substituted "In the event that lighting and receptacle outlets cannot be installed in the required locations without updating the small appliance branch circuits, kitchen" for "Kitchen"; deleted former (f)3 through (f)5 and (f)9; and recodified former (f)6 through (f)8 as (f)2 through (f)4.

Administrative correction, effective May 2, 2022.

See: 54 N.J.R. 1017(b).

Annotations

Notes

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NEW JERSEY ADMINISTRATIVE CODE

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N.J.A.C. 5:23-6.27A

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*NJ - New Jersey Administrative Code > TITLE 5. COMMUNITY AFFAIRS > CHAPTER 23. UNIFORM
CONSTRUCTION CODE > SUBCHAPTER 6. REHABILITATION SUBCODE*

§ 5:23-6.27A Supplemental requirements--Groups R-3 and R-5

There are no supplemental requirements applicable to Groups R-3 and R-5.

History

HISTORY:

Amended by R.2003 d.218, effective May 19, 2003.

See: 35 N.J.R. 29(a), 35 N.J.R. 2209(a).

Substituted "R-3 and R-5" for "R-3/R-4".

Amended by R.2004 d.145, effective April 5, 2004.

See: 35 N.J.R. 5190(a), 36 N.J.R. 1758(a).

Deleted "Use" preceding "Groups".

Annotations

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Chapter Notes

NEW JERSEY ADMINISTRATIVE CODE

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*NJ - New Jersey Administrative Code > TITLE 5. COMMUNITY AFFAIRS > CHAPTER 23. UNIFORM
CONSTRUCTION CODE > SUBCHAPTER 6. REHABILITATION SUBCODE*

§ 5:23-6.28 Basic requirements--Group S

(a) Exits: Two exits shall be required for stories with less than 500 occupants. Three exits shall be required for stories with 501 to 1,000 occupants. Four exits shall be required for stories with more than 1,000 occupants. Two means of egress are also required from all mezzanines with an occupant load greater than 30 or with an exit travel distance greater than 100 feet.

1. When more than one exit is required, existing fire escapes shall be accepted as providing one of the required means of egress unless judged to be dangerous for use under emergency exiting conditions. For use of fire escapes, access shall be through a door except when serving an occupant load of 10 or fewer. All occupants shall have unobstructed access to fire escapes without having to pass through a room subject to locking.

i. When more than one exit is required and there is not sufficient space for an exterior stair within the lot line, a new fire escape shall be accepted as providing one of the required means of egress. Newly-installed fire escapes shall comply with FTO-3.

2. A single exit is permitted in the story at the level of exit discharge when the occupant load of the story does not exceed 30 and the exit access travel distance does not exceed 100 feet.

3. A single exit is permitted in open parking structures where vehicles are mechanically parked.

4. A single exit is permitted in buildings of Group S-2 not more than two stories in height, with not more than 3,000 square feet per floor when the exit access travel distance does not

exceed 50 feet and a minimum fire resistance rating of one hour is provided for the exit enclosure and the opening protection. (Plan review--Building, Fire. Inspection--Building)

(b) Egress Doorways: A minimum of two egress doorways shall be required for all rooms and spaces with an occupant load greater than 30 or in which the travel distance exceeds 100 feet. All egress doors serving an occupant load greater than 50 shall swing in the direction of exit travel.

1. Exception: Storage rooms with a maximum occupant load of 10 shall not be required to have two egress doorways. (Plan review--Building, Fire. Inspection--Building)

(c) Capacity of Means of Egress: The capacity of the means of egress in each work area shall be determined in accordance with N.J.A.C. 5:23-6.11(b). (Plan review--Building, Fire. Inspection--Building)

(d) Dead End Corridors: Existing dead end corridors shall not exceed 35 feet in length.

Exceptions are allowed as follows:

1. Dead end corridors may be up to 50 feet in length in a building with an automatic alarm system installed in conformance with the building code in effect at the time of its installation.

2. Dead end corridors may be up to 70 feet in length in a building with an automatic sprinkler system installed in conformance with the building code in effect at the time of its installation.

(Plan review--Building, Fire. Inspection--Building)

(e) Means of Egress Lighting: Artificial lighting with an intensity of not less than one foot candle at floor level shall be required during all times that the conditions of occupancy of the building require that the exits be available. In all buildings, rooms or spaces required to have more than one exit or exit access, means of egress lighting shall be connected to an emergency electrical system conforming to NFPA 70 (NEC) except that continued illumination shall be required to be provided for not less than one hour in the case of primary power loss.

1. Exception: Lighting to illuminate the exit discharge shall not be required. (Plan review--Building, Fire, Electric. Inspection--Building)

(f) Illuminated Exit Signs: Illuminated exit signs shall be provided for all required means of egress in all buildings, rooms or spaces required to have more than one exit or exit access. Exit signs shall be visible from the exit access and supplemented by directional signs when necessary. (Exception: Approved main exterior doors that are clearly identified as exits are not required to have exit signs.) Exit signs shall meet the following criteria:

1. Red or green letters at least six inches high; minimum width of each stroke $\frac{3}{4}$ inch on a white background or in other approved distinguishable colors. Arrows, if provided, shall be such that the direction cannot readily be changed. The word "Exit" shall be clearly discernible when the sign is not energized.
2. Exit signs shall be illuminated at all times when the building is occupied by a source providing at least five foot candles at the illuminated surface or shall be approved self-luminous signs which provide evenly illuminated letters with a minimum luminance of 0.06 foot lamberts. Exit signs shall be connected to an emergency electrical system conforming to NFPA 70 (NEC) except that continued illumination shall be required to be provided for not less than one hour in the case of primary power loss. No emergency power shall be required for approved self-luminous signs. (Plan review--Building, Fire. Inspection--Building)

(g) Handrails: Every required exit stairway having three or more risers and not provided with handrails or in which the existing handrails are in danger of collapsing when used under emergency exiting conditions, shall be provided with handrails for the full length of the run of steps on at least one side. All exit stairways more than 66 inches wide shall have handrails on both sides unless the full width of the stairway is not needed to accommodate the design occupancy. (Plan review--Building, Fire. Inspection--Building)

(h) Guards: Every open portion of a stair, landing or balcony which is more than 30 inches above the floor or grade below and is not provided with guards or those in which the existing guards are in danger of collapsing when used under emergency exiting conditions, shall be provided with guards. (Plan review--Building, Fire. Inspection--Building)

(i) Vertical Opening Protection: Vertical opening protection for interior stairways and other vertical openings shall be provided as follows:

1. For vertical openings connecting more than six floor levels, approved assemblies having a fire resistance rating of not less than two hours with approved opening protectives shall be required.
2. For vertical openings connecting four to six floor levels, approved assemblies having a fire resistance rating of not less than one hour with approved opening protectives shall be required.

(Plan review--Building, Fire. Inspection--Building)

(j) Structural Elements: Structural elements which are uncovered during the course of the rehabilitation and which are found to be unsound or otherwise structurally deficient, shall be reinforced, supported or replaced in accordance with the applicable structural design criteria of the building subcode. Where structural elements are sound, there is no excessive deflection (defined as deflection in excess of the standards set forth in N.J.A.C. 5:23-6.7(c)1), and fixed loads are not changing in a way that will increase the stresses on existing structures beyond that which is permitted by N.J.A.C. 5:23-6.7(c), existing structural elements shall be permitted to remain.

(Building)

(k) Plumbing Fixtures: Plumbing fixtures shall be provided as follows. Where the plumbing subcode allows for the substitution or omission of fixtures, such substitutions or omissions shall also be permitted under this section. (Plumbing)

Total Occupancy<1>	Water Closets	Lavatories	Drinking Water Facilities	Service Sinks
1-15	1 Unisex	1	1	1
16 and over		Fixtures to be provided as per Table 7.21.1 of the plumbing subcode.		

Note 1. For purposes of determining the number of plumbing fixtures required, total occupancy shall be the anticipated occupancy of the building under normal use conditions. It is not necessarily the same as the total permitted occupant load based on egress capacity.

(l) Mechanical Requirements: All spaces intended for occupancy shall be provided with either natural or mechanical ventilation.

1. Spaces intended to be naturally ventilated shall be provided with openable doors, windows, louvers, or other openings to the outdoors. The minimum openable area to the outdoors shall be four percent of the floor area being ventilated. Where rooms without openings to the outdoors are ventilated through an adjoining room, the unobstructed opening to the adjoining room shall be at least eight percent of the floor area of the interior room or space, but not less than 25 square feet. The ventilation openings to the outdoors shall be based on the total floor area being ventilated.
 2. Mechanically-ventilated spaces shall comply with the following:
 - i. Newly-installed HVAC systems shall comply with the requirements of the mechanical subcode.
 - ii. Existing systems that are altered or extended shall not reduce the amount of outside air below the existing rate per person or the rate included in the mechanical subcode, whichever is lower. As a minimum, mechanically-ventilated spaces shall be provided with five CFM per person of outdoor air and 15 CFM of ventilation air per person.
 3. All newly-introduced devices, equipment or operations that produce airborne particulates, odors, fumes, sprays, vapors, smoke or gases in such quantities to be irritating or injurious to health shall be provided with local exhaust. (Building)
- (m)** Interior finishes shall comply with N.J.A.C. 5:23-6.11(c). (Plan review--Building, Fire. Inspection--Building)
- (n)** Specific Occupancy Areas: Specific occupancy areas within the work area, as listed in N.J.A.C. 5:23-6.30(h), shall comply with the requirements established in that section for separation and/or protection. (Building)

History

HISTORY:

Administrative correction.

See: 30 N.J.R. 539(a).

Amended by R.1999 d.424, effective December 6, 1999.

See: 31 N.J.R. 2428(a), 31 N.J.R. 4001(c).

In (e), substituted "except that continued illumination shall be required to be provided" for "to assure continued illumination" in the last sentence of the introductory paragraph, and inserted a reference to electric plan review in 1; and in (f)2, rewrote the second sentence.

Amended by R.2000 d.492, effective December 18, 2000.

See: 32 N.J.R. 3219(a), 32 N.J.R. 4437(b).

Added (o).

Amended by R.2003 d.218, effective May 19, 2003.

See: 35 N.J.R. 29(a), 35 N.J.R. 2209(a).

In (l)2i and in the first sentence of (l)2ii, substituted "the International Mechanical Code, 2000 edition" for "ASHRAE 62-89"; in (o), substituted "Section 716" for "Section 721.0".

Amended by R.2004 d.145, effective April 5, 2004.

See: 35 N.J.R. 5190(a), 36 N.J.R. 1758(a).

In (a), inserted "an" preceding "exit" in the last sentence of the introductory paragraph, and deleted "Use" preceding "Group" in 4; in (b), substituted "30" for "50" following "load greater than" and "100" for "75" preceding "feet"; in (d)2, substituted "an automatic sprinkler" for "a suppression" preceding "system".

Amended by R.2006 d.120, effective April 3, 2006.

See: 37 N.J.R. 3753(a), 38 N.J.R. 1567(a).

In (l)2i and ii, substituted "mechanical subcode" for "International Mechanical Code, 2000 edition".

Amended by R.2007 d.122, effective May 7, 2007.

See: 38 N.J.R. 4951(a), 39 N.J.R. 1673(a).

In (l)2ii, deleted "unless the indoor air quality procedure of ASHRAE 62-89 is followed and results in a lesser amount" following "ventilation air per person"; and in (o), substituted "717" for "716".

Amended by R.2009 d.117, effective April 20, 2009.

See: 41 N.J.R. 18(a), 41 N.J.R. 1726(a).

In (o), inserted "creates or" and deleted "exposed" preceding the second occurrence of "framing".

Amended by R.2017 d.077, effective May 1, 2017.

See: 48 N.J.R. 1854(a), 49 N.J.R. 1020(a).

In the introductory paragraph of (a), substituted "or" for "and"; and deleted (o).

Annotations

Notes

Chapter Notes

NEW JERSEY ADMINISTRATIVE CODE

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N.J.A.C. 5:23-6.28A

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*NJ - New Jersey Administrative Code > TITLE 5. COMMUNITY AFFAIRS > CHAPTER 23. UNIFORM
CONSTRUCTION CODE > SUBCHAPTER 6. REHABILITATION SUBCODE*

§ 5:23-6.28A Supplemental requirements--Group S

(a) Automatic Sprinkler System: In buildings with a Group S-1 fire area greater than 12,000 square feet or a Group S-1 fire area more than three stories in height, when the work area exceeds 50 percent of the gross enclosed floor area of the building, an automatic sprinkler system shall be provided throughout the entire building.

(b) Manual Alarm System: For buildings greater than three stories in height with occupant loads over 25, when the work area exceeds 50 percent of the gross enclosed floor area of the building, manual fire alarms shall be required throughout the building.

1. Exception: Manual alarm systems shall not be required in buildings equipped throughout with an automatic sprinkler system. (Fire)

(c) Vertical Opening Protection: When the work area exceeds 50 percent of the gross enclosed floor area of the building, vertical opening protection shall be provided throughout the building as follows:

1. A minimum two hour fire rated assembly with approved opening protectives shall be required for interior stairways and other vertical openings connecting more than six floor levels.
2. A minimum one hour fire rated assembly with approved opening protectives shall be required for interior stairways and other vertical openings connecting four to six floor levels.
(Plan review--Building, Fire. Inspection--Building)

(d) Requirements for high-rise buildings: Any building or structure having one or more floors, other than occupiable roofs, used for human occupancy located either more than six stories or more than 75 feet above the lowest level accessible to a fire department vehicle shall comply with the following:

1. When the work area is one entire floor or more or when the work area is 20 percent or more of the occupied floor area served by a recirculating air system, the recirculating air system which serves the work area shall be equipped with approved smoke and heat detection devices installed in accordance with the UCC. The devices shall stop the fan(s) automatically and shall be of the manual reset type. Automatic fan shutdown is not required when the system is part of an approved smoke removal or smoke control system. (Building)
2. When the work area is one entire floor or more or when the work area is 20 percent or more of the occupied floor area of the building, all elevators in the building shall be equipped with the following emergency control devices:
 - i. All automatic (nondesignated attendant) elevators having a travel distance of 25 feet or more above or below the designated level shall be equipped with Phase 1 Emergency Recall Operation as required by ASME A17.1-1987, Rules 211.3a and 211.3b listed in N.J.A.C. 5:70-3;
 - ii. At least one elevator shall be equipped with Phase II Emergency In-Car Operation, as required by ASME A17.1-1987, Rule 211.3c;
 - (1) In buildings with multiple elevators, at least one elevator to each floor served by an elevator shall be equipped with Phase II Emergency In-Car Operation; and
 - iii. All designated attendant elevators having a travel distance of 25 feet or more above or below the designated level shall be equipped with emergency controls, as required by ASME A17.1-1987, Rule 211.4. (Elevator)
3. When the work area is one entire floor or more or when the work area is 20 percent or more of the occupied floor area of the building, standpipes shall be provided up to and including the

highest floor that is part of the work area. The standpipes shall be located and installed in accordance with the building subcode, except as follows:

- i. No pump shall be required provided that the standpipes are capable of accepting delivery by fire department apparatus of a minimum of 250 gpm at 65 psi to the topmost floor in buildings equipped throughout with an automatic sprinkler system or a minimum of 500 gpm at 65 psi to the topmost floor in all other buildings. (Where the standpipe terminates below the topmost floor, the standpipe shall be designed to meet these requirements (gpm/psi) for possible future extension of the standpipe.)
- ii. Hose and hose cabinets shall not be required. (Fire)

(e) Elevator Devices: When the work area exceeds 50 percent of the gross enclosed floor area of the building, all elevator devices serving any part of the work area shall comply with the requirements of N.J.A.C. 5:23-6.30(g). (Elevator)

(f) Public Garages: When the work area exceeds 50 percent of the gross floor area of a public garage, the entire building is required to comply with Sections 406.2.5, 406.2.8, 406.2.9, 406.4.1, 406.4.2, 406.5.3, 406.5.7, 406.5.8, 406.5.9, 406.5.10, 406.5.11, 406.6.2, and 406.6.3 of the building subcode.

History

HISTORY:

Amended by R.2000 d.492, effective December 18, 2000.

See: 32 N.J.R. 3219(a), 32 N.J.R. 4437(b).

In (c)2i, updated N.J.A.C. reference.

Amended by R.2003 d.218, effective May 19, 2003.

See: 35 N.J.R. 29(a), 35 N.J.R. 2209(a).

In (e), substituted "Section 406.3" for "Section 408.0, except Subsection 408.3.3,".

Amended by R.2004 d.145, effective April 5, 2004.

See: 35 N.J.R. 5190(a), 36 N.J.R. 1758(a).

Added a new (a); recodified former (a) through (e) as (b) through (f); in (b)1 and (d)3i, substituted references to automatic sprinkler for references to fire suppression preceding "system".

Amended by R.2009 d.117, effective April 20, 2009.

See: 41 N.J.R. 18(a), 41 N.J.R. 1726(a).

In (d)1, deleted "or exhaust" preceding the first and second occurrences of "system".

Amended by R.2011 d.270, effective November 7, 2011.

See: 43 N.J.R. 1297(a), 43 N.J.R. 2999(a).

In (f), substituted "Sections 406.2 and" for "Section".

Amended by R.2017 d.077, effective May 1, 2017.

See: 48 N.J.R. 1854(a), 49 N.J.R. 1020(a).

Rewrote (f).

Amended by R.2021 d.015, effective February 16, 2021.

See: 52 N.J.R. 561(a), 53 N.J.R. 245(a).

In (f), substituted "406.2.5, 406.2.8, 406.2.9, 406.4.1, 406.4.2," for "406.4.2, 406.4.3, 406.4.6, 406.4.7, 406.4.8".

Amended by R.2026 d.087, effective August 17, 2026.

See: 57 N.J.R. 2333(a), 58 N.J.R. 1882(a).

In the introductory paragraph of (d), inserted ", other than occupiable roofs,".

Annotations

Notes

NEW JERSEY ADMINISTRATIVE CODE

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*NJ - New Jersey Administrative Code > TITLE 5. COMMUNITY AFFAIRS > CHAPTER 23. UNIFORM
CONSTRUCTION CODE > SUBCHAPTER 6. REHABILITATION SUBCODE*

§ 5:23-6.29 Mixed use buildings

(a) Each portion of a building shall be separately classified as to use. The requirements of this subcode shall apply to each portion of the building based on the group of that portion, except that the most restrictive requirements of this subcode for an automatic sprinkler system shall apply to the entire building.

1. Exception: An automatic sprinkler system shall not be required for uses that would not otherwise need an automatic sprinkler system provided that there is a one-hour fire separation between the use(s) requiring an automatic sprinkler system and the other use(s) in the same building. A two-hour fire separation assembly shall be required to apply this exception in any building where one or more of the uses is H. (Plan review--Building, Fire. Inspection--Building)

(b) Separation: In any nonresidential use located below or attached to one or more dwelling units, when the work area exceeds 50 percent of the gross enclosed floor area of the nonresidential use, the nonresidential use shall be separated from the residential use by a one hour fire resistance-rated wall or ceiling assembly designed to protect the dwelling unit(s) attached or above. (Plan review--Building, Fire. Inspection--Building)

(c) Alarms: In any nonresidential use located below or attached to one or more dwelling units (including single room occupancies), when the work area exceeds 50 percent of the gross enclosed floor area of the nonresidential use, single or multiple station smoke alarms shall be installed in the nonresidential portion(s) of the building in accordance with NFPA 72 and provided with an

audible alarm located within each dwelling unit of the residential portion of the building. The alarms shall be AC powered with battery back-up. Hard-wired, interconnected smoke alarms installed throughout the building shall be accepted as meeting this requirement. (Fire)

History

HISTORY:

Amended by R.2004 d.145, effective April 5, 2004.

See: 35 N.J.R. 5190(a), 36 N.J.R. 1758(a).

In (a), substituted references to automatic sprinkler for references to fire suppression throughout and deleted "use" preceding "group of that portion" in the introductory paragraph.

Amended by R.2009 d.117, effective April 20, 2009.

See: 41 N.J.R. 18(a), 41 N.J.R. 1726(a).

In (c), substituted "alarms" for "detectors" throughout.

Amended by R.2017 d.077, effective May 1, 2017.

See: 48 N.J.R. 1854(a), 49 N.J.R. 1020(a).

In (b) and (c), inserted "or attached to"; and in (b), inserted "wall or" and "attached or".

Annotations

Notes

Chapter Notes

NEW JERSEY ADMINISTRATIVE CODE

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N.J.A.C. 5:23-6.30

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*NJ - New Jersey Administrative Code > TITLE 5. COMMUNITY AFFAIRS > CHAPTER 23. UNIFORM
CONSTRUCTION CODE > SUBCHAPTER 6. REHABILITATION SUBCODE*

§ 5:23-6.30 Special technical requirements--all groups

(a) The requirements of this section shall apply to reconstruction projects in all groups except R-3 and R-5.

(b) When an automatic sprinkler system is required or provided, the sprinkler riser shall be sized to serve the entire building even if the system currently being installed serves only a portion of the building.

1. Exception: This requirement shall not apply to limited area sprinkler systems installed in accordance with Section 903.3.8 of the building subcode. (Fire)

(c) Windowless stories: In all buildings, any windowless basement or story located below the seventh story which is created by the work being performed or any existing windowless basement or story located below the seventh story in which the work area exceeds 50 percent of the gross enclosed floor area of the windowless story shall be equipped throughout with an automatic sprinkler system installed in accordance with the New Jersey Uniform Construction Code.

1. Stories or basements shall not be considered windowless when there is provided on at least one side of such story or basement firefighter access through openings, such as windows, doors or access panels, that are located entirely above the adjoining grade level.

2. Such openings shall be at least:

i. Thirty-two inches by 48 inches in size, spaced not more than 100 feet apart in each story or basement; or

- ii.** Twenty-two inches by 42 inches in size, spaced not more than 30 feet apart in each story or basement.
- 3.** All openings for firefighter access shall conform to all the following:
- i.** Openings shall be unobstructed to allow fire fighting and rescue operations from the exterior;
- ii.** Openings in stories at or above grade shall have a sill height of not more than 36 inches as measured from the finished floor level. Openings in basements shall have no sill height restrictions; and
- iii.** Openings shall be readily identifiable and openable from the outside.
- 4.** When openings in a story are provided on only one side and the opposite wall of such story is more than 75 feet from such openings, the story shall be considered windowless unless openings as specified above are provided on at least two sides of the exterior walls of the story.
- 5.** If any portion of a basement is located more than 75 feet from openings as specified above, the basement shall be considered windowless.
- 6.** Windowless basements not exceeding 3,000 square feet in area shall be exempt from this automatic sprinkler system requirement, provided a supervised automatic fire alarm system shall be installed in accordance with the New Jersey Uniform Construction Code.
- 7.** In windowless basements greater than 3,000 square feet, but not exceeding 10,000 square feet in area, the required automatic sprinkler system need not be connected to a water supply other than an existing domestic supply if the following conditions are met:
- i.** The automatic sprinkler system shall be provided with a fire department connection, which shall be marked with a sign reading "Basement Area Sprinkler Water Supply"; and
- ii.** A supervised automatic fire alarm system shall be installed in accordance with the New Jersey Uniform Construction Code. (Fire)

(d) Supervision of automatic sprinkler systems: When automatic sprinkler systems are required by this subcode to be supervised, this shall be accomplished by one of the following methods as determined by the fire subcode official:

1. Approved central station system in accordance with NFPA 72;
2. Approved proprietary system in accordance with NFPA 72;
3. Approved remote station system of the jurisdiction in accordance with NFPA 72; or
4. Approved local alarm service which will cause the sounding of an alarm in accordance with NFPA 72;
5. The following are exceptions to (d) above:
 - i. Underground gate valves with roadway boxes;
 - ii. Halogenated extinguishing systems;
 - iii. Carbon-dioxide extinguishing systems;
 - iv. Dry chemical extinguishing systems; and
 - v. Limited area sprinkler systems. (Fire)

(e) Technical Requirements for Smoke Barriers: Wherever smoke barriers are required by this subchapter, they shall be constructed in accordance with the following provisions:

1. Smoke barriers shall have a fire resistance rating of not less than one-half hour and shall form an effective membrane continuous from outside wall to outside wall and from floor slab to floor or roof deck above, including continuity through all concealed spaces, such as those found above suspended ceilings, and including interstitial structural and mechanical spaces. Transfer grilles, whether equipped with fusible link-operated dampers or not, shall not be used in these partitions. Wire glass panels not exceeding 1,296 square inches in approved steel frames may be used in smoke barriers.

- i. Exception: Smoke barriers are not required in interstitial spaces when such spaces are designed and constructed with ceilings that provide resistance to the passage of fire and smoke equivalent to that provided by smoke barriers.
2. A means of egress shall be provided from each smoke compartment created by smoke barriers such that it is possible to reach an exit without re-entering the smoke compartment.
3. Doors in smoke barriers shall have a fire-resistance rating of not less than 20 minutes when tested in accordance with ASTM E152 without the hose stream and labeled by an approved agency. Double egress corridor doors shall have vision panels of one-quarter inch thick labeled wire glass mounted in approved steel frames. Such panels may also be provided in other doors in smoke barriers. The glass area of the vision panels shall be limited to 1,296 square inches for each door. The doors shall close the openings with only the clearance necessary for proper operation under self-closing or automatic closing and shall be without undercuts, louvers or grilles. Rabbets or astragals are required at the meeting edges of double egress doors, and stops are required on the head and jambs of all doors in smoke barriers. Positive latching devices are not required on double egress corridor doors, and center mullions are prohibited.
 - i. Exception: Protection at the meeting edges of doors and stops at the head and sides of door frames may be omitted in buildings equipped with an approved engineered smoke control system. The engineered smoke control system shall respond automatically, preventing the transfer of smoke across the barrier.
4. Doors in smoke barriers shall be self-closing or shall be provided with approved door hold-open devices of the fail-safe type which shall release the doors causing them to close upon the actuation of smoke detectors as well as upon the application of a maximum manual pull of 50 pounds against the hold-open device.
5. An approved damper designed to resist the passage of smoke shall be provided at each point a duct penetrates a smoke barrier. The damper shall close upon detection of smoke by an approved smoke detector located within the duct.

i. In lieu of an approved smoke detector located within the duct, ducts which penetrate smoke barriers above doors are permitted to have the approved damper arranged to close upon detection of smoke on either side of the smoke barrier door opening.

ii. Dampers are not required in buildings equipped with an approved engineered smoke control system.

iii. Dampers are not required where the openings in ducts are limited to a single smoke compartment and the ducts are of steel construction. (Plan review--Building, Fire. Inspection--Building)

(f) Existing alarm systems and automatic sprinkler systems shall be accepted provided that they meet the requirements of N.J.A.C. 5:23-6.8, Materials and methods, or the standards applicable at the time of their installation and provided that there is no increase in the hazard of the use or in the load. (Fire)

(g) Technical Requirements for Elevator Devices: Where elevator requirements are triggered by the supplemental requirements for each group (N.J.A.C. 5:23-6.12A through 6.28A), the following shall apply:

1. Passenger elevators. Elevator devices accessible to the general public shall conform to:

i. ASME A17.3-2000 requirements for Hoistway Door Locking Devices, Parking Devices, and Access (Sections 2.7, 4.1); Hoistway Entrances (Sections 2.6, 4.1); Power Operation of Doors and Gates (Sections 2.8, 4.1); Floating Platforms (Section 3.3.4); Car Doors and Gates (Section 3.4.2); Location of Car Doors and Gates (Section 3.4.3); Emergency Exits (Section 3.4.4); Car Illumination (Section 3.4.5) and Protection of Light Bulbs and Tubes (Section 3.4.6); Terminal Stopping Devices (Sections 3.9, 4.6); Operating Devices and Control Equipment (Sections 3.10, 4.7 except 4.7.8); Car Emergency Signaling Devices (Sections 3.11.1 and 4.7.8); Stop Switch (Pits) (Sections 2.3.3, 4.1); Machine Rooms and Machinery Spaces: Lighting (Section 2.2.3) and Ventilation (Section 2.2.4) Check Valve (Hydraulic Elevators) (Section 4.4.2).

ii. ASME A17.1-1996 requirements for Shutoff Valve (Rule 303.4a) and Manual Lowering Valve (Rule 303.4d)

2. Freight elevators. Elevators which are allowed to carry passengers by the authority having jurisdiction shall conform to ASME A17.1-1996 Rule 207.4 and ASME A17.3-1993 requirements for Car Frames and Platforms (Section 3.3) and Location of Car Doors and Gates (Section 3.4.3).

3. Elevators shall be equipped with emergency operation as required by ASME A.17.1-1987, Rules 211.3 through 211.4 and 211.7.

i. Phase II emergency operation shall be provided only if required by the requirements for high-rise buildings contained in the supplemental requirements for each group, N.J.A.C. 5:23-6:12A through 6.28A. In addition, when phase II emergency operation is required, standby power shall be provided. Standby power shall be installed in accordance with the electrical subcode. The elevator powered by a standby power system shall be subject to the requirements of ANSI/ASME A17.1-1996 Rule 211.2.

4. Escalators shall conform to ASME A17.3-2000 for Operating and Safety Devices (Section 5.3), Anti-Slide Devices (5.1.4), Handrail Guards (5.1.6), Guards at Ceiling or Soffit Intersection (5.1.3), Lighting (5.4), Distinction Between Comb and Step (5.5.2), Adjacent Floor Surfaces (5.5.3). (Elevator)

(h) Specific Occupancy Areas: Specific occupancy areas, as listed below, shall comply with the following:

1. Paint shops in other than Group F which contain chemicals below the exempt amount for Group H, waste and soiled linen collection rooms and chute termination rooms shall be separated from other portions of the building by a one-hour fire partition or provided with an automatic sprinkler system.

2. Incinerator rooms in all groups shall be separated from other portions of the building by a two-hour fire separation assembly and provided with an automatic sprinkler system.

3. In Groups I-2, I-3 and I-4, physical plant maintenance shops, laundries in excess of 100 square feet in area and padded cells shall be separated from other portions of the building by a one-hour fire partition or provided with an automatic sprinkler system. (Building)

History

HISTORY:

Amended by R.2003 d.218, effective May 19, 2003.

See: 35 N.J.R. 29(a), 35 N.J.R. 2209(a).

In (a), substituted "R-5" for "R-4"; in (b)1, substituted "Section 903.3.5.1.1" for "Section 907.0"; in (g)1ii and (g)3i, substituted "A17.1-1996" for "A17.1-1993"; in (g)1ii, deleted "Supply Line" preceding "Shutoff Valve"; in (h)3, substituted ", I-3 and I-4" for "and I-3".

Amended by R.2004 d.145, effective April 5, 2004.

See: 35 N.J.R. 5190(a), 36 N.J.R. 1758(a).

Deleted references to use preceding references to group throughout and substituted references to automatic sprinkler for references to fire suppression throughout.

Amended by R.2007 d.122, effective May 7, 2007.

See: 38 N.J.R. 4951(a), 39 N.J.R. 1673(a).

In (g)1i and (g)4, substituted "2000" for "1993".

Administrative correction.

See: 39 N.J.R. 3296(a).

Amended by R.2017 d.077, effective May 1, 2017.

See: 48 N.J.R. 1854(a), 49 N.J.R. 1020(a).

In (b)1, substituted "903.3.8" for "903.3.5.1.1".

Annotations

Notes

Chapter Notes

NEW JERSEY ADMINISTRATIVE CODE

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End of Document

N.J.A.C. 5:23-6.31

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*NJ - New Jersey Administrative Code > TITLE 5. COMMUNITY AFFAIRS > CHAPTER 23. UNIFORM
CONSTRUCTION CODE > SUBCHAPTER 6. REHABILITATION SUBCODE*

§ 5:23-6.31 Change of use

(a) General: The following are of general applicability to changes of use:

1. When the use of a building is changed, then the building must be brought into compliance with the requirements of this section. Each of the lettered subsections of this section establishes a specific type of requirement. This section establishes requirements for compliance with the basic requirements of this subcode, for means of egress, for enclosure of vertical openings, for height and area limitation, for exterior wall fire resistance, for automatic sprinkler systems, for fire alarm systems, for fire detection systems, for structural soundness, for plumbing, electrical, and mechanical systems, and for accessibility.
 - i. Limit on new buildings undergoing a change of use: Buildings that have been occupied for their originally intended use for less than one year shall be required to comply with the requirements of the Uniform Construction Code for new construction for the proposed use.
2. The subsections governing compliance with the basic requirements, means of egress, height and area limitations, exterior wall fire resistance, and automatic sprinkler systems incorporate Relative Group Hazard Index Tables. Compliance with the requirements of the subsection is required when the change of use will increase the relative hazard. Each of the subsections should be applied separately to the proposed new use.
3. This section may require an owner to undertake work in order to be permitted to change the use of a building or a portion of a building. Additionally, the owner of a building may wish to undertake other work not required by the section. That work must comply with the

requirements for repair, renovation, alteration, and/or reconstruction applicable to the new group in accordance with the provisions of this subcode.

4. Fire protection system removal: Any fire protection system providing partial or redundant protection originally installed to protect a special hazard that no longer exists and that is not required in accordance with the current Uniform Construction Code, is allowed to be removed with the written approval of the fire subcode official and fire official. All disconnected equipment and devices, such as pull stations, nozzles, detectors, sprinklers, sensors, panels, and hose connections, shall be removed so as not to give a false indication that the structure, area, or space is protected. (Fire)

5. Where the character of use of an existing building or portion thereof is changed to one of the following special use or occupancy categories, the building or portion shall comply with the referenced section of the building subcode specific to the special use or occupancy regardless of whether a change of use group is involved.

- i.** Covered Mall and Open Mall Buildings--Section 402;
- ii.** Atriums--Sections 404;
- iii.** Underground Buildings--Section 405;
- iv.** Motor-Vehicle-Related Occupancies -- Section 406;
- v.** Motion Picture Projection Rooms--Section 409;
- vi.** Stages, Platforms, and Technical Production Areas --Section 410;
- vii.** Special Amusement Areas--Section 411:
 - (1)** A variation shall not be granted for the flame spread and smoke development ratings of interior finish and trim requirements of Section 411.
 - (2)** For the use of a building as a special amusement building, where a variation request has been submitted, the Construction Official shall consult with the Fire Official as required by N.J.A.C. 5:23-6.2(i).

- viii.** Aircraft-Related Occupancies--Section 412;
- ix.** Combustible Storage--Section 413;
- x.** Hazardous Materials--Section 414;
- xi.** Spray Application of Flammable Finishes--Section 416;
- xii.** Drying Rooms--Section 417;
- xiii.** Organic Coatings--Section 418;
- xiv.** Hydrogen Fuel Gas Rooms--Section 421;
- xv.** Ambulatory Health Care Facilities-Section 422;
- xvi.** Hyperbaric Facilities - Section 425;
- xvii.** Combustible Dusts, Grain Processing and Storage - Section 426;
- xviii.** Medical Gas Systems--Section 427; and
- xix.** Higher Education Laboratories--Section 428.
- xx.** Live/Work Units--Section 508.5.

6. Any automatic sprinkler system or fire detection and/or alarm requirements applicable to the special use or occupancy shall be applied throughout the entire building unless the special use or occupancy is separated from the remainder of the building by fire separation assemblies having a rating of at least two hours. (Fire)

7. Group overnight stays: If any non-residential occupancy, other than Group F, H or S, accommodates seven or more non-consecutive group overnight stays within a calendar year for persons over 21/2 years of age, and the activities involve planned periods of sleep, the building is considered to have undergone a change of use. In such a case, it shall be necessary to apply for and be issued a Certificate of Occupancy. This shall be a dual Certificate of Occupancy to allow Group R-1 in addition to the existing use of a building. Any facility that accommodates six or fewer overnight stays within a calendar year shall obtain a permit under the Uniform Fire Code, N.J.A.C. 5:70. Group overnight stays in Groups F, H and S shall be prohibited.

8. Where an existing single-family dwelling is converted into a two-family dwelling, the following shall apply:

i. Smoke alarms shall be installed and maintained within each dwelling unit as required by Section 907.2.11.2 of the building subcode or Section R310 of the one-and two-family dwelling subcode, as applicable.

ii. Fire separation between dwelling units.

(1) One-hour dwelling unit separation; or

(2) Two layers of 5/8-inch thick type X gypsum wallboard. The base layer shall be applied at right angles to the joists with 1 1/4-inch minimum drywall screws or nails at 24 inches on center. The face layer shall be applied at right angles to the joists with 1-7/8-inch minimum drywall screws or nails at 12 inches on center. The face layer joints shall be offset from the base layer joints by a minimum of one joist bay. The joints of the face layer shall be taped and provided with a minimum of one layer of spackle.

(Plan review--Building, Fire. Inspection--Building)

(b) Compliance with Basic Requirements: Compliance with the basic requirements shall be required as follows:

TABLE B

Relative Group Hazard

1 (highest)	H-1, H-2, H-3
2	A-1, A-2 Nightclubs, H-4, H-5, F-1, I-3, M, S-1
3	A-2 Other than Nightclubs, A-3, A-4, A-5, B, F-2, I-2, I-4, R-1, S-2
4	A-3 Places of Worship, E, I-1, R-2, and R-4 buildings more than two stories in height or more than four dwelling units
5 (lowest)	R-2 and R-4 buildings two stories or fewer in height and four dwelling units or less, R-3, R-5, U

1. When the use of a building is changed to a higher relative use group hazard as shown in Table B above, the building shall comply with the basic requirements of N.J.A.C. 5:23-6.10 through 6.30 applied throughout the building for the new group unless otherwise provided.

Where another lettered subsection of this section establishes a requirement that differs from the basic requirement, the requirement contained in that other lettered subsection shall govern.

i. Where a portion of a building is changed to a higher relative group hazard, the building shall comply with the basic requirements of N.J.A.C. 5:23-6.10 through 6.30 for an automatic sprinkler system and fire detection and/or alarms applied throughout the building for the new group unless the proposed use is separated from the existing use(s) by a fire barrier or horizontal assembly, or both, having a fire resistance rating in accordance with Table 707.3.10 of the building subcode in which case only the portion changed shall comply; mixed occupancies shall use the highest applicable rating from Table 707.3.10. The portion of the building changed shall comply with all the other basic requirements of N.J.A.C. 5:23-6.10 through 6.30 for the new group.

2. When a change of use is made to an equal or lesser relative group hazard as shown in Table B above, the existing building is not required to comply with the basic requirements except:

- i. Where required in connection with alteration or reconstruction work by the sections of this subcode applicable to alteration or reconstruction work; or
- ii. Where the proposed use is subject to and not in compliance with the applicable requirements of N.J.A.C. 5:70-4.

(c) Means of Egress: The following requirements apply to means of egress in a change of use:

TABLE C

Hazard Categories and Classifications

Means of Egress

Relative Hazard	Use Classification
1 (highest)	H-1, H-2, H-3, A2 Nightclubs
2	I-2, I-3, I-4
3	A (other than A-2 nightclubs), E, I-1, M, R-1, R-2, R-4
4	B, F-1, R-3, R-5, S-1, H-4, H-5
5 (lowest)	F-2, S-2, U

1. For any change of use, except a change of use to Group A-2 Nightclubs, the occupant load of the space shall be calculated based on the capacity of the exits as per N.J.A.C. 5:23-6.11(b).

The occupant load shall not exceed one occupant per five square feet floor area unless the building complies with chapter 10 of the building subcode in its entirety.

- i.** For Group A-2 Nightclubs, the occupant load shall be calculated using section 1029.2 of the building subcode, except the maximum occupant load shall not exceed one occupant per five square feet of occupiable floor space.
 - ii.** Where a portion of a building undergoes a change of use, the determination of the capacity of the exit(s) serving that portion shall include all spaces served by those exit(s).
- 2.** When a change in use is made to a higher hazard category as shown in Table C above, the entire building or portion thereof shall comply with the following requirements of the building subcode or of this subcode as specified below.
 - i.** Sections 1006 (Number of Exits and Exit Access Doorways) and 1007 (Exit and Exit Access Doorway Configuration).
 - (1)** Exception: The occupant load of the space may be restricted in order to comply with the requirements of these sections;
 - (2)** Exception: A single exit shall be permitted in a change of use to a Group R-2 or R-4 where the conditions of N.J.A.C. 5:23-6.26(b) for a single exit are met;
 - ii.** Section 1008 (Means of Egress Illumination);
 - iii.** Section 1010 (Doors, Gates and Turnstiles) except section 1010.1.1 (Size of doors). Apply the Basic Requirements (6.10 through 6.30) for door widths;
 - iv.** Sections 1011.7.2 (Outdoor conditions), 1011.7.3 (Enclosures under interior stairways), 1011.12 (Stairway to roof), and the Basic Requirements (6.10 through 6.30) for stair widths;
 - v.** Sections 1012.8 (Ramps - Handrails), 1012.9 (Guards), and 1012.10 (Edge protection), and the Basic Requirements (6.10 through 6.30) for ramp widths;
 - vi.** Section 1013.1 (Exit signs - where required) and Section 1013.3 (Illumination);

vii. Section 1016.2 (Egress through intervening spaces);

viii. Section 1017 (Exit Access Travel Distance);

ix. Section 1018 (Aisles);

x. Sections 1020.2 (Corridor construction), 1020.4 (Corridor obstruction), 1020.6 (Air movement in corridors), 1020.7 (Corridor continuity), and the Basic Requirements (6.10 through 6.30) for corridor widths.

(1) Existing lath and plaster in good condition or existing 1/2-inch thick gypsum wallboard on both sides of the wall shall be accepted where a one-hour fire separation assembly is required by Table 1020.2 (Corridor Fire-Resistance Rating);

xi. Section 1025 (Luminous Egress Path Markings);

xii. Section 1026 (Horizontal Exits);

xiii. Section 1028 (Exit Discharge) and Section 1029 (Egress Courts); and

xiv. Section 1030 (Assembly).

3. When a change of use is made to an equal or lesser hazard category as shown in Table C above, the existing building is not required to comply with the requirements contained in (c)2 above except in areas where reconstruction work being performed in connection with the change of use triggers these requirements.

4. Vertical opening protection shall be provided for all stairs in accordance with N.J.A.C. 5:23-6.10 through 6.30 when a change of use that also constitutes a change of group is made and the proposed group is a higher hazard category as shown in Table C above.

i. Where the group of a portion of a building is changed to a higher hazard category, vertical opening protection shall be provided for all stairs serving the proposed group from the floor(s) on which the proposed group is located to the level of exit discharge.

5. Notwithstanding the relative hazard as determined by Table C above, where any change of use occurs to a story with one exit, the story shall meet the requirements at Section 1006.3.4 (single exits) of the building subcode for the proposed use.

i. Exception: A single exit shall be permitted in a change of use to a Group R-2 or R-4 where the conditions of N.J.A.C. 5:23-6.26(b) for a single exit are met.

6. When a change of use is made to any residential group (R-1, R-2, R-3, R-4 or R-5) or to Group I-1, every sleeping room below the fourth story shall have at least one operable window or exterior door. Where windows are provided to comply with this requirement, the window shall have a sill height of not more than 44 inches, and have a width of at least 20 inches, a height of at least 24 inches and a minimum total area of 5.7 square feet measured from head to sill and from side to side.

i. An outside window or exterior door is not required in buildings where the sleeping room is provided with a door to a corridor having access to two remote exits.

ii. An outside window or exterior door is not required in buildings equipped throughout with an automatic sprinkler system.

iii. In a building that originally was in Group R-3 or R-5 and is returning to Group R-3 or R-5, the windows shall be permitted to remain as they were during the time when the building previously was in use as a residence. (Plan review--Building, Fire. Inspection--Building)

7. Notwithstanding the relative hazard as determined by Table B or C above, where any change in use occurs to a Group A or Group E with an occupant load of 50 or more, approved panic hardware shall be installed in accordance with Section 1010.2.8 (panic and fire exit hardware) of the building subcode.

8. Notwithstanding the relative hazard as determined by Table B or C above, a single exit shall not be permitted when a building is to be used as a child care center. (Plan review--Building, Fire. Inspection--Building)

(d) Enclosure of vertical openings:

1. For any change of use that also constitutes a change in group, vertical openings other than stairs shall be protected as required by N.J.A.C. 5:23-6.10 through 6.30 for the proposed use within each space undergoing a change of use.
2. Stairs shall be enclosed in accordance with N.J.A.C. 5:23-6.10 through 6.30 for the proposed use when a change of use that also constitutes a change of group is made and the proposed group is a higher hazard category as shown in Table C above.
3. Atriums in compliance with Section 404 of the building subcode are not required to be enclosed. (Plan review--Building, Fire. Inspection--Building)

(e) Height and Area Limitations: The following height and area limitations apply in a change of use.

TABLE E

Hazard Categories and Classifications

Height and Area

Relative Hazard	Use Classification
1 (highest)	A-2 Nightclubs, H-1, H-2, I-2, I-3, I-4
2	A-1, A-2 Other than Nightclubs, A-3, A-4, E, F-1, H-3, H-4, H-5, I-1, M, S-1
3	A-3 Places of Worship, B, R-1, R-2, R-4
4 (lowest)	F-2, R-3, R-5, S-2, U

1. When a change of use is made to a higher hazard category as shown in Table E above, the height and area of the building shall meet the limitations of Chapter 5 of the building subcode for the proposed group.

i. For the purpose of determining the construction type, the fire resistance rating of the following structural elements shall be considered: exterior loadbearing walls, interior loadbearing walls, columns, girders, trusses and framing, floor construction, including beams, and roof construction, including beams, trusses and framing, arches and roof decks.

2. When a change of use is made to an equal or lesser hazard category as shown in Table E, the existing building may continue to exceed the maximum allowable height and area permitted for new buildings.

3. Where a change of use is made in a mixed use building or a single use building is changed to a mixed use building, and any of the proposed uses is a higher category as per Table E, the building shall comply with one or any combination of the following:

i. Nonseparated groups: The maximum allowable height and area shall be determined by applying the more restrictive of the height and area limitations of each group, as per Tables 504.3, 504.4, and 506.2 of the building subcode, to the entire building.

(1) Occupancies of Group H shall not be permitted to be unseparated when located in the same building as Groups A, E, I, M, R, or non-accessory Group B.

(2) Accessory occupancies in compliance with Section 508.2 of the building subcode are not required to comply with this requirement.

(3) When a change of use is made such that any nonresidential use is located below or attached to a residential use, a one-hour fire separation shall be provided between the groups. The exits from the residential floors shall be separately enclosed.

ii. Separated groups: Each portion of the building containing a group shall be completely separated from adjacent groups by a fire barrier or horizontal assembly, or both, having a fire resistance rating in accordance with Table 707.3.10 of the building subcode; mixed occupancies shall use the highest applicable rating from Table 707.3.10. For buildings equipped throughout with an automatic sprinkler system, the required fire resistance rating for groups other than H is permitted to be reduced by one hour but shall not be reduced to less than one hour. Each portion of the building shall comply with the height limitation of Tables 504.3 and 504.4 of the building subcode for that group. In each story, the area shall be such that the sum of the ratios of the floor area of each group divided by the allowable area of Table 506.2 of the building subcode for each group shall not exceed 1.0.

(1) Exception: Accessory occupancies in compliance with Section 508.2 of the building subcode are not required to comply with this requirement.

iii. Separate buildings: If each group is separated from other groups by fire walls that meet the requirements of Table 601 of the building subcode, then each group shall be considered

a separate building. Each building shall comply with the height and area limitation of Tables 504.3, 504.4, and 506.2 of the building subcode.

(1) Exception: Accessory occupancies in compliance with Section 508.2 of the building subcode are not required to comply with this requirement.

4. In an unlimited area building, when a change of use is made to a higher hazard category as shown in Table E above, the building or portion thereof is required to comply with Section 507 of the building subcode for the proposed new use. (Plan review--Building, Fire Inspection--Building)

(f) Exterior Wall Fire Resistance Ratings and Maximum Area of Exterior Wall Openings: The following exterior wall fire resistance ratings and maximum area of exterior wall openings apply in changes of use:

TABLE F

Hazard Categories and Classifications

Exposure of Exterior Walls

Relative Hazard	Use Classification
1 (highest)	H
2	Buildings exceeding 12,000 sq ft of F-1, M or S-1
3	A, B, E, F-2, I, R-1, S-2 Buildings 12,000 sq ft or less of F-1, M, or S-1
4 (lowest)	R-2, R-3, R-4, R-5, U

1. Exterior Wall Protection: If the group of a building is changed to a higher hazard classification in accordance with Table F, the requirements for exterior wall fire resistance rating in the table below shall be met.

Requirements for Exterior Wall Fire Resistance Rating Building Use Group

Fire Separation Distance	H-2	F-1, H-3, M, S-1	A, B, E, F-2, S-2, H-4, H-5, I, R-1
0-5 feet	4	3	2<a>
Over 5-10 feet	3	2	1
Over 10-15 feet	2	1	0
Over 15-30 feet	1	30	0
Over 30 feet	30	30	0

Note a: Existing eight-inch hollow or six-inch solid masonry walls shall be accepted as a two-hour rating in other than Group H-2 or H-3.

Note b: When the group of a building is changed to H-1, the building shall be located in accordance with Section 415.6 of the building subcode.

- i.** The requirements for exterior wall fire resistance rating shall not apply to exterior walls which face buildings on the same lot where the buildings are such that, if combined into one structure, the resulting building would comply with the height and area limitations of Tables 504.3, 504.4, and 506.2 of the building subcode.
- ii.** Where a portion of a building is changed to a higher hazard classification, exterior walls and openings of the entire building shall comply with the provisions of this section. If the proposed use is separated from the rest of the building by a fire barrier having a fire resistance rating in accordance with Table 707.3.10 of the building subcode, then only the portion changed must comply with the provisions of this section; mixed occupancies shall use the highest applicable rating from Table 707.3.10.
- iii.** When a change of use is made to an equal or lesser hazard classification as shown in Table F, no change in the rating of existing exterior walls is required.
- iv.** The fire resistance rating of non-loadbearing exterior walls may be reduced by one hour in buildings equipped throughout with an automatic sprinkler system. In a building equipped throughout with an automatic sprinkler system installed in accordance with NFPA 13, the fire resistance rating of a non-loadbearing exterior wall may be reduced by one hour with the following exceptions:
 - (1)** Exception: Where the fire separation distance is five feet or less, the fire resistance rating shall not be reduced to less than one hour.
 - (2)** Exception: The rating of non-loadbearing exterior walls shall not be reduced in buildings of Group H.

2. Exterior Wall Openings: If the group of a building is changed to a higher hazard classification in accordance with Table F, the requirements for exterior wall openings in the table below shall be met.

Group
H

Exterior Wall Requirements
No opening permitted with a fire separation

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	distance of three feet or less. Protected openings required with a fire separation distance of 20 feet or less.
A-1, A-2 Nightclubs, A-2 Other than Nightclubs, A-3, A-4, A-3 Places of Worship, B, E, F-1, I-1, I-2, I-3, I-4, M, S-1, R-1	No openings permitted with a fire separation distance of three feet or less. Walls with a fire separation distance of 10 feet or less, but more than three feet, are permitted to have unprotected openings with an aggregate area not exceeding 10 percent of the area of the wall. Openings in excess of 10 percent of the aggregate wall area shall be protected.
F-2, S-2	No openings permitted with a fire separation distance of three feet or less. Protected openings required with a fire separation distance of five feet or less.

- i. If the building is provided with an automatic sprinkler system throughout, the amount of unprotected openings shall be permitted to be increased to the limit for protected openings.
- ii. In all occupancies other than Group H, unlimited unprotected openings are permitted in the first story of exterior walls facing a street which have a fire separation distance of greater than 15 feet, or facing unoccupied space. The unoccupied space shall be on the same lot or dedicated for public use, shall not be less than 30 feet in width and shall have access from a street by a posted fire lane not less than 30 feet in width and shall have access from a street by a posted fire lane not less than 18 feet in width.
- iii. When a change of use is made to an equal or lesser hazard classification as shown in Table F, no change in existing exterior wall openings is required. (Plan review--Building, Fire. Inspection--Building)

(g) Automatic Sprinkler Systems: The following automatic sprinkler system requirements apply in changes of use.

TABLE G

Hazard Categories and Classifications Automatic Sprinkler Systems

Relative Hazard	Use Classification
1 (highest)	A-2 nightclubs, H, I
2	A-2 (other than nightclubs), R-1, R-2, R-3, R-4
3	A-1, A-3, A-4
4	F-1, M, S-1

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5

A-3 Places of Worship, E

6 (lowest)

A-5, B, F-2, R-5, S-2, U

1. When a change of use is made to a higher hazard category as shown in Table G, the building shall be provided with an automatic sprinkler system as required by the following sections of the building subcode: 903.2.1 for Group A occupancies, 903.2.3 for Group E occupancies, 903.2.4 for Group F-1 occupancies, 903.2.5 for Group H occupancies, 903.2.6 for Group I occupancies, 903.2.7 for Group M occupancies, 903.2.8 for Group R occupancies, 903.2.9 for Group S-1, 903.2.10 for Group S-2, and 903.2.11.1 for windowless stories (stories without openings.) When this section requires an automatic sprinkler system, compliance with 903.3 of the building subcode is also required.

i. When a portion of a building is changed to a higher hazard category and the proposed use is separated from the existing use(s) by a fire barrier or horizontal assembly, or both, having a fire resistance rating in accordance with Table 707.3.10 of the building subcode, an automatic sprinkler system as required above shall be installed only in the portion changed; mixed occupancies shall use the highest applicable rating from Table 707.3.10.

ii. When an attached single-family townhouse or portion thereof or a portion of a detached one- or two-family dwelling is changed to any nonresidential use, except Group H, Group F, or Group S, the remaining attached dwelling(s) or portion of the dwelling(s) are not required to be provided with an automatic sprinkler system.

2. When a change of use is made to an equal or lesser hazard category as shown in Table G, there is no requirement to install an automatic sprinkler system except in areas where work being performed in connection with the change of use triggers a requirement for an automatic sprinkler system and in windowless stories in accordance with N.J.A.C. 5:23-6.30(c) of this subchapter.

3. Notwithstanding the relative hazard as determined by Table G, when a change in the character of the use is made to a higher degree of hazard as defined by NFPA 13 (Light Hazard, Ordinary Hazard Group 1, Ordinary Hazard Group 2, Extra Hazard Group 1, Extra

Hazard Group 2 and Special Occupancy Hazards), the sprinkler system shall be evaluated and, where required by NFPA 13, altered to conform to the required density and maximum sprinkler protection area per head for the proposed occupancy.

4. Notwithstanding the relative hazard as determined by Table G above, when a change in the group or a change in the character of the use is made to create a dormitory, the building or portion thereof is required to be provided with an automatic sprinkler system. (Fire)

(h) Fire Alarm and Detection Systems: When a change of use is made to any of the following groups, a fire alarm system and/or an automatic fire detection system shall be installed in accordance with Section 907 of the building subcode. Where a portion of a building is changed to any of the following groups, a fire alarm system and/or an automatic fire detection system shall be installed throughout the building in accordance with Section 907 of the building subcode unless the proposed use is separated from the other use(s) in the building by a fire barrier having a fire resistance rating in accordance with Table 707.3.10 of the building subcode in which case only the portion changed shall comply; mixed occupancies shall use the highest applicable rating from Table 707.3.10. (For purposes of applying this section, horizontal separation shall not be considered.)

1. Group A: A manual or automatic fire alarm system shall be installed and maintained as required by Section 907.2.1 of the building subcode.
2. Group B: A manual fire alarm system shall be installed and maintained as required by Section 907.2.2 of the building subcode.
3. Group E: A manual fire alarm system shall be installed and maintained as required by Section 907.2.3 of the building subcode.
4. Group F: A manual fire alarm system shall be installed and maintained as required by Section 907.2.4 of the building subcode.
5. Group H: A manual fire alarm system shall be installed and maintained as required by Section 907.2.5 of the building subcode.

- 6.** Group I: A manual fire alarm system and an automatic smoke detection system shall be installed and maintained as required by Section 907.2.6 of the building subcode.
 - 7.** Group M: A manual fire alarm system shall be installed and maintained as required by Section 907.2.7 of the building subcode.
 - 8.** Group R-1: A manual fire alarm system and an automatic smoke detection system shall be installed and maintained as required by Section 907.2.8 of the building subcode.
 - 9.** Group R-2: A fire alarm system shall be installed and maintained as required by Section 907.2.9 of the building subcode.
 - 10.** Group R-4: An automatic smoke detection system shall be installed and maintained as required by Section 907.2.9A of the building subcode.
 - 11.** Group S: A manual fire alarm system shall be installed and maintained as required by Section 907.2.10 of the building subcode. (Fire)
- (i) Single and Multiple Station Smoke Alarms:** When a change of use is made to any of the following groups, single and multiple station smoke alarms shall be installed in accordance with Section 907.2.11 of the building subcode.
- 1.** Group R-1: Single or multiple station smoke alarms shall be installed and maintained as required by Section 907.2.11.1 of the building subcode.
 - 2.** Groups R-2, R-3, R-4, R-5, and I-1: Smoke alarms shall be installed and maintained as required by Section 907.2.11.2 of the building subcode or Section R310 of the one-and two-family dwelling subcode, as applicable.
 - 3.** Where the use of a portion of a building is changed such that any nonresidential use is located below or attached to one or more dwelling units (including single room occupancies), single or multiple station smoke alarms shall be installed in the nonresidential portion(s) of the building in accordance with NFPA 72 and provided with an audible alarm located within each dwelling unit of the residential portion of the building. The alarms shall be AC powered with

battery back-up. Hard-wired, interconnected smoke alarms installed throughout the building shall be accepted as meeting this requirement. (Fire)

(j) Carbon monoxide detection equipment: When the use of a building is changed and the building contains a fuel-burning appliance or has an attached garage, carbon monoxide detection equipment shall be installed in accordance with Section 915 of the building subcode or Section R311 of the one-and two-family dwelling subcode, as applicable. (Fire)

1. Exception: In occupancies other than Group I-1, I-2, I-4 or R or classrooms in Group E occupancies, battery-powered or plug-in devices shall be accepted for purposes of meeting the requirements of this section.

(k) Structural Requirements: The following structural requirements shall apply in changes of use:
TABLE K

Structural Load Categories

Load Category	Use or Character of Use
1 (highest)	F-1, F-2, S-1, S-2, stack areas in libraries, stages and platforms, areas subject to vehicular loads, queuing areas
2	All loading conditions not listed in category 1 or 3
3 (lowest)	B, E, I-1, I-2, I-3, I-4, R-1, R-2, R-3, R-4, R-5

1. When the use or the character of use of a building is changed to a higher load category as shown in Table K above, then the structure shall be capable of supporting the load requirement for the new use or character of use as specified in Table 1607.1 of the building subcode.

i. If the building subcode official determines that the number of occupants or the placement and weight of furniture and equipment can be controlled by the occupants, the areas designed for the reduced live load shall be posted with the approved live load. Placards stating the allowable live loads shall be posted. Placards may state loads in forms usable by the occupants, in addition to posting the allowable load in pounds per square foot. Such information shall be developed by a licensed design professional and be approved by the subcode official.

ii. The corridor and lobby loading requirements of Table 1607.1 shall be met only if the corridor exceeds six feet in width or if the lobby or corridor area is used for queuing purposes.

3. When a building is reclassified into one of the following occupancies, the building shall comply with the seismic design requirements of Section 1613 of the building subcode: Fire, rescue and police stations; Group I-2 having surgery or emergency treatment facilities; emergency preparedness centers; post-earthquake recovery vehicle garages; post-earthquake shelters; power-generating stations and other utilities required as emergency backup facilities; primary communication facilities; highly toxic materials as defined by Section 307 of the building subcode where the quantity of material exceeds the exempt amount as per Section 307.1 of the building subcode. (Building)

2. If the new use is a food handling establishment, all existing sanitary waste lines above the food or drink preparation or storage areas shall be panned or otherwise protected to prevent leaking pipes or condensation on pipes from contaminating food or drink. New drainage lines shall not be installed above such areas except where it is the only practical alternative. Where new lines are to be installed, they shall be protected in accordance with the plumbing subcode.

3. New uses that will produce grease or oil laden wastes shall be provided with interceptors as required in the plumbing subcode.
 4. If the new use produces chemical wastes, the following shall apply:
 - i. If the existing piping is compatible with the chemical waste, no change to the existing piping material is required.
 - ii. If the existing piping is not compatible with the chemical waste, either the waste must be neutralized prior to entering the drainage system or the piping must be changed to a compatible material.
 - iii. No chemical waste shall discharge to a public sewer system without the approval of the sewage authority.
 5. Where a building's use is changed to a health care facility, the requirements of chapter 14 of the plumbing subcode shall apply. (Plumbing)
- (m) Electrical Requirements:** The following electrical requirements shall apply in changes of use:
1. When the character of the use of a building or portion thereof is changed to one of the following special occupancies as described at Chapter 5 of the electrical subcode, the electrical wiring and equipment of the building or portion thereof that contains the proposed use shall comply with all applicable requirements of the electrical subcode regardless of whether a change of group is involved:
 - i. Hazardous (classified) Locations;
 - ii. Commercial Garages, Repair and Storage;
 - iii. Aircraft Hangars;
 - iv. Motor Fuel Dispensing Facilities;
 - v. Bulk Storage Plants;
 - vi. Spray Application, Dipping, Coating, and Printing Processes;
 - vii. Health Care Facilities;

viii. Assembly Occupancies;

ix. Theaters, Motion Picture and Television Studios, and Similar Locations;

x. Motion Picture and Television Studios and Similar Locations; and

xi. Agricultural Buildings.

2. When the use of a building is changed to Group R-2, R-3, R-4 or R-5, the electrical wiring and equipment of the building shall comply, at a minimum, with the Basic Requirements of this subcode for that use and shall have the electrical service (conductors and equipment) sized and rated in accordance with the electrical subcode. (Electrical)

(n) Mechanical Requirements: When the character of the use of a building is changed, the following mechanical provisions shall apply:

1. All spaces intended for human occupancy shall be provided with natural or mechanical ventilation. A building intended to be used as a public school shall be mechanically ventilated.

i. Spaces intended to be naturally ventilated shall be provided with openable doors, windows, louvers or other openings to the outdoors. The minimum openable area to the outdoors shall be four percent of the floor area being ventilated. Where rooms without openings to the outdoors are ventilated through an adjoining room, the unobstructed opening to the adjoining room shall be at least eight percent of the floor area of the interior room or space, but not less than 25 square feet. The ventilation openings to the outdoors shall be based on the total floor area being ventilated.

ii. Spaces intended to be mechanically ventilated shall comply with the following:

(1) If the occupancy of a building is changed and the new occupancy would require the same or a lesser amount of outdoor air based on the equations below, no change to the mechanical ventilation system is required.

(2) If the occupancy of a building is changed and the new occupancy would require a greater amount of outdoor air based on the equations below, the HVAC system shall be

upgraded to satisfy the requirements of Table 403.3.1.1 in the mechanical subcode for the new occupancy.

(3) Residential buildings that are intended to be mechanically ventilated shall be provided with the ventilation specified in the mechanical subcode.

(4) When the use of a building is changed to a health care facility, mechanical ventilation shall be provided as required by the mechanical subcode and N.J.A.C. 5:23-3.2(b).

(5) When the group of a building is changed to B or E and the building is a class one or class two building, a test and balance report shall be submitted prior to the issuance of a certificate of occupancy. (Building)

2. A commercial hood and an automatic suppression system that comply with the mechanical subcode shall be required for commercial cooking operations producing grease-laden vapors. No automatic suppression system shall be required for completely enclosed ovens, steam tables or similar equipment.

i. Exception: Bed and breakfast home stay facilities, which are designed to accommodate five or fewer guests, shall not be required to comply with this provision. (Fire)

3. All newly-introduced devices, equipment or operations that produce airborne particulates, odors, fumes, sprays, vapors, smoke or gases in such quantities as to be irritating or injurious to health shall be provided with local exhaust in accordance with Section 502 of the mechanical subcode. (Building)

TABLE N

Outdoor Air Rates Based on Occupancy Type

Occupancy	P/1,000 sq. ft.	CFM/person
Storage Warehouses	5	10
Correction Facilities		
Dining Halls	100	15
Guard Stations	40	15
Dry Cleaners, laundries		
Coin oper dry cleaner	20	15
Coin oper laundries	20	15

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Education		
Auditoriums	150	15
Classrooms	50	15
Libraries	20	15
Music Rooms	50	15
Food & Bev Service		
Dining Rooms	70	15
Kitchens (cooking)	20	15
Hospitals, Nursing & Convalescent Homes		
Med Procedure Rooms	20	15
Physical Therapy	20	15
Recovery and ICU	20	15
Hotels, Motels, Resorts, Dormitories		
Assembly Rooms	120	15
Dormitory Sleep Areas	20	15
Lobbies	30	15
Specialty Shops		
Barber	25	15
Florists	8	15
Hardware, drug, fabric	8	15
Reducing Salons	20	15
Supermarkets	8	15
Theaters		
Auditoriums	150	15
Stages and Studios	70	15
Transportation		
Platforms	100	15
Vehicles	150	15
Waiting Rooms	100	15
Workrooms		
Bank Vaults	5	15
Meat Processing<a>	10	15
Pharmacy	20	15
Photo Studios	10	15
Sports and Amusement		
Spectator Areas	150	15
Correctional Facilities		
Cells	20	20

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Education		
Laboratories	50	20
Training Shops	30	20
Food & Bev Service		
Cafeteria, fast food	100	20
Hotels, Motels, Resorts,		
Dormitories		
Conference Rooms	50	20
Dry Cleaners		
Commercial Laundry	10	25
Hospitals, Nursing and		
Convalescent Homes		
Patient Rooms	10	25
Specialty Shops		
Beauty	25	25
Dry Cleaners, Laundries		
Commercial Dry		
Cleaner	30	30
Food & Bev Service		
Bars & Cocktail		
Lounges	100	30
Dry Cleaners, Laundries		
Storage, Pick-up	30	35
Smoking Lounges	70	60
Offices		
Conference Rooms	50	20
Office Spaces	7	20
Reception Areas	60	20
Telecommunication		
Ctrs & Data Entry	60	20
Theaters		
Lobbies	150	20
Ticket Booths	60	20
Sports and Amusement		
Playing floors (gym)	30	20

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Sports and Amusement		
Ballrooms and Discos	100	25
Bowling Alleys		
(Seating areas)	70	25
Game Rooms	70	25
Hospitals, Nursing & Convalescent Homes		
Operating Rooms	20	30
Hotels, Motels, Resorts, Dormitories		
Gambling Casinos	120	30
Occupancy		CFM/sq. ft.
Education		
Corridors		0.1
Locker Rooms		0.5
Hospitals, Nursing and Convalescent Homes		
Autopsy Rooms		0.5
Public Spaces		
Corridors and Utilities		0.05
Elevators		1.0
Locker & Dressing Rooms		0.5
Public Restrooms		75 cfm per water closet or urinal
Retail Stores, Sales Floors and Showroom Floors		
Basement and Street		0.3
Dressing Rooms		0.2
Malls and Arcades		0.2
Shipping and Receiving		0.15
Storage Rooms		0.15
Upper Floors		0.2
Warehouses		0.05
Specialty Shops		
Automotive Service		1.5
Clothes and Furniture		0.3
Pet Shops		1.0
Sports & Amusement		
Ice Arenas		0.5
Swimming Pools		
(Pool & Deck Area)		0.5
Storage		

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Repair Garages/Public	
Garages	1.5
Workrooms	
Darkrooms	0.5
Duplicating	0.5

Note: P/1,000 sq. ft. = persons per 1,000 square feet of building

area.

Note a. Spaces unheated or maintained below 50 degrees F are not covered by these requirements unless the occupancy is continuous.

Where the ventilation rates in Table N are based on CFM/person

(1) $OL[n] \times V[n]$ is less than or equal to $OL[e] \times V[e]$ + no upgrade

(2) $OL[n] \times V[n]$ is greater than $OL[e] \times V[e]$ + upgrade

Where the ventilation rates in Table N are based on CFM/square footage

(3) $SF[n] \times V[n]$ is less than or equal to $SF[e] \times V[e]$ + no upgrade

(4) $SF[n] \times V[n]$ is greater than $SF[e] \times V[e]$ + upgrade

Where the ventilation rates in Table N are based on CFM/square footage and CFM/person

(5) $OL[n] \times V[n]$ is less than or equal to $SF[e] \times V[e]$ + no upgrade

(6) $OL[n] \times V[n]$ is greater than $SF[e] \times V[e]$ + upgrade

(7) $SF[n] \times V[n]$ is less than or equal to $OL[e] \times V[e]$ + no upgrade

(8) $SF[n] \times V[n]$ is greater than $OL[e] \times V[e]$ + upgrade

Where:

$OL[n]$ = the occupant load of the proposed occupancy based on Table N. When accepted by the administrative authority this occupant load can be reduced.

$OL[e]$ = the occupant load of the existing occupancy based on Table N.

$SF[n]$ = the square footage of the proposed occupancy.

$SF[e]$ = the square footage of the existing occupancy.

$V[n]$ = the ventilation rate for the proposed occupancy based on Table N.

$V[e]$ = the ventilation rate for the existing occupancy based on Table N.

(o) Accessibility requirements: The following accessibility requirements shall apply in changes of use:

1. Nonresidential buildings and buildings of Use Group R-1.

- i.** The change of use of a building of 10,000 square feet or more total gross enclosed floor area shall comply with all applicable provisions of Chapter 11 of the building subcode.

ii. The change of use of a building of less than 10,000 square feet total gross enclosed floor area shall be exempt from the provisions of Chapter 11 of the building subcode, except as follows:

- (1)** An alteration project undertaken in connection with the change of use of a small building shall provide accessibility as required by N.J.A.C. 5:23-6.6.
- (2)** A reconstruction project undertaken in connection with the change of use of a small building shall provide accessibility as required by N.J.A.C. 5:23-6.7.

iii. In a building of any size, where there is a change of use of an area of 10,000 square feet or more, the proposed new use shall comply with the requirements of Chapter 11 of the building subcode.

iv. In a building of any size, where there is a change of use of an area of less than 10,000 square feet, the proposed new use shall be exempt from the provisions of Chapter 11 of the building subcode, except as follows:

- (1)** A renovation project undertaken in connection with the change of use of a small building shall provide accessibility as required by N.J.A.C. 5:23-6.5.
- (2)** An alteration project undertaken in connection with the change of use of a small building shall provide accessibility as required by N.J.A.C. 5:23-6.6.
- (3)** A reconstruction project undertaken in connection with the change of use of a small building shall provide accessibility as required by N.J.A.C. 5:23-6.7. (Building)

2. When an assisted living facility that was constructed with dwelling units or rooms pursuant to Chapter 11 of the building subcode because it provided accommodations for stays of 30 or more consecutive days makes any of those dwelling units or rooms available for less than 30 consecutive days, 50 percent of the accommodations or rooms made thus available shall be made fully accessible. The work needed to make those units accessible shall be completed and approved before any occupancy of less than 30 days.

3. Residential buildings, other than buildings of Group R-1, with four or more dwelling units.

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- i.** A renovation project undertaken in connection with the change of use shall provide accessibility as required by N.J.A.C. 5:23-6.5.
 - ii.** An alteration project undertaken in connection with the change of use shall provide accessibility as required by N.J.A.C. 5:23-6.6.
 - iii.** A reconstruction project undertaken in connection with the change of use shall provide accessibility as required by N.J.A.C. 5:23-6.7. (Building)
- (p)** Change of use to a bed and breakfast shall be done in compliance with this subchapter except as modified below. (Plan review--Building, Fire. Inspection--Building)
 - 1.** Single-family dwellings of Group R-3, R-4, or R-5 that are being converted to bed and breakfast guest houses shall meet the requirements of this section.
 - i.** "Bed and breakfast guest house" shall mean a facility providing sleeping or dwelling accommodations to transient guests which:
 - (1)** Consists of a structure originally constructed for the purposes of a private residence;
 - (2)** Includes individual sleeping accommodations for six to 12 guests;
 - (3)** Has at least one dwelling unit occupied by the owner of the facility or the owner's agent as his or her place of residence during any time this facility is being used for the lodging of guests or has an owner or agent of the owner within 15 minutes travel distance of the facility while guests are lodging there;
 - (A)** If the owner or agent is not on site, there shall be a clearly legible sign, conspicuously displayed in the area where guests register, containing the owner's or agent's name, address (including unit number or apartment number), and a 24-hour emergency telephone number;
 - (4)** Has not less than 300 square feet of common area for the exclusive use of the guests, including, but not limited to, parlors, dining rooms, libraries, porches, verandas,

and solariums for occupancies with more than 10 guests or not less than 150 square feet of common area for occupancies with 10 or fewer guests;

(5) Prohibits cooking and smoking in guest rooms;

(6) Provides a meal to the guests in the forenoon of each day but does not operate as a restaurant open to the general public;

(7) Is not a "rooming house" or "boarding house" as defined in N.J.S.A. 55:13B-3;

(8) Does not allow more than 15 percent of the guests to remain more than 30 successive days or more than 30 days of any period of 60 successive days; and

(9) Does not allow any guest to remain more than 60 successive days or more than 60 days of any period of 90 successive days.

2. Single-family dwellings of Group R-3, R-4, or R-5 that have been converted to bed and breakfast guest houses shall be deemed to have met the intent of the rules, as provided in N.J.A.C. 5:23-2.6(b)l, if the following requirements have been met:

i. AC-powered interconnected smoke alarms with battery back-ups shall be installed in accordance with the building subcode in the locations listed below. Fixed temperature or rate-of-rise and fixed temperature heat detectors may be substituted for smoke alarms in those locations where frequent nuisance alarms would be likely to occur. At least one portable visual alarm-type smoke alarm for the deaf or hearing impaired shall be available. Notification of the availability of such devices shall be provided to each occupant.

Installation shall be required at the following locations:

(1) In all guestrooms;

(2) On each story in common areas;

(3) In storage rooms;

(4) In basements; and

(5) In utility and mechanical rooms.

ii. Except as otherwise provided in (p)2ii(1) and (2) below, every story utilized for human occupancy shall be provided with a minimum of two exits.

(1) An existing fire escape shall be accepted as providing one of the required means of egress if it can safely be used under emergency exiting conditions. All occupants shall have unobstructed access to the fire escape without having to pass through a room subject to locking. Access to a fire escape shall be through a door, except that window access shall be permitted from guest rooms;

(A) Window access shall be permitted to serve more than one guestroom provided that the window serves a floor with a maximum occupant load of 10 and that the window has a clear opening of at least 5.7 square feet, a minimum net clear opening of 24 inches in height, a minimum net clear opening of 20 inches in width, and a sill height of not more than 44 inches above the finished floor.

(B) Where a door is required because the occupant load served exceeds 10, the door shall have a clear opening of at least 10 square feet, a minimum net clear opening of 54 inches in height, and a minimum net clear opening of 24 inches in width.

(2) In buildings having a single exit, no additional exit shall be required if all of the following conditions are met:

(A) At all locations in the story at the level of discharge, the exit access travel distance shall not exceed 75 feet;

(B) In buildings not more than two stories in height, from floors that are not more than 16 feet above grade, where there are not more than four guestrooms per floor and the exit access travel distance does not exceed 50 feet, the exit shall be enclosed with construction and opening protection providing a one hour fire-resistance rating; and

(C) No part of the building open to guests shall be on a floor that is more than 16 feet above exterior grade.

iii. Every sleeping room shall be provided with an operable window having a sill height of not more than 44 inches, having a width of at least 20 inches, a height of at least 24 inches and a minimum total area of 5.7 square feet measured from head to sill and from side to side.

iv. Dead-end corridors shall not exceed 35 feet.

v. Emergency egress lighting shall be provided and shall be connected to an emergency electrical system conforming to NFPA 70 to assure continued illumination for a duration of not less than one hour, in case of primary power loss in all building rooms or spaces required to have more than one exit or exit access.

vi. In all buildings, rooms or spaces required to have more than one exit or exit access, all required means of egress shall be indicated with approved, internally illuminated or self-luminous exit signs that comply with the building subcode. Exit signs shall not be required if the second means of egress is a fire escape that is accessed directly from an individual sleeping room(s) or on main exterior doors that are clearly identified as exits. Exit signs shall be connected to an emergency electrical system to assure continued illumination for not less than one hour in case of primary power loss.

vii. Means of egress doors shall comply with the following:

(1) All doors opening into a passageway at grade or exit stair shall be self closing or automatic closing by listed closing devices; and

(2) All guest room doors shall be at least 13/8 inch solid core wood or approved equal with approved door closers and shall be reasonably tight fitting. Replacement doors shall be 13/4 inch solid cord wood or approved equal unless existing frame will accommodate only a 13/8 inch door.

viii. Existing handrails and guardrails provided for stairways and open sided floor areas shall be permitted to remain in place, provided they are structurally sound. When handrails or guardrails do not exist in locations where the building subcode requires them, or where

handrails or guardrails are in danger of collapse when used under emergency conditions, handrails and guardrails complying with the building subcode shall be provided.

ix. Transoms shall be either glazed with 1/4 inch wire glass set in metal frames and permanently secured in the closed position or sealed with materials consistent with the corridor construction.

x. Interior finish shall comply with the following:

- (1)** Interior finish of exit enclosures shall have a flame spread of 0-25 and a smoke developed rating of 450 or less (Class I finish as determined by ASTM-E84);
- (2)** Interior finish of exit access enclosures shall have a flame spread of 26-75 and a smoke developed rating of 450 or less (Class II finish as determined by ASTM-E84);
- (3)** Interior finish of all other spaces shall have a flame spread rating of under 200 and a smoke developed rating of 450 or less (Class III finish as determined by ASTM-E84).

xi. Interior stairways and other vertical openings connecting more than six floor levels shall be enclosed with approved assemblies having a two-hour fire-resistance rating. Those connecting four to six floor levels shall be enclosed with approved assemblies having a one-hour fire-resistance rating. Interior stairways connecting three or fewer levels shall be enclosed as follows:

(1) A minimum one-hour fire barrier shall be provided to protect all interior stairways and other vertical openings not exceeding three stories. Such fire barrier may be omitted provided that:

(A) The building is provided throughout with an approved automatic fire suppression system complying with the building subcode; or

(B) All of the following conditions exist:

I. Every sleeping room has an operable window with a sill height of not more than 44 inches, a width of at least 20 inches, a height of at least 24 inches and a

minimum total area of 5.7 square feet measured from head to sill and from side to side;

II. The building is protected throughout by an automatic fire alarm system complying with the building subcode and is supervised in accordance with NFPA 72; and

III. Every sleeping room above the second floor or more than 16 feet above grade is provided with direct access to a fire escape or other approved secondary exit or any exit-access corridor exceeding 20 feet in length which serves two means of egress, at least one of which is an unprotected vertical opening, shall be separated from the vertical opening by a one-hour fire barrier.

(q) A change in the character of use of a single-family home to a cooperative sober living residence shall comply with this subchapter except as modified below. (Plan review--Building, Fire. Inspection--Building, Fire.)

1. Single-family dwellings of Group R-3 or R-5 that are being converted to a cooperative sober living residence shall meet the requirements of this section.

i. There shall be not more than 10 occupants, excluding staff; each occupant, including staff, shall be capable of prompt self-evacuation;

ii. Each home shall have smoke alarms that comply with the Uniform Fire Code (N.J.A.C. 5:70-4.19). Fire alarm systems installed in accordance with the One- and Two-Family Dwelling Subcode shall also be deemed to comply. Smoke alarms shall be located in each sleeping room, in the area outside separate sleeping rooms, and on each additional story of the dwelling, including basements and habitable attics;

iii. In the vicinity of each sleeping area, each home with a fuel burning appliance or with an attached garage shall have carbon-monoxide alarms that comply with the Uniform Fire Code (N.J.A.C. 5:70-4.19) or with N.J.A.C. 5:27-14.1; and

- iv. Each bedroom shall have an operable egress window that complies with the Uniform Construction Code (N.J.A.C. 5:23).

History

HISTORY:

Administrative correction.

See: 30 N.J.R. 539(a).

Amended by R.1999 d.259, effective August 16, 1999.

See: 31 N.J.R. 825(a), 31 N.J.R. 2330(a).

Inserted (k); and recodified existing (k) through (p) as (l) through (q).

Amended by R.1999 d.424, effective December 6, 1999.

See: 31 N.J.R. 2428(a), 31 N.J.R. 4001(c).

In (c), rewrote 4; rewrote (d); in (e)1, inserted a new i and recodified former i as ii; in (f)1, changed fire prevention code reference in Note b, and rewrote i; in (g)1, added the last sentence in the introductory paragraph; in (h) and (i), inserted references to section 924.2 throughout the introductory paragraphs; in (j), added the last sentence in the introductory paragraph; and in (o), added "(Building)" at the end of 1ii(5), and substituted "(Fire)" for "(Building)" at the end of 2i.

Administrative correction.

See: 32 N.J.R. 688(a).

Amended by R.2000 d.492, effective December 18, 2000.

See: 32 N.J.R. 3219(a), 32 N.J.R. 4437(b).

In (a), rewrote 4; in (f)2, rewrote Use Group table; in (i), added 6; in (o), added 3 and in Table N amended the square foot values for Corridors and Utilities under Public Spaces.

Amended by R.2002 d.5, effective January 7, 2002.

See: 33 N.J.R. 3392(a), 34 N.J.R. 267(a).

In (b), rewrote 3; in (c), rewrote 1, inserted new iii and recodified existing iii through xii as iv through xiii in 2.

Amended by R.2002 d.15, effective January 22, 2002.

See: 33 N.J.R. 2933(b), 33 N.J.R. 3883(a), 34 N.J.R. 521(a).

In (k), inserted the last sentence preceding "(Fire)" in the introductory paragraph, and rewrote 1.

Amended by R.2002 d.255, effective August 5, 2002.

See: 33 N.J.R. 4177(a), 34 N.J.R. 2783(a).

In (a), added 5 through 7; in (b), deleted 3 and 4.

Amended by R.2003 d.137, effective April 7, 2003.

See: 34 N.J.R. 4277(a), 35 N.J.R. 1558(c).

Rewrote (k).

Amended by R.2003 d.157, effective April 21, 2003.

See: 34 N.J.R. 4247(a), 35 N.J.R. 1663(b).

In (a)5x, added (1) through (3).

Amended by R.2003 d.218, effective May 19, 2003.

See: 35 N.J.R. 29(a), 35 N.J.R. 2209(a).

Rewrote the section.

Amended by R.2004 d.145, effective April 5, 2004.

See: 35 N.J.R. 5190(a), 36 N.J.R. 1758(a).

Rewrote the section.

Administrative correction.

See: 36 N.J.R. 3398(a).

Amended by R.2004 d.423, effective November 15, 2004.

See: 36 N.J.R. 3004(a), 36 N.J.R. 5090(a).

In (a), deleted former (1), recodified former (2) and (3) as (1) and (2), in 5.

Administrative correction.

See: 36 N.J.R. 5337(a).

Amended by R.2005 d.82, effective March 7, 2005.

See: 36 N.J.R. 4222(a), 37 N.J.R. 771(a).

In (e), rewrote 4; in (i), deleted the last sentence; in (k), deleted "change of use results in a" following "When a", substituted "is" for "being" following "building", inserted "post-earthquake shelters;" following "vehicle garages".

Amended by R.2005 d.184, effective June 20, 2005.

See: 36 N.J.R. 5283(a), 37 N.J.R. 2201(b).

In (o), added 5.

Amended by R.2006 d.120, effective April 3, 2006.

See: 37 N.J.R. 3753(a), 38 N.J.R. 1567(a).

In (k)3, substituted section 1617 with section 1623 and made "Subcode" lowercase throughout; in introductory paragraph (p), deleted N.J.A.C. reference and added "this subchapter except as modified below"; added (p)1 and 2.

Administrative Correction.

See: 38 N.J.R. 3024(a).

Amended by R.2007 d.51, effective February 5, 2007.

See: 38 N.J.R. 375(a), 39 N.J.R. 371(a).

In the "Use Classification" column of TABLE C, inserted "A2 nightclubs" and "(other than A-2 nightclubs),"; in (g), substituted "TABLE" for "Table"; in the "Use Classification" column of TABLE G,

inserted "A-2 nightclubs," substituted "(other than nightclubs)" for "Nightclubs", and deleted "A-2 Other than Nightclubs," following "A-1,"; and in (h)1, inserted "or automatic".

Administrative correction.

See: 39 N.J.R. 767(b).

Amended by R.2007 d.122, effective May 7, 2007.

See: 38 N.J.R. 4951(a), 39 N.J.R. 1673(a).

Rewrote the section.

Administrative correction.

See: 39 N.J.R. 3296(a).

Amended by R.2009 d.117, effective April 20, 2009.

See: 41 N.J.R. 18(a), 41 N.J.R. 1726(a).

In (a)8i, substituted "alarms" for "detectors"; in (b)1i, (e)3ii, (f)1ii, (g)1i and the introductory paragraph of (h), substituted "706.3.9" for "508.3.3" and inserted "; mixed occupancies shall use the highest applicable rating from Table 706.3.9"; in (b)1i, substituted "a fire barrier or horizontal assembly, or both, having a" for "assemblies with the appropriate"; in (e)3ii, substituted "a fire barrier or horizontal assembly, or both" for "fire separation assemblies and floor/ceiling assemblies" and "rating" for "determined"; in (f)1ii, substituted "a fire barrier having a" for "walls with the appropriate"; in (g)1i, substituted "a fire barrier or horizontal assembly, or both, having a" for "assemblies that meet the applicable" and inserted "resistance" and "accordance with"; in the introductory paragraph of (h), substituted "a fire barrier having a" for "assemblies with the appropriate"; in the introductory paragraph of (i), in (i)1 through (i)3 and (p)2i, substituted "alarms" for "detectors" throughout; in the introductory paragraph of (i), substituted "Alarms" for "Detectors"; and in the introductory paragraph of (n)2, substituted "suppression" for "sprinkler" twice and "operations" for "equipment" and deleted ", except in groups R-2, R-3, R-4 and R-5" following "vapors".

Amended by R.2011 d.270, effective November 7, 2011.

See: 43 N.J.R. 1297(a), 43 N.J.R. 2999(a).

In (a)5i, substituted "and Open Mall Buildings" for "Building"; in (a)5v, inserted "Rooms"; in (a)5vii(1), substituted "Section 411" for "section 413.0"; in (a)5x, substituted "Finishes" for "Finished"; added (a)5xiii and (a)5xiv; in (a)8i, substituted "Section 907.2.11.2" for "Sections 907.2.10.1.2 and 907.2.10.1.3"; in (a)8ii(2), substituted "1-7/8-inch" for "1-inch"; in (b)1i, substituted "707.3.9" for "706.3.9"; in (c)1i, substituted "1028.2" for "1025.2"; rewrote (c)2i through (c)2xiii and the introductory paragraph of (g)1; added (c)2xiv; in (c)5, substituted "1021.2" for "1019.2"; in (c)7, substituted "1008.1.10 (panic and fire exit hardware)" for "1008.1.9"; in (e)3i(2), (e)3ii(1) and (e)3iii(1), substituted "508.2" for "508.3.1"; in (e)3ii, (f)1ii, (g)1i and the introductory paragraph of (h), substituted "707.3.9" for "706.3.9" throughout; in the introductory paragraph of (i), substituted "907.2.11" for "907.2.10"; in (i)1, substituted "907.2.11.1" for "907.2.10.1.1"; and in (i)2, substituted "Section 907.2.11.2" for "Sections 907.2.10.1.2 and 907.2.10.1.3".

Amended by R.2013 d.081, effective June 3, 2013.

See: 44 N.J.R. 1303(a), 45 N.J.R. 1393(a).

In (e)3i(3) and (i)3, inserted "or attached to"; and added (g)1ii.

Amended by R.2017 d.077, effective May 1, 2017.

See: 48 N.J.R. 1854(a), 49 N.J.R. 1020(a).

Rewrote the section.

Amended by R.2017 d.107, effective June 5, 2017.

See: 48 N.J.R. 1851(a), 49 N.J.R. 1381(b).

Rewrote (j).

Amended by R.2018 d.060, effective January 16, 2018.

See: 49 N.J.R. 1276(a), 50 N.J.R. 310(a).

Added (q).

Administrative correction.

See: 50 N.J.R. 2327(a).

Amended by R.2021 d.015, effective February 16, 2021.

See: 52 N.J.R. 561(a), 53 N.J.R. 245(a).

In (a)5xvi, substituted "Hyperbaric" for "Hyberbaric" and deleted "and" from the end; rewrote (a)5xvii; added (a)5xviii and xix; in the introductory paragraph of (e)3i, the introductory paragraph of (e)3iii, and (f)1i, substituted "504.3 and Table 506.2" for "503"; in the introductory paragraph of (e)3ii, substituted "504.4" for the first occurrence of "503", and "506.2" for the second occurrence of "503"; in (h)10, substituted "An" for "A manual fire alarm system and an" and "907.2.10A" for "907.2.10"; in the introductory paragraph of (i), substituted "907.2.10" for "907.2.11"; in (i)1, substituted "907.2.10.1" for "907.2.11.1"; in (i)2, substituted "907.2.10.2" for "907.2.11.2"; and in the introductory paragraph of (j), substituted "R315" for "315".

Administrative correction, effective September 10, 2021.

See: 53 N.J.R. 1671(c).

Amended by R.2022 d.158, effective December 19, 2022.

See: 54 N.J.R. 476(a), 54 N.J.R. 2371(c).

In (e)3ii and iii, and (f)1i, substituted "Tables 504.3, 504.4, and 506.2" for "Table 504.3 and Table 506.2"; in (e)3ii, substituted "Tables" for "Table", and inserted "504.3 and".

Amended by R.2023 d.030, effective March 6, 2023.

See: 54 N.J.R. 1661(a), 55 N.J.R. 349(a).

Rewrote the section.

Administrative correction, effective December 6, 2023.

See: 56 N.J.R. 36(a).

Administrative correction, effective July 16, 2024.

See: 56 N.J.R. 1711(a).

Amended by R.2026 d.087, effective August 17, 2026.

See: 57 N.J.R. 2333(a), 58 N.J.R. 1882(a).

Rewrote the section.

Annotations

Notes

Chapter Notes

NEW JERSEY ADMINISTRATIVE CODE

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N.J.A.C. 5:23-6.32

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*NJ - New Jersey Administrative Code > TITLE 5. COMMUNITY AFFAIRS > CHAPTER 23. UNIFORM
CONSTRUCTION CODE > SUBCHAPTER 6. REHABILITATION SUBCODE*

§ 5:23-6.32 Additions

(a) Any addition to a building or structure shall comply with the requirements of the Uniform Construction Code applicable to new construction.

1. Any repair, renovation, alteration or reconstruction work undertaken within an existing building in connection with an addition shall comply with the requirements of this subchapter.

(b) No addition shall create or extend any non-conformity in the existing building to which the addition is constructed with regard to accessibility, structural strength, egress capacity, exit access travel distance or the capacity of mechanical, plumbing, electrical or fire protection system provisions of the basic requirements of this subcode.

(c) No addition shall increase the height of an existing building beyond that permitted under the applicable provisions of the building subcode for a new building of the same group. (Plan review--Building, Fire. Inspection--Building)

(d) No addition shall increase the area of an existing building beyond that permitted under the applicable provisions of the building subcode unless a fire wall is provided in accordance with Section 706 of the building subcode.

1. Infilling of floor openings, such as elevator and exit stair shafts, and the addition of mezzanines and equipment penthouses shall be permitted as allowed by the building subcode. (Plan review--Building, Fire. Inspection-- Building)

(e) Where an addition increases or extends the size of a fire area beyond that which is allowed by Section 903 of the building subcode, an automatic sprinkler system shall be provided throughout

the fire area unless the addition is separated from the existing building by a fire barrier or horizontal assembly, or both, having a fire resistance rating in accordance with Table 707.3.10 of the building subcode; mixed occupancies shall use the highest applicable rating from Table 707.3.10.

1. Exception: This requirement shall not apply to increases to the floor area of the building of less than five percent. (Fire)

(f) Whenever an addition is made to a dwelling of Group R-3 or R-5, smoke alarms shall be installed in accordance with the following:

1. If the cumulative area of all floors of the addition(s) is 25 percent or more of the floor area of the largest floor of the existing dwelling, smoke alarms complying with the building subcode or one- and two-family dwelling subcode, as applicable, shall be installed throughout the addition and the existing dwelling.
2. If the cumulative area of all floors of the addition(s) is five percent or more, but less than 25 percent, of the floor area of the largest floor of the existing dwelling, hardwired, interconnected smoke alarms with battery back-up meeting the requirements of NFPA 72, except as otherwise provided in the building or fire protection subcode or one- and two-family dwelling subcode, as applicable, shall be installed and maintained in each story in the dwelling unit, including basements. (Fire)

(g) All additions shall comply with the requirements at Chapter 11 of the building subcode for accessibility, where applicable.

1. The addition shall include accessible entrance(s) unless the requirement that 60 percent of the building entrances be accessible has been met in the existing building. (For purposes of calculating the number of accessible entrances required, all entrances in the existing building and planned for the addition shall be included.)
 - i. If the only accessible entrance to the addition is located in the existing building or facility, at least one interior accessible route shall provide access through the existing building to all rooms, elements, or spaces in the addition.

2. If there are no toilet rooms in the addition, accessible toilet facilities that comply with Chapter 11 of the building subcode shall be provided in the existing building. (Building)
- (h)** All additions shall comply with the residential energy code or commercial energy code, as applicable.
1. For buildings subject to the residential energy code, Section R408 (N1108), additional energy efficiency, shall not apply. For buildings subject to the commercial energy code, Section 11.1.3, shall not apply.
 2. Air leakage for buildings subject to the residential energy code shall be required to meet only a visual inspection of the building thermal envelope per Section R402.5.1.1 (N1102.5.1.1) and UCC Form F-392.
- (i)** Structural loads: The following concern structural loads imposed by additions:
1. An addition shall not impose new loads which would cause the existing building to be subject to stresses exceeding those permitted by the building subcode.
 2. An addition shall not increase the forces in any structural element of the existing building or structure by more than five percent, unless the increased forces on the element are still in compliance with the building subcode for new structures.
 3. An addition shall not decrease the strength of any structural element of the existing building or structure unless the element still exceeds the strength required by the building subcode for new structures. (Building)
- (j)** When work is performed in a Class 1 structure or when work is performed on a smoke control system, a list of all materials and work requiring special inspections, and a list of agencies, qualified licensed professionals or firms intended to be retained for conducting those inspections in accordance with the requirements of the building subcode shall be submitted as part of the permit application.

History

HISTORY:

Amended by R.1999 d.424, effective December 6, 1999.

See: 31 N.J.R. 2428(a), 31 N.J.R. 4001(c).

In (d)1, rewrote the first sentence; and in (g)2, deleted "Section 1110 of" following "comply with".

Administrative change.

See: 32 N.J.R. 1380(a).

Amended by R.2003 d.218, effective May 19, 2003.

See: 35 N.J.R. 29(a), 35 N.J.R. 2209(a).

In (d), substituted "Section 705" for "Section 313.1.3"; in (e), substituted "which is allowed by Section 903" for "allowed by Chapter 9" and substituted "Table 302.3.3" for "Section 313.1.2" in the introductory paragraph; in (f), substituted "R-5" for "R-4" in the introductory paragraph.

Amended by R.2004 d.145, effective April 5, 2004.

See: 35 N.J.R. 5190(a), 36 N.J.R. 1758(a).

In (c), deleted "use" preceding "group"; in (d), deleted 1 and recodified former 2 as 1; in (e), substituted "an automatic sprinkler system" for "suppression"; in (f), deleted "Use" preceding "Group" in the introductory paragraph, and substituted "If the cumulative area of all floors of the addition(s)" for "If the area of the addition" at the beginning of 1 and 2.

Amended by R.2007 d.122, effective May 7, 2007.

See: 38 N.J.R. 4951(a), 39 N.J.R. 1673(a).

In (e), substituted "508.3.3" for "302.3.3".

Amended by R.2009 d.117, effective April 20, 2009.

See: 41 N.J.R. 18(a), 41 N.J.R. 1726(a).

In the introductory paragraph of (e), substituted "fire barrier or horizontal assembly, or both, having a fire resistance rating" for "fire separation assembly" and "706.3.9" for "508.3.3", and inserted "; mixed

occupancies shall use the highest applicable rating from Table 706.3.9"; in the introductory paragraph of (f) and in (f)1 and (f)2, substituted "alarms" for "detectors"; and in (f)1 and (f)2, inserted "or one- and two-family dwelling subcode, as applicable".

Amended by R.2011 d.270, effective November 7, 2011.

See: 43 N.J.R. 1297(a), 43 N.J.R. 2999(a).

In the introductory paragraph of (d), substituted "706" for "705"; in the introductory paragraph of (e), substituted "707.3.9" for "706.3.9" twice; and added (i).

Amended by R.2017 d.077, effective May 1, 2017.

See: 48 N.J.R. 1854(a), 49 N.J.R. 1020(a).

In the introductory paragraph of (e), substituted "707.3.10" for "707.3.9" twice; in the introductory paragraph of (f), deleted "detached, single-family" preceding "dwelling"; in (f)1 and (f)2, substituted "dwelling" for "building" throughout; in the introductory paragraph of (g), substituted "Chapter 11 of the building subcode for accessibility" for "the barrier free subcode (N.J.A.C. 5:23-7)"; in (g)2, substituted "Chapter 11 of the building" for "the barrier free"; and in (i), substituted "1" for "I".

Amended by R.2023 d.030, effective March 6, 2023.

See: 54 N.J.R. 1661(a), 55 N.J.R. 349(a).

In the introductory paragraph of (g), substituted "at" for "of"; and in (g)1, substituted "60" for "50".

Amended by R.2025 d.093, effective August 18, 2025.

See: 56 N.J.R. 1837(a), 57 N.J.R. 1817(a).

Added new (h); recodified former (h) through (i) as (i) through (j).

Amended by R.2026 d.087, effective August 17, 2026.

See: 57 N.J.R. 2333(a), 58 N.J.R. 1882(a).

Added (h)1; recodified former (h)1 as new (h)2; and rewrote (h)2.

Annotations

Notes

Chapter Notes

NEW JERSEY ADMINISTRATIVE CODE

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End of Document

N.J.A.C. 5:23-6.33

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*NJ - New Jersey Administrative Code > TITLE 5. COMMUNITY AFFAIRS > CHAPTER 23. UNIFORM
CONSTRUCTION CODE > SUBCHAPTER 6. REHABILITATION SUBCODE*

§ 5:23-6.33 Historic buildings

(a) Except as provided for in this section, historic buildings shall comply with the provisions of this subcode relating to the repair, renovation, alteration, restoration, reconstruction, movement and/or change of use of structures.

1. For purposes of applying this section, historic buildings shall include any building that meets one or more of the following criteria:

- i. Buildings listed on the New Jersey or National Registers of Historic Places either individually or as a contributing building to a historic district;
- ii. Buildings that have been issued a Determination of Eligibility by the Keeper of the National Register of Historic Places;
- iii. Buildings identified as contributing buildings to Local Historic Districts which have been certified by the Keeper of the National Register as substantially meeting the National Register Criteria; or
- iv. Buildings with a State Historic Preservation Officer Opinion or Certification that the property is eligible to be listed on the National Register of Historic Places either individually or as a contributing building to a historic district.

2. Variations: Building owners wishing to use an alternative to compliance with specific provisions of this subcode shall submit request(s) for variations in writing in accordance with N.J.A.C. 5:23-2.10. Requests for variations shall identify all nonconformities with the requirements of this subcode and shall include: a statement of the requirements of this subcode

from which a variation is sought, a statement of the manner by which strict compliance with the provisions of this subcode would result in practical difficulties or would detract from the historic character of the building and a statement of feasible alternatives to the requirements of this subcode that would adequately protect the health, safety and welfare of the intended occupants and of the public generally.

i. The provisions of N.J.A.C. 5:23-2.10, Variations, notwithstanding, a variation may be granted where no feasible alternative to the strict requirements of the subcode exists, provided that the owner submits a finding by a qualified architect that the feature of the building which cannot be brought into strict compliance with the requirements of this subcode is essential to maintaining the historical value and character of the building. Any such finding submitted in support of a variation application shall be in writing and shall state the basis and reasons for the finding.

ii. Variations to applicable barrier free requirements may be granted only if the historic character of the building would be threatened or destroyed as determined by the New Jersey State Historic Preservation Office.

3. When a historic building is used as a historic museum, the building shall be classified as Group B provided that the following conditions are met:

i. A limit on occupancy, not to exceed 50, is set by the construction official based on egress capacity and travel distance using the following parameters:

(1) For buildings with a single means of egress, occupancy shall be limited to the first and second floors, and the travel distance shall not exceed 75 feet;

(2) Two means of egress shall be required from all floors above the second floor where occupancy is permitted.

ii. There is supervision by a guide or other employee or volunteer knowledgeable in the emergency exiting procedures during all times that the building is occupied by visitors.

(Plan review--Building, Fire. Inspection--Building)

(b) Special provisions: Historic buildings undergoing repair, renovation, alteration, restoration or reconstruction consistent with the U.S. Secretary of the Interior Standards for the Treatment of Historic Properties may comply with the following in lieu of compliance with the corresponding requirements of this subcode.

- 1.** Materials and methods: Original or replica materials and original methods of construction may be used, subject to the provisions of this section.
 - i.** Exception: Components of building systems hidden from public view, including but not limited to electrical equipment and wiring, plumbing equipment and piping and heating equipment, shall comply with N.J.A.C. 5:23-6.8, Materials and methods. (Plan review--Building, Fire. Inspection--Building)
- 2.** Exterior Walls: Exterior walls shall not be required to be modified to meet the requirements for fireresistive wall construction. (Plan review--Building, Fire. Inspection--Building)
- 3.** One hour fireresistive assemblies: Where one hour fireresistive construction is required by this subcode, it need not be provided regardless of construction or occupancy where the existing wall and ceiling finish is lath and plaster. (Plan review--Building, Fire. Inspection--Building)
- 4.** Roof covering: Historic buildings shall meet the intent of Section 1504 of the building subcode, but shall not be required to meet Sections 1506 and 1507. The existing type of roof covering may be continued or replaced with the same materials or the preexisting materials may be replaced or restored if the materials are documented to be historic. (Building)
- 5.** Means of Egress: Existing door openings and corridor and stairway widths of less than that specified in N.J.A.C. 5:23-6.10 through 6.30 may be approved, provided that, in the opinion of the subcode official, there is sufficient width and height for a person to pass through the opening or traverse the exit. (Plan review--Building, Fire. Inspection--Building)
- 6.** Doors: The existing front or main exit doors need not swing in the direction of exit travel when serving fewer than 50 people or when other approved exits having sufficient capacity to serve the total occupant load are provided.

- i. Existing or replica hardware shall be permitted provided that no life safety hazard is created and that the hardware meets the intent of the barrier free subcode if applicable (that is, operable without pinching, grasping or twisting.) Existing or replica hardware may be fixed in place or modified to meet the intent of the barrier free subcode. (Plan review--Building, Fire. Inspection--Building)
- 7. Transoms: Existing transoms in corridors and other fire rated walls may be retained in accordance with this subcode. (Plan review--Building, Fire. Inspection--Building)
- 8. Interior Finishes: The existing finishes or replacement finishes on corridor walls and ceilings may be accepted where it is demonstrated that it is the historic finish.
 - i. In buildings other than Group R-3 or R-5, finishes in exitways shall have a flame-spread classification of Class III or better. Existing nonconforming materials shall be surfaced with an approved fire-retardant paint or finish unless the building is equipped throughout with an automatic sprinkler system installed in accordance with the building subcode. (Plan review--Building, Fire. Inspection--Building)
- 9. Stairways: Stairways shall comply with the following:
 - i. Enclosure: Stairway enclosures may be omitted in a historic building for that portion of the stair serving the first and second floor. This provision shall be applied to only one stair per building.
 - (1) In buildings of three stories or less, exit enclosure construction shall limit the spread of smoke by the use of tight fitting doors and solid elements. Such elements shall not require a fireresistance rating.
 - ii. Riser height and tread width: When stairs are replaced or repaired, the existing or original riser height and tread width shall be permitted to remain. (Plan review--Building, Fire. Inspection--Building)
- 10. Railings: Railings shall comply with the following:

i. Handrails: Existing handrails may remain or may be replaced with handrails matching the original handrails.

ii. Guardrails: For vertical drops of between 30 inches and 48 inches, a rail height of at least 30 inches shall be accepted and the existing or original baluster spacing shall be permitted to remain.

(1) Exception: Replacement guardrails in buildings of Group E or R-1 shall comply with Sections 1015.2 through 1015.7 of the building subcode. (Plan review--Building, Fire. Inspection--Building)

11. Exit Signs: The fire protection subcode official may accept alternate exit sign design and/or location where strict compliance would damage the historic character of the building. Alternative signs shall identify the exits and exit path. (Plan review--Building, Fire. Inspection--Building)

12. Ceiling height: Existing ceiling heights shall be permitted to remain.

i. Exception: Buildings of Group R-1 or R-2 shall comply with the applicable requirements of the Hotel and Multiple Dwelling Regulations (N.J.A.C. 5:10) or shall obtain an exception under those rules. (Building)

(c) Relocated historic buildings: The following apply to relocated historic buildings:

1. Foundations of relocated historic buildings and structures shall comply with the building subcode. (Building)

2. Relocated historic buildings shall be so sited that exterior walls and openings comply with the requirements of the building subcode. (Plan review--Building, Fire. Inspection--Building)

(d) Special change of use provisions: Compliance with the following and with the provisions of (b) above shall be permitted for any change of use of a historic building provided that the restoration of the building is being performed consistent with the U.S. Secretary of the Interior Standards for the Treatment of Historic Properties.

1. Building Area: The floor area for historic buildings undergoing a change of use to a higher hazard category as per Table E of N.J.A.C. 5:23-6.31 may exceed the allowable areas specified in the building subcode for the proposed group by 50 percent. (Plan review--Building, Fire. Inspection--Building)

History

HISTORY:

Amended by R.1999 d.424, effective December 6, 1999.

See: 31 N.J.R. 2428(a), 31 N.J.R. 4001(c).

In (a), inserted 2ii, deleted a former 3, and recodified former 4 as 3.

Amended by R.2003 d.218, effective May 19, 2003.

See: 35 N.J.R. 29(a), 35 N.J.R. 2209(a).

In (b)4, substituted "Section 1504" for "Section 1505.0" and substituted "Sections 1506 and 1507" for "Section 1507.0"; in (b)8i, inserted "or R-5" after "Use Group R-3"; in (b)10ii(1), substituted "Section 1003.2.12" for "Section 1021.0".

Amended by R.2004 d.145, effective April 5, 2004.

See: 35 N.J.R. 5190(a), 36 N.J.R. 1758(a).

Deleted "Use" preceding "Group" throughout, and substituted references to automatic sprinkler for references to fire suppression in (b)8i.

Administrative correction.

See: 36 N.J.R. 3398(b).

Amended by R.2007 d.122, effective May 7, 2007.

See: 38 N.J.R. 4951(a), 39 N.J.R. 1673(a).

In (b)10ii(1), substituted "1013.1" for "1003.2.12".

Amended by R.2017 d.077, effective May 1, 2017.

See: 48 N.J.R. 1854(a), 49 N.J.R. 1020(a).

In (b)10ii(1), substituted "1015.2 through 1015.7" for "1013.1".

Annotations

Notes

Chapter Notes

NEW JERSEY ADMINISTRATIVE CODE

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